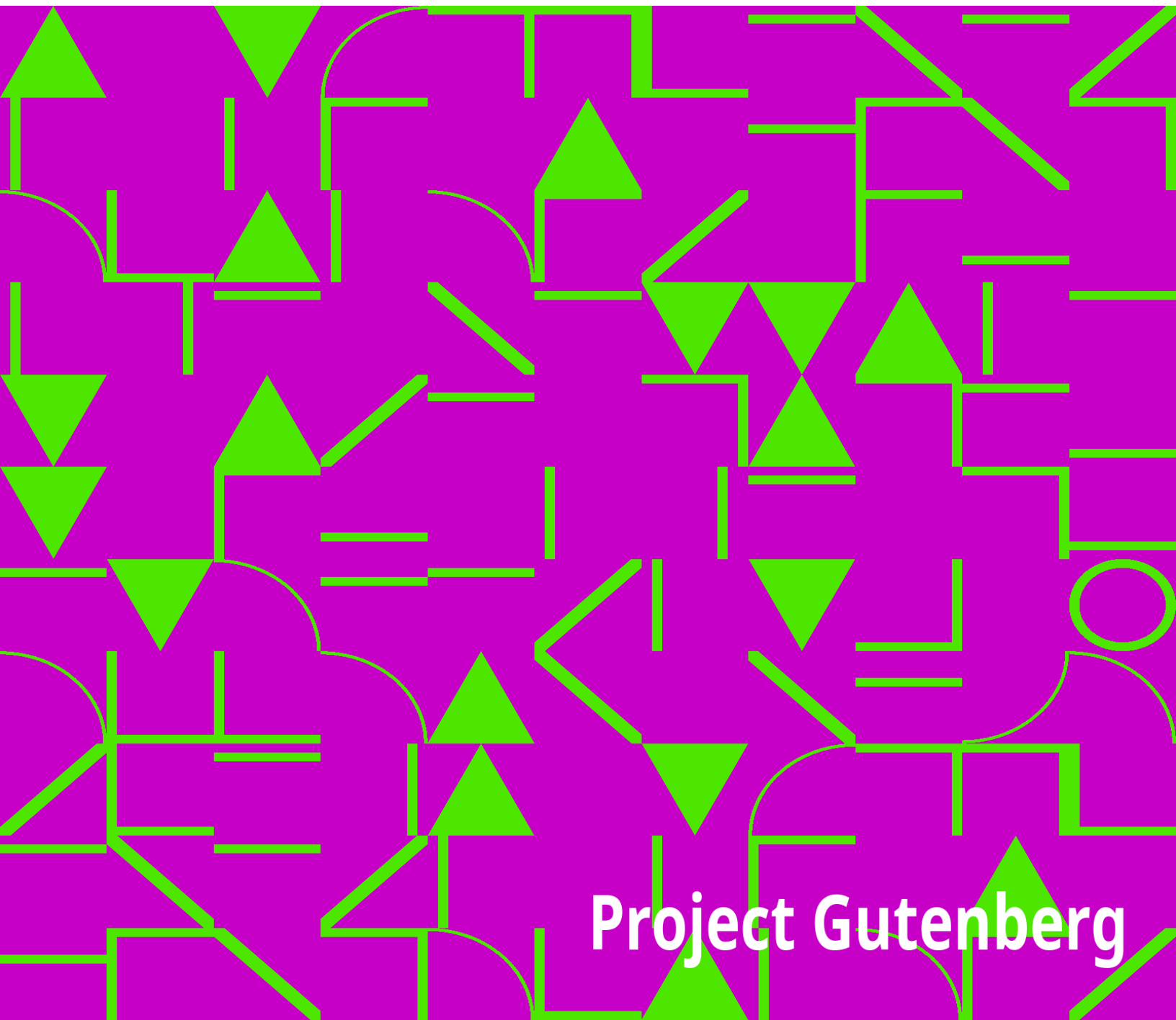


A Supplement to A Compilation of the Messages and Papers of the Presidents: William McKinley

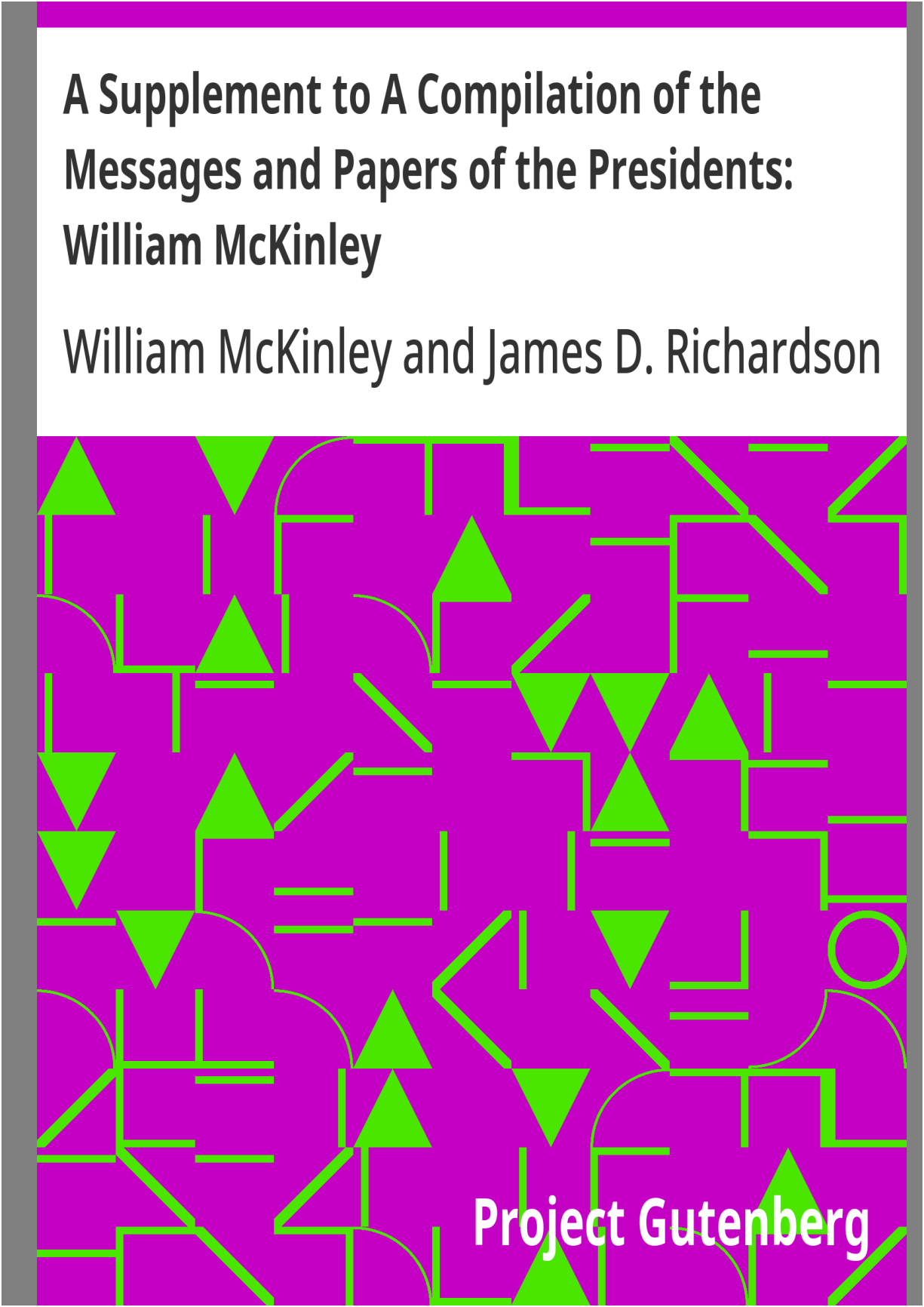
William McKinley and James D. Richardson

An abstract geometric pattern consisting of various shapes like triangles, squares, and circles in shades of blue, green, and yellow, set against a dark background.

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Messages and Papers of the Presidents:
William McKinley**

William McKinley and James D. Richardson



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TO A COMPILATION OF THE MESSAGES AND PAPERS OF THE
PRESIDENTS: WILLIAM MCKINLEY ***

A Supplement to

**A COMPILATION OF THE
MESSAGES AND PAPERS OF
THE PRESIDENTS**

1789-1902

BY JAMES D. RICHARDSON

A REPRESENTATIVE FROM THE STATE OF TENNESSEE

COMPILED AND ARRANGED BY
GEORGE RAYWOOD DEVITT, M.A.
MEMBER NATIONAL GEOGRAPHIC SOCIETY, ETC., ETC.
THIS VOLUME PUBLISHED BY AUTHORITY OF
BUREAU OF NATIONAL LITERATURE AND ART
1904

Prefatory Note

As the exigencies which prompted, at a late date, the change of plans in the compilation of this work, left the messages and papers of the McKinley administration incomplete and defective, it has been felt that the time has now arrived for their collection. In this supplement are included the messages, proclamations and executive orders of President McKinley which do not appear in Volume X, and those of his successor, President Roosevelt, to date. They set forth the home affairs of the nation, and illustrate the stability of the government and institutions of the United States. They demonstrate that affairs were conducted with attention and directness unaffected by the apparently distracting, but glorious, incidents, which marked her interposition by arms and the extension of her sheltering aegis to Cuba. They teach us that the foundations of this country are deep-rooted and that the process of nation-building, as recounted in these volumes, has proceeded upon right lines and with an unbounded fidelity to principle and purpose.

GEORGE RAYWOOD DEVITT.

WASHINGTON, D.C., *October 1, 1902.*

SUPPLEMENT

William McKinley

March 4, 1897, to September 14, 1901

**Additional Messages, Proclamations, Executive Orders and Last Public
Utterance to the People at Buffalo**

William McKinley

(For portrait and early biographical sketch see Vol. X, pp. 125, 126, 127)

At the National Republican Convention which met at Philadelphia in June, 1901, William McKinley was again nominated the Republican candidate for the Presidency of the United States. At the November election he was re-elected, receiving 292 electoral votes, against 155 votes for William J. Bryan.

In September, 1901, he accepted an invitation to be present at the Pan-American Exposition at Buffalo. On September 5 he delivered his last public utterance to the people, in the Temple of Music, to a vast audience. The next day, returning from a short trip to Niagara Falls, he yielded to the wishes of the people and held a reception in the Temple. Among those who, passing in single file, took him by the hand, was one who approached with his hand wrapped and held to his breast as though injured. Concealed within the covering was a loaded revolver; and as he gave his other hand to the President, a token of friendship, he quickly fired two shots, from the effects of which the President sank into the arms of those near him. He was taken to the residence of Mr. John G. Milburn, President of the Exposition Company, where on September 14, 1901, after an unexpected relapse, he died. The body was taken to Washington, D.C., and the state funeral was held in the rotunda of the Capitol. Thence the body was taken to his home in Canton, Ohio, for interment.

The period covered by the administration of William McKinley was, undoubtedly, more crowded with events calculated to try and to touch the very heart of the nation than was any period since the Civil War. The United States has passed through crisis after crisis in quick succession and has emerged not only in safety but with untarnished honor, increased glory, and the great consciousness of solidarity and unification. This is attested by the wise management of affairs in connection with the Nicaragua Canal; the increase of the navy, the formation of an army and the imposition of taxes which in no way impeded the march of industry; the settlement of railway

claims; and the successful starting in life of Cuba and the administration of far colonial affairs. Aside from the wise counsels of the Executive of the nation, the calmness and cool action of the people, amid distracting and perplexing events, have contributed to the honor of the nation in no slight degree. All of this, and more, was abundantly testified to, at the time of the deplorable circumstances attending William McKinley's death by the unexampled outburst throughout the world of sympathy with the bereaved nation and of admiration for the man.

INAUGURAL ADDRESS

Fellow-Citizens:

In obedience to the will of the people, and in their presence, by the authority vested in me by this oath, I assume the arduous and responsible duties of President of the United States, relying upon the support of my countrymen and invoking the guidance of Almighty God. Our faith teaches that there is no safer reliance than upon the God of our fathers, who has so singularly favored the American people in every national trial, and who will not forsake us so long as we obey His commandments and walk humbly in His footsteps.

The responsibilities of the high trust to which I have been called—always of grave importance—are augmented by the prevailing business conditions, entailing idleness upon willing labor and loss to useful enterprises. The country is suffering from industrial disturbances from which speedy relief must be had. Our financial system needs some revision; our money is all good now, but its value must not further be threatened. It should all be put on an enduring basis, not subject to easy attack, nor its stability to doubt or dispute. Our currency should continue under the supervision of the Government. The several forms of our paper money offer, in my judgment, a constant embarrassment to the Government and a safe balance in the Treasury. Therefore I believe it necessary to devise a system which, without diminishing the circulating medium or offering a premium for its contraction, will present a remedy for those arrangements which, temporary in their nature, might well in the years of our prosperity have been displaced by wiser provisions. With adequate revenue secured, but not until then, we can enter upon such changes in our fiscal laws as will, while insuring safety and volume to our money, no longer impose upon the Government the necessity of maintaining so large a gold reserve, with its attendant and inevitable temptations to speculation. Most of our financial laws are the outgrowth of experience and trial, and should not be amended without investigation and demonstration of the wisdom of the proposed changes. We must be both "sure we are right," and "make haste slowly." If,

therefore, Congress, in its wisdom, shall deem it expedient to create a commission to take under early consideration the revision of our coinage, banking and currency laws, and give them that exhaustive, careful and dispassionate examination that their importance demands, I shall cordially concur in such action. If such power is vested in the President, it is my purpose to appoint a commission of prominent, well-informed citizens of different parties, who will command public confidence, both on account of their ability and special fitness for the work. Business experience and public training may thus be combined, and the patriotic zeal of the friends of the country be so directed that such a report will be made as to receive the support of all parties, and our finances cease to be the subject of mere partisan contention. The experiment is, at all events, worth a trial, and, in my opinion, it can but prove beneficial to the entire country.

The question of international bimetallism will have early and earnest attention. It will be my constant endeavor to secure it by co-operation with the other great commercial powers of the world. Until that condition is realized when the parity between our gold and silver money springs from and is supported by the relative value of the two metals, the value of the silver already coined and of that which may hereafter be coined, must be kept constantly at par with gold by every resource at our command. The credit of the Government, the integrity of its currency, and the inviolability of its obligations must be preserved. This was the commanding verdict of the people, and it will not be unheeded.

Economy is demanded in every branch of the Government at all times, but especially in periods, like the present, of depression in business and distress among the people. The severest economy must be observed in all public expenditures, and extravagance stopped wherever it is found, and prevented wherever in the future it may be developed. If the revenues are to remain as now, the only relief that can come must be from decreased expenditures. But the present must not become the permanent condition of the Government. It has been our uniform practice to retire, not increase our outstanding obligations, and this policy must again be resumed and vigorously enforced. Our revenues should always be large enough to meet with ease and promptness not only our current needs and the principal and interest of the public debt, but to make proper and liberal provision for that

most deserving body of public creditors, the soldiers and sailors and the widows and orphans who are the pensioners of the United States.

The Government should not be permitted to run behind or increase its debt in times like the present. Suitably to provide against this is the mandate of duty—the certain and easy remedy for most of our financial difficulties. A deficiency is inevitable so long as the expenditures of the Government exceed its receipts. It can only be met by loans or an increased revenue. While a large annual surplus of revenue may invite waste and extravagance, inadequate revenue creates distrust and undermines public and private credit. Neither should be encouraged. Between more loans and more revenue there ought to be but one opinion. We should have more revenue, and that without delay, hindrance, or postponement. A surplus in the Treasury created by loans is not a permanent or safe reliance. It will suffice while it lasts, but it can not last long while the outlays of the Government are greater than its receipts, as has been the case during the past two years. Nor must it be forgotten that however much such loans may temporarily relieve the situation, the Government is still indebted for the amount of the surplus thus accrued, which it must ultimately pay, while its ability to pay is not strengthened, but weakened by a continued deficit. Loans are imperative in great emergencies to preserve the Government or its credit, but a failure to supply needed revenue in time of peace for the maintenance of either has no justification.

The best way for the Government to maintain its credit is to pay as it goes—not by resorting to loans, but by keeping out of debt—through an adequate income secured by a system of taxation, external or internal, or both. It is the settled policy of the Government, pursued from the beginning and practised by all parties and Administrations, to raise the bulk of our revenue from taxes upon foreign productions entering the United States for sale and consumption, and avoiding, for the most part, every form of direct taxation, except in time of war. The country is clearly opposed to any needless additions to the subject of internal taxation, and is committed by its latest popular utterance to the system of tariff taxation. There can be no misunderstanding, either, about the principle upon which this tariff taxation shall be levied. Nothing has ever been made plainer at a general election than that the controlling principle in the raising of revenue from duties on imports is zealous care for American interests and American labor. The

people have declared that such legislation should be had as will give ample protection and encouragement to the industries and the development of our country. It is, therefore, earnestly hoped and expected that Congress will, at the earliest practicable moment, enact revenue legislation that shall be fair, reasonable, conservative, and just, and which, while supplying sufficient revenue for public purposes, will still be signally beneficial and helpful to every section and every enterprise of the people. To this policy we are all, of whatever party, firmly bound by the voice of the people—a power vastly more potential than the expression of any political platform. The paramount duty of Congress is to stop deficiencies by the restoration of that protective legislation which has always been the firmest prop of the Treasury. The passage of such a law or laws would strengthen the credit of the Government both at home and abroad, and go far toward stopping the drain upon the gold reserve held for the redemption of our currency, which has been heavy and well-nigh constant for several years.

In the revision of the tariff especial attention should be given to the re-enactment and extension of the reciprocity principle of the law of 1890, under which so great a stimulus was given to our foreign trade in new and advantageous markets for our surplus agricultural and manufactured products. The brief trial given this legislation amply justifies a further experiment and additional discretionary power in the making of commercial treaties, the end in view always to be the opening up of new markets for the products of our country, by granting concessions to the products of other lands that we need and cannot produce ourselves, and which do not involve any loss of labor to our own people, but tend to increase their employment.

The depression of the past four years has fallen with especial severity upon the great body of toilers of the country, and upon none more than the holders of small farms. Agriculture has languished and labor suffered. The revival of manufacturing will be a relief to both. No portion of our population is more devoted to the institution of free government nor more loyal in their support, while none bears more cheerfully or fully its proper share in the maintenance of the Government or is better entitled to its wise and liberal care and protection. Legislation helpful to producers is beneficial to all. The depressed condition of industry on the farm and in the mine and factory has lessened the ability of the people to meet the demands upon them, and they rightfully expect that not only a system of revenue

shall be established that will secure the largest income with the least burden, but that every means will be taken to decrease, rather than increase, our public expenditures. Business conditions are not the most promising. It will take time to restore the prosperity of former years. If we cannot promptly attain it, we can resolutely turn our faces in that direction and aid its return by friendly legislation. However troublesome the situation may appear, Congress will not, I am sure, be found lacking in disposition or ability to relieve it as far as legislation can do so. The restoration of confidence and the revival of business, which men of all parties so much desire, depend more largely upon the prompt, energetic, and intelligent action of Congress than upon any other single agency affecting the situation.

It is inspiring, too, to remember that no great emergency in the one hundred and eight years of our eventful national life has ever arisen that has not been met with wisdom and courage by the American people, with fidelity to their best interests and highest destiny, and to the honor of the American name. These years of glorious history have exalted mankind and advanced the cause of freedom throughout the world, and immeasurably strengthened the precious free institutions which we enjoy. The people love and will sustain these institutions. The great essential to our happiness and prosperity is that we adhere to the principles upon which the Government was established and insist upon their faithful observance. Equality of rights must prevail, and our laws be always and everywhere respected and obeyed. We may have failed in the discharge of our full duty as citizens of the great Republic, but it is consoling and encouraging to realize that free speech, a free press, free thought, free schools, the free and unmolested right of religious liberty and worship, and free and fair elections are dearer and more universally enjoyed to-day than ever before. These guaranties must be sacredly preserved and wisely strengthened. The constituted authorities must be cheerfully and vigorously upheld. Lynchings must not be tolerated in a great and civilized country like the United States; courts, not mobs, must execute the penalties of the law. The preservation of public order, the right of discussion, the integrity of courts, and the orderly administration of justice must continue forever the rock of safety upon which our Government securely rests.

One of the lessons taught by the late election, which all can rejoice in, is that the citizens of the United States are both law-respecting and law-abiding people, not easily swerved from the path of patriotism and honor. This is in entire accord with the genius of our institutions, and but emphasizes the advantages of inculcating even a greater love for law and order in the future. Immunity should be granted to none who violate the laws, whether individuals, corporations, or communities; and as the Constitution imposes upon the President the duty of both its own execution, and of the statutes enacted in pursuance of its provisions, I shall endeavor carefully to carry them into effect. The declaration of the party now restored to power has been in the past that of "opposition to all combinations of capital organized in trusts, or otherwise, to control arbitrarily the condition of trade among our citizens," and it has supported "such legislation as will prevent the execution of all schemes to oppress the people by undue charges on their supplies, or by unjust rates for the transportation of their products to the market." This purpose will be steadily pursued, both by the enforcement of the laws now in existence and the recommendation and support of such new statutes as may be necessary to carry it into effect.

Our naturalization and immigration laws should be further improved to the constant promotion of a safer, a better, and a higher citizenship. A grave peril to the Republic would be a citizenship too ignorant to understand or too vicious to appreciate the great value and beneficence of our institutions and laws, and against all who come here to make war upon them our gates must be promptly and tightly closed. Nor must we be unmindful of the need of improvement among our own citizens, but with the zeal of our forefathers encourage the spread of knowledge and free education. Illiteracy must be banished from the land if we shall attain that high destiny as the foremost of the enlightened nations of the world which, under Providence, we ought to achieve.

Reforms in the civil service must go on; but the changes should be real and genuine, not perfunctory, or prompted by a zeal in behalf of any party simply because it happens to be in power. As a member of Congress I voted and spoke in favor of the present law, and I shall attempt its enforcement in the spirit in which it was enacted. The purpose in view was to secure the most efficient service of the best men who would accept appointment under the Government, retaining faithful and devoted public servants in office, but

shielding none, under the authority of any rule or custom, who are inefficient, incompetent, or unworthy. The best interests of the country demand this, and the people heartily approve the law wherever and whenever it has been thus administrated.

Congress should give prompt attention to the restoration of our American merchant marine, once the pride of the seas in all the great ocean highways of commerce. To my mind, few more important subjects so imperatively demand its intelligent consideration. The United States has progressed with marvelous rapidity in every field of enterprise and endeavor until we have become foremost in nearly all the great lines of inland trade, commerce, and industry. Yet, while this is true, our American merchant marine has been steadily declining until it is now lower, both in the percentage of tonnage and the number of vessels employed, than it was prior to the Civil War. Commendable progress has been made of late years in the upbuilding of the American Navy, but we must supplement these efforts by providing as a proper consort for it a merchant marine amply sufficient for our own carrying trade to foreign countries. The question is one that appeals both to our business necessities and the patriotic aspirations of a great people.

It has been the policy of the United States since the foundation of the Government to cultivate relations of peace and amity with all the nations of the world, and this accords with my conception of our duty now. We have cherished the policy of non-interference with the affairs of foreign governments wisely inaugurated by Washington, keeping ourselves free from entanglement, either as allies or foes, content to leave undisturbed with them the settlement of their own domestic concerns. It will be our aim to pursue a firm and dignified foreign policy, which shall be just, impartial, ever watchful of our national honor, and always insisting upon the enforcement of the lawful rights of American citizens everywhere. Our diplomacy should seek nothing more and accept nothing less than is due us. We want no wars of conquest; we must avoid the temptation of territorial aggression. War should never be entered upon until every agency of peace has failed; peace is preferable to war in almost every contingency. Arbitration is the true method of settlement of international as well as local or individual differences. It was recognized as the best means of adjustment of differences between employers and employees by the Forty-ninth Congress, in 1886, and its application was extended to our diplomatic

relations by the unanimous concurrence of the Senate and House of the Fifty-first Congress in 1890. The latter resolution was accepted as the basis of negotiations with us by the British House of Commons in 1893, and upon our invitation a treaty of arbitration between the United States and Great Britain was signed at Washington and transmitted to the Senate for its ratification in January last. Since this treaty is clearly the result of our own initiative; since it has been recognized as the leading feature of our foreign policy throughout our entire national history—the adjustment of difficulties by judicial methods rather than force of arms—and since it presents to the world the glorious example of reason and peace, not passion and war, controlling the relations between two of the greatest nations in the world, an example certain to be followed by others, I respectfully urge the early action of the Senate thereon, not merely as a matter of policy, but as a duty to mankind. The importance and moral influence of the ratification of such a treaty can hardly be overestimated in the cause of advancing civilization. It may well engage the best thought of the statesmen and people of every country, and I cannot but consider it fortunate that it was reserved to the United States to have the leadership in so grand a work.

It has been the uniform practice of each President to avoid, as far as possible, the convening of Congress in extraordinary session. It is an example which, under ordinary circumstances and in the absence of a public necessity, is to be commended. But a failure to convene the representatives of the people in Congress in extra session when it involves neglect of a public duty places the responsibility of such neglect upon the Executive himself. The condition of the public Treasury, as has been indicated, demands the immediate consideration of Congress. It alone has the power to provide revenues for the Government. Not to convene it under such circumstances I can view in no other sense than the neglect of a plain duty. I do not sympathize with the sentiment that Congress in session is dangerous to our general business interests. Its members are the agents of the people, and their presence at the seat of Government in the execution of the sovereign will should not operate as an injury, but a benefit. There could be no better time to put the Government upon a sound financial and economic basis than now. The people have only recently voted that this should be done, and nothing is more binding upon the agents of their will than the obligation of immediate action. It has always seemed to me that the

postponement of the meeting of Congress until more than a year after it has been chosen deprived Congress too often of the inspiration of the popular will and the country of the corresponding benefits. It is evident, therefore, that to postpone action in the presence of so great a necessity would be unwise on the part of the Executive because unjust to the interests of the people. Our action now will be freer from mere partisan consideration than if the question of tariff revision was postponed until the regular session of Congress. We are nearly two years from a Congressional election, and politics cannot so greatly distract us as if such contest was immediately pending. We can approach the problem calmly and patriotically, without fearing its effect upon an early election.

Our fellow-citizens who may disagree with us upon the character of this legislation prefer to have the question settled now, even against their preconceived views, and perhaps settled so reasonably, as I trust and believe it will be, as to insure great permanence, than to have further uncertainty menacing the vast and varied business interests of the United States. Again, whatever action Congress may take will be given a fair opportunity for trial before the people are called to pass judgment upon it, and this I consider a great essential to the rightful and lasting settlement of the question. In view of these considerations, I shall deem it my duty as President to convene Congress in extraordinary session on Monday, the 15th day of March, 1897.

In conclusion, I congratulate the country upon the fraternal spirit of the people and the manifestations of good will everywhere so apparent. The recent election not only most fortunately demonstrated the obliteration of sectional or geographical lines, but to some extent also the prejudices which for years have distracted our councils and marred our true greatness as a nation. The triumph of the people, whose verdict is carried into effect to-day, is not the triumph of one section, nor wholly of one party, but of all sections and all the people. The North and the South no longer divide on the old lines, but upon principles and policies; and in this fact surely every lover of the country can find cause for true felicitation. Let us rejoice in and cultivate this spirit; it is ennobling and will be both a gain and a blessing to our beloved country. It will be my constant aim to do nothing, and permit nothing to be done, that will arrest or disturb this growing sentiment of unity and co-operation, this revival of esteem and affiliation which now

animates so many thousands in both the old antagonistic sections, but I shall cheerfully do everything possible to promote and increase it.

Let me again repeat the words of the oath administered by the Chief Justice which, in their respective spheres, so far as applicable, I would have all my countrymen observe: "I will faithfully execute the office of President of the United States, and will, to the best of my ability, preserve, protect, and defend the Constitution of the United States." This is the obligation I have reverently taken before the Lord Most High. To keep it will be my single purpose, my constant prayer; and I shall confidently rely upon the forbearance and assistance of all the people in the discharge of my solemn responsibilities.

MESSAGES.

EXECUTIVE MANSION, *March 15, 1897.*

To the Congress of the United States:

Regretting the necessity which has required me to call you together, I feel that your assembling in extraordinary session is indispensable because of the condition in which we find the revenues of the Government. It is conceded that its current expenditures are greater than its receipts, and that such a condition has existed for now more than three years. With unlimited means at our command, we are presenting the remarkable spectacle of increasing our public debt by borrowing money to meet the ordinary outlays incident upon even an economical and prudent administration of the Government. An examination of the subject discloses this fact in every detail and leads inevitably to the conclusion that the condition of the revenue which allows it is unjustifiable and should be corrected.

We find by the reports of the Secretary of the Treasury that the revenues for the fiscal year ending June 30, 1892, from all sources were \$425,868,260.22, and the expenditures for all purposes were \$415,953,806.56, leaving an excess of receipts over expenditures of \$9,914,453.66. During that fiscal year \$40,570,467.98 were paid upon the public debt, which had been reduced since March 1, 1889, \$259,076,890, and the annual interest charge decreased \$11,684,576.60. The receipts of the Government from all sources during the fiscal year ending June 30, 1893, amounted to \$461,716,561.94, audits expenditures to \$459,374,887.65, showing an excess of receipts over expenditures of \$2,341,674.29.

Since that time the receipts of no fiscal year, and with but few exceptions of no month of any fiscal year, have exceeded the expenditures. The receipts of the Government, from all sources, during the fiscal year ending June 30, 1894, were \$372,802,498.29, and its expenditures \$442,605,758.87, leaving a deficit, the first since the resumption of specie payments, of \$69,803,260.58. Notwithstanding there was a decrease of \$16,769,128.78 in the ordinary expenses of the Government, as compared

with the previous fiscal year, its income was still not sufficient to provide for its daily necessities, and the gold reserve in the Treasury for the redemption of greenbacks was drawn upon to meet them. But this did not suffice, and the Government then resorted to loans to replenish the reserve.

In February, 1894, \$50,000,000 in bonds were issued, and in November following a second issue of \$50,000,000 was deemed necessary. The sum of \$117,171,795 was realized by the sale of these bonds, but the reserve was steadily decreased until, on February 8, 1895, a third sale of \$62,315,400 in bonds, for \$65,116,244, was announced to Congress.

The receipts of the Government for the fiscal year ending June 30, 1895, were \$390,373,203.30 and the expenditures \$433,178,426.48, showing a deficit of \$42,805,223.18. A further loan of \$100,000,000 was negotiated by the Government in February, 1896, the sale netting \$111,166,246, and swelling the aggregate of bonds issued within three years to \$262,315,400. For the fiscal year ending June 30, 1896, the revenues of the Government from all sources amounted to \$409,475,408.78, while its expenditures were \$434,678,654.48, or an excess of expenditures over receipts of \$25,203,245.70. In other words, the total receipts for the three fiscal years ending June 30, 1896, were insufficient by \$137,811,729.46 to meet the total expenditures.

Nor has this condition since improved. For the first half of the present fiscal year, the receipts of the Government, exclusive of postal revenues, were \$157,507,603.76, and its expenditures, exclusive of postal service, \$195,410,000.22, or an excess of expenditures over receipts of \$37,902,396.46. In January of this year, the receipts, exclusive of postal revenues, were \$24,316,994.05, and the expenditures, exclusive of postal service, \$30,269,389.29, a deficit of \$5,952,395.24 for the month. In February of this year, the receipts, exclusive of postal revenues, were \$24,400,997.38, and expenditures, exclusive of postal service, \$28,796,056.66, a deficit of \$4,395,059.28; or a total deficiency of \$186,061,580.44 for the three years and eight months ending March 1, 1897. Not only are we without a surplus in the Treasury, but with an increase in the public debt there has been a corresponding increase in the annual interest charge, from \$22,893,883.20 in 1892, the lowest of any year since 1862, to \$34,387,297.60 in 1896, or an increase of \$11,493,414.40.

It may be urged that even if the revenues of the Government had been sufficient to meet all its ordinary expenses during the past three years, the gold reserve would still have been insufficient to meet the demands upon it, and that bonds would necessarily have been issued for its repletion. Be this as it may, it is clearly manifest, without denying or affirming the correctness of such a conclusion, that the debt would have been decreased in at least the amount of the deficiency, and business confidence immeasurably strengthened throughout the country.

Congress should promptly correct the existing condition. Ample revenues must be supplied not only for the ordinary expenses of the Government, but for the prompt payment of liberal pensions and the liquidation of the principal and interest of the public debt. In raising revenue, duties should be so levied upon foreign products as to preserve the home market, so far as possible, to our own producers; to revive and increase manufactures; to relieve and encourage agriculture; to increase our domestic and foreign commerce; to aid and develop mining and building; and to render to labor in every field of useful occupation the liberal wages and adequate rewards to which skill and industry are justly entitled. The necessity of the passage of a tariff law which shall provide ample revenue, need not be further urged. The imperative demand of the hour is the prompt enactment of such a measure, and to this object I earnestly recommend that Congress shall make every endeavor. Before other business is transacted, let us first provide sufficient revenue to faithfully administer the Government without the contracting of further debt, or the continued disturbance of our finances.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *April 7, 1897.*

To the Senate and House of Representatives:

Information which has recently come to me from the governors of Arkansas, Mississippi, and Louisiana, and from prominent citizens of these States and Tennessee, warrants the conclusion that widespread distress, involving the destruction of a large amount of property and loss of human

life, has resulted from the floods which have submerged that section of the country. These are stated, on reliable authority, to be the most destructive floods that have ever devastated the Mississippi Valley, the water being much higher than the highest stage it has reached before. From Marion, Ark., north of Memphis, to Greenville, Miss., a distance of more than 250 miles by river, it is reported there are now at least fifty towns and villages under water, and a territory extending from 100 miles north of Memphis to 200 miles south, and from 5 to 40 miles wide, is submerged. Hundreds of thousands of acres of cultivated soil, with growing crops, are included in the submerged territory. In this section alone there are from 50,000 to 60,000 people whose property has been destroyed and whose business has been suspended. Growing crops have been ruined, thousands of cattle have been drowned, and the inhabitants of certain areas threatened with starvation. As a great majority of the sufferers are small farmers, they have thus been left entirely destitute, and will be unprepared for work even after the floods have subsided.

The entire Mississippi Valley in Arkansas is flooded and communication with many points cut off. In Mississippi a like condition exists. The levees in Louisiana, with a single exception, have held; but the water is rising and the situation there is reported as being extremely critical.

Under such circumstances the citizens of these States look for the co-operation and support of the National Government in relieving the pressing cases of destitution for food, clothing, and shelter, which are beyond the reach of local efforts. The authorities who have communicated with the Executive recognize that their first and most energetic duty is to provide as far as possible the means of caring for their own citizens; but nearly all of them agree in the opinion that after their resources have been exhausted a sum aggregating at least \$150,000 and possibly \$200,000 will be required for immediate use.

Precedents are not wanting that in such emergencies as this Congress has taken prompt, generous, and intelligent action, involving the expenditure of considerable sums of money, with satisfactory results. In 1874 \$590,000 was appropriated, and in 1882 \$350,000 was also appropriated for relief in same direction, besides large sums in other years.

The citizens' relief committee of Memphis has taken prompt action, has already cared for from 6,000 to 7,000 refugees from the flooded districts, and they are still arriving in that city in large numbers daily. Supplies and provisions have been sent to the various points in Arkansas and Mississippi by this committee, but the utmost that can be done by these efforts is to partly relieve the most acute cases of suffering. No action has yet been taken for the great majority of the inhabitants living in the interior, whose condition has already been described.

Under these conditions and having exerted themselves to the fullest extent, the local authorities have reluctantly confessed their inability to further cope with this distressing situation unaided by relief from the Government. It has therefore seemed to me that the representatives of the people should be promptly informed of the nature and extent of the suffering and needs of these stricken people, and I have communicated these facts in the hope and belief that the legislative branch of the Government will promptly re-enforce the work of the local authorities in the States named.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, April 14, 1897.*

To the Senate and House of Representatives:

I transmit herewith for the consideration of the respective Houses of the Congress, a report of the Secretary of State representing the appropriateness of early action in order that the Government of the United States may be enabled to accept the invitation of that of the French Republic to participate in the Universal Exposition to be held at Paris in 1900.

The recommendations of this report have my most cordial approval, and I urge upon the Congress such timely provision for this great international enterprise as will fittingly respond to the widely testified wish and expectation of our inventors and producers that they may have adequate opportunity again, as in the past, to fortify the important positions that have

won in the world's competitive fields of discovery and industry. Nor are the traditional friendships of the United States and France and the mutual advantages to accrue from their enlarged commercial intercourse less important factors than the individual interests to be fostered by renewed participation in a great French exposition, especially when it is remembered that the present display is projected with a degree of completeness and on a scale of magnificence beyond any of the European exhibitions that have marked the close of the century.

It is proper that I should emphasize the need of early action, for if the present session pass without suitable provision being made, the postponement of the matter for nearly a year longer could not but operate greatly to the disadvantage of the United States, in view of the elaborate preparations already making by other governments, and of the danger that further delay may result in an inadequate allotment of space to this country as well as an incomplete organization of the American exhibit.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, May 3, 1897.*

To the Congress of the United States:

I transmit a report from the Secretary of State reciting the circumstances attending the lynching at Hahnville, La., on the night of August 8, 1896, of three Italian subjects, named Salvatore Arena, Giuseppe Venturelia, and Lorenzo Salardino, and I recommend the appropriation by Congress, without admitting the liability of the Government of the United States in the premises, of the sum of \$6,000, to be paid by the Secretary of State to the Government of Italy, and to be distributed by that government in such manner as it may deem proper among the heirs of the three Italian subjects above named.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, May 13, 1897.*

To the Senate of the United States:

I transmit herewith, in response to the Senate resolution of April 22, 1897, addressed to the Secretary of State, a report from that officer relative to diplomatic and consular reports on postal savings banks systems in foreign countries.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *May 17, 1897.*

To the Senate and House of Representatives of the United States:

Official information from our consuls in Cuba establishes the fact that a large number of American citizens in the island are in a state of destitution, suffering for want of food and medicines. This applies particularly to the rural districts of the central and eastern parts.

The agricultural classes have been forced from their farms into the nearest towns, where they are without work or money. The local authorities of the several towns, however kindly disposed, are unable to relieve the needs of their own people, and are altogether powerless to help our citizens.

The latest report of Consul-General Lee estimates six to eight hundred Americans are without means of support. I have assured him that provision would be made at once to relieve them. To that end I recommend that Congress make an appropriation of not less than \$50,000, to be immediately available for use, under the direction of the Secretary of State.

It is desirable that a part of the sum which may be appropriated by Congress should, in the discretion of the Secretary of State, also be used for the transportation of American citizens who, desiring to return to the United States, are without means to do so.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *July 1, 1897.*

To the Congress of the United States:

On the 15th ultimo all the buildings of the immigration station at Ellis Island, New York, excepting the heating plant and lighting apparatus, were destroyed by fire.

I transmit herewith a letter from the Secretary of the Treasury, which states the fact and explains the need of rebuilding.

In order that there may be no delay in this important work, I recommend that an appropriation be made at once of \$600,000, the sum estimated by the Secretary of the Treasury as required for this purpose.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, July 23, 1897.*

To the Senate of the United States:

I transmit herewith a report from the Acting Secretary of State, with an accompanying paper, in response to the resolution of the Senate of July 12, 1897, requesting the Secretary of State to send to the diplomatic representatives of the United States abroad a circular letter, similar to the one sent by Secretary Elaine on May 20, 1881, instructing them to obtain from the several foreign governments to which they are accredited as full information as possible (including copy of laws relating thereto) as to the nature and practical workings (including expenses, receipts, and rates) of the postal telegraphs, telephones, and postal savings banks of such countries as have adopted the same.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *July 24, 1897.*

To the Congress of the United States:

In my message convening the Congress in extraordinary session I called attention to a single subject—that of providing revenue adequate to meet the reasonable and proper expenses of the Government. I believed that to be the most pressing subject for settlement then. A bill to provide the necessary revenues for the Government has already passed the House of Representatives and the Senate and awaits executive action.

Another question of very great importance is that of the establishment of our currency and banking system on a better basis, which I commented upon in my inaugural address in the following words:

Our financial system needs some revision; our money is all good now, but its value must not further be threatened. It should all be put upon an enduring basis, not subject to easy attack, nor its stability to doubt or dispute. The several forms of our paper money offer, in my judgment, a constant embarrassment to the Government and imperil a safe balance in the Treasury.

Nothing was settled more clearly at the late national election than the determination upon the part of the people to keep their currency stable in value and equal to that of the most advanced nations of the world.

The soundness of our currency is nowhere questioned. No loss can occur to its holders. It is the system which should be simplified and strengthened, keeping our money just as good as it is now with less expense to the Government and the people.

The sentiment of the country is strongly in favor of early action by Congress in this direction, to revise our currency laws and remove them from partisan contention. A notable assembly of business men with delegates from twenty-nine States and Territories was held at Indianapolis in January of this year. The financial situation commanded their earnest

attention, and after a two days' session the convention recommended to Congress the appointment of a monetary commission.

I recommend this report to the consideration of Congress. The authors of the report recommend a commission "to make a thorough investigation of the monetary affairs and needs of this country in all relations and aspects, and to make proper suggestions as to any evils found to exist and the remedies therefor."

This subject should receive the attention of Congress at its special session. It ought not to be postponed until the regular session.

I therefore urgently recommend that a special commission be created, non-partisan in its character, to be composed of well-informed citizens of different parties who will command the confidence of Congress and the country because of their special fitness for the work, whose duty it shall be to make recommendations of whatever changes in our present banking and currency laws may be found necessary and expedient, and to report their conclusions on or before the 1st day of November next, in order that the same may be transmitted by me to Congress for its consideration at its first regular session.

It is to be hoped that the report thus made will be so comprehensive and sound as to receive the support of all parties and the favorable action of Congress. At all events, such a report cannot fail to be of value to the executive branch of the Government, as well as to those charged with public legislation, and to greatly assist in the establishment of an improved system of finance.

WILLIAM McKINLEY.

FIRST ANNUAL MESSAGE.

EXECUTIVE MANSION, *December 6, 1897.*

To the Senate and House of Representatives:

It gives me pleasure to extend greeting to the Fifty-fifth Congress, assembled in regular session at the seat of Government, with many of whose Senators and Representatives I have been associated in the legislative service. Their meeting occurs under felicitous conditions, justifying sincere congratulation and calling for our grateful acknowledgment to a beneficent Providence which has so signally blessed and prospered us as a nation. Peace and good will with all the nations of the earth continue unbroken.

A matter of genuine satisfaction is the growing feeling of fraternal regard and unification of all sections of our country, the incompleteness of which has too long delayed realization of the highest blessings of the Union. The spirit of patriotism is universal and is ever increasing in fervor. The public questions which now most engross us are lifted far above either partisanship, prejudice, or former sectional differences. They affect every part of our common country alike and permit of no division on ancient lines. Questions of foreign policy, of revenue, the soundness of the currency, the inviolability of national obligations, the improvement of the public service, appeal to the individual conscience of every earnest citizen to whatever party he belongs or in whatever section of the country he may reside.

The extra session of this Congress which closed during July last enacted important legislation, and while its full effect has not yet been realized, what it has already accomplished assures us of its timeliness and wisdom. To test its permanent value further time will be required, and the people, satisfied with its operation and results thus far, are in no mind to withhold from it a fair trial.

Tariff legislation having been settled by the extra session of Congress, the question next pressing for consideration is that of the currency.

The work of putting our finances upon a sound basis, difficult as it may seem, will appear easier when we recall the financial operations of the Government since 1866. On the 30th day of June of that year we had outstanding demand liabilities in the sum of \$728,868,447.41. On the 1st of January, 1879, these liabilities had been reduced to \$443,889,495.88. Of our interest-bearing obligations, the figures are even more striking. On July 1, 1866, the principal of the interest-bearing debt of the Government was \$2,332,331,208. On the 1st day of July, 1893, this sum had been reduced to \$585,037,100, or an aggregate reduction of \$1,747,294,108. The interest-bearing debt of the United States on the 1st day of December, 1897, was \$847,365,620. The Government money now outstanding (December 1) consists of \$346,681,016 of United States notes, \$107,793,280 of Treasury notes issued by authority of the law of 1890, \$384,963,504 of silver certificates, and \$61,280,761 of standard silver dollars.

With the great resources of the Government, and with the honorable example of the past before us, we ought not to hesitate to enter upon a currency revision which will make our demand obligations less onerous to the Government and relieve our financial laws from ambiguity and doubt.

The brief review of what was accomplished from the close of the war to 1893, makes unreasonable and groundless any distrust either of our financial ability or soundness; while the situation from 1893 to 1897 must admonish Congress of the immediate necessity of so legislating as to make the return of the conditions then prevailing impossible.

There are many plans proposed as a remedy for the evil. Before we can find the true remedy we must appreciate the real evil. It is not that our currency of every kind is not good, for every dollar of it is good; good because the Government's pledge is out to keep it so, and that pledge will not be broken. However, the guaranty of our purpose to keep the pledge will be best shown by advancing toward its fulfillment.

The evil of the present system is found in the great cost to the Government of maintaining the parity of our different forms of money, that is, keeping all of them at par with gold. We surely cannot be longer heedless

of the burden this imposes upon the people, even under fairly prosperous conditions, while the past four years have demonstrated that it is not only an expensive charge upon the Government, but a dangerous menace to the National credit.

It is manifest that we must devise some plan to protect the Government against bond issues for repeated redemptions. We must either curtail the opportunity for speculation, made easy by the multiplied redemptions of our demand obligations, or increase the gold reserve for their redemption. We have \$900,000,000 of currency which the Government by solemn enactment has undertaken to keep at par with gold. Nobody is obliged to redeem in gold but the Government. The banks are not required to redeem in gold. The Government is obliged to keep equal with gold all its outstanding currency and coin obligations, while its receipts are not required to be paid in gold. They are paid in every kind of money but gold, and the only means by which the Government can with certainty get gold is by borrowing. It can get it in no other way when it most needs it. The Government without any fixed gold revenue is pledged to maintain gold redemption, which it has steadily and faithfully done, and which, under the authority now given, it will continue to do.

The law which requires the Government, after having redeemed its United States notes, to pay them out again as current funds, demands a constant replenishment of the gold reserve. This is especially so in times of business panic and when the revenues are insufficient to meet the expenses of the Government. At such times the Government has no other way to supply its deficit and maintain redemption but through the increase of its bonded debt, as during the Administration of my predecessor, when \$262,315,400 of four-and-a-half per cent bonds were issued and sold and the proceeds used to pay the expenses of the Government in excess of the revenues and sustain the gold reserve. While it is true that the greater part of the proceeds of these bonds were used to supply deficient revenues, a considerable portion was required to maintain the gold reserve.

With our revenues equal to our expenses, there would be no deficit requiring the issuance of bonds. But if the gold reserve falls below \$100,000,000, how will it be replenished except by selling more bonds? Is there any other way practicable under existing law? The serious question

then is, Shall we continue the policy that has been pursued in the past; that is, when the gold reserve reaches the point of danger, issue more bonds and supply the needed gold, or shall we provide other means to prevent these recurring drains upon the gold reserve? If no further legislation is had and the policy of selling bonds is to be continued, then Congress should give the Secretary of the Treasury authority to sell bonds at long or short periods, bearing a less rate of interest than is now authorized by law.

I earnestly recommend, as soon as the receipts of the Government are quite sufficient to pay all the expenses of the Government, that when any of the United States notes are presented for redemption in gold and are redeemed in gold, such notes shall be kept and set apart, and only paid out in exchange for gold. This is an obvious duty. If the holder of the United States note prefers the gold and gets it from the Government, he should not receive back from the Government a United States note without paying gold in exchange for it. The reason for this is made all the more apparent when the Government issues an interest-bearing debt to provide gold for the redemption of United States notes—a non-interest-bearing debt. Surely it should not pay them out again except on demand and for gold. If they are put out in any other way, they may return again to be followed by another bond issue to redeem them—another interest-bearing debt to redeem a non-interest-bearing debt.

In my view, it is of the utmost importance that the Government should be relieved from the burden of providing all the gold required for exchanges and export. This responsibility is alone borne by the Government, without any of the usual and necessary banking powers to help itself. The banks do not feel the strain of gold redemption. The whole strain rests upon the Government, and the size of the gold reserve in the Treasury has come to be, with or without reason, the signal of danger or of security. This ought to be stopped.

If we are to have an era of prosperity in the country, with sufficient receipts for the expenses of the Government, we may feel no immediate embarrassment from our present currency; but the danger still exists, and will be ever present, menacing us so long as the existing system continues. And, besides, it is in times of adequate revenues and business tranquillity that the Government should prepare for the worst. We cannot avoid, without

serious consequences, the wise consideration and prompt solution of this question.

The Secretary of the Treasury has outlined a plan, in great detail, for the purpose of removing the threatened recurrence of a depleted gold reserve and save us from future embarrassment on that account. To this plan I invite your careful consideration.

I concur with the Secretary of the Treasury in his recommendation that National banks be allowed to issue notes to the face value of the bonds which they have deposited for circulation, and that the tax on circulating notes secured by deposit of such bonds be reduced to one-half of one per cent per annum. I also join him in recommending that authority be given for the establishment of National banks with a minimum capital of \$25,000. This will enable the smaller villages and agricultural regions of the country to be supplied with currency to meet their needs.

I recommend that the issue of National bank notes be restricted to the denomination of ten dollars and upwards. If the suggestions I have herein made shall have the approval of Congress, then I would recommend that National banks be required to redeem their notes in gold.

[See Vol. X, pp. 127-136.]

Not a single American citizen is now in arrest or confinement in Cuba of whom this Government has any knowledge. The near future will demonstrate whether the indispensable condition of a righteous peace, just alike to the Cubans and to Spain as well as equitable to all our interests so intimately involved in the welfare of Cuba, is likely to be attained. If not, the exigency of further and other action by the United States will remain to be taken. When that time comes that action will be determined in the line of indisputable right and duty. It will be faced, without misgiving or hesitancy in the light of the obligation this Government owes to itself, to the people who have confided to it the protection of their interests and honor, and to humanity.

Sure of the right, keeping free from all offense ourselves, actuated only by upright and patriotic considerations, moved neither by passion nor selfishness, the Government will continue its watchful care over the rights

and property of American citizens and will abate none of its efforts to bring about by peaceful agencies a peace which shall be honorable and enduring. If it shall hereafter appear to be a duty imposed by our obligations to ourselves, to civilization and humanity to intervene with force, it shall be without fault on our part and only because the necessity for such action will be so clear as to command the support and approval of the civilized world.

By a special message dated the 16th day of June last, I laid before the Senate a treaty signed that day by the plenipotentiaries of the United States and of the Republic of Hawaii, having for its purpose the incorporation of the Hawaiian Islands as an integral part of the United States and under its sovereignty. The Senate having removed the injunction of secrecy, although the treaty is still pending before that body, the subject may be properly referred to in this Message because the necessary action of the Congress is required to determine by legislation many details of the eventual union should the fact of annexation be accomplished, as I believe it should be.

While consistently disavowing from a very early period any aggressive policy of absorption in regard to the Hawaiian group, a long series of declarations through three-quarters of a century has proclaimed the vital interest of the United States in the independent life of the Islands and their intimate commercial dependence upon this country. At the same time it has been repeatedly asserted that in no event could the entity of Hawaiian statehood cease by the passage of the Islands under the domination or influence of another power than the United States. Under these circumstances, the logic of events required that annexation, heretofore offered but declined, should in the ripeness of time come about as the natural result of the strengthening ties that bind us to those Islands, and be realized by the free will of the Hawaiian State.

That treaty was unanimously ratified without amendment by the Senate and President of the Republic of Hawaii on the 10th of September last, and only awaits the favorable action of the American Senate to effect the complete absorption of the Islands into the domain of the United States. What the conditions of such a union shall be, the political relation thereof to the United States, the character of the local administration, the quality and degree of the elective franchise of the inhabitants, the extension of the federal laws to the territory or the enactment of special laws to fit the

peculiar condition thereof, the regulation if need be of the labor system therein, are all matters which the treaty has wisely relegated to the Congress.

If the treaty is confirmed as every consideration of dignity and honor requires, the wisdom of Congress will see to it that, avoiding abrupt assimilation of elements perhaps hardly yet fitted to share in the highest franchises of citizenship, and having due regard to the geographical conditions, the most just provisions for self-rule in local matters with the largest political liberties as an integral part of our Nation will be accorded to the Hawaiians. No less is due to a people who, after nearly five years of demonstrated capacity to fulfill the obligations of self-governing statehood, come of their free will to merge their destinies in our body-politic.

The questions which have arisen between Japan and Hawaii by reason of the treatment of Japanese laborers emigrating to the Islands under the Hawaiian-Japanese convention of 1888, are in a satisfactory stage of settlement by negotiation. This Government has not been invited to mediate, and on the other hand has sought no intervention in that matter, further than to evince its kindest disposition toward such a speedy and direct adjustment by the two sovereign States in interest as shall comport with equity and honor. It is gratifying to learn that the apprehensions at first displayed on the part of Japan lest the cessation of Hawaii's national life through annexation might impair privileges to which Japan honorably laid claim, have given place to confidence in the uprightness of this Government, and in the sincerity of its purpose to deal with all possible ulterior questions in the broadest spirit of friendliness.

As to the representation of this Government to Nicaragua, Salvador, and Costa Rica, I have concluded that Mr. William L. Merry, confirmed as minister of the United States to the States of Nicaragua, Salvador and Costa Rica, shall proceed to San José, Costa Rica, and there temporarily establish the headquarters of the United States to those three States. I took this action for what I regarded as the paramount interests of this country. It was developed upon an investigation by the Secretary of State that the Government of Nicaragua, while not unwilling to receive Mr. Merry in his diplomatic quality, was unable to do so because of the compact concluded June 20, 1895, whereby that Republic and those of Salvador and Honduras,

forming what is known as the Greater Republic of Central America, had surrendered to the representative Diet thereof their right to receive and send diplomatic agents. The Diet was not willing to accept him because he was not accredited to that body. I could not accredit him to that body because the appropriation law of Congress did not permit it. Mr. Baker, the present minister at Managua, has been directed to present his letters of recall.

Mr. W. Godfrey Hunter has likewise been accredited to the Governments of Guatemala and Honduras, the same as his predecessor. Guatemala is not a member of the Greater Republic of Central America, but Honduras is. Should this latter Government decline to receive him, he has been instructed to report this fact to his Government and await its further instructions.

A subject of large importance to our country, and increasing appreciation on the part of the people, is the completion of the great highway of trade between the Atlantic and Pacific, known as the Nicaragua Canal. Its utility and value to American commerce is universally admitted. The Commission appointed under date of July 24 last "to continue the surveys and examinations authorized by the act approved March 2, 1895," in regard to "the proper route, feasibility, and cost of construction of the Nicaragua Canal, with a view of making complete plans for the entire work of construction of such canal," is now employed in the undertaking. In the future I shall take occasion to transmit to Congress the report of this Commission, making at the same time such further suggestions as may then seem advisable.

Under the provisions of the act of Congress approved March 3, 1897, for the promotion of an international agreement respecting bimetallism, I appointed on the 14th day of April, 1897, Hon. Edward O. Wolcott of Colorado, Hon. Adlai E. Stevenson of Illinois, and Hon. Charles J. Paine of Massachusetts, as special envoys to represent the United States. They have been diligent in their efforts to secure the concurrence and cooperation of European countries in the international settlement of the question, but up to this time have not been able to secure an agreement contemplated by their mission.

The gratifying action of our great sister Republic of France in joining this country in the attempt to bring about an agreement among the principal commercial nations of Europe, whereby a fixed and relative value between gold and silver shall be secured, furnishes assurance that we are not alone among the larger nations of the world in realizing the international character of the problem and in the desire of reaching some wise and practical solution of it. The British Government has published a *résumé* of the steps taken jointly by the French ambassador in London and the special envoys of the United States, with whom our ambassador at London actively co-operated in the presentation of this subject to Her Majesty's Government. This will be laid before Congress.

Our special envoys have not made their final report, as further negotiations between the representatives of this Government and the Governments of other countries are pending and in contemplation. They believe that doubts which have been raised in certain quarters respecting the position of maintaining the stability of the parity between the metals and kindred questions may yet be solved by further negotiations.

Meanwhile it gives me satisfaction to state that the special envoys have already demonstrated their ability and fitness to deal with the subject, and it is to be earnestly hoped that their labors may result in an international agreement which will bring about recognition of both gold and silver as money upon such terms, and with such safeguards as will secure the use of both metals upon a basis which shall work no injustice to any class of our citizens.

In order to execute as early as possible the provisions of the third and fourth sections of the Revenue Act, approved July 24, 1897, I appointed the Hon. John A. Kasson of Iowa, a special commissioner plenipotentiary to undertake the requisite negotiations with foreign countries desiring to avail themselves of these provisions. The negotiations are now proceeding with several Governments, both European and American. It is believed that by a careful exercise of the powers conferred by that Act some grievances of our own and of other countries in our mutual trade relations may be either removed, or largely alleviated, and that the volume of our commercial exchanges may be enlarged, with advantage to both contracting parties.

Most desirable from every standpoint of national interest and patriotism is the effort to extend our foreign commerce. To this end our merchant marine should be improved and enlarged. We should do our full share of the carrying trade of the world. We do not do it now. We should be the laggard no longer. The inferiority of our merchant marine is justly humiliating to the national pride. The Government by every proper constitutional means, should aid in making our ships familiar visitors at every commercial port of the world, thus opening up new and valuable markets to the surplus products of the farm and the factory.

The efforts which had been made during the two previous years by my predecessor to secure better protection to the fur seals in the North Pacific Ocean and Bering Sea, were renewed at an early date by this Administration, and have been pursued with earnestness. Upon my invitation, the Governments of Japan and Russia sent delegates to Washington, and an international conference was held during the months of October and November last, wherein it was unanimously agreed that under the existing regulations this species of useful animals was threatened with extinction, and that an international agreement of all the interested powers was necessary for their adequate protection.

The Government of Great Britain did not see proper to be represented at this conference, but subsequently sent to Washington, as delegates, the expert commissioners of Great Britain and Canada who had, during the past two years, visited the Pribilof Islands, and who met in conference similar commissioners on the part of the United States. The result of this conference was an agreement on important facts connected with the condition of the seal herd, heretofore in dispute, which should place beyond controversy the duty of the Governments concerned to adopt measures without delay for the preservation and restoration of the herd. Negotiations to this end are now in progress, the result of which I hope to be able to report to Congress at an early day.

International arbitration cannot be omitted from the list of subjects claiming our consideration. Events have only served to strengthen the general views on this question expressed in my inaugural address. The best sentiment of the civilized world is moving toward the settlement of differences between nations without resorting to the horrors of war. Treaties

embodying these humane principles on broad lines, without in any way imperiling our interests or our honor, shall have my constant encouragement.

The acceptance by this Government of the invitation of the Republic of France to participate in the Universal Exposition of 1900, at Paris, was immediately followed by the appointment of a special commissioner to represent the United States in the proposed exposition, with special reference to the securing of space for an adequate exhibit on behalf of the United States.

The special commissioner delayed his departure for Paris long enough to ascertain the probable demand for space by American exhibitors. His inquiries developed an almost unprecedented interest in the proposed exposition, and the information thus acquired enabled him to justify an application for a much larger allotment of space for the American section than had been reserved by the exposition authorities. The result was particularly gratifying, in view of the fact that the United States was one of the last countries to accept the invitation of France.

The reception accorded our special commissioner was most cordial, and he was given every reasonable assurance that the United States would receive a consideration commensurate with the proportions of our exhibit. The report of the special commissioner as to the magnitude and importance of the coming exposition, and the great demand for space by American exhibitors, supplies new arguments for a liberal and judicious appropriation by Congress, to the end that an exhibit fairly representative of the industries and resources of our country may be made in an exposition which will illustrate the world's progress during the nineteenth century. That exposition is intended to be the most important and comprehensive of the long series of international exhibitions, of which our own at Chicago was a brilliant example, and it is desirable that the United States should make a worthy exhibit of American genius and skill and their unrivaled achievements in every branch of industry.

The present immediately effective force of the Navy consists of four battle ships of the first class, two of the second, and forty-eight other vessels, ranging from armored cruisers to torpedo boats. There are under

construction five battle ships of the first class, sixteen torpedo boats, and one submarine boat. No provision has yet been made for the armor of three of the five battle ships, as it has been impossible to obtain it at the price fixed by Congress. It is of great importance that Congress provide this armor, as until then the ships are of no fighting value.

The present naval force, especially in view of its increase by the ships now under construction, while not as large as that of a few other powers, is a formidable force; its vessels are the very best of each type; and with the increase that should be made to it from time to time in the future, and careful attention to keeping it in a high state of efficiency and repair, it is well adapted to the necessities of the country.

The great increase of the Navy which has taken place in recent years was justified by the requirements for national defense, and has received public approbation. The time has now arrived, however, when this increase, to which the country is committed, should, for a time, take the form of increased facilities commensurate with the increase of our naval vessels. It is an unfortunate fact that there is only one dock on the Pacific Coast capable of docking our largest ships, and only one on the Atlantic Coast, and that the latter has for the last six or seven months been under repair and therefore incapable of use. Immediate steps should be taken to provide three or four docks of this capacity on the Atlantic Coast, at least one on the Pacific Coast, and a floating dock in the Gulf. This is the recommendation of a very competent Board, appointed to investigate the subject. There should also be ample provision made for powder and projectiles, and other munitions of war, and for an increased number of officers and enlisted men. Some additions are also necessary to our navy-yards, for the repair and care of our large number of vessels. As there are now on the stocks five battle ships of the largest class, which cannot be completed for a year or two, I concur with the recommendation of the Secretary of the Navy for an appropriation authorizing the construction of one battle ship for the Pacific Coast, where, at present, there is only one in commission and one under construction, while on the Atlantic Coast there are three in commission and four under construction; and also that several torpedo boats be authorized in connection with our general system of coast defense.

The Territory of Alaska requires the prompt and early attention of Congress. The conditions now existing demand material changes in the laws relating to the Territory. The great influx of population during the past summer and fall and the prospect of a still larger immigration in the spring will not permit us to longer neglect the extension of civil authority within the Territory or postpone the establishment of a more thorough government.

A general system of public surveys has not yet been extended to Alaska and all entries thus far made in that district are upon special surveys. The act of Congress extending to Alaska the mining laws of the United States contained the reservation that it should not be construed to put in force the general land laws of the country. By act approved March 3, 1891, authority was given for entry of lands for town-site purposes and also for the purchase of not exceeding one hundred and sixty acres then or thereafter occupied for purposes of trade and manufacture. The purpose of Congress as thus far expressed has been that only such rights should apply to that Territory as should be specifically named.

It will be seen how much remains to be done for that vast and remote and yet promising portion of our country. Special authority was given to the President by the Act of Congress approved July 24, 1897, to divide that Territory into two land districts and to designate the boundaries thereof and to appoint registers and receivers of said land offices, and the President was also authorized to appoint a surveyor-general for the entire district. Pursuant to this authority, a surveyor-general and receiver have been appointed, with offices at Sitka. If in the ensuing year the conditions justify it, the additional land district authorized by law will be established, with an office at some point in the Yukon Valley. No appropriation, however, was made for this purpose, and that is now necessary to be done for the two land districts into which the Territory is to be divided.

I concur with the Secretary of War in his suggestions as to the necessity for a military force in the Territory of Alaska for the protection of persons and property. Already a small force, consisting of twenty-five men, with two officers, under command of Lieutenant-Colonel Randall, of the Eighth Infantry, has been sent to St. Michael to establish a military post.

As it is to the interest of the Government to encourage the development and settlement of the country and its duty to follow up its citizens there with the benefits of legal machinery, I earnestly urge upon Congress the establishment of a system of government with such flexibility as will enable it to adjust itself to the future areas of greatest population.

The startling though possibly exaggerated reports from the Yukon River country, of the probable shortage of food for the large number of people who are wintering there without the means of leaving the country are confirmed in such measure as to justify bringing the matter to the attention of Congress. Access to that country in winter can be had only by the passes from Dyea and vicinity, which is a most difficult and perhaps an impossible task. However, should these reports of the suffering of our fellow-citizens be further verified, every effort at any cost should be made to carry them relief.

For a number of years past it has been apparent that the conditions under which the Five Civilized Tribes were established in the Indian Territory under treaty provisions with the United States, with the right of self-government and the exclusion of all white persons from within their borders, have undergone so complete a change as to render the continuance of the system thus inaugurated practically impossible. The total number of the Five Civilized Tribes, as shown by the last census, is 45,494, and this number has not materially increased; while the white population is estimated at from 200,000 to 250,000 which, by permission of the Indian Government has settled in the Territory. The present area of the Indian Territory contains 25,694,564 acres, much of which is very fertile land. The United States citizens residing in the Territory, most of whom have gone there by invitation or with the consent of the tribal authorities, have made permanent homes for themselves. Numerous towns have been built in which from 500 to 5,000 white people now reside. Valuable residences and business houses have been erected in many of them. Large business enterprises are carried on in which vast sums of money are employed, and yet these people, who have invested their capital in the development of the productive resources of the country, are without title to the land they occupy, and have no voice whatever in the government either of the Nations or Tribes. Thousands of their children who were born in the Territory are of school age, but the doors of the schools of the Nations are shut against

them, and what education they get is by private contribution. No provision for the protection of the life or property of these white citizens is made by the Tribal Governments and Courts.

The Secretary of the Interior reports that leading Indians have absorbed great tracts of land to the exclusion of the common people, and government by an Indian aristocracy has been practically established, to the detriment of the people. It has been found impossible for the United States to keep its citizens out of the Territory, and the executory conditions contained in the treaties with these Nations have for the most part become impossible of execution. Nor has it been possible for the Tribal Governments to secure to each individual Indian his full enjoyment in common with other Indians of the common property of the Nations. Friends of the Indians have long believed that the best interests of the Indians of the Five Civilized Tribes would be found in American citizenship, with all the rights and privileges which belong to that condition.

By section 16, of the act of March 3, 1893, the President was authorized to appoint three commissioners to enter into negotiations with the Cherokee, Choctaw, Chickasaw, Muscogee (or Creek), and Seminole Nations, commonly known as the Five Civilized Tribes in the Indian Territory. Briefly, the purposes of the negotiations were to be: The extinguishment of Tribal titles to any lands within that Territory now held by any and all such Nations or Tribes, either by cession of the same or some part thereof to the United States, or by allotment and division of the same in severalty among the Indians of such Nations or Tribes respectively as may be entitled to the same, or by such other method as may be agreed upon between the several Nations and Tribes aforesaid, or each of them, with the United States, with a view to such an adjustment upon the basis of justice and equity as may, with the consent of the said Nations of Indians so far as may be necessary, be requisite and suitable to enable the ultimate creation of a State or States of the Union which shall embrace the lands within said Indian Territory.

The Commission met much opposition from the beginning. The Indians were very slow to act, and those in control manifested a decided disinclination to meet with favor the propositions submitted to them. A little more than three years after this organization the Commission effected an

agreement with the Choctaw Nation alone. The Chickasaws, however, refused to agree to its terms, and as they have a common interest with the Choctaws in the lands of said Nations, the agreement with the latter Nation could have no effect without the consent of the former. On April 23, 1897, the Commission effected an agreement with both tribes—the Choctaws and Chickasaws. This agreement, it is understood, has been ratified by the constituted authorities of the respective Tribes or Nations parties thereto, and only requires ratification by Congress to make it binding.

On the 27th of September, 1897, an agreement was effected with the Creek Nation, but it is understood that the National Council of said Nation has refused to ratify the same. Negotiations are yet to be had with the Cherokees, the most populous of the Five Civilized Tribes, and with the Seminoles, the smallest in point of numbers and territory.

The provision in the Indian Appropriation Act, approved June 10, 1896, makes it the duty of the Commission to investigate and determine the rights of applicants for citizenship in the Five Civilized Tribes, and to make complete census rolls of the citizens of said Tribes. The Commission is at present engaged in this work among the Creeks, and has made appointments for taking the census of these people up to and including the 30th of the present month.

Should the agreement between the Choctaws and Chickasaws be ratified by Congress and should the other Tribes fail to make an agreement with the Commission, then it will be necessary that some legislation shall be had by Congress, which, while just and honorable to the Indians, shall be equitable to the white people who have settled upon these lands by invitation of the Tribal Nations.

Hon. Henry L. Dawes, Chairman of the Commission, in a letter to the Secretary of the Interior, under date of October 11, 1897, says: "Individual ownership is, in their (the Commission's) opinion, absolutely essential to any permanent improvement in present conditions, and the lack of it is the root of nearly all the evils which so grievously afflict these people. Allotment by agreement is the only possible method, unless the United States Courts are clothed with the authority to apportion the lands among the citizen Indians for whose use it was originally granted."

I concur with the Secretary of the Interior that there can be no cure for the evils engendered by the perversion of these great trusts, excepting by their resumption by the Government which created them.

The recent prevalence of yellow fever in a number of cities and towns throughout the South has resulted in much disturbance of commerce, and demonstrated the necessity of such amendments to our quarantine laws as will make the regulations of the national quarantine authorities paramount. The Secretary of the Treasury, in the portion of his report relating to the operation of the Marine Hospital Service, calls attention to the defects in the present quarantine laws, and recommends amendments thereto which will give the Treasury Department the requisite authority to prevent the invasion of epidemic diseases from foreign countries, and in times of emergency, like that of the past summer, will add to the efficiency of the sanitary measures for the protection of the people, and at the same time prevent unnecessary restriction of commerce. I concur in his recommendation.

In further effort to prevent the invasion of the United States by yellow fever, the importance of the discovery of the exact cause of the disease, which up to the present time has been undetermined, is obvious, and to this end a systematic bacteriological investigation should be made. I therefore recommend that Congress authorize the appointment of a commission by the President, to consist of four expert bacteriologists, one to be selected from the medical officers of the Marine Hospital Service, one to be appointed from civil life, one to be detailed from the medical officers of the Army, and one from the medical officers of the Navy.

The Union Pacific Railway, Main Line, was sold under the decree of the United States Court for the District of Nebraska, on the 1st and 2d of November of this year. The amount due the Government consisted of the principal of the subsidy bonds, \$27,236,512, and the accrued interest thereon, \$31,211,711.75, making the total indebtedness, \$58,448,223.75. The bid at the sale covered the first mortgage lien and the entire mortgage claim of the Government, principal and interest.

The sale of the subsidized portion of the Kansas Pacific Line, upon which the Government holds a second mortgage lien, has been postponed at the instance of the Government to December 16, 1897. The debt of this division

of the Union Pacific Railway to the Government on November 1, 1897, was the principal of the subsidy bonds, \$6,303,000, and the unpaid and accrued interest thereon, \$6,626,690.33, making a total of \$12,929,690.33.

The sale of this road was originally advertised for November 4, but for the purpose of securing the utmost public notice of the event it was postponed until December 16, and a second advertisement of the sale was made. By the decree of the Court, the upset price on the sale of the Kansas Pacific will yield to the Government the sum of \$2,500,000 over all prior liens, costs, and charges. If no other or better bid is made, this sum is all that the Government will receive on its claim of nearly \$13,000,000. The Government has no information as to whether there will be other bidders or a better bid than the minimum amount herein stated. The question presented therefore is: Whether the Government shall, under the authority given it by the act of March 3, 1887, purchase or redeem the road in the event that a bid is not made by private parties covering the entire Government claim. To qualify the Government to bid at the sales will require a deposit of \$900,000, as follows: In the Government cause \$500,000 and in each of the first mortgage causes \$200,000, and in the latter the deposit must be in cash. Payments at the sale are as follows: Upon the acceptance of the bid a sum which with the amount already deposited shall equal fifteen per cent of the bid; the balance in installments of twenty-five per cent thirty, forty, and fifty days after the confirmation of the sale. The lien on the Kansas Pacific prior to that of the Government on the 30th July, 1897, principal and interest, amounted to \$7,281,048.11. The Government, therefore, should it become the highest bidder, will have to pay the amount of the first mortgage lien.

I believe that under the act of 1887 it has the authority to do this and in absence of any action by Congress I shall direct the Secretary of the Treasury to make the necessary deposit as required by the Court's decree to qualify as a bidder and to bid at the sale a sum which will at least equal the principal of the debt due to the Government; but suggest in order to remove all controversy that an amendment of the law be immediately passed explicitly giving such powers and appropriating in general terms whatever sum is sufficient therefor.

In so important a matter as the Government becoming the possible owner of railroad property which it perforce must conduct and operate, I feel constrained to lay before Congress these facts for its consideration and action before the consummation of the sale. It is clear to my mind that the Government should not permit the property to be sold at a price which will yield less than one-half of the principal of its debt and less than one-fifth of its entire debt, principal and interest. But whether the Government, rather than accept less than its claim, should become a bidder and thereby the owner of the property, I submit to the Congress for action.

The Library building provided for by the act of Congress approved April 15, 1886, has been completed and opened to the public. It should be a matter of congratulation that through the foresight and munificence of Congress the nation possesses this noble treasure-house of knowledge. It is earnestly to be hoped that having done so much toward the cause of education, Congress will continue to develop the Library in every phase of research to the end that it may be not only one of the most magnificent but among the richest and most useful libraries in the world.

The important branch of our Government known as the Civil Service, the practical improvement of which has long been a subject of earnest discussion, has of late years received increased legislative and Executive approval. During the past few months the service has been placed upon a still firmer basis of business methods and personal merit. While the right of our veteran soldiers to reinstatement in deserving cases has been asserted, dismissals for merely political reasons have been carefully guarded against, the examinations for admittance to the service enlarged and at the same time rendered less technical and more practical; and a distinct advance has been made by giving a hearing before dismissal upon all cases where incompetency is charged or demand made for the removal of officials in any of the Departments. This order has been made to give to the accused his right to be heard but without in any way impairing the power of removal, which should always be exercised in cases of inefficiency and incompetency, and which is one of the vital safeguards of the civil service reform system, preventing stagnation and deadwood and keeping every employee keenly alive to the fact that the security of his tenure depends not on favor but on his own tested and carefully watched record of service.

Much of course still remains to be accomplished before the system can be made reasonably perfect for our needs. There are places now in the classified service which ought to be exempted and others not classified may properly be included. I shall not hesitate to exempt cases which I think have been improperly included in the classified service or include those which in my judgment will best promote the public service. The system has the approval of the people and it will be my endeavor to uphold and extend it.

I am forced by the length of this Message to omit many important references to affairs of the Government with which Congress will have to deal at the present session. They are fully discussed in the departmental reports, to all of which I invite your earnest attention.

The estimates of the expenses of the Government by the several Departments will, I am sure, have your careful scrutiny. While the Congress may not find it an easy task to reduce the expenses of the Government, it should not encourage their increase. These expenses will in my judgment admit of a decrease in many branches of the Government without injury to the public service. It is a commanding duty to keep the appropriations within the receipts of the Government, and thus avoid a deficit.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, December 6, 1897.*

To the Congress of the United States:

The act of Congress, approved July 19, 1897, entitled "An act making appropriations to supply deficiencies in the appropriations for the fiscal year ending June 30, 1897, and for prior years, for other purposes," provided for the acceptance by the Government of the United States of the invitation extended by the Republic of France to participate in an international exposition to be held at Paris, from April 15 to November 15, 1900, and authorized the President to appoint a special commissioner with a view to securing all attainable information necessary to a full and complete

understanding by Congress in regard to the participation of this Government in that exposition.

Maj. Moses P. Handy of Chicago, was appointed such special commissioner, and I now enclose his report, giving the details of his mission. It is a comprehensive and clear presentation of the situation. He recommends that an appropriation of \$919,600 be granted, so that a creditable exhibit on behalf of the United States may be made. The details of this report will show how this appropriation may be profitably expended.

Besides securing a much larger amount of space than had been reserved, Major Handy obtained the gratifying assurance that the United States will be placed on a footing with the most favored nations, and "that in the installation of every important department the United States will have a location commensurate with the dignity and importance of the country and adjoining in every case countries of the first rank."

In view of the magnitude and importance of the approaching exposition, and of our standing among the nations which will be there represented, and in view also of our increased population and acknowledged progress in arts, science, and manufactures, I earnestly commend the report of Major Handy to your consideration, and trust that a liberal appropriation may be made.

Moreover, the magnificent exhibit of the French Republic at Chicago in 1893, on which a million dollars were expended, should be a strong incentive to reciprocal liberality on the part of the Government of the United States, and suggests to our citizens the necessity as well as the propriety of installing at the Paris Exposition an exhibit on a par with that of the Government and people of France at Chicago, and in keeping with the scope and extent of the preparations which are being made by nearly all the important nations of the earth for their proposed exhibits in that exposition.

I suggest that the subject be given timely and favorable consideration.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, January 14, 1898.*

To the Congress of the United States:

I transmit herewith a report from the Secretary of State in regard to the award of the commissioners appointed pursuant to the stipulations of the convention of February 8, 1896, between the United States and Great Britain, providing for the settlement of the claims presented by the latter against the former in virtue of the convention of February 29, 1892.

The report of the Secretary of State presents a clear epitome of the award and renders unnecessary any extended observations on my part further than to say that I cordially coincide with his recommendation and that our treaty obligations demand prompt and favorable action by Congress, which I urgently hope may be taken, to the end that these long-pending questions may be finally and satisfactorily terminated.

The total amount necessary to satisfy the award of the commissioners is \$473,151.26, which I recommend be appropriated.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, January 18, 1898.*

To the Congress of the United States:

I transmit herewith a report from the Secretary of State, with accompanying papers, touching the lynching in 1895 at Yreka, Cal., of Luis Moreno, a Mexican citizen, and the demand of the Mexican Government for an indemnity for his relatives on account thereof.

Following the course adopted in the case of the lynching of three Italian subjects at Hahnville, La., on August 8, 1896, I recommend the appropriation by Congress, out of humane consideration and without reference to the question of liability of the Government of the United States in the premises, of the sum of \$2,000 to be paid by the Secretary of State to

the Government of Mexico, to be by that Government distributed among the heirs of the above-named Luis Moreno.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, January 26, 1898.*

To the Congress:

I transmit herewith a report from the Secretary of State and accompanying papers presenting the claim of Capt. B. Tellefsen, of the Norwegian steamer *Albert*, against the Government of the United States, for \$998.96, being the expenses incurred by him in consequence of a violation of Article XIII of the treaty of commerce and navigation of 1827 between the United States and Sweden and Norway.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, March 22, 1898.*

To the Senate:

In connection with Senate Document No. 39, Fifty-fifth Congress, second session, and in further response to the resolution of the Senate of July 12, 1897, I transmit herewith a report from the Secretary of State, with additional papers, relating to postal telegraphs, telephones, and postal savings banks in Austria.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *March 31, 1898.*

To the Congress:

I transmit herewith, for the information of Congress, a communication from the Secretary of Agriculture covering a detailed report showing the present condition of the beet-sugar industry in this country and the results of experiments made by the Department of Agriculture in the production of sugar from beets in the United States during the past year.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, April 4, 1898.*

To the Senate of the United States:

In response to the resolution of the Senate of January 17, 1898, I transmit a report from the Secretary of State, accompanied by copies of correspondence exchanged between Henry Woodruff, trustee and of counsel for the holders of a majority of the first-mortgage bonds of "The Railway of the East," of Venezuela, *et al.*, and the Department of State, and by a list of claims of citizens of the United States presented after August 1, 1898, and, so far as appears, not settled by Venezuela, nor disposed of by the commission of 1889-90.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *April 7, 1898.*

To the Senate:

In response to the resolution of the Senate of February 26, 1898, requesting the President "if not incompatible with the public interest, to transmit to the Senate the proceedings of the international commission authorized in the concurrent resolution of Congress of April 29, 1890, and a subsequent international convention between the United States and Mexico

of May 6, 1896, and also the correspondence relating thereto with Mexico by the Department of the Interior, Department of War, and Department of Justice, as well as the Department of State, relating to the equitable distribution of the waters of the Rio Grande River, including the draft of an incomplete treaty between said Governments, negotiated between the late Secretary of State, Mr. Olney, on the part of the United States, and Mr. Romero, on the part of Mexico, and all the correspondence between said officials relating thereto," I transmit herewith reports from the Secretary of State, the Secretary of War, the Secretary of the Interior, and the Attorney-General, with accompanying papers.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, April 15, 1898.*

To the Senate:

In connection with Senate Document No. 39, Fifty-fifth Congress, second session, and in further response to the resolution of the Senate of July 12, 1897, I transmit herewith a report from the Secretary of State, with accompanying papers relating to postal telegraphs, telephones, and postal savings banks in the colony of Victoria.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, April 27, 1898.*

To the Congress:

I transmit herewith a report from the Secretary of State and accompanying papers relating to the claim against the United States of the Russian subject, Gustav Isak Dahlberg, master and principal owner of the Russian bark *Hans*, based on his wrongful and illegal arrest and

imprisonment by officers of the United States district court for the southern district of Mississippi, and in view of the opinion expressed by the Department of Justice that the said arrest and detention of the complainant were wrongful and without authority of law, I recommend the appropriation by Congress of the sum of \$5,000 to reimburse the master and owners of the vessel for all losses and damages incurred by reason of his said wrongful and illegal arrest and detention.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *May 16, 1898.*

To the House of Representatives:

I transmit herewith a communication from the Secretary of State, accompanying the annual reports of the consuls of the United States upon foreign industries and commerce. In view of the value of these reports to the business interests of the country, I indorse the recommendation of the Secretary of State that Congress authorize the printing of a special edition of 10,000 copies of the general summary entitled "Review of the World's Commerce," and 5,000 copies of Commercial Relations (including this summary), to enable the Department of State to meet the demands for such information.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *May 16, 1898.*

To the House of Representatives:

I return herewith to the House of Representatives, in which it originated, House bill No. 2219, entitled "An act for the relief of the administrators of Isaac P. Tice, deceased, and others," without my approval.

The object of this bill is to confer upon the Court of Claims jurisdiction to retry and determine a case brought by the representatives of Isaac P. Tice against the United States in the Court of Claims in the year 1873 to recover from the Government the sum of \$25,000, the alleged value of certain meters invented by Isaac P. Tice for the purpose of measuring the quality and strength of distilled spirits.

It was claimed that this amount, together with the sum of \$733.33 for storage of said meters, was due to the claimant under a contract made between Tice and the Commissioner of Internal Revenue in pursuance of section 15 of the act of March 2, 1867 (14 Stats., 481). From the report of the case in 13 Court of Claims Reports, 112, it appears that the matter was fully and deliberately tried and argued both on behalf of the claimant and of the United States, and that at December term, 1877, the Court of Claims rendered a decision adverse to the claimant, expressly stating that the claimants had failed to establish their claim both in law and on the facts. Not satisfied with this conclusion of the Court of Claims, the claimants took an appeal to the Supreme Court of the United States, where the case was again argued and was decided, October term, 1878, the judgment of the Court of Claims being declared to be in accordance with the law and therefore affirmed. In these two decisions the law and the facts pertaining to the claim were fully set forth and discussed.

The bill further confers upon the Court of Claims jurisdiction to try and determine certain alleged claims of said Tice and others for money collected on account of the Tice meters, but not paid over to him or them under the regulations of the Treasury.

The amount of the latter claim, according to the report of the committee of the House of Representatives to which this bill was referred, is \$140,000. It does not appear from the report of the committee, nor from any documents to which I have access, who are the other persons by whom this latter sum is claimed. The claim for \$140,000 must have accrued prior to July, 1871, and therefore at this time is of at least twenty-seven years' standing.

It will thus be perceived that the object of the bill is to remove from the pathway of the claimants two legal bars to the prosecution of their claim in

the courts—one, the bar of the statute of limitations, which requires all claimants against the Government to present their claims and bring actions thereon within six years from the time the cause of action accrues; and the other, that bar of estoppel which arises by reason of a former adverse judgment, rendered in a court of competent jurisdiction. This is not a general modification of the law in these respects, but a special application of it to these particular claimants.

If the principle on which the statute of limitations is founded is wise and beneficent, then the effect of it ought not to be impaired by special legislative exemptions in favor of particular persons or cases except upon very clear and just grounds, where no lack of diligence in the prosecution of the claim is apparent. I cannot find in the papers submitted to me any sufficient grounds to justify a special exception from the ordinary rule in favor of these claimants. As to the claim for \$140,000, no reason is stated why it was not included in the original suit nor why action upon it was not brought against the Government within the six years allowed by the statute for that purpose. To permit such an action to be brought now is simply, without any reason of a special nature, to grant a privilege to these claimants which is denied to all other citizens of the United States, in accordance with the provisions of the general statute of limitations. The principle underlying statutes of limitations and the reasons for the maintenance of such a rule of litigation are much more cogent when applied to claims against the Government than when applied to claims against individuals.

These claims do not differ in their character from ordinary business transactions such as transpire every day between private persons or business corporations. The Government can only defend itself against claims of this nature through its public officers and with the use of such public records as the Departments may furnish. Great difficulties are experienced by it in contesting fraudulent and unjust claims, and it is only fair in the interest of the public that a rigorous adherence to some rule of limitation should be maintained.

The provision of the bill which practically directs a new trial of the claim for \$25,000, decided adversely to the claimants more than twenty years ago, is still more objectionable. These parties had their day in court. They

produced their witnesses and were heard both originally and upon appeal, and upon the case they were then able to make the court decided they had no claim against the Government. It is now suggested that other witnesses have been discovered who can supply the lack of proof which was produced on the former trial. Such a ground for a new trial would never be considered in any court of law in the land in a case between private parties where such a length of time had intervened since the former trial. No explanation of a satisfactory nature is furnished for the failure of the claimants to produce these witnesses upon the original trial.

The bill further provides that upon a retrial of the original claim, or upon the trial of the new claim, the claimants shall be at liberty to offer in evidence the depositions of witnesses now on the files of any of the committees of Congress in relation to the aforesaid matters, which may be introduced as evidence in case of the death or disability of the deponents.

This provision will enable the claimants to present *ex-parte* affidavits, prepared by the claimants or their attorneys, without opportunity being afforded to the Government to cross-examine, provided the claimants can show that the deposing witnesses are either dead or under disability, by which, no doubt, is intended any such disability by reason of absence, illness, and the like, as may render them legally incapable of being produced in person to testify upon the retrial. Such a provision as this is most dangerous to the interests of the Government.

I fail to see any reason in the facts connected with these claims for granting to these parties relief of this extraordinary nature.

The Treasury of the United States ought to be very carefully guarded against attacks of those who come forward with stale claims, and especially from the attacks of those who have already been fully heard according to the methods prescribed by the statutes.

To approve this bill would be to furnish a very dangerous precedent which would open the door to demands upon Congress in other cases which have been fully heard and determined.

For these reasons I am constrained to withhold my approval from this bill.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, June 14, 1898.*

To the Congress of the United States:

I transmit herewith (having reference to Senate Document No. 4, Fifty-fifth Congress, second session) a report made by Thomas W. Cridler, Third Assistant Secretary of State, who, upon the death of Maj. Moses P. Handy, I designated to continue the work as special commissioner, under the act of Congress approved July 19, 1897, in relation to the acceptance by the Government of the United States of the invitation of France to participate in the International Exposition to be held at Paris from April 15 to November 5, 1900.

I cordially renew my recommendation that a liberal appropriation be immediately granted.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *June 23, 1898.*

To the Senate of the United States:

I transmit herewith a report from the Secretary of the Interior relative to Senate resolution of June 10, 1898, requesting the President "to make such arrangements as may be necessary to secure at the Trans-Mississippi and International Exposition to be held in the city of Omaha, Neb., the attendance of representatives of the Iroquois tribes and Delawares of Canada and of the Abenakis of St. Francis and Becaucourt, and such other Indian nations as have emigrated from the territory now of the United States to Canada."

To carry out this resolution, if it shall be found agreeable to the Government of Canada, it will be necessary for this Government to send an agent to visit the tribes and secure their assent, organize the representative delegations, escort them to the exposition, take charge of and care for them while there and until they are returned to their respective tribes.

The resolution seems to presuppose that there are funds which may be lawfully used to defray the expenses which must necessarily be incurred in the premises. By reference to the Secretary's report, it will be seen that there are no moneys lawfully available for that purpose.

It is not to be presumed that the Senate, under such circumstances, would desire the Executive to take the action indicated in the resolution, and I am therefore constrained to await the requisite appropriation by Congress for the payment of the expenses that must be necessarily incurred in the accomplishment of the proposed objects.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *December 6, 1898.*

To the Congress of the United States:

I transmit herewith, for the information of the Congress, the report of the Hawaiian Commission appointed in pursuance of the "Joint resolution to provide for annexing the Hawaiian Islands to the United States," approved July 7, 1898, together with a copy of the civil and penal laws of Hawaii.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *January 5, 1899.*

To the Senate and House of Representatives:

I transmit herewith a report of the Secretary of Agriculture on the work and expenditures of the agricultural experiment stations established under the act of Congress of March 2, 1887, for the fiscal year ending June 30, 1898, in accordance with the act making appropriations for the Department of Agriculture for the said fiscal year.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *January 5, 1899.*

To the Senate:

In response to the resolution of the Senate of December 21, 1898, requesting the President, "If it be not inconsistent with the public service, to inform the Senate whether authentic information is in possession of the Government as to the alleged dissolution of the Government of the United States of Central America." I transmit herewith a report from the Secretary of State with accompanying papers.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, January 6, 1899.*

To the Senate of the United States:

I transmit herewith in answer to the resolution of the Senate of December 15, 1898, a communication from the Secretary of State covering a preliminary report from the Nicaraguan Canal Commission, dated December 26, 1898, relative to its progress in investigating the question of the proper route, the feasibility, and cost of construction of the Nicaragua Canal.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, January 6, 1899.*

To the Senate and House of Representatives:

I transmit herewith a communication from the Secretary of State, inclosing the annual report of the Director of the Bureau of the American Republics, with accompanying documents. In view of the improved condition and increasing usefulness of the Bureau, to which I have already called attention in my annual message, and the welcome assurances of greater activity on the part of the other American republics in support of its purposes, I cordially indorse the recommendations of the Secretary of State. It will doubtless be as gratifying to Congress as it is to me to be informed that the Argentine Republic has decided to renew its relations with the Bureau, and that there are grounds for hoping that the International American Union, created by the impressive conference of the representatives of our sister republics and those of the United States in Washington in 1889-90, will soon be perfected by the adhesion of the Republic of Chile to the compact for the support of the Bureau as the organ of the union. The interest of the United States in giving the fullest possible effect to the laudable desire of the international conference to promote not only trade intercourse but a closer fellowship among the various republics of this hemisphere is so evident that I am satisfied the progress made by the bureau, as a practical agency for attaining these objects, will receive the commendation and support of Congress.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, January 11, 1899.*

To the Senate of the United States:

In response to the resolution of the Senate of June 6, 1898, I transmit a report from the Secretary of State, inclosing copies of all papers on file in

the Department of State relating to the case of Hugo O. Loewi, including those printed in Document No. 186, Senate, Fifty-fifth Congress, second session.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *January 17, 1899.*

To the Senate and House of Representatives:

It will be remembered that in the month of October, 1897, reports were received here of the probable loss of the whaling fleet in the Arctic regions, and of the likelihood that nearly 300 men, composing the officers and crews of the fleet, would perish from hunger unless succor could reach them early in the spring.

The revenue cutter *Bear* was known to be *en route* from the Arctic Ocean to Puget Sound, Washington. Her arrival was anxiously awaited, as no other suitable Government vessel could be made available for Arctic work. That ship arrived at Seattle, Wash., on the 6th of November, after a six-months' cruise in the Arctic, and I at once ordered an expedition prepared for the relief of the imperiled whalemén.

The preparation of the *Bear* was commenced on the 11th of November, under the direction of the Secretary of the Treasury. Her officers and men of the Revenue-Cutter Service all volunteered for the perilous work, and the ship was completely fitted out, and, under the command of Capt. Francis Tuttle, of the Revenue-Cutter Service, sailed on her errand of mercy November 29, 1897, within nineteen days from the inception of the movement.

The plan of the expedition was briefly as follows:

The ship was to be fully provided with rations for the ice-imperiled whalemén, which were to be conveyed to them as soon as the ice conditions in Bering Strait would permit the passage through. An overland expedition was to be landed from the *Bear* as soon as practicable, at some point on the

coast of Alaska, in Bering Sea, to be determined upon by Captain Tuttle. The problem of getting food to the imperiled people at the earliest time possible was the all-important consideration, for it was fully understood that the *Bear* could not, under the most favorable conditions of ice navigation in that region, reach their neighborhood before the following July or August. The utter lack of transportation of any kind in this far-off land suggested the idea, which was adopted as the only possible plan, of driving reindeer overland, to be slaughtered on arrival, for food to last until the arrival of the *Bear* with supplies the following summer. The reindeer were to be collected by the overland expedition from several points in Alaska, notably Cape Prince of Wales and Point Rodney, and, with such aid as could be procured from natives and others, driven to Point Barrow.

The overland expedition was formed, and consisted of First Lieut. David H. Jarvis, Revenue-Cutter Service, commanding; Second Lieut. Ellsworth P. Bertholf, Revenue-Cutter Service, and Dr. Samuel J. Call, surgeon of the *Bear*, all volunteers. This overland expedition was landed from the *Bear* at Cape Vancouver, in Bering Sea, Alaska, on the 16th of December, 1897, and commenced its toilsome and dreary journey through an arctic night to Point Barrow, Captain Tuttle returning with his command to winter at Dutch Harbor, Alaska, and from there to take advantage of the first opportunity in the early summer of 1898 to get north.

The overland expedition worked its way to the reindeer stations named, and succeeded in getting together about 450 deer. They were materially aided by Mr. W.T. Lopp, agent of the American Missionary Society at Cape Prince of Wales, and Artisarlook, a native of that region, both of whom, at great personal sacrifice, left their families and accompanied the reindeer herd to Point Barrow.

The overland expedition, after a difficult and hazardous journey of nearly 2,000 miles through the storms and bitter cold of an arctic winter, reached Point Barrow with the herd on the 29th of March, 1898, three months and twelve days from their landing from the *Bear* at Cape Vancouver, Alaskan coast of Bering Sea. They arrived none too soon. From the lack of an authoritative head, supplemented by bad sanitary conditions and want of proper food, the men from the whale ships quartered there were found upon the verge of great suffering, while sickness had broken out among them.

Lieutenant Jarvis, under the instructions given him by the Secretary of the Treasury, at once assumed charge, in the name of the Government, of the camp and locality of Point Barrow, and he and Dr. Call devoted themselves with intelligent energy to correcting the wretched conditions found to exist. Order was at once inaugurated. Fresh meat from the reindeer herd was supplied, the sanitary conditions were improved, and the general health and comfort of the whalers received immediate attention. Lieutenant Jarvis and Dr. Call remained at Point Barrow in charge until the arrival of the *Bear*, July 28, 1898, a period of four months. As soon as the *Bear* arrived Captain Tuttle began the distribution of ample supplies to the whalers on shipboard and on shore. Having supplied all demands generously, succored the needy to the number of 275 between Point Barrow and Kotzebue Sound, taking on board the *Bear* 146 whalers, 91 of whom were brought to the Pacific coast (the remainder having of their own volition left the ship *en route*), the vessel arrived back at Seattle on the 13th of September, after an absence in the bleak and dreary regions of Bering Sea and the Arctic Ocean of about seventeen months.

The hardships and perils encountered by the members of the overland expedition in their great journey through an almost uninhabited region, a barren waste of ice and snow, facing death itself every day for nearly four months, over a route never before traveled by white men, with no refuge but at the end of the journey, carrying relief and cheer to 275 distressed citizens of our country, all make another glorious page in the history of American seamen. They reflect by their heroic and gallant struggles the highest credit upon themselves and the Government which they faithfully served. I commend this heroic crew to the grateful consideration of Congress and the American people.

The year just closed has been fruitful of noble achievements in the field of war; and while I have commended to your consideration the names of heroes who have shed luster upon the American name in valorous contests and battles by land and sea, it is no less my pleasure to invite your attention to a victory of peace the results of which cannot well be magnified, and the dauntless courage of the men engaged stamps them as true heroes, whose services cannot pass unrecognized.

I have therefore the honor to submit the following recommendations and to ask your favorable action thereon:

1. That the thanks of Congress be voted to Capt. Francis Tuttle, Revenue-Cutter Service, and the officers and enlisted men composing his command for their able and gallant services.

2. That the thanks of Congress be extended to the members of the overland expedition; First Lieut. David H. Jarvis, Revenue-Cutter Service, commanding the overland expedition; to Second Lieut. Ellsworth P. Bertholf, Revenue-Cutter Service, and to Dr. Samuel J. Call, Surgeon.

3. That gold medals of honor of appropriate design, to be approved by the Secretary of the Treasury, be awarded to Lieutenants Jarvis and Bertholf and Dr. Call, commemorative of their heroic struggles in aid of suffering fellow-men.

4. That the sum of \$2,500 be appropriated to be disbursed by the Secretary of the Treasury in bestowing rewards upon W.T. Lopp, Artisarlook, and native herders, who rendered material aid to the relief expedition.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *January 19, 1899.*

To the Senate and House of Representatives:

I transmit herewith a second report on the investigations of the agricultural capabilities of Alaska for the year 1898, in accordance with the acts of Congress making appropriations for the Department of Agriculture for the fiscal years ending June 30, 1898, and June 30, 1899.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *January 19, 1899.*

To the Senate of the United States:

I herewith return without approval Senate bill No. 708, entitled "An act for the relief of Albert E. Redstone."

My objections to the bill are:

First. It assumes that the beneficiary, Albert E. Redstone, sustained a loss by the incorporation of his preemption claim within the limits of the Sierra Forest Reserve. This reserve was established by executive proclamation of February 14, 1893 (27 Stats., 1059), issued under section 24 of the act of March 8, 1891 (26 Stats., 1103), and contains the following saving clause for the protection of existing claims under the public land laws:

* * * Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired; * * *

Mr. Redstone did not sustain any loss by the creation of this reserve, because his rights, if he had any at that time, were fully recognized and protected by this provision in the proclamation.

Second. Mr. Redstone's preemption declaratory statement was filed April 6, 1889, and alleged settlement upon the same day. The land covered thereby had not been proclaimed for sale, and under sections 2265 and 2267 of the Revised Statutes, Mr. Redstone had thirty-three months from the date of his settlement within which to make proof and payment for the land, but in fact he never attempted to make such proof or payment. His preemption claim had therefore expired by operation of law long before the creation of this reserve. After his filing had thus expired Mr. Redstone was cited by the Land Department to show cause why his claim should not be declared at an end, and his filing formally canceled upon the public records, but he made no response or defense, and the filing was accordingly canceled.

Third. The Commissioner of the General Land Office reports that an investigation, made under the supervision of his office, shows that Mr.

Redstone had actually abandoned the land covered by his preemption claim before the reserve was established.

Fourth. The Commissioner of the General Land Office reports that an examination, made under the supervision of his office, shows that the improvements placed upon this land during the life of this preemption claim and thereafter abandoned were less than \$200 in value, while the amount appropriated in this bill is \$1,800.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *January 27, 1899.*

To the Senate and House of Representatives:

In accordance with a provision in the act making appropriations for the Department of Agriculture for the fiscal year ending June 30, 1899, I transmit herewith a report of the Secretary of Agriculture "upon the forestry investigations and work of the Department of Agriculture."

WILLIAM McKINLEY.

EXECUTIVE MANSION, *February 9, 1899.*

To the Senate of the United States:

I transmit herewith, in response to a resolution of the Senate of the 2nd instant, requesting information "whether any franchises or concessions of any character are being or have been granted by any municipality in Cuba or Puerto Rico since the military occupation thereof by the United States," etc., a report from the Secretary of War and accompanying papers.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, February 11, 1899.*

To the House of Representatives:

I transmit herewith the response of the Secretary of State to the resolution of the House of Representatives of February 4, 1899, calling for information in his possession concerning certain alleged outrages committed upon the person of Bishop Earl Cranston and other American citizens in the city of Peking, China.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, February 18, 1899.*

To the Senate:

I transmit herewith the response of the Secretary of Agriculture to the resolution of the Senate of February 8, 1899, calling for information in his possession regarding the practical usefulness of reservoirs to agriculture in the irrigated region of the United States, especially as affecting the distribution of water to crops, the area and value of reclaimed land, and the stability and unprofitableness of farming where irrigation is practised.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, February 21, 1899.*

To the Senate and House of Representatives:

I transmit herewith a communication from the Secretary of State, accompanying the commercial relations of the United States for the year

1898, being the annual reports of the consular officers upon the industries and commerce of foreign countries. In view of the value of these reports to the manufacturing and exporting interests of the country, I indorse the recommendation of the Secretary of State that Congress authorize the printing of the usual editions of 10,000 copies of the general summary, entitled "Review of the World's Commerce" and of 5,000 copies of "Commercial Relations" (including this summary), to enable the Department of State to meet the demand for such information.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *March 1, 1899.*

To the Senate and House of Representatives:

I transmit herewith, for the information of Congress, a communication from the Secretary of Agriculture, covering a report on the progress of the beet-sugar industry in the United States during the year 1898. It embraces the results of numerous chemical analyses and the observations made by a special agent in various parts of the United States.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, March 3, 1899.*

To the Senate:

In response to the resolution of the Senate of February 28 last directed to the Secretary of State, I transmit a report from that officer submitting a list of claims against Spain, growing out of the insurrection in Cuba, filed in the Department of State, not embraced in Senate Document No. 79, Fifty-fourth Congress, second session.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *December 5, 1899.*

To the Senate and House of Representatives:

At the threshold of your deliberations you are called to mourn with your countrymen the death of Vice-President Hobart, who passed from this life on the morning of November 21 last. His great soul now rests in eternal peace. His private life was pure and elevated, while his public career was ever distinguished by large capacity, stainless integrity, and exalted motives. He has been removed from the high office which he honored and dignified, but his lofty character, his devotion to duty, his honesty of purpose, and noble virtues remain with us as a priceless legacy and example.

The Fifty-sixth Congress convenes in its first regular session with the country in a condition of unusual prosperity, of universal good will among the people at home, and in relations of peace and friendship with every government of the world. Our foreign commerce has shown great increase in volume and value. The combined imports and exports for the year are the largest ever shown by a single year in all our history. Our exports for 1899 alone exceeded by more than a billion dollars our imports and exports combined in 1870. The imports per capita are 20 per cent less than in 1870, while the exports per capita are 58 per cent more than in 1870, showing the enlarged capacity of the United States to satisfy the wants of its own increasing population, as well as to contribute to those of the peoples of other nations.

Exports of agricultural products were \$784,776,142. Of manufactured products we exported in value \$339,592,146, being larger than any previous year. It is a noteworthy fact that the only years in all our history when the products of our manufactories sold abroad exceeded those bought abroad were 1898 and 1899.

Government receipts from all sources for the fiscal year ended June 30, 1899, including \$11,798,314.14, part payment of the Central Pacific Railroad indebtedness, aggregated \$610,982,004.35. Customs receipts were \$206,128,481.75, and those from internal revenue \$273,437,161.51.

For the fiscal year the expenditures were \$700,093,564.02, leaving a deficit of \$89,111,559.67.

The Secretary of the Treasury estimates that the receipts for the current fiscal year will aggregate \$640,958,112, and upon the basis of present appropriations the expenditures will aggregate \$600,958,112, leaving a surplus of \$40,000,000.

For the fiscal year ended June 30, 1899, the internal-revenue receipts were increased about \$100,000,000.

The present gratifying strength of the Treasury is shown by the fact that on December 1, 1899, the available cash balance was \$278,004,837.72, of which \$239,744,905.36 was in gold coin and bullion. The conditions of confidence which prevail throughout the country have brought gold into more general use and customs receipts are now almost entirely paid in that coin.

The strong position of the Treasury with respect to cash on hand and the favorable showing made by the revenues have made it possible for the Secretary of the Treasury to take action under the provisions of section 3694, Revised Statutes, relating to the sinking fund. Receipts exceeded expenditures for the first five months of the current fiscal year by \$13,413,389.91, and, as mentioned above, the Secretary of the Treasury estimates that there will be a surplus of approximately \$40,000,000 at the end of the year. Under such conditions it was deemed advisable and proper to resume compliance with the provisions of the sinking-fund law, which for eight years has not been done because of deficiencies in the revenues. The Treasury Department therefore offered to purchase during November \$25,000,000 of the 5 per cent loan of 1904, or the 4 per cent funded loan of 1907, at the current market price. The amount offered and purchased during November was \$18,408,600. The premium paid by the Government on such purchases was \$2,263,521 and the net saving in interest was about \$2,885,000. The success of this operation was sufficient to induce the Government to continue the offer to purchase bonds to and including the 23d day of December, instant, unless the remainder of the \$25,000,000 called for should be presented in the meantime for redemption.

Increased activity in industry, with its welcome attendant—a larger employment for labor at higher wages—gives to the body of the people a larger power to absorb the circulating medium. It is further true that year by year, with larger areas of land under cultivation, the increasing volume of agricultural products, cotton, corn, and wheat, calls for a larger volume of money supply. This is especially noticeable at the crop-harvesting and crop-moving period.

In its earlier history the National Banking Act seemed to prove a reasonable avenue through which needful additions to the circulation could from time to time be made. Changing conditions have apparently rendered it now inoperative to that end. The high margin in bond securities required, resulting from large premiums which Government bonds command in the market, or the tax on note issues, or both operating together, appear to be the influences which impair its public utility.

The attention of Congress is respectfully invited to this important matter, with the view of ascertaining whether or not such reasonable modifications can be made in the National Banking Act as will render its service in the particulars here referred to more responsive to the people's needs. I again urge that national banks be authorized to organize with a capital of \$25,000.

I urgently recommend that to support the existing gold standard, and to maintain "the parity in value of the coins of the two metals (gold and silver) and the equal power of every dollar at all times in the market and in the payment of debts," the Secretary of the Treasury be given additional power and charged with the duty to sell United States bonds and to employ such other effective means as may be necessary to these ends. The authority should include the power to sell bonds on long and short time, as conditions may require, and should provide for a rate of interest lower than that fixed by the act of January 14, 1875. While there is now no commercial fright which withdraws gold from the Government, but, on the contrary, such widespread confidence that gold seeks the Treasury demanding paper money in exchange, yet the very situation points to the present as the most fitting time to make adequate provision to insure the continuance of the gold standard and of public confidence in the ability and purpose of the Government to meet all its obligations in the money which the civilized world recognizes as the best. The financial transactions of the Government

are conducted upon a gold basis. We receive gold when we sell United States bonds and use gold for their payment. We are maintaining the parity of all the money issued or coined by authority of the Government. We are doing these things with the means at hand. Happily at the present time we are not compelled to resort to loans to supply gold. It has been done in the past, however, and may have to be done in the future. It behooves us, therefore, to provide at once the best means to meet the emergency when it arises, and the best means are those which are the most certain and economical. Those now authorized have the virtue neither of directness nor economy. We have already eliminated one of the causes of our financial plight and embarrassment during the years 1893, 1894, 1895, and 1896. Our receipts now equal our expenditures; deficient revenues no longer create alarm. Let us remove the only remaining cause by conferring the full and necessary power on the Secretary of the Treasury and impose upon him the duty to uphold the present gold standard and preserve the coins of the two metals on a parity with each other, which is the repeatedly declared policy of the United States.

In this connection I repeat my former recommendations that a portion of the gold holdings shall be placed in a trust fund from which greenbacks shall be redeemed upon presentation, but when once redeemed shall not thereafter be paid out except for gold.

The value of an American merchant marine to the extension of our commercial trade and the strengthening of our power upon the sea invites the immediate action of the Congress. Our national development will be one-sided and unsatisfactory so long as the remarkable growth of our inland industries remains unaccompanied by progress on the seas. There is no lack of constitutional authority for legislation which shall give to the country maritime strength commensurate with its industrial achievements and with its rank among the nations of the earth.

The past year has recorded exceptional activity in our shipyards, and the promises of continual prosperity in shipbuilding are abundant. Advanced legislation for the protection of our seamen has been enacted. Our coast trade, under regulations wisely framed at the beginning of the Government and since, shows results for the past fiscal year unequaled in our records or those of any other power. We shall fail to realize our opportunities,

however, if we complacently regard only matters at home and blind ourselves to the necessity of securing our share in the valuable carrying trade of the world.

Last year American vessels transported a smaller share of our exports and imports than during any former year in all our history, and the measure of our dependence upon foreign shipping was painfully manifested to our people. Without any choice of our own, but from necessity, the Departments of the Government charged with military and naval operations in the East and West Indies had to obtain from foreign flags merchant vessels essential for those operations.

The other great nations have not hesitated to adopt the required means to develop their shipping as a factor in national defense and as one of the surest and speediest means of obtaining for their producers a share in foreign markets. Like vigilance and effort on our part cannot fail to improve our situation, which is regarded with humiliation at home and with surprise abroad. Even the seeming sacrifices, which at the beginning may be involved, will be offset later by more than equivalent gains.

The expense is as nothing compared to the advantage to be achieved. The reestablishment of our merchant marine involves in a large measure our continued industrial progress and the extension of our commercial triumphs. I am satisfied the judgment of the country favors the policy of aid to our merchant marine, which will broaden our commerce and markets and upbuild our sea-carrying capacity for the products of agriculture and manufacture; which, with the increase of our Navy, mean more work and wages to our countrymen, as well as a safeguard to American interests in every part of the world.

Combinations of capital organized into trusts to control the conditions of trade among our citizens, to stifle competition, limit production, and determine the prices of products used and consumed by the people, are justly provoking public discussion, and should early claim the attention of the Congress.

The Industrial Commission, created by the act of the Congress of June 18, 1898, has been engaged in extended hearings upon the disputed questions involved in the subject of combinations in restraint of trade and

competition. They have not yet completed their investigation of this subject, and the conclusions and recommendations at which they may arrive are undetermined.

The subject is one giving rise to many divergent views as to the nature and variety or cause and extent of the injuries to the public which may result from large combinations concentrating more or less numerous enterprises and establishments, which previously to the formation of the combination were carried on separately.

It is universally conceded that combinations which engross or control the market of any particular kind of merchandise or commodity necessary to the general community, by suppressing natural and ordinary competition, whereby prices are unduly enhanced to the general consumer, are obnoxious not only to the common law but also to the public welfare. There must be a remedy for the evils involved in such organizations. If the present law can be extended more certainly to control or check these monopolies or trusts, it should be done without delay. Whatever power the Congress possesses over this most important subject should be promptly ascertained and asserted.

President Harrison in his annual message of December 3, 1889, says:

Earnest attention should be given by Congress to a consideration of the question how far the restraint of those combinations of capital commonly called "trusts" is matter of Federal jurisdiction. When organized, as they often are, to crush out all healthy competition and to monopolize the production or sale of an article of commerce and general necessity they are dangerous conspiracies against the public good, and should be made the subject of prohibitory and even penal legislation.

An act to protect trade and commerce against unlawful restraints and monopolies was passed by Congress on the 2d of July, 1890. The provisions of this statute are comprehensive and stringent. It declares every contract or combination, in the form of a trust or otherwise, or conspiracy in the restraint of trade or commerce among the several States or with foreign nations, to be unlawful. It denominates as a criminal every person who makes any such contract or engages in any such combination or conspiracy, and provides a punishment by fine or imprisonment. It invests the several circuit courts of the United States with jurisdiction to prevent and restrain violations of the act, and makes it the duty of the several United States district attorneys, under the direction of the Attorney-General, to institute

proceedings in equity to prevent and restrain such violations. It further confers upon any person who shall be injured in his business or property by any other person or corporation by reason of anything forbidden or declared to be unlawful by the act, the power to sue therefor in any circuit court of the United States without respect to the amount in controversy, and to recover threefold the damages by him sustained and the costs of the suit, including reasonable attorney fees. It will be perceived that the act is aimed at every kind of combination in the nature of a trust or monopoly in restraint of interstate or international commerce.

The prosecution by the United States of offenses under the act of 1890 has been frequently resorted to in the Federal courts, and notable efforts in the restraint of interstate commerce, such as the Trans-Missouri Freight Association and the Joint Traffic Association, have been successfully opposed and suppressed.

President Cleveland in his annual message of December 7, 1896—more than six years subsequent to the enactment of this law—after stating the evils of these trust combinations, says:

Though Congress has attempted to deal with this matter by legislation, the laws passed for that purpose thus far have proved ineffective, not because of any lack of disposition or attempt to enforce them, but simply because the laws themselves as interpreted by the courts do not reach the difficulty. If the insufficiencies of existing laws can be remedied by further legislation, it should be done. The fact must be recognized, however, that all Federal legislation on this subject may fall short of its purpose because of inherent obstacles, and also because of the complex character of our governmental system, which, while making the Federal authority supreme within its sphere, has carefully limited that sphere by metes and bounds which cannot be transgressed. The decision of our highest court on this precise question renders it quite doubtful whether the evils of trusts and monopolies can be adequately treated through Federal action, unless they seek directly and purposely to include in their objects transportation or intercourse between States or between the United States and foreign countries.

It does not follow, however, that this is the limit of the remedy that may be applied. Even though it may be found that Federal authority is not broad enough to fully reach the case, there can be no doubt of the power of the several States to act effectively in the premises, and there should be no reason to doubt their willingness to judiciously exercise such power.

The State legislation to which President Cleveland looked for relief from the evils of trusts has failed to accomplish fully that object. This is probably due to a great extent to the fact that different States take different views as to the proper way to discriminate between evil and injurious combinations

and those associations which are beneficial and necessary to the business prosperity of the country. The great diversity of treatment in different States arising from this cause and the intimate relations of all parts of the country to each other without regarding State lines in the conduct of business have made the enforcement of State laws difficult.

It is apparent that uniformity of legislation upon this subject in the several States is much to be desired. It is to be hoped that such uniformity founded in a wise and just discrimination between what is injurious and what is useful and necessary in business operations may be obtained and that means may be found for the Congress within the limitations of its constitutional power so to supplement an effective code of State legislation as to make a complete system of laws throughout the United States adequate to compel a general observance of the salutary rules to which I have referred.

The whole question is so important and far-reaching that I am sure no part of it will be lightly considered, but every phase of it will have the studied deliberation of the Congress, resulting in wise and judicious action.

A review of our relations with foreign States is presented with such recommendations as are deemed appropriate.

The long-pending boundary dispute between the Argentine Republic and Chile was settled in March last by the award of an arbitral commission, on which the United States minister at Buenos Ayres served as umpire.

Progress has been made toward the conclusion of a convention of extradition with the Argentine Republic. Having been advised and consented to by the United States Senate and ratified by Argentina, it only awaits the adjustment of some slight changes in the text before exchange.

In my last annual message I adverted to the claim of the Austro-Hungarian Government for indemnity for the killing of certain Austrian and Hungarian subjects by the authorities of the State of Pennsylvania, at Lattimer, while suppressing an unlawful tumult of miners, September 10, 1897. In view of the verdict of acquittal rendered by the court before which the sheriff and his deputies were tried for murder, and following the established doctrine that the Government may not be held accountable for

injuries suffered by individuals at the hands of the public authorities while acting in the line of duty in suppressing disturbance of the public peace, this Government, after due consideration of the claim advanced by the Austro-Hungarian Government, was constrained to decline liability to indemnify the sufferers.

It is gratifying to be able to announce that the Belgian Government has mitigated the restrictions on the importation of cattle from the United States, to which I referred in my last annual message.

Having been invited by Belgium to participate in a congress, held at Brussels, to revise the provisions of the general act of July 2, 1890, for the repression of the African slave trade, to which the United States was a signatory party, this Government preferred not to be represented by a plenipotentiary, but reserved the right of accession to the result. Notable changes were made, those especially concerning this country being in the line of the increased restriction of the deleterious trade in spirituous liquors with the native tribes, which this Government has from the outset urgently advocated. The amended general act will be laid before the Senate, with a view to its advice and consent.

Early in the year the peace of Bolivia was disturbed by a successful insurrection. The United States minister remained at his post, attending to the American interests in that quarter, and using besides his good offices for the protection of the interests of British subjects in the absence of their national representative. On the establishment of the new Government, our minister was directed to enter into relations therewith.

General Pando was elected President of Bolivia on October 23.

Our representative has been instructed to use all permissible friendly endeavors to induce the Government of Bolivia to amend its marriage laws so as to give legal status to the non-Catholic and civil marriages of aliens within its jurisdiction, and strong hopes are entertained that the Bolivian law in this regard will be brought, as was that of Peru some years ago, into harmony with the general practice of modern States.

A convention of extradition with Brazil, signed May 14, 1897, has been ratified by the Brazilian Legislature.

During the past summer two national ships of the United States have visited Brazilian ports on a friendly mission and been cordially received. The voyage of the *Wilmington* up the Amazon River gave rise to a passing misunderstanding, owing to confusion in obtaining permission to visit the interior and make surveys in the general interest of navigation, but the incident found a ready adjustment in harmony with the close relations of amity which this Government has always sedulously sought to cultivate with the commonwealths of the Western Continent.

The claim growing out of the seizure of the American-owned newspaper "The Panama Star and Herald" by the authorities of Colombia has been settled, after a controversy of several years, by an agreement assessing at \$30,000 the indemnity to be paid by the Colombian Government, in three installments of \$10,000 each.

The good will of Colombia toward our country has been testified anew by the cordial extension of facilities to the Nicaraguan Canal Commission in their approaching investigation of the Panama Canal and other projected routes across the Isthmus of Darien.

Toward the end of October an insurrectionary disturbance developed in the Colombian Republic. This movement has thus far not attained any decisive result and is still in progress.

Discussion of the questions raised by the action of Denmark in imposing restrictions on the importation of American meats has continued without substantial result in our favor.

The neighboring island Republic of Santo Domingo has lately been the scene of revolution, following a long period of tranquillity. It began with the killing of President Heureaux in July last, and culminated in the relinquishment by the succeeding Vice-President of the reins of government to the insurgents. The first act of the provisional government was the calling of a presidential and constituent election. Juan Isidro Jimenez, having been elected President, was inaugurated on the 14th of November. Relations have been entered into with the newly established Government.

The experimental association of Nicaragua, Honduras, and Salvador, under the title of the Greater Republic of Central America, when apparently

on the threshold of a complete federal organization by the adoption of a constitution and the formation of a national legislature, was disrupted in the last days of November, 1898, by the withdrawal of Salvador. Thereupon Nicaragua and Honduras abandoned the joint compact, each resuming its former independent sovereignty. This was followed by the reception of Minister Merry by the Republics of Nicaragua and Salvador, while Minister Hunter in turn presented his credentials to the Government of Honduras, thus reverting to the old distribution of the diplomatic agencies of the United States in Central America for which our existing statutes provide. A Nicaraguan envoy has been accredited to the United States.

An insurrectionary movement, under General Reyes, broke out at Bluefields in February last, and for a time exercised actual control in the Mosquito Territory. The *Detroit* was promptly sent thither for the protection of American interests. After a few weeks the Reyes government renounced the conflict, giving place to the restored supremacy of Nicaragua. During the interregnum certain public dues accruing under Nicaraguan law were collected from American merchants by the authorities for the time being in effective administrative control. Upon the titular government regaining power, a second payment of these dues was demanded. Controversy arose touching the validity of the original payment of the debt to the *de facto* regent of the territory. An arrangement was effected in April last by the United States minister and the foreign secretary of Nicaragua whereby the amounts of the duplicate payments were deposited with the British consul pending an adjustment of the matter by direct agreement between the Governments of the United States and Nicaragua. The controversy is still unsettled.

The contract of the Maritime Canal Company of Nicaragua was declared forfeited by the Nicaraguan Government on the 10th of October, on the ground of nonfulfillment within the ten years' term stipulated in the contract. The Maritime Canal Company has lodged a protest against this action, alleging rights in the premises which appear worthy of consideration. This Government expects that Nicaragua will afford the protestants a full and fair hearing upon the merits of the case.

The Nicaragua Canal Commission, which had been engaged upon the work of examination and survey for a ship-canal route across Nicaragua,

having completed its labors and made its report, was dissolved on May 31, and on June 10 a new commission, known as the Isthmian Canal Commission, was organized under the terms of the act approved March 3, 1899, for the purpose of examining the American Isthmus with a view to determining the most practicable and feasible route for a ship canal across that Isthmus, with its probable cost, and other essential details.

This Commission, under the presidency of Rear-Admiral John G. Walker, U.S.N. (retired), entered promptly upon the work intrusted to it, and is now carrying on examinations in Nicaragua along the route of the Panama Canal, and in Darien from the Atlantic, in the neighborhood of the Atrato River, to the Bay of Panama, on the Pacific side. Good progress has been made, but under the law a comprehensive and complete investigation is called for, which will require much labor and considerable time for its accomplishment. The work will be prosecuted as expeditiously as possible and a report made at the earliest practicable date.

The great importance of this work cannot be too often or too strongly pressed upon the attention of the Congress. In my message of a year ago I expressed my views of the necessity of a canal which would link the two great oceans, to which I again invite your consideration. The reasons then presented for early action are even stronger now.

A pleasing incident in the relations of this Government with that of Chile occurred in the generous assistance given to the war ship *Newark* when in distress in Chilean waters. Not alone in this way has the friendly disposition of Chile found expression. That country has acceded to the convention for the establishment of the Bureau of the American Republics, in which organization every independent State of the continent now shares.

The exchange of ratifications of a convention for the revival of the United States and Chilean Claims Commission and for the adjudication of claims heretofore presented but not determined during the life of the previous Commission has been delayed by reason of the necessity for fresh action by the Chilean Senate upon the amendments attached to the ratification of the treaty by the United States Senate. This formality is soon to be accomplished.

In view of disturbances in the populous provinces of northern China, where are many of our citizens, and of the imminence of disorder near the capital and toward the seaboard, a guard of marines was landed from the *Boston* and stationed during last winter in the legation compound at Peking. With the restoration of order this protection was withdrawn.

The interests of our citizens in that vast Empire have not been neglected during the past year. Adequate protection has been secured for our missionaries and some injuries to their property have been redressed.

American capital has sought and found various opportunities of competing to carry out the internal improvements which the Imperial Government is wisely encouraging, and to develop the natural resources of the Empire. Our trade with China has continued to grow, and our commercial rights under existing treaties have been everywhere maintained during the past year, as they will be in the future.

The extension of the area open to international foreign settlement at Shanghai and the opening of the ports of Nanking, Tsing-tao (Kiao chao), and Ta-lien-wan to foreign trade and settlement will doubtless afford American enterprise additional facilities and new fields, of which it will not be slow to take advantage.

In my message to Congress of December 5, 1898, I urged that the recommendation which had been made to the Speaker of the House of Representatives by the Secretary of the Treasury on the 14th of June, 1898, for an appropriation for a commission to study the commercial and industrial conditions in the Chinese Empire and report as to the opportunities for, and obstacles to, the enlargement of markets in China for the raw products and manufactures of the United States, should receive at your hands the consideration which its importance and timeliness merited, but the Congress failed to take action.

I now renew this recommendation, as the importance of the subject has steadily grown since it was first submitted to you, and no time should be lost in studying for ourselves the resources of this great field for American trade and enterprise.

The death of President Faure in February last called forth those sincere expressions of sympathy which befit the relations of two Republics as closely allied by unbroken historic ties as are the United States and France.

Preparations for the representation of the industries, arts, and products of the United States at the World's Exposition to be held in Paris next year continue on an elaborate and comprehensive scale, thanks to the generous appropriation provided by Congress and to the friendly interest the French Government has shown in furthering a typical exhibit of American progress.

There has been allotted to the United States a considerable addition of space, which, while placing our country in the first rank among exhibitors, does not suffice to meet the increasingly urgent demands of our manufacturers. The efforts of the Commissioner-General are ably directed toward a strictly representative display of all that most characteristically marks American achievement in the inventive arts, and most adequately shows the excellence of our natural productions.

In this age of keen rivalry among nations for mastery in commerce, the doctrine of evolution and the rule of the survival of the fittest must be as inexorable in their operation as they are positive in the results they bring about. The place won in the struggle by an industrial people can only be held by unrelaxed endeavor and constant advance in achievement. The present extraordinary impetus in every line of American exportation and the astounding increase in the volume and value of our share in the world's markets may not be attributed to accidental conditions.

The reasons are not far to seek. They lie deep in our national character and find expression year by year in every branch of handicraft, in every new device whereby the materials we so abundantly produce are subdued to the artisan's will and made to yield the largest, most practical, and most beneficial return. The American exhibit at Paris should, and I am confident will, be an open volume, whose lessons of skillfully directed endeavor, unfaltering energy, and consummate performance may be read by all on every page, thus spreading abroad a clearer knowledge of the worth of our productions and the justice of our claim to an important place in the marts of the world. To accomplish this by judicious selection, by recognition of paramount merit in whatever walk of trade or manufacture it may appear,

and by orderly classification and attractive installation is the task of our Commission.

The United States Government building is approaching completion, and no effort will be spared to make it worthy, in beauty of architectural plan and in completeness of display, to represent our nation. It has been suggested that a permanent building of similar or appropriate design be erected on a convenient site, already given by the municipality, near the exposition grounds, to serve in commemoration of the part taken by this country in this great enterprise, as an American National Institute, for our countrymen resorting to Paris for study.

I am informed by our Commissioner-General that we shall have in the American sections at Paris over 7,000 exhibitors, from every State in our country, a number ten times as great as those which were represented at Vienna in 1873, six times as many as those in Paris in 1878, and four times as many as those who exhibited in Paris in 1889. This statement does not include the exhibits from either Cuba, Puerto Rico, or Hawaii, for which arrangements have been made.

A number of important international congresses on special topics affecting public interests are proposed to be held in Paris next summer in connection with the exposition. Effort will be made to have the several technical branches of our administration efficiently represented at those conferences, each in its special line, and to procure the largest possible concourse of State representatives, particularly at the Congresses of Public Charity and Medicine.

Our relations with Germany continue to be most cordial. The increasing intimacy of direct association has been marked during the year by the granting permission in April for the landing on our shores of a cable from Borkum Eniden, on the North Sea, by way of the Azores, and also by the conclusion on September 2 of a Parcels Post Convention with the German Empire. In all that promises closer relations of intercourse and commerce and a better understanding between two races having so many traits in common, Germany can be assured of the most cordial cooperation of this Government and people. We may be rivals in many material paths, but our rivalry should be generous and open, ever aiming toward the attainment of

larger results and the mutually beneficial advancement of each in the line of its especial adaptabilities.

The several governments of the Empire seem reluctant to admit the natural excellence of our food productions and to accept the evidence we constantly tender of the care with which their purity is guarded by rigid inspection from the farm, through the slaughterhouse and the packing establishments, to the port of shipment. Our system of control over exported food staples invites examination from any quarter and challenges respect by its efficient thoroughness.

It is to be hoped that in time the two Governments will act in common accord toward the realization of their common purpose to safeguard the public health and to insure the purity and wholesomeness of all food products imported by either country from the other. Were the Congress to authorize an invitation to Germany, in connection with the pending reciprocity negotiations, for the constitution of a joint commission of scientific experts and practical men of affairs to conduct a searching investigation of food production and exportation in both countries and report to their respective legislatures for the adoption of such remedial measures as they might recommend for either, the way might be opened for the desirable result indicated.

Efforts to obtain for American life insurance companies a full hearing as to their business operations in Prussia have, after several years of patient representation, happily succeeded, and one of the most important American companies has been granted a concession to continue business in that Kingdom.

I am also glad to announce that the German insurance companies have been readmitted by the superintendent of insurance to do business in the State of New York.

Subsequent to the exchange of our peace treaty with Spain, Germany acquired the Caroline Islands by purchase, paying therefor \$5,000,000. Assurances have been received from the German Government that the rights of American missionaries and traders there will be considerably observed.

In my last annual message I referred to the pending negotiations with Great Britain in respect to the Dominion of Canada. By means of an executive agreement, a Joint High Commission had been created for the purpose of adjusting all unsettled questions between the United States and Canada, embracing twelve subjects, among which were the questions of the fur seals, the fisheries of the coast and contiguous inland waters, the Alaskan boundary, the transit of merchandise in bond, the alien labor laws, mining rights, reciprocity in trade, revision of the agreement respecting naval vessels in the Great Lakes, a more complete marking of parts of the boundary, provision for the conveyance of criminals, and for wrecking and salvage.

Much progress had been made by the Commission toward the adjustment of many of these questions, when it became apparent that an irreconcilable difference of views was entertained respecting the delimitation of the Alaskan boundary. In the failure of an agreement as to the meaning of Articles III and IV of the treaty of 1825 between Russia and Great Britain, which defined the boundary between Alaska and Canada, the American Commissioners proposed that the subject of the boundary be laid aside, and that the remaining questions of difference be proceeded with, some of which were so far advanced as to assure the probability of a settlement. This being declined by the British Commissioners, an adjournment was taken until the boundary should be adjusted by the two Governments. The subject has been receiving the careful attention which its importance demands, with the result that a *modus vivendi* for provisional demarcations in the region about the head of Lynn Canal has been agreed upon; and it is hoped that the negotiations now in progress between the two Governments will end in an agreement for the establishment and delimitation of a permanent boundary.

Apart from these questions growing out of our relationship with our northern neighbor, the most friendly disposition and ready agreement have marked the discussion of numerous matters arising in the vast and intimate intercourse of the United States with Great Britain.

This Government has maintained an attitude of neutrality in the unfortunate contest between Great Britain and the Boer States of Africa. We have remained faithful to the precept of avoiding entangling alliances as to affairs not of our direct concern. Had circumstances suggested that the

parties to the quarrel would have welcomed any kindly expression of the hope of the American people that war might be averted, good offices would have been gladly tendered. The United States representative at Pretoria was early instructed to see that all neutral American interests be respected by the combatants. This has been an easy task in view of the positive declarations of both British and Boer authorities that the personal and property rights of our citizens should be observed.

Upon the withdrawal of the British agent from Pretoria the United States consul was authorized, upon the request of the British Government and with the assent of the South African and Orange Free State Governments, to exercise the customary good offices of a neutral for the care of British interests. In the discharge of this function, I am happy to say that abundant opportunity has been afforded to show the impartiality of this Government toward both the combatants.

For the fourth time in the present decade, question has arisen with the Government of Italy in regard to the lynching of Italian subjects. The latest of these deplorable events occurred at Tallulah, Louisiana, whereby five unfortunates of Italian origin were taken from jail and hanged.

The authorities of the State and a representative of the Italian Embassy having separately investigated the occurrence, with discrepant results, particularly as to the alleged citizenship of the victims, and it not appearing that the State had been able to discover and punish the violators of the law, an independent investigation has been set on foot, through the agency of the Department of State, and is still in progress. The result will enable the Executive to treat the question with the Government of Italy in a spirit of fairness and justice. A satisfactory solution will doubtless be reached.

The recurrence of these distressing manifestations of blind mob fury directed at dependents or natives of a foreign country suggests that the contingency has arisen for action by Congress in the direction of conferring upon the Federal courts jurisdiction in this class of international cases where the ultimate responsibility of the Federal Government may be involved. The suggestion is not new. In his annual message of December 9, 1891, my predecessor, President Harrison, said:

It would, I believe, be entirely competent for Congress to make offenses against the treaty rights of foreigners domiciled in the United States cognizable in the Federal courts. This has not, however, been done, and the Federal officers and courts have no power in such cases to intervene either for the protection of a foreign citizen or for the punishment of his slayers. It seems to me to follow, in this state of the law, that the officers of the State charged with police and judicial powers in such cases must, in the consideration of international questions growing out of such incidents, be regarded in such sense as Federal agents as to make this Government answerable for their acts in cases where it would be answerable if the United States had used its constitutional power to define and punish crimes against treaty rights.

A bill to provide for the punishment of violations of treaty rights of aliens was introduced in the Senate March 1, 1892, and reported favorably March 30. Having doubtless in view the language of that part of Article III of the treaty of February 26, 1871, between the United States and Italy, which stipulates that "The citizens of each of the high contracting parties shall receive, in the States and Territories of the other, most constant protection and security for their persons and property, and shall enjoy in this respect the same rights and privileges as are or shall be granted to the natives, on their submitting themselves to the conditions imposed upon the natives," the bill so introduced and reported provided that any act committed in any State or Territory of the United States in violation of the rights of a citizen or subject of a foreign country secured to such citizen or subject by treaty between the United States and such foreign country and constituting a crime under the laws of the State or Territory shall constitute a like crime against the United States and be cognizable in the Federal courts. No action was taken by Congress in the matter.

I earnestly recommend that the subject be taken up anew and acted upon during the present session. The necessity for some such provision abundantly appears. Precedent for constituting a Federal jurisdiction in criminal cases where aliens are sufferers is rationally deducible from the existing statute, which gives to the district and circuit courts of the United States jurisdiction of civil suits brought by aliens where the amount involved exceeds a certain sum. If such jealous solicitude be shown for alien rights in cases of merely civil and pecuniary import, how much greater should be the public duty to take cognizance of matters affecting the lives and the rights of aliens under the settled principles of international law no less than under treaty stipulation, in cases of such transcendent wrongdoing

as mob murder, especially when experience has shown that local justice is too often helpless to punish the offenders.

After many years of endeavor on the part of this Government to that end the Italian Government has consented to enter into negotiations for a naturalization convention, having for one of its objects the regulation of the status of Italians (except those of an age for active military service) who, having been naturalized in the United States, may revisit Italy. It is hoped that with the mutually conciliatory spirit displayed a successful conclusion will be reached.

The treaty of commerce and navigation between the United States and Japan on November 22, 1894, took effect in accordance with the terms of its XIXth Article on the 17th of July last, simultaneously with the enforcement of like treaties with the other powers, except France, whose convention did not go into operation until August 4, the United States being, however, granted up to that date all the privileges and rights accorded to French citizens under the old French treaty. By this notable conventional reform Japan's position as a fully independent sovereign power is assured, control being gained of taxation, customs revenues, judicial administration, coasting trade, and all other domestic functions of government, and foreign extra-territorial rights being renounced.

Comprehensive codes of civil and criminal procedure according to western methods, public instruction, patents and copyrights, municipal administration, including jurisdiction over the former foreign settlements, customs tariffs and procedure, public health, and other administrative measures have been proclaimed. The working of the new system has given rise to no material complaints on the part of the American citizens or interests, a circumstance which attests the ripe consideration with which the change has been prepared.

Valuable assistance was rendered by the Japanese authorities to the United States transport ship *Morgan City* while stranded at Kobe. Permission has been granted to land and pasture army horses at Japanese ports of call on the way to the Philippine Islands. These kindly evidences of good will are highly appreciated.

The Japanese Government has shown a lively interest in the proposition of the Pacific Cable Company to add to its projected cable lines to Hawaii, Guam, and the Philippines a branch connection with the coast of Japan. It would be a gratifying consummation were the utility of the contemplated scheme enhanced by bringing Japan and the United States into direct telegraphic relation.

Without repeating the observations of my special message of February 10, 1899, concerning the necessity of a cable to Manila, I respectfully invite attention to it.

I recommend that, in case the Congress should not take measures to bring about this result by direct action of the Government, the Postmaster-General be authorized to invite competitive bids for the establishment of a cable; the company making the best responsible bid to be awarded the contract; the successful company to give ample bonds to insure the completion of the work within a reasonable time.

The year has been marked by constant increase in the intimacy of our relations with Mexico and in the magnitude of mutually advantageous interchanges. This Government has omitted no opportunity to show its strong desire to develop and perpetuate the ties of cordiality now so long happily unbroken.

Following the termination on January 20, 1899, by Mexico of the convention of extradition of December 11, 1861, a new treaty more in accordance with the ascertained needs of both countries was signed February 22, 1899, and exchanged in the City of Mexico on the 22d of April last. Its operation thus far has been effective and satisfactory. A recent case has served to test the application of its IVth Article, which provides that neither party shall be bound to deliver up its own citizens, but that the executive authority of each shall have the power to deliver them up if in its discretion it be deemed proper to do so.

The extradition of Mrs. Mattie Rich, a citizen of the United States, charged with homicide committed in Mexico, was after mature consideration directed by me in the conviction that the ends of justice would be thereby subserved. Similar action, on appropriate occasion, by the Mexican Executive will not only tend to accomplish the desire of both

Governments that grave crimes go not unpunished, but also to repress lawlessness along the border of the two countries. The new treaty stipulates that neither Government shall assume jurisdiction in the punishment of crimes committed exclusively within the territory of the other. This will obviate in future the embarrassing controversies which have heretofore arisen through Mexico's assertion of a claim to try and punish an American citizen for an offense committed within the jurisdiction of the United States.

The International Water Boundary Commission, organized by the convention of March 1, 1889, for the adjustment of questions affecting the Rio Grande frontier, has not yet completed its labors. A further extension of its term for one year, until December 24, 1899, was effected by a convention signed December 2, 1898, and exchanged and proclaimed in February last.

An invitation extended to the President of Mexico to visit Chicago in October, on the occasion of laying the corner stone of the United States Government building in that city, was cordially accepted by him, with the necessary consent of the Mexican Congress, but the illness of a member of his family prevented his attendance. The Minister of Foreign Relations, however, came as the personal representative of President Diaz, and in that high character was duly honored.

Claims growing out of the seizure of American sealing vessels in Bering Sea have been under discussion with the Government of Russia for several years, with the recent happy result of an agreement to submit them to the decision of a single arbitrator. By this act Russia affords proof of her adherence to the beneficent principle of arbitration which her plenipotentiaries conspicuously favored at The Hague Disarmament Conference when it was advocated by the representatives of the United States.

A suggestion for a permanent exposition of our products and manufactures in Russia, although not yet fully shaped, has been so cordially welcomed by the Imperial Government that it may not inaptly take a fitting place in whatever legislation the Congress may adopt looking to enlargement of our commercial opportunities abroad.

Important events have occurred in the Samoan Islands. The election, according to the laws and customs of Samoa, of a successor to the late King, Malietoa Laupepa, developed a contest as to the validity of the result, which issue, by the terms of the General Act, was to be decided by the Chief Justice. Upon his rendering a judgment in favor of Malietoa Tanu, the rival chief, Mataafa, took up arms. The active intervention of American and British war ships became imperative to restore order, at the cost of sanguinary encounters. In this emergency a joint commission of representatives of the United States, Germany, and Great Britain was sent to Samoa to investigate the situation and provide a temporary remedy. By its active efforts a peaceful solution was reached for the time being, the kingship being abolished and a provisional government established. Recommendations unanimously made by the commission for a permanent adjustment of the Samoan question were taken under consideration by the three powers parties to the General Act. But the more they were examined the more evident it became that a radical change was necessary in the relations of the powers to Samoa.

The inconveniences and possible perils of the tripartite scheme of supervision and control in the Samoan group by powers having little interest in common in that quarter beyond commercial rivalry had been once more emphasized by the recent events. The suggested remedy of the Joint Commission, like the scheme it aimed to replace, amounted to what has been styled a *tridominium*, being the exercise of the functions of sovereignty by an unanimous agreement of three powers. The situation had become far more intricate and embarrassing from every point of view than it was when my predecessor, in 1894, summed up its perplexities and condemned the participation in it of the United States.

The arrangement under which Samoa was administered had proved impracticable and unacceptable to all the powers concerned. To withdraw from the agreement and abandon the islands to Germany and Great Britain would not be compatible with our interests in the archipelago. To relinquish our rights in the harbor of Pago Pago, the best anchorage in the Pacific, the occupancy of which had been leased to the United States in 1878 by the first foreign treaty ever concluded by Samoa, was not to be thought of either as regards the needs of our Navy or the interests of our growing commerce with the East. We could not have considered any proposition for

the abrogation of the tripartite control which did not confirm us in all our rights and safeguard all our national interests in the islands.

Our views commended themselves to the other powers. A satisfactory arrangement was concluded between the Governments of Germany and of England, by virtue of which England retired from Samoa in view of compensations in other directions, and both powers renounced in favor of the United States all their rights and claims over and in respect to that portion of the group lying to the east of the one hundred and seventy-first degree of west longitude, embracing the islands of Tutuila, Ofoo, Olosenga, and Manua. I transmit to the Senate, for its constitutional action thereon, a convention, which besides the provisions above mentioned also guarantees us the same privileges and conditions in respect to commerce and commercial vessels in all of the islands of Samoa as those possessed by Germany.

Claims have been preferred by white residents of Samoa on account of injuries alleged to have been suffered through the acts of the treaty Governments in putting down the late disturbances. A convention has been made between the three powers for the investigation and settlement of these claims by a neutral arbitrator, to which the attention of the Senate will be invited.

My annual message of last year was necessarily devoted in great part to a consideration of the Spanish War and of the results it wrought and the conditions it imposed for the future. I am gratified to announce that the treaty of peace has restored friendly relations between the two powers. Effect has been given to its most important provisions. The evacuation of Puerto Rico having already been accomplished on the 18th of October, 1898, nothing remained necessary there but to continue the provisional military control of the island until the Congress should enact a suitable government for the ceded territory. Of the character and scope of the measures to that end I shall treat in another part of this message.

The withdrawal of the authority of Spain from the island of Cuba was effected by the 1st of January, so that the full re-establishment of peace found the relinquished territory held by us in trust for the inhabitants, maintaining, under the direction of the Executive, such government and

control therein as should conserve public order, restore the productive conditions of peace so long disturbed by the instability and disorder which prevailed for the greater part of the preceding three decades, and build up that tranquil development of the domestic state whereby alone can be realized the high purpose, as proclaimed in the joint resolution adopted by the Congress on the 19th of April, 1898, by which the United States disclaimed any disposition or intention to exercise sovereignty, jurisdiction, or control over Cuba, except for the pacification thereof, and asserted its determination when that was accomplished to leave the government and control of the island to its people. The pledge contained in this resolution is of the highest honorable obligation and must be sacredly kept.

I believe that substantial progress has been made in this direction. All the administrative measures adopted in Cuba have aimed to fit it for a regenerated existence by enforcing the supremacy of law and justice; by placing wherever practicable the machinery of administration in the hands of the inhabitants; by instituting needed sanitary reforms; by spreading education; by fostering industry and trade; by inculcating public morality, and, in short, by taking every rational step to aid the Cuban people to attain to that plane of self-conscious respect and self-reliant unity which fits an enlightened community for self-government within its own sphere, while enabling it to fulfill all outward obligations.

This nation has assumed before the world a grave responsibility for the future good government of Cuba. We have accepted a trust the fulfillment of which calls for the sternest integrity of purpose and the exercise of the highest wisdom. The new Cuba yet to arise from the ashes of the past must needs be bound to us by ties of singular intimacy and strength if its enduring welfare is to be assured. Whether those ties shall be organic or conventional, the destinies of Cuba are in some rightful form and manner irrevocably linked with our own, but how and how far is for the future to determine in the ripeness of events. Whatever be the outcome, we must see to it that free Cuba be a reality, not a name, a perfect entity, not a hasty experiment bearing within itself the elements of failure. Our mission, to accomplish which we took up the wager of battle, is not to be fulfilled by turning adrift any loosely framed commonwealth to face the vicissitudes which too often attend weaker States whose natural wealth and abundant resources are offset by the incongruities of their political organization and

the recurring occasions for internal rivalries to sap their strength and dissipate their energies. The greatest blessing which can come to Cuba is the restoration of her agricultural and industrial prosperity, which will give employment to idle men and re-establish the pursuits of peace. This is her chief and immediate need.

On the 19th of August last an order was made for the taking of the census in the island, to be completed on the 30th of November. By the treaty of peace the Spanish people on the island have until April 11, 1900, to elect whether they will remain citizens of Spain or become citizens of Cuba. Until then it cannot be definitely ascertained who shall be entitled to participate in the formation of the government of Cuba. By that time the results of the census will have been tabulated and we shall proceed to provide for elections which will commit the municipal governments of the island to the officers elected by the people. The experience thus acquired will prove of great value in the formation of a representative convention of the people to draft a constitution and establish a general system of independent government for the island. In the meantime and so long as we exercise control over the island the products of Cuba should have a market in the United States on as good terms and with as favorable rates of duty as are given to the West India Islands under treaties of reciprocity which shall be made.

For the relief of the distressed in the island of Cuba the War Department has issued supplies to destitute persons through the officers of the Army, which have amounted to 5,493,000 rations, at a cost of \$1,417,554.07.

To promote the disarmament of the Cuban volunteer army, and in the interest of public peace and the welfare of the people, the sum of \$75 was paid to each Cuban soldier borne upon the authenticated rolls, on condition that he should deposit his arms with the authorities designated by the United States. The sum thus disbursed aggregated \$2,547,750, which was paid from the emergency fund provided by the act of January 5, 1899, for that purpose.

Out of the Cuban island revenues during the six months ending June 30, 1899, \$1,712,014.20 was expended for sanitation, \$293,881.70 for charities and hospitals, and \$88,944.03 for aid to the destitute.

Following the exchange of ratifications of the treaty of peace the two Governments accredited ministers to each other, Spain sending to Washington the Duke of Arcos, an eminent diplomatist, previously stationed in Mexico, while the United States transferred to Madrid Hon. Bellamy Storer, its minister at Brussels. This was followed by the respective appointment of consuls, thereby fully resuming the relations interrupted by the war. In addition to its consular representation in the United States, the Spanish Government has appointed consuls for Cuba, who have been provisionally recognized during the military administration of the affairs of that island.

Judicial intercourse between the courts of Cuba and Puerto Rico and of Spain has been established, as provided by the treaty of peace. The Cuban political prisoners in Spanish penal stations have been and are being released and returned to their homes, in accordance with Article VI of the treaty. Negotiations are about to be had for defining the conventional relations between the two countries, which fell into abeyance by reason of the war. I trust that these will include a favorable arrangement for commercial reciprocity under the terms of sections 3 and 4 of the current tariff act. In these, as in all matters of international concern, no effort will be spared to respond to the good disposition of Spain, and to cultivate in all practicable ways the intimacy which should prevail between two nations whose past history has so often and in so many ways been marked by sincere friendship and by community of interests.

I would recommend appropriate legislation in order to carry into execution Article VII of the Treaty of Peace with Spain, by which the United States assured the payment of certain claims for indemnity of its citizens against Spain.

The United States minister to Turkey continues, under instructions, to press for a money payment in satisfaction of the just claims for injuries suffered by American citizens in the disorders of several years past and for wrongs done to them by the Ottoman authorities. Some of these claims are of many years' standing. This Government is hopeful of a general agreement in this regard.

In the Turkish Empire the situation of our citizens remains unsatisfactory. Our efforts during nearly forty years to bring about a convention of naturalization seem to be on the brink of final failure through the announced policy of the Ottoman Porte to refuse recognition of the alien status of native Turkish subjects naturalized abroad since 1867. Our statutes do not allow this Government to admit any distinction between the treatment of native and naturalized Americans abroad, so that ceaseless controversy arises in cases where persons owing in the eye of international law a dual allegiance are prevented from entering Turkey or are expelled after entrance. Our law in this regard contrasts with that of the European States. The British act, for instance, does not claim effect for the naturalization of an alien in the event of his return to his native country, unless the change be recognized by the law of that country or stipulated by treaty between it and the naturalizing State.

The arbitrary treatment, in some instances, of American productions in Turkey has attracted attention of late, notably in regard to our flour. Large shipments by the recently opened direct steamship line to Turkish ports have been denied entrance on the score that, although of standard composition and unquestioned purity, the flour was pernicious to health because of deficient "elasticity" as indicated by antiquated and untrustworthy tests. Upon due protest by the American minister, and it appearing that the act was a virtual discrimination against our product, the shipments in question were admitted. In these, as in all instances, wherever occurring, when American products may be subjected in a foreign country, upon specious pretexts, to discrimination compared with the like products of another country, this Government will use its earnest efforts to secure fair and equal treatment for its citizens and their goods. Failing this, it will not hesitate to apply whatever corrective may be provided by the statutes.

The International Commission of Arbitration, appointed under the Anglo-Venezuelan treaty of 1897, rendered an award on October 3 last, whereby the boundary line between Venezuela and British Guiana is determined, thus ending a controversy which has existed for the greater part of the century. The award, as to which the arbitrators were unanimous, while not meeting the extreme contention of either party, gives to Great Britain a large share of the interior territory in dispute and to Venezuela the entire

mouth of the Orinoco, including Barima Point and the Caribbean littoral for some distance to the eastward. The decision appears to be equally satisfactory to both parties.

Venezuela has once more undergone a revolution. The insurgents, under General Castro, after a sanguinary engagement in which they suffered much loss, rallied in the mountainous interior and advanced toward the capital. The bulk of the army having sided with the movement, President Andrade quitted Caracas, where General Castro set up a provisional government with which our minister and the representatives of other powers entered into diplomatic relations on the 20th of November, 1899.

The fourth section of the Tariff Act approved July 24, 1897, appears to provide only for commercial treaties which should be entered into by the President and also ratified by the Senate within two years from its passage. Owing to delays inevitable in negotiations of this nature, none of the treaties initiated under that section could be concluded in time for ratification by the Senate prior to its adjournment on the 4th of March last. Some of the pending negotiations, however, were near conclusion at that time, and the resulting conventions have since been signed by the plenipotentiaries. Others, within both the third and fourth sections of the act, are still under consideration. Acting under the constitutional power of the Executive in respect to treaties, I have deemed it my duty, while observing the limitations of concession provided by the fourth section, to bring to a conclusion all pending negotiations, and submit them to the Senate for its advice and consent.

Conventions of reciprocity have been signed during the Congressional recess with Great Britain for the respective colonies of British Guiana, Barbados, Bermuda, Jamaica, and Turks and Caicos Islands, and with the Republic of Nicaragua.

Important reciprocal conventions have also been concluded with France and with the Argentine Republic.

In my last annual message the progress noted in the work of the diplomatic and consular officers in collecting information as to the industries and commerce of other countries, and in the care and promptitude

with which their reports are printed and distributed, has continued during the past year, with increasingly valuable results in suggesting new sources of demand for American products and in pointing out the obstacles still to be overcome in facilitating the remarkable expansion of our foreign trade. It will doubtless be gratifying to Congress to learn that the various agencies of the Department of State are co-operating in these endeavors with a zeal and effectiveness which are not only receiving the cordial recognition of our business interests, but are exciting the emulation of other Governments. In any rearrangement of the great and complicated work of obtaining official data of an economic character which Congress may undertake it is most important, in my judgment, that the results already secured by the efforts of the Department of State should be carefully considered with a view to a judicious development and increased utility to our export trade.

The interest taken by the various States forming the International Union of American Republics in the work of its organic bureau is evidenced by the fact that for the first time since its creation in 1890 all the Republics of South and Central America are now represented in it.

The unanimous recommendation of the International American Conference, providing for the International Union of American Republics, stated that it should continue in force during a term of ten years from the date of its organization, and no country becoming a member of the union should cease to be a member until the end of said period of ten years, and unless twelve months before the expiration of said period a majority of the members of the union had given to the Secretary of State of the United States official notice of their wish to terminate the union at the end of its first period, that the union should continue to be maintained for another period of ten years, and thereafter, under the same conditions, for successive periods of ten years each.

The period for notification expired on July 14, 1899, without any of the members having given the necessary notice of withdrawal. Its maintenance is therefore assured for the next ten years. In view of this fact and of the numerous questions of general interest and common benefit to all of the Republics of America, some of which were considered by the first International American Conference, but not finally settled, and others which have since then grown to importance, it would seem expedient that the

various Republics constituting the Union should be invited to hold at an early date another conference in the capital of one of the countries other than the United States, which has already enjoyed this honor.

The purely international character of the work being done by the bureau and the appreciation of its value are further emphasized by the active co-operation which the various Governments of the Latin-American Republics and their diplomatic representatives in this capital are now exhibiting and the zealous endeavors they are making to extend its field of usefulness, to promote through it commercial intercourse, and strengthen the bonds of amity and confidence between its various members and the nations of this continent.

The act to encourage the holding of the Pan-American Exposition on the Niagara frontier, within the county of Erie or Niagara, in the State of New York, in the year 1901, was approved on March 3, 1899.

This exposition, which will be held in the city of Buffalo, in the near vicinity of the great Niagara cataract, and within a day's journey of which reside 40,000,000 of our people, will be confined entirely to the Western Hemisphere. Satisfactory assurances have already been given by the diplomatic representatives of Great Britain, Mexico, the Central and South American Republics, and most of the States of the United States that these countries and States will make an unique, interesting, and instructive exhibit, peculiarly illustrative of their material progress during the century which is about to close.

The law provides an appropriation of \$500,000 for the purpose of making an exhibit at the exposition by the Government of the United States from its Executive Departments and from the Smithsonian Institution and National Museum, the United States Commission of Fish and Fisheries, the Department of Labor, and the Bureau of the American Republics. To secure a complete and harmonious arrangement of this Government exhibit a board of management has already been created, and charged with the selection, purchase, preparation, transportation, arrangement, and safe-keeping of the articles and materials to be exhibited. This board has been organized and has already entered upon the performance of its duties, as provided for by the law.

I have every reason to hope and believe that this exposition will tend more firmly to cement the cordial relations between the nations on this continent.

In accordance with an act of Congress approved December 21, 1898, and under the auspices of the Philadelphia Commercial Museum, a most interesting and valuable exposition of products and manufactures especially adapted to export trade was held in Philadelphia from the 14th of September to the 1st of December, 1899. The representative character of the exhibits and the widespread interest manifested in the special objects of the undertaking afford renewed encouragement to those who look confidently to the steady growth of our enlarged exportation of manufactured goods, which has been the most remarkable fact in the economic development of the United States in recent years. A feature of this exposition which is likely to become of permanent and increasing utility to our industries is the collection of samples of merchandise produced in various countries with special reference to particular markets, providing practical object lessons to United States manufacturers as to qualities, styles, and prices of goods such as meet the special demands of consumers and may be exported with advantage.

In connection with the exposition an International Commercial Congress was held, upon the invitation of the Philadelphia Commercial Museum, transmitted by the Department of State to the various foreign Governments, for an exchange of information and opinions with the view to the promotion of international trade. This invitation met with general and cordial acceptance, and the Congress, which began its sessions at the exposition on the 13th of October, proved to be of great practical importance, from the fact that it developed a general recognition of the interdependence of nations in trade and a most gratifying spirit of accommodation with reference to the gradual removal of existing impediments to reciprocal relations, without injury to the industrial interests of either party.

In response to the invitation of His Majesty, the Emperor of Russia, delegates from twenty-six countries were assembled at The Hague on the 18th of May, as members of a conference in the interest of peace. The commission from the United States consisted of the Hon. Andrew D. White, the Hon. Seth Low, the Hon. Stanford Newel, Captain Alfred T. Mahan, of

the United States Navy, Captain William Crozier, of the United States Army, and the Hon. Frederick W. Holls, secretary. The occasion seemed to be opportune for the serious consideration of a plan for the pacific adjustment of international differences, a subject in which the American people have been deeply interested for many years, and a definite project for a permanent international tribunal was included in the instructions to the delegates of the United States.

The final act of the conference includes conventions upon the amelioration of the laws and customs of war on land, the adaptation to maritime warfare of the principles of the Geneva Convention of 1864, and the extension of judicial methods to international cases. The Convention for the Pacific Settlement of International Conflicts embodies the leading features of the American plan, with such modifications as were rendered necessary by the great diversity of views and interests represented by the delegates. The four titles of the convention provide for the maintenance of general peace, the exercise of good offices and mediation, the formation of commissions of inquiry, and international arbitration.

The mediation provided for by the convention is purely voluntary and advisory, and is intended to avoid any invasion or limitation of the sovereign rights of the adhering States. The commissions of inquiry proposed consists of delegations to be specifically constituted for particular purposes by means of conventions between the contesting parties, having for their object the clear understanding of international differences before resorting to the use of force. The provision for arbitration contemplates the formation of a permanent tribunal before which disputed cases may be brought for settlement by the mutual consent of the litigants in each separate case. The advantages of such a permanent tribunal over impromptu commissions of arbitration are conceived to be the actual existence of a competent court, prepared to administer justice, the greater economy resulting from a well-devised system, and the accumulated judicial skill and experience which such a tribunal would soon possess.

While earnestly promoting the idea of establishing a permanent international tribunal, the delegation of the United States was not unmindful of the inconveniences which might arise from an obtrusive exercise of

mediation, and in signing the convention carefully guarded the historic position of the United States by the following declaration:

Nothing contained in this convention shall be so construed as to require the United States of America to depart from its traditional policy of not intruding upon, interfering with, or entangling itself in the political questions or policy or internal administration of any foreign state; nor shall anything contained in the said convention be construed to imply a relinquishment by the United States of America of its traditional attitude toward purely American questions.

Thus interpreted, the Convention for the Pacific Settlement of International Conflicts may be regarded as realizing the earnest desire of great numbers of American citizens, whose deep sense of justice, expressed in numerous resolutions and memorials, has urged them to labor for this noble achievement. The general character of this convention, already signed by the delegates of more than twenty sovereign States, further commends it to the favorable action of the Senate of the United States, whose ratification it still awaits.

Since my last annual message, and in obedience to the acts of the Congress of April 22 and 26, 1898, the remaining volunteer force enlisted for the Spanish War, consisting of 34,834 regulars and 110,202 volunteers, with over 5,000 volunteer officers, has been discharged from the military service. Of the volunteers, 667 officers and 14,831 men were serving in the Philippines, and 1,650 of the regulars, who were entitled to be mustered out after the ratification of the treaty of peace. They voluntarily remained at the front until their places could be filled by new troops. They were returned home in the order in which they went to Manila, and are now all of them out of the service and in the ranks of citizenship. I recommend that the Congress provide a special medal of honor for the volunteers, regulars, sailors, and marines on duty in the Philippines who voluntarily remained in the service after their terms of enlistment had expired.

By the act of March 2, 1899, Congress gave authority to increase the Regular Army to a maximum not exceeding 65,000 enlisted men, and to enlist a force of 35,000 volunteers, to be recruited from the country at large. By virtue of this authority the Regular Army has been increased to the number of 61,999 enlisted men and 2,248 officers, and new volunteer regiments have been organized aggregating 33,050 enlisted men and 1,524 officers. Two of these volunteer regiments are made up of colored men,

with colored line officers. The new troops to take the places of those returning from the Philippines have been transported to Manila to the number of 581 officers and 26,322 enlisted men of the Regular Army and 594 officers and 15,388 enlisted men of the new volunteer force, while 504 officers and 14,119 men of the volunteer force are on the ocean *en route* to Manila.

The force now in Manila consists of 905 officers and 30,578 regulars, and 594 officers and 15,388 of the volunteers, making an aggregate of 1,499 officers and 45,966 men. When the troops now under orders shall reach Manila the force in the archipelago will comprise 2,051 officers and 63,483 men. The muster out of the great volunteer army organized for the Spanish War and the creation of a new army, the transportation from Manila to San Francisco of those entitled to discharge and the transportation of the new troops to take their places have been a work of great magnitude well and ably done, for which too much credit cannot be given the War Department.

During the past year we have reduced our force in Cuba and Puerto Rico. In Cuba we now have 334 officers and 10,796 enlisted men; in Puerto Rico, 87 officers and 2,855 enlisted men and a battalion of 400 men composed of native Puerto Ricans; while stationed throughout the United States are 910 officers and 17,317 men, and in Hawaii 12 officers and 453 enlisted men.

The operations of the Army are fully presented in the report of the Secretary of War. I cannot withhold from officers and men the highest commendation for their soldierly conduct in trying situations, their willing sacrifices for their country, and the integrity and ability with which they have performed unusual and difficult duties in our island possessions.

In the organization of the volunteer regiments authorized by the act of March 2, 1899, it was found that no provision had been made for chaplains. This omission was doubtless from inadvertence. I recommend the early authorization for the appointment of one chaplain for each of said regiments. These regiments are now in the Philippines, and it is important that immediate action be had.

In restoring peaceful conditions, orderly rule, and civic progress in Cuba, Puerto Rico, and, so far as practicable, in the Philippines, the rehabilitation

of the postal service has been an essential and important part of the work. It became necessary to provide mail facilities both for our forces of occupation and for the native population. To meet this requirement has involved a substantial reconstruction. The existing systems were so fragmentary, defective, and inadequate that a new and comprehensive organization had to be created. American trained officials have been assigned to the directing and executive positions, while natives have been chiefly employed in making up the body of the force. In working out this plan the merit rule has been rigorously and faithfully applied.

The appointment of Director-General of Posts of Cuba was given to an expert who had been Chief Post-Office Inspector and Assistant Postmaster-General, and who united large experience with administrative capacity. For the postmastership at Havana the range of skilled and available men was scanned, and the choice fell upon one who had been twenty years in the service as deputy postmaster and postmaster of a large city. This principle governed and determined the selection of the American officials sent not only to Cuba, but to Puerto Rico and the Philippines, and they were instructed to apply it so far as practicable in the employment of the natives as minor postmasters and clerks. The postal system in Cuba, though remaining under the general guidance of the Postmaster-General, was made essentially independent. It was felt that it should not be a burden upon the postal service of the United States, and provision was made that any deficit in the postal revenue should be a charge upon the general revenues of the island.

Though Puerto Rico and the Philippines hold a different relation to the United States, yet, for convenience of administration, the same principle of an autonomous system has been extended to them. The development of the service in all of the islands has been rapid and successful. It has moved forward on American lines, with free delivery, money order, and registry systems, and has given the people mail facilities far greater and more reliable than any they have ever before enjoyed. It is thus not only a vital agency of industrial, social, and business progress, but an important influence in diffusing a just understanding of the true spirit and character of American administration.

The domestic postal service continues to grow with extraordinary rapidity. The expenditures and the revenues will each exceed \$100,000,000 during the current year. Fortunately, since the revival of prosperous times the revenues have grown much faster than the expenditures, and there is every indication that a short period will witness the obliteration of the annual deficit. In this connection the report of the Postmaster-General embodies a statement of some evils which have grown up outside of the contemplation of law in the treatment of some classes of mail matter which wrongly exercise the privilege of the pound rate, and shows that if this matter had been properly classified and had paid the rate which it should have paid, instead of a postal deficit for the last fiscal year of \$6,610,000, there would have been on one basis a surplus of \$17,637,570, and on another of \$5,733,836. The reform thus suggested, in the opinion of the Postmaster-General, would not only put the postal service at once on a self-sustaining basis, but would permit great and valuable improvements, and I commend the subject to the consideration of the Congress.

The Navy has maintained the spirit and high efficiency which have always characterized that service, and has lost none of the gallantry in heroic action which has signalized its brilliant and glorious past. The Nation has equal pride in its early and later achievements. Its habitual readiness for every emergency has won the confidence and admiration of the country. The people are interested in the continued preparation and prestige of the Navy and will justify liberal appropriations for its maintenance and improvement. The officers have shown peculiar adaptation for the performance of new and delicate duties which our recent war has imposed.

It cannot be doubted that Congress will at once make necessary provision for the armor plate for the vessels now under contract and building. Its attention is respectfully called to the report of the Secretary of the Navy, in which the subject is fully presented. I unite in his recommendation that the Congress enact such special legislation as may be necessary to enable the Department to make contracts early in the coming year for armor of the best quality that can be obtained in this country for the *Maine*, *Ohio*, and *Missouri*, and that the provision of the act of March 3, 1899, limiting the price of armor to \$300 per ton be removed.

In the matter of naval construction Italy and Japan, of the great powers, laid down less tonnage in the year 1899 than this country, and Italy alone has less tonnage under construction. I heartily concur in the recommendations for the increase of the Navy, as suggested by the Secretary.

Our future progress and prosperity depend upon our ability to equal, if not surpass, other nations in the enlargement and advance of science, industry, and commerce. To invention we must turn as one of the most powerful aids to the accomplishment of such a result. The attention of the Congress is directed to the report of the Commissioner of Patents, in which will be found valuable suggestions and recommendations.

On the 30th of June, 1899, the pension roll of the United States numbered 991,519. These include the pensioners of the Army and Navy in all our wars. The number added to the rolls during the year was 40,991. The number dropped by reason of death, remarriage, minors by legal limitation, failure to claim within three years, and other causes, was 43,186, and the number of claims disallowed was 107,919. During the year 89,054 pension certificates were issued, of which 37,077 were for new or original pensions. The amount disbursed for army and navy pensions during the year was \$138,355,052.95, which was \$1,651,461.61 less than the sum of the appropriations.

The Grand Army of the Republic at its recent national encampment held in Philadelphia has brought to my attention and to that of the Congress the wisdom and justice of a modification of the third section of the act of June 27, 1890, which provides pensions for the widows of officers and enlisted

men who served ninety days or more during the War of the Rebellion and were honorably discharged, provided that such widows are without other means of support than their daily labor and were married to the soldier, sailor, or marine on account of whose service they claim pension prior to the date of the act.

The present holding of the Department is that if the widow's income aside from her daily labor does not exceed in amount what her pension would be, to wit, \$96 per annum, she would be deemed to be without other means of support than her daily labor, and would be entitled to a pension under this act; while if the widow's income independent of the amount received by her as the result of her daily labor exceeds \$96, she would not be pensionable under the act. I am advised by the Commissioner of Pensions that the amount of the income allowed before title to pension would be barred has varied widely under different administrations of the Pension Office, as well as during different periods of the same administration, and has been the cause of just complaint and criticism.

With the approval of the Secretary of the Interior the Commissioner of Pensions recommends that, in order to make the practice at all times uniform and to do justice to the dependent widow, the amount of income allowed independent of the proceeds of her daily labor should be not less than \$250 per annum, and he urges that the Congress shall so amend the act as to permit the Pension Office to grant pensionable status to widows under the terms of the third section of the act of June 27, 1890, whose income aside from the proceeds of daily labor is not in excess of \$250 per annum. I believe this to be a simple act of justice and heartily recommend it.

The Dawes Commission reports that gratifying progress has been made in its work during the preceding year. The field-work of enrollment of four of the nations has been completed. I recommend that Congress at an early day make liberal appropriation for educational purposes in the Indian Territory.

In accordance with the act of Congress approved March 3, 1899, the preliminary work in connection with the Twelfth Census is now fully under way. The officers required for the proper administration of the duties imposed have been selected. The provision for securing a proper

enumeration of the population, as well as to secure evidence of the industrial growth of the Nation, is broader and more comprehensive than any similar legislation in the past. The Director advises that every needful effort is being made to push this great work to completion in the time limited by the statute. It is believed that the Twelfth Census will emphasize our remarkable advance in all that pertains to national progress.

Under the authority of the act of Congress approved July 7, 1898, the commission consisting of the Secretary of the Treasury, the Attorney-General, and the Secretary of the Interior has made an agreement of settlement, which has had my approval, of the indebtedness to the Government growing out of the issue of bonds to aid in the construction of the Central Pacific and Western Pacific railroads. The agreement secures to the Government the principal and interest of said bonds, amounting to \$58,812,715.48. There has been paid thereon \$11,762,543.12, which has been covered into the Treasury, and the remainder, payable within ten years, with interest at the rate of 3 per cent per annum, payable semiannually, is secured by the deposit of an equal amount of first-mortgage bonds of the Pacific Railway companies. The amounts paid and secured to be paid to the Government on account of the Pacific Railroad subsidy claims are:

Union Pacific, cash	\$58,448,223.75
Kansas Pacific, cash	6,303,000.00
Central and Western Pacific, cash	11,798,314.14
Notes, secured	47,050,172.36
Kansas Pacific—dividends for deficiency due	821,897.70
United States, cash	
Making a total of	124,421,607.95

The whole indebtedness was about \$130,000,000, more than half of which consisted of accrued interest, for which sum the Government has realized the entire amount less about \$6,000,000 within a period of two years.

On June 30, 1898, there were thirty forest reservations (exclusive of the Afognak Forest and Fish Culture Reserve in Alaska), embracing an

estimated area of 40,719,474 acres. During the past year two of the existing forest reserves, the Trabuco Canyon (California) and Black Hills (South Dakota and Wyoming), have been considerably enlarged, the area of the Mount Rainier Reserve, in the State of Washington, has been somewhat reduced, and six additional reserves have been established, namely, the San Francisco Mountains (Arizona), the Black Mesa (Arizona), Lake Tahoe (California), Gallatin (Montana), Gila River (New Mexico), and Fish Lake (Utah), the total estimated area of which is 5,205,775 acres. This makes at the present time a total of thirty-six forest reservations, embracing an estimated area of 46,021,899 acres. This estimated area is the aggregated areas within the boundaries of the reserves. The lands actually reserved are, however, only the vacant public lands therein, and these have been set aside and reserved for sale or settlement in order that they may be of the greatest use to the people.

Protection of the national forests, inaugurated by the Department of the Interior in 1897, has been continued during the past year and much has been accomplished in the way of preventing forest fires and the protection of the timber. There are now large tracts covered by forests which will eventually be reserved and set apart for forest uses. Until that can be done Congress should increase the appropriations for the work of protecting the forests.

The Department of Agriculture is constantly consulting the needs of producers in all the States and Territories. It is introducing seeds and plants of great value and promoting fuller diversification of crops. Grains, grasses, fruits, legumes, and vegetables are imported for all parts of the United States. Under this encouragement the sugar-beet factory multiplies in the North and far West, semitropical plants are sent to the South, and congenial climates are sought for the choice productions of the far East. The hybridizing of fruit trees and grains is conducted in the search for varieties adapted to exacting conditions. The introduction of tea gardens into the Southern States promises to provide employment for idle hands, as well as to supply the home market with tea. The subject of irrigation where it is of vital importance to the people is being carefully studied, steps are being taken to reclaim injured or abandoned lands, and information for the people along these lines is being printed and distributed.

Markets are being sought and opened up for surplus farm and factory products in Europe and in Asia. The outlook for the education of the young farmer through agricultural college and experiment station, with opportunity given to specialize in the Department of Agriculture, is very promising. The people of Hawaii, Puerto Rico, and the Philippine Islands should be helped, by the establishment of experiment stations, to a more scientific knowledge of the production of coffee, india rubber, and other tropical products, for which there is demand in the United States.

There is widespread interest in the improvement of our public highways at the present time, and the Department of Agriculture is co-operating with the people in each locality in making the best possible roads from local material and in experimenting with steel tracks. A more intelligent system of managing the forests of the country is being put in operation and a careful study of the whole forestry problem is being conducted throughout the United States. A very extensive and complete exhibit of the agricultural and horticultural products of the United States is being prepared for the Paris Exposition.

On the 10th of December, 1898, the treaty of peace between the United States and Spain was signed. It provided, among other things, that Spain should cede to the United States the archipelago known as the Philippine Islands, that the United States should pay to Spain the sum of twenty millions of dollars, and that the civil rights and political status of the native inhabitants of the territories thus ceded to the United States should be determined by the Congress. The treaty was ratified by the Senate on the 6th of February, 1899, and by the Government of Spain on the 19th of March following. The ratifications were exchanged on the 11th of April and the treaty publicly proclaimed. On the 2d of March the Congress voted the sum contemplated by the treaty, and the amount was paid over to the Spanish Government on the 1st of May.

In this manner the Philippines came to the United States. The islands were ceded by the Government of Spain, which had been in undisputed possession of them for centuries. They were accepted not merely by our authorized commissioners in Paris, under the direction of the Executive, but by the constitutional and well-considered action of the representatives of

the people of the United States in both Houses of Congress. I had every reason to believe, and I still believe that this transfer of sovereignty was in accordance with the wishes and the aspirations of the great mass of the Filipino people.

From the earliest moment no opportunity was lost of assuring the people of the islands of our ardent desire for their welfare and of the intention of this Government to do everything possible to advance their interests. In my order of the 19th of May, 1898, the commander of the military expedition dispatched to the Philippines was instructed to declare that we came not to make war upon the people of that country, "nor upon any party or faction among them, but to protect them in their homes, in their employments, and in their personal and religious rights." That there should be no doubt as to the paramount authority there, on the 17th of August it was directed that "there must be no joint occupation with the insurgents"; that the United States must preserve the peace and protect persons and property within the territory occupied by their military and naval forces; that the insurgents and all others must recognize the military occupation and authority of the United States. As early as December 4, before the cession, and in anticipation of that event, the commander in Manila was urged to restore peace and tranquillity and to undertake the establishment of a beneficent government, which should afford the fullest security for life and property.

On the 21st of December, after the treaty was signed, the commander of the forces of occupation was instructed "to announce and proclaim in the most public manner that we come, not as invaders and conquerors, but as friends to protect the natives in their homes, in their employments, and in their personal and religious rights." On the same day, while ordering General Otis to see that the peace should be preserved in Iloilo, he was admonished that: "It is most important that there should be no conflict with the insurgents." On the 1st day of January, 1899, urgent orders were reiterated that the kindly intentions of this Government should be in every possible way communicated to the insurgents.

On the 21st of January I announced my intention of dispatching to Manila a commission composed of three gentlemen of the highest character and distinction, thoroughly acquainted with the Orient, who, in association with Admiral Dewey and Major-General Otis, were instructed "to facilitate

the most humane and effective extension of authority throughout the islands, and to secure with the least possible delay the benefits of a wise and generous protection of life and property to the inhabitants." These gentlemen were Dr. Jacob Gould Schurman, president of Cornell University; the Hon. Charles Denby, for many years minister to China, and Prof. Dean C. Worcester, of the University of Michigan, who had made a most careful study of life in the Philippines. While the treaty of peace was under consideration in the Senate, these Commissioners set out on their mission of good will and liberation. Their character was a sufficient guaranty of the beneficent purpose with which they went, even if they had not borne the positive instructions of this Government, which made their errand pre-eminently one of peace and friendship.

But before their arrival at Manila the sinister ambition of a few leaders of the Filipinos had created a situation full of embarrassment for us and most grievous in its consequences to themselves. The clear and impartial preliminary report of the Commissioners, which I transmit herewith, gives so lucid and comprehensive a history of the present insurrectionary movement that the story need not be here repeated. It is enough to say that the claim of the rebel leader that he was promised independence by an officer of the United States in return for his assistance has no foundation in fact and is categorically denied by the very witnesses who were called to prove it. The most the insurgent leader hoped for when he came back to Manila was the liberation of the islands from the Spanish control, which they had been laboring for years without success to throw off.

The prompt accomplishment of this work by the American Army and Navy gave him other ideas and ambitions, and insidious suggestions from various quarters perverted the purposes and intentions with which he had taken up arms. No sooner had our army captured Manila than the Filipino forces began to assume an attitude of suspicion and hostility which the utmost efforts of our officers and troops were unable to disarm or modify. Their kindness and forbearance were taken as a proof of cowardice. The aggressions of the Filipinos continually increased until finally, just before the time set by the Senate of the United States for a vote upon the treaty, an attack, evidently prepared in advance, was made all along the American lines, which resulted in a terribly destructive and sanguinary repulse of the insurgents.

Ten days later an order of the insurgent government was issued to its adherents who had remained in Manila, of which General Otis justly observes that "for barbarous intent it is unequaled in modern times." It directs that at 8 o'clock on the night of the 15th of February the "territorial militia" shall come together in the streets of San Pedro armed with their *bolos*, with guns and ammunition where convenient; that Filipino families only shall be respected; but that all other individuals, of whatever race they may be, shall be exterminated without any compassion, after the extermination of the army of occupation, and adds: "Brothers, we must avenge ourselves on the Americans and exterminate them, that we may take our revenge for the infamies and treacheries which they have committed upon us. Have no compassion upon them; attack with vigor." A copy of this fell by good fortune into the hands of our officers and they were able to take measures to control the rising, which was actually attempted on the night of February 22, a week later than was originally contemplated. Considerable numbers of armed insurgents entered the city by waterways and swamps and in concert with confederates inside attempted to destroy Manila by fire. They were kept in check during the night and the next day driven out of the city with heavy loss.

This was the unhappy condition of affairs which confronted our Commissioners on their arrival in Manila. They had come with the hope and intention of co-operating with Admiral Dewey and Major-General Otis in establishing peace and order in the archipelago and the largest measure of self-government compatible with the true welfare of the people. What they actually found can best be set forth in their own words:

Deplorable as war is, the one in which we are now engaged was unavoidable by us. We were attacked by a bold, adventurous, and enthusiastic army. No alternative was left to us except ignominious retreat.

It is not to be conceived of that any American would have sanctioned the surrender of Manila to the insurgents. Our obligations to other nations and to the friendly Filipinos and to ourselves and our flag demanded that force should be met by force. Whatever the future of the Philippines may be, there is no course open to us now except the prosecution of the war until the insurgents are reduced to submission. The Commission is of the opinion that there has been no time since the destruction of the Spanish squadron by Admiral Dewey when it was possible to withdraw our forces from the island either with honor to ourselves or with safety to the inhabitants.

The course thus clearly indicated has been unflinchingly pursued. The rebellion must be put down. Civil government cannot be thoroughly established until order is restored. With a devotion and gallantry worthy of its most brilliant history, the Army, ably and loyally assisted by the Navy, has carried on this unwelcome but most righteous campaign with richly deserved success. The noble self-sacrifice with which our soldiers and sailors whose terms of service had expired refused to avail themselves of their right to return home as long as they were needed at the front forms one of the brightest pages in our annals. Although their operations have been somewhat interrupted and checked by a rainy season of unusual violence and duration, they have gained ground steadily in every direction, and now look forward confidently to a speedy completion of their task.

The unfavorable circumstances connected with an active campaign have not been permitted to interfere with the equally important work of reconstruction. Again I invite your attention to the report of the Commissioners for the interesting and encouraging details of the work already accomplished in the establishment of peace and order and the inauguration of self-governing municipal life in many portions of the archipelago. A notable beginning has been made in the establishment of a government in the island of Negros which is deserving of special consideration. This was the first island to accept American sovereignty. Its people unreservedly proclaimed allegiance to the United States and adopted a constitution looking to the establishment of a popular government. It was impossible to guarantee to the people of Negros that the constitution so adopted should be the ultimate form of government. Such a question, under the treaty with Spain and in accordance with our own Constitution and laws, came exclusively within the jurisdiction of the Congress. The government actually set up by the inhabitants of Negros eventually proved unsatisfactory to the natives themselves. A new system was put into force by order of the Major-General Commanding the Department, of which the following are the most important elements:

It was ordered that the government of the island of Negros should consist of a military governor appointed by the United States military governor of the Philippines, and a civil governor and an advisory council elected by the people. The military governor was authorized to appoint secretaries of the treasury, interior, agriculture, public instruction, an attorney-general, and an

auditor. The seat of government was fixed at Bacolod. The military governor exercises the supreme executive power. He is to see that the laws are executed, appoint to office, and fill all vacancies in office not otherwise provided for, and may, with the approval of the military governor of the Philippines, remove any officer from office. The civil governor advises the military governor on all public civil questions and presides over the advisory council. He, in general, performs the duties which are performed by secretaries of state in our own system of government.

The advisory council consists of eight members elected by the people within territorial limits which are defined in the order of the commanding general.

The times and places of holding elections are to be fixed by the military governor of the island of Negros. The qualifications of voters are as follows:

(1) A voter must be a male citizen of the island of Negros. (2) Of the age of 21 years. (3) He shall be able to speak, read, and write the English, Spanish, or Visayan language, or he must own real property worth \$500, or pay a rental on real property of the value of \$1,000. (4) He must have resided in the island not less than one year preceding, and in the district in which he offers to register as a voter not less than three months immediately preceding the time he offers to register. (5) He must register at a time fixed by law before voting. (6) Prior to such registration he shall have paid all taxes due by him to the Government. Provided, that no insane person shall be allowed to register or vote.

The military governor has the right to veto all bills or resolutions adopted by the advisory council, and his veto is final if not disapproved by the military governor of the Philippines.

The advisory council discharges all the ordinary duties of a legislature. The usual duties pertaining to said offices are to be performed by the secretaries of the treasury, interior, agriculture, public instruction, the attorney-general, and the auditor.

The judicial power is vested in three judges, who are to be appointed by the military governor of the island. Inferior courts are to be established.

Free public schools are to be established throughout the populous districts of the island, in which the English language shall be taught, and this subject will receive the careful consideration of the advisory council.

The burden of government must be distributed equally and equitably among the people. The military authorities will collect and receive the customs revenue, and will control postal matters and Philippine inter-island trade and commerce.

The military governor, subject to the approval of the military governor of the Philippines, determines all questions not specifically provided for and which do not come under the jurisdiction of the advisory council.

The authorities of the Sulu Islands have accepted the succession of the United States to the rights of Spain, and our flag floats over that territory. On the 10th of August, 1899, Brig.-Gen. J.C. Bates, United States Volunteers, negotiated an agreement with the Sultan and his principal chiefs, which I transmit herewith. By Article I the sovereignty of the United States over the whole archipelago of Jolo and its dependencies is declared and acknowledged.

The United States flag will be used in the archipelago and its dependencies, on land and sea. Piracy is to be suppressed, and the Sultan agrees to co-operate heartily with the United States authorities to that end and to make every possible effort to arrest and bring to justice all persons engaged in piracy. All trade in domestic products of the archipelago of Jolo when carried on with any part of the Philippine Islands and under the American flag shall be free, unlimited, and undutiable. The United States will give full protection to the Sultan in case any foreign nation should attempt to impose upon him. The United States will not sell the island of Jolo or any other island of the Jolo archipelago to any foreign nation without the consent of the Sultan. Salaries for the Sultan and his associates in the administration of the islands have been agreed upon to the amount of \$760 monthly.

Article X provides that any slave in the archipelago of Jolo shall have the right to purchase freedom by paying to the master the usual market value. The agreement by General Bates was made subject to confirmation by the President and to future modifications by the consent of the parties in

interest. I have confirmed said agreement, subject to the action of the Congress, and with the reservation, which I have directed shall be communicated to the Sultan of Jolo, that this agreement is not to be deemed in any way to authorize or give the consent of the United States to the existence of slavery in the Sulu archipelago. I communicate these facts to the Congress for its information and action.

Everything indicates that with the speedy suppression of the Tagalo rebellion life in the archipelago will soon resume its ordinary course under the protection of our sovereignty, and the people of those favored islands will enjoy a prosperity and a freedom which they have never before known. Already hundreds of schools are open and filled with children. Religious freedom is sacredly assured and enjoyed. The courts are dispensing justice. Business is beginning to circulate in its accustomed channels. Manila, whose inhabitants were fleeing to the country a few months ago, is now a populous and thriving mart of commerce. The earnest and unremitting endeavors of the Commission and the Admiral and Major-General Commanding the Department of the Pacific to assure the people of the beneficent intentions of this Government have had their legitimate effect in convincing the great mass of them that peace and safety and prosperity and stable government can only be found in a loyal acceptance of the authority of the United States.

The future government of the Philippines rests with the Congress of the United States. Few graver responsibilities have ever been confided to us. If we accept them in a spirit worthy of our race and our traditions, a great opportunity comes with them. The islands lie under the shelter of our flag. They are ours by every title of law and equity. They cannot be abandoned. If we desert them we leave them at once to anarchy and finally to barbarism. We fling them, a golden apple of discord, among the rival powers, no one of which could permit another to seize them unquestioned. Their rich plains and valleys would be the scene of endless strife and bloodshed. The advent of Dewey's fleet in Manila Bay instead of being, as we hope, the dawn of a new day of freedom and progress, will have been the beginning of an era of misery and violence worse than any which has darkened their unhappy past. The suggestion has been made that we could renounce our authority over the islands and, giving them independence, could retain a protectorate over them. This proposition will not be found, I

am sure, worthy of your serious attention. Such an arrangement would involve at the outset a cruel breach of faith. It would place the peaceable and loyal majority, who ask nothing better than to accept our authority, at the mercy of the minority of armed insurgents. It would make us responsible for the acts of the insurgent leaders and give us no power to control them. It would charge us with the task of protecting them against each other and defending them against any foreign power with which they chose to quarrel. In short, it would take from the Congress of the United States the power of declaring war and vest that tremendous prerogative in the Tagal leader of the hour.

It does not seem desirable that I should recommend at this time a specific and final form of government for these islands. When peace shall be restored it will be the duty of Congress to construct a plan of government which shall establish and maintain freedom and order and peace in the Philippines. The insurrection is still existing, and when it terminates further information will be required as to the actual condition of affairs before inaugurating a permanent scheme of civil government. The full report of the Commission, now in preparation, will contain information and suggestions which will be of value to Congress, and which I will transmit as soon as it is completed. As long as the insurrection continues the military arm must necessarily be supreme. But there is no reason why steps should not be taken from time to time to inaugurate governments essentially popular in their form as fast as territory is held and controlled by our troops. To this end I am considering the advisability of the return of the Commission, or such of the members thereof as can be secured, to aid the existing authorities and facilitate this work throughout the islands. I have believed that reconstruction should not begin by the establishment of one central civil government for all the islands, with its seat at Manila, but rather that the work should be commenced by building up from the bottom, first establishing municipal governments and then provincial governments, a central government at last to follow.

Until Congress shall have made known the formal expression of its will I shall use the authority vested in me by the Constitution and the statutes to uphold the sovereignty of the United States in those distant islands as in all other places where our flag rightfully floats. I shall put at the disposal of the Army and Navy all the means which the liberality of Congress and the

people have provided to cause this unprovoked and wasteful insurrection to cease.

If any orders of mine were required to insure the merciful conduct of military and naval operations, they would not be lacking; but every step of the progress of our troops has been marked by a humanity which has surprised even the misguided insurgents. The truest kindness to them will be a swift and effective defeat of their present leader. The hour of victory will be the hour of clemency and reconstruction.

No effort will be spared to build up the waste places desolated by war and by long years of misgovernment. We shall not wait for the end of strife to begin the beneficent work. We shall continue, as we have begun, to open the schools and the churches, to set the courts in operation, to foster industry and trade and agriculture, and in every way in our power to make these people whom Providence has brought within our jurisdiction feel that it is their liberty and not our power, their welfare and not our gain, we are seeking to enhance. Our flag has never waved over any community but in blessing. I believe the Filipinos will soon recognize the fact that it has not lost its gift of benediction in its world-wide journey to their shores.

Some embarrassment in administration has occurred by reason of the peculiar status which the Hawaiian Islands at present occupy under the joint resolution of annexation approved July 7, 1898. While by that resolution the Republic of Hawaii as an independent nation was extinguished, its separate sovereignty destroyed, and its property and possessions vested in the United States, yet a complete establishment for its government under our system was not effected. While the municipal laws of the islands not enacted for the fulfillment of treaties and not inconsistent with the joint resolution or contrary to the Constitution of the United States or any of its treaties remain in force, yet these laws relate only to the social and internal affairs of the islands, and do not touch many subjects of importance which are of a broader national character. For example, the Hawaiian Republic was divested of all title to the public lands in the islands, and is not only unable to dispose of lands to settlers desiring to take up homestead sites, but is without power to give complete title in cases where lands have been entered upon under lease or other conditions which carry with them the right to the

purchaser, lessee, or settler to have a full title granted to him upon compliance with the conditions prescribed by law or by his particular agreement of entry.

Questions of doubt and difficulty have also arisen with reference to the collection of tonnage tax on vessels coming from Hawaiian ports; with reference to the status of Chinese in the islands, their entrance and exit therefrom; as to patents and copyrights; as to the register of vessels under the navigation laws; as to the necessity of holding elections in accordance with the provisions of the Hawaiian statutes for the choice of various officers, and as to several other matters of detail touching the interests both of the island and of the Federal Government.

By the resolution of annexation the President was directed to appoint five commissioners to recommend to Congress such legislation concerning the islands as they should deem necessary or proper. These commissioners were duly appointed and after a careful investigation and study of the system of laws and government prevailing in the islands, and of the conditions existing there, they prepared a bill to provide a government under the title of "The Territory of Hawaii." The report of the Commission, with the bill which they prepared, was transmitted by me to Congress on December 6, 1898, but the bill still awaits final action.

The people of these islands are entitled to the benefits and privileges of our Constitution, but in the absence of any act of Congress providing for Federal courts in the islands, and for a procedure by which appeals, writs of error, and other judicial proceedings necessary for the enforcement of civil rights may be prosecuted, they are powerless to secure their enforcement by the judgment of the courts of the United States. It is manifestly important, therefore, that an act shall be passed as speedily as possible erecting these islands into a judicial district, providing for the appointment of a judge and other proper officers and methods of procedure in appellate proceedings, and that the government of this newly acquired territory under the Federal Constitution shall be fully defined and provided for.

A necessity for immediate legislative relief exists in the Territory of Alaska. Substantially the only law providing a civil government for this Territory is the act of May 17, 1884. This is meager in its provisions, and is

fitted only for the administration of affairs in a country sparsely inhabited by civilized people and unimportant in trade and production, as was Alaska at the time this act was passed. The increase in population by immigration during the past few years, consequent upon the discovery of gold, has produced such a condition as calls for more ample facilities for local self-government and more numerous conveniences of civil and judicial administration. Settlements have grown up in various places, constituting in point of population and business cities of thousands of inhabitants, yet there is no provision of law under which a municipality can be organized or maintained.

In some localities the inhabitants have met together and voluntarily formed a municipal organization for the purposes of local government, adopting the form of a municipal constitution and charter, under which said officials have been appointed; and ordinances creating and regulating a police force, a fire department, a department of health, and making provision for the care of the insane and indigent poor and sick and for public schools, have been passed. These proceedings and the ordinances passed by such municipalities are without statutory authority and have no sanction, except as they are maintained by the popular sentiment of the community. There is an entire absence of authority to provide the ordinary instruments of local police control and administration, the population consisting of the usual percentage of lawless adventurers of the class that always flock to new fields of enterprise or discovery, and under circumstances which require more than ordinary provision for the maintenance of peace, good order, and lawful conduct.

The whole vast area of Alaska comprises but one judicial district, with one judge, one marshal, and one district attorney, yet the civil and criminal business has more than doubled within the past year, and is many times greater both in volume and importance than it was in 1884. The duties of the judge require him to travel thousands of miles to discharge his judicial duties at the various places designated for that purpose. The Territory should be divided into at least two districts, and an additional judge, district attorney, marshal, and other appropriate officers be provided.

There is practically no organized form of government in the Territory. There is no authority, except in Congress, to pass any law, no matter how

local or trivial, and the difficulty of conveying to the Congress an adequate conception and understanding of the various needs of the people in the different communities is easily understood. I see no reason why a more complete form of Territorial organization should not be provided. Following the precedent established in the year 1805, when a temporary government was provided for the recently acquired territory, then known under the name of Louisiana, it seems to me that it would be advantageous to confer greater executive power upon the governor and to establish, as was done in the case of the Territory of Louisiana, a legislative council having power to adopt ordinances which shall extend to all the rightful subjects of local legislation, such ordinances not to take effect until reported to and approved by the Congress if in session, and if that body is not in session then by the President. In this manner a system of laws providing for the incorporation and government of towns and cities having a certain population, giving them the power to establish and maintain a system of education to be locally supported, and ordinances providing for police, sanitary, and other such purposes, could be speedily provided. I believe a provision of this kind would be satisfactory to the people of the Territory. It is probable that the area is too vast and the population too scattered and transitory to make it wise at the present time to provide for an elective legislative body, but the conditions calling for local self-government will undoubtedly very soon exist, and will be facilitated by the measures which I have recommended.

I recommend that legislation to the same end be had with reference to the government of Puerto Rico. The time is ripe for the adoption of a temporary form of government for this island; and many suggestions made with reference to Alaska are applicable also to Puerto Rico.

The system of civil jurisprudence now adopted by the people of this island is described by competent lawyers who are familiar with it, as thoroughly modern and scientific, so far as it relates to matters of internal business, trade, production, and social and private right in general. The cities of the island are governed under charters which probably require very little or no change. So that with relation to matters of local concern and private right, it is not probable that much, if any, legislation is desirable; but with reference to public administration and the relations of the island to the Federal Government, there are many matters which are of pressing urgency.

The same necessity exists for legislation on the part of Congress to establish Federal courts and Federal jurisdiction in the island as has been previously pointed out by me with reference to Hawaii. Besides the administration of justice, there are the subjects of the public lands; the control and improvement of rivers and harbors; the control of the waters or streams not navigable, which, under the Spanish law, belonged to the Crown of Spain, and have by the treaty of cession passed to the United States; the immigration of people from foreign countries; the importation of contract labor; the imposition and collection of internal revenue; the application of the navigation laws; the regulation of the current money; the establishment of post-offices and post-roads; the regulation of tariff rates on merchandise imported from the island into the United States; the establishment of ports of entry and delivery; the regulation of patents and copyrights; these, with various other subjects which rest entirely within the power of the Congress, call for careful consideration and immediate action.

It must be borne in mind that since the cession Puerto Rico has been denied the principal markets she had long enjoyed and our tariffs have been continued against her products as when she was under Spanish sovereignty. The markets of Spain are closed to her products except upon terms to which the commerce of all nations is subjected. The island of Cuba, which used to buy her cattle and tobacco without customs duties, now imposes the same duties upon these products as from any other country entering her ports. She has therefore lost her free intercourse with Spain and Cuba without any compensating benefits in this market. Her coffee was little known and not in use by our people, and therefore there was no demand here for this, one of her chief products. The markets of the United States should be opened up to her products. Our plain duty is to abolish all customs tariffs between the United States and Puerto Rico and give her products free access to our markets.

As a result of the hurricane which swept over Puerto Rico on the 8th of August, 1899, over 100,000 people were reduced to absolute destitution, without homes, and deprived of the necessities of life. To the appeal of the War Department the people of the United States made prompt and generous response. In addition to the private charity of our people, the War Department has expended for the relief of the distressed \$392,342.63, which does not include the cost of transportation.

It is desirable that the government of the island under the law of belligerent right, now maintained through the Executive Department, should be superseded by an administration entirely civil in its nature. For present purposes I recommend that Congress pass a law for the organization of a temporary government, which shall provide for the appointment by the President, subject to confirmation by the Senate, of a governor and such other officers as the general administration of the island may require, and that for legislative purposes upon subjects of a local nature not partaking of a Federal character a legislative council, composed partly of Puerto Ricans and partly of citizens of the United States, shall be nominated and appointed by the President, subject to confirmation by the Senate, their acts to be subject to the approval of the Congress or the President prior to going into effect. In the municipalities and other local subdivisions I recommend that the principle of local self-government be applied at once, so as to enable the intelligent citizens of the island to participate in their own government and to learn by practical experience the duties and requirements of a self-contained and self-governing people. I have not thought it wise to commit the entire government of the island to officers selected by the people, because I doubt whether in habits, training, and experience they are such as to fit them to exercise at once so large a degree of self-government; but it is my judgment and expectation that they will soon arrive at an attainment of experience and wisdom and self-control that will justify conferring upon them a much larger participation in the choice of their insular officers.

The fundamental requirement for these people, as for all people, is education. The free schoolhouse is the best preceptor for citizenship. In the introduction of modern educational methods care, however, must be exercised that changes be not made too abruptly and that the history and racial peculiarities of the inhabitants shall be given due weight. Systems of education in these new possessions founded upon common-sense methods, adapted to existing conditions and looking to the future moral and industrial advancement of the people, will commend to them in a peculiarly effective manner the blessings of free government.

The love of law and the sense of obedience and submission to the lawfully constituted judicial tribunals are embedded in the hearts of our people, and any violation of these sentiments and disregard of their

obligations justly arouses public condemnation. The guaranties of life, liberty, and of civil rights should be faithfully upheld; the right of trial by jury respected and defended. The rule of the courts should assure the public of the prompt trial of those charged with criminal offenses, and upon conviction the punishment should be commensurate with the enormity of the crime.

Those who, in disregard of law and the public peace, unwilling to await the judgment of court and jury, constitute themselves judges and executioners should not escape the severest penalties for their crimes.

What I said in my inaugural address of March 4, 1897, I now repeat:

The constituted authorities must be cheerfully and vigorously upheld. Lynchings must not be tolerated in a great and civilized country like the United States. Courts, not mobs, must execute the penalties of the laws. The preservation of public order, the right of discussion, the integrity of courts, and the orderly administration of justice must continue forever the rock of safety upon which our Government securely rests.

In accordance with the act of Congress providing for an appropriate national celebration in the year 1900 of the establishment of the seat of Government in the District of Columbia, I have appointed a committee, consisting of the governors of all the States and Territories of the United States, who have been invited to assemble in the city of Washington on the 21st of December, 1899, which, with the committees of the Congress and the District of Columbia, are charged with the proper conduct of this celebration.

Congress at its last session appropriated five thousand dollars "to enable the Chief of Engineers of the Army to continue the examination of the subject and to make or secure designs, calculations, and estimates for a memorial bridge from the most convenient point of the Naval Observatory grounds, or adjacent thereto, across the Potomac River to the most convenient point of the Arlington estate property." In accordance with the provisions of this act, the Chief of Engineers has selected four eminent bridge engineers to submit competitive designs for a bridge combining the elements of strength and durability and such architectural embellishment and ornamentation as will fitly apply to the dedication, "A memorial to American patriotism." The designs are now being prepared, and as soon as

completed will be submitted to the Congress by the Secretary of War. The proposed bridge would be a convenience to all the people from every part of the country who visit the national cemetery, an ornament to the Capital of the Nation, and forever stand as a monument to American patriotism. I do not doubt that Congress will give to the enterprise still further proof of its favor and approval.

The executive order of May 6, 1896, extending the limits of the classified service, brought within the operation of the civil-service law and rules nearly all of the executive civil service not previously classified.

Some of the inclusions were found wholly illogical and unsuited to the work of the several Departments. The application of the rules to many of the places so included was found to result in friction and embarrassment. After long and very careful consideration, it became evident to the heads of the Departments, responsible for their efficiency, that in order to remove these difficulties and promote an efficient and harmonious administration certain amendments were necessary. These amendments were promulgated by me in executive order dated May 29, 1899.

The principal purpose of the order was to except from competitive examination certain places involving fiduciary responsibilities or duties of a strictly confidential, scientific, or executive character which it was thought might better be filled either by noncompetitive examination, or in the discretion of the appointing officer, than by open competition. These places were comparatively few in number. The order provides for the filling of a much larger number of places, mainly in the outside service of the War Department, by what is known as the registration system, under regulations to be approved by the President, similar to those which have produced such admirable results in the navy-yard service.

All of the amendments had for their main object a more efficient and satisfactory administration of the system of appointments established by the civil-service law. The results attained show that under their operation the public service has improved and that the civil-service system is relieved of many objectionable features which heretofore subjected it to just criticism and the administrative officers to the charge of unbusinesslike methods in the conduct of public affairs. It is believed that the merit system has been

greatly strengthened and its permanence assured. It will be my constant aim in the administration of government in our new possessions to make fitness, character, and merit essential to appointment to office, and to give to the capable and deserving inhabitants preference in appointments.

The 14th of December will be the One Hundredth Anniversary of the death of Washington. For a hundred years the Republic has had the priceless advantage of the lofty standard of character and conduct which he bequeathed to the American people. It is an inheritance which time, instead of wasting, continually increases and enriches. We may justly hope that in the years to come the benignant influence of the Father of his Country may be even more potent for good than in the century which is drawing to a close. I have been glad to learn that in many parts of the country the people will fittingly observe this historic anniversary.

Presented to this Congress are great opportunities. With them come great responsibilities. The power confided to us increases the weight of our obligations to the people, and we must be profoundly sensible of them as we contemplate the new and grave problems which confront us. Aiming only at the public good, we cannot err. A right interpretation of the people's will and of duty cannot fail to insure wise measures for the welfare of the islands which have come under the authority of the United States, and inure to the common interest and lasting honor of our country. Never has this Nation had more abundant cause than during the past year for thankfulness to God for manifold blessings and mercies, for which we make reverent acknowledgment.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, December 11, 1899.*

To the Senate and House of Representatives:

I transmit herewith, for the consideration of the Congress, a communication from the secretary of the Chamber of Commerce of the State of New York, inclosing resolutions unanimously adopted by that

chamber on June 1, 1899, requesting legislation authorizing the appointment of commercial *attachés* to the principal embassies and legations of the United States.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *January 4, 1900.*

To the Senate of the United States:

In compliance with a resolution of the Senate of December 20, 1899, I transmit herewith a copy of the report of the commission appointed by the President to investigate the conduct of the War Department in the war with Spain, together with a copy of all the testimony taken by said commission.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, February 1, 1900.*

To the Senate of the United States:

In compliance with the resolution of the Senate of January 24, 1900, I transmit herewith a copy of the report and all accompanying papers of Brig-Gen. John C. Bates, in relation to the negotiations of a treaty or agreement made by him with the Sultan of Sulu on the 20th day of August, 1899.

I reply to the request and said resolution for further information that the payments of money provided for by the agreement will be made from the revenues of the Philippine Islands, unless Congress shall otherwise direct.

Such payments are not for specific services but are a part consideration due to the Sulu tribe or nation under the agreement, and they have been stipulated for subject to the action of Congress in conformity with the practice of this Government from the earliest times in its agreements with

the various Indian nations occupying and governing portions of the territory subject to the sovereignty of the United States.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *February 2, 1900.*

To the Senate and House of Representatives:

I transmit herewith, for the information of the Congress, a report of a commission appointed by me on January 20, 1899, to investigate affairs in the Philippine Islands.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *February 21, 1900.*

To the House of Representatives:

I transmit herewith a report from the Secretary of State, in response to the resolution of the House of Representatives of February 19, 1900, calling upon him to inform the House of Representatives—

1. If "Charles E. Macrum, as consul of the American Government, informed the State Department that his official mail had been opened and read by the British censor at Durban, and if so, what steps, if any, have been taken in relation thereto; and

2. "What truth there is in the charge that a secret alliance exists between the Republic of the United States and the Empire of Great Britain."

WILLIAM McKINLEY.

EXECUTIVE MANSION, *March 5, 1900.*

To the Senate:

In response to the following resolution of the Senate of January 17, 1900, requesting the President—

If in his judgment not incompatible with the public interest, to communicate to the Senate all communications which have been received by him or by any Department or officer, civil or military, from Aguinaldo or any other person undertaking to represent the people in arms against the United States in the Philippine Islands, or any alleged government or public authority of said people, and all replies to such communications;

Also, the proclamation sent by him to be issued to the people of the Philippine Islands, as actually directed by him to be issued, and the same as actually proclaimed by General Otis, if in any respect it was altered or any part of it was omitted;

Also, to inform the Senate whether any approval or disapproval was expressed by his authority, or that of the War Department, of such change, if any;

Also, all constitutions, forms of government, or proclamations issued by Aguinaldo, or any congress or legislative assembly or body claiming to be such, or convention of the people of the Philippine Islands, or any part thereof, or claiming to represent them or any part thereof, of which information may have come to him or to any Department of the Government;

Also, all instructions given by him to the commissioners of the Philippine Islands, or either of them;

Also, any information which may have come to him, or any Department of the Government, since January 1, 1898, in regard to any plans of the people in arms against the United States for the pillage of Manila, for risings in the city, or for the destruction of foreign property and the massacre of foreign residents;

Also, any information that may have come to him, or any Department of the Government, of the treatment of the other inhabitants of the Philippines by those in arms against the authority of the United States, and of the attitude and feeling of such other inhabitants or tribes toward the so-called government of Aguinaldo and his armed followers;

Also, any information that may have come to him, or any Department of the Government, of the treatment of prisoners, either Spanish or American, by the people in arms against the authority of the United States;

Also, any information that may have come to him, or any Department of the Government, as to any aid or encouragement received by Aguinaldo and his followers from persons in the United States; as to what pamphlets, speeches, or other documents emanating from the United States and adverse to its authority and to its policy were circulated in whole or in part among the Filipinos in arms against the United States, among the other inhabitants of the islands, or among the soldiers of the United States,

and any information as to the effect, if any, of such pamphlets, speeches, and other documents, or of similar utterances in the United States upon the course of the rebellion against the United States;

Also, any further or other information which would tend to throw light upon the conduct and events of the insurrection against the authority of the United States in the Philippine Islands, and of the military movements for its suppression since January 1, 1898.

And that the President be further requested to communicate, without delay, so much of such information as is now in his possession or in that of any Department at Washington, without waiting to obtain so much of said information as may require considerable delay or communication with the Philippine Islands, and to communicate the remainder of the information as soon thereafter as it can be obtained,

I transmit herewith the following papers:

First. Copies of all communications which have been received by me, or by any Department or officer, civil or military, from Aguinaldo, or any other person undertaking to represent the people in arms against the United States in the Philippine Islands, or any alleged government or public authority of said people, and copies of all replies to such communications, so far as such communications and replies have been reported to me or to any Executive Department. Said copies of documents are appended hereto marked "I."

Second. Copy of instructions relating to a proclamation sent to General Otis and of the proclamation issued by General Otis pursuant thereto. Said copies of documents are appended hereto, marked "II." No disapproval of the said proclamation was expressed by my authority or that of the War Department. It was, in fact, approved by me, although no formal communication to that effect was sent to General Otis.

Also, among the papers marked "II," a letter of instructions to Maj.-Gen. Wesley Merritt, commanding the army in the Philippines, under date of May 28, 1898, and a proclamation issued by him to the people of the Philippines dated August 14, 1898.

Third. Copies of English translations of all constitutions, forms of government, or proclamations issued by Aguinaldo, or any congress or legislative assembly or body claiming to be such, or convention of the people of the Philippine Islands, or any part thereof, or claiming to represent them, or any part thereof, of which information has come to me or to any Department of the Government. Said copies of documents are appended hereto marked "III."

Fourth. Copies of all written instructions given by me to the commissioners to the Philippine Islands, or either of them. Said copies of documents are appended hereto marked "IV."

Fifth. Such information as has come to me, or any Department of the Government, since January 1, 1898, in regard to any plans of the people in arms against the United States for the pillage of Manila, for risings in the city, or for the destruction of foreign property and the massacre of foreign residents. Said copies of documents are appended hereto marked "V."

Sixth. The information which has come to me, or any Department of the Government, of the treatment of the other inhabitants of the Philippines by those in arms against the authority of the United States, and of the attitude and feeling of such other inhabitants or tribes toward the so-called government of Aguinaldo and his armed followers, is contained in the preliminary statement of the Philippine Commission, dated November 2, 1899, in the report of the Philippine Commission, dated January 31, 1900, and transmitted by me to Congress February 2, 1900, together with the preliminary statement, and the report of Maj.-Gen. E. S. Otis, United States Volunteers, commanding the Department of the Pacific and Eighth Army Corps, dated August 31, 1899, and transmitted to Congress with the report of the Secretary of War, dated November 29, 1899, with the accompanying documents.

Seventh. The information which has come to me, or any Department of the Government, of the treatment of prisoners, either Spanish or American, by the people in arms against the authority of the United States, is contained in the same documents.

Eighth. The information that has come to me, or any Department of the Government, as to any aid or encouragement received by Aguinaldo and his followers from persons in the United States, as to what pamphlets, speeches, or other documents emanating from the United States, and adverse to its authority and to its policy, were circulated, in whole or in part, among the Filipinos in arms against the United States, among the other inhabitants of the islands, or among the soldiers of the United States, and any information as to the effect, if any, of such pamphlets, speeches, and other documents, or of similar utterances in the United States upon the

course of the rebellion against the United States is contained in the same documents, and the copies of documents appended hereto marked "VI."

WILLIAM McKINLEY.

EXECUTIVE MANSION, *March 15, 1900.*

To the Senate of the United States:

In response to the resolution of the Senate of March 12, 1900, calling for the correspondence touching the request of the Government of the South African Republics for my intervention with a view to the cessation of hostilities, I transmit herewith a report of the Secretary of State furnishing the requested papers.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *March 21, 1900.*

To the Senate:

In response to the resolution of the Senate of January 23, 1900, requesting the President, "if in his opinion it is not incompatible with the public interest, to furnish the Senate with copies of the correspondence with the Republic of Colombia in relation to the Panama Canal and to the treaty between this Government and New Granada concluded December 12, 1846, not heretofore communicated," I transmit herewith a report from the Secretary of State, with accompanying papers.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, March 27, 1900.*

To the House of Representatives:

In response to the resolution of the House of Representatives of March 24, 1900, reading as follows:

WHEREAS the commercial community of the United States is deeply interested in ascertaining the conditions which are to govern trade in such parts of the Chinese Empire as are claimed by various foreign powers to be within their "areas of interest"; and

WHEREAS bills are now pending before both Houses of Congress for the dispatch of a mission to China to study its economic condition: Therefore, be it

Resolved, That the President of the United States be requested to transmit to the House of Representatives, if not incompatible with the public service, such correspondence as may have passed between the Department of State and various foreign Governments concerning the maintenance of the "open door" policy in China,

I transmit herewith a report from the Secretary of State, with accompanying papers.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, April 2, 1900.*

To the Senate and House of Representatives:

I transmit herewith a copy of a letter from Mr. Ferdinand W. Peck, Commissioner-General of the United States to the Paris Exposition of 1900, dated November 17, 1899, submitting a detailed statement of the expenditures incurred under authority of law.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *April 17, 1900.*

To the House of Representatives:

I transmit herewith a report from the Secretary of State in response to the resolution of the House of Representatives of March 23, 1900, calling for copies of any and all letters on file in the Department of State from citizens of the United States resident in the South African Republic from January 1, 1899, to the present time, making complaints of treatment by the South African Republic.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, May 3, 1900.*

To the House of Representatives:

I herewith return, without approval, House bill No. 4001, entitled "An act authorizing the rights of settlers on the Navajo Indian Reservation, Territory of Arizona." My objections to the bill are embodied in the following statement:

This tribe has a population of about 20,500 souls, of whom 1,000 dress in the manner of white men, 250 can read, and 500 use enough English for ordinary conversation. Last year they cultivated 8,000 acres, and possessed approximately 1,000,000 sheep, 250,000 goats, 100,500 cattle, 1,200 swine, and very considerable herds of horses and ponies.

Prior to January last the reservation, which is in the extreme northeastern portion of the Territory of Arizona, consisted of lands set apart for the use of these Indians under the treaty of June 1, 1863 (15 Stat., 667), and subsequent executive orders. On account of the conditions naturally prevailing in that section, the reservation, as then constituted, was altogether inadequate for the purpose for which it was set apart. There was not a sufficient supply of grass or water within its borders for the flocks and herds of the tribe, and in consequence more than one-third of the Indians were habitually off the reservation with their flocks and herds, and were in frequent contention and strife with whites over pasturage and water.

After most careful inquiry and inspection of the reservation as it then existed, and of adjacent land by efficient officers in the Indian service, the Commission of Indian Affairs, with the concurrence of the Secretary of the Interior, recommended that the limits of the reservation be extended westward so as to embrace the lands lying between the Navajo and Moqui Indian reservations on the east and the Colorado and Little Colorado Rivers and the Grand Canyon Forest Reserve on the west. This recommendation was supported by a very numerous signed petition from the white residents of that section, and also by a letter from the Governor of the Territory of Arizona, in which it was said:

I understand that a petition has been forwarded asking that the western limit be fixed at the Little Colorado River, as being better for all concerned and less liable to cause friction between the Indians and the whites. I earnestly hope that the prayer of the petitioners be granted, for the reason that the Little Colorado could be made a natural dividing line, distinct and well defined, and would extend the grazing territory of the Navajoes to a very considerable extent without seriously encroaching upon the interests of white settlers who have their property in that neighborhood.

I think great care should be exercised in questions of this nature because of possible serious friction which may occur if the interests of all concerned are not carefully protected.

The investigation which preceded this recommendation, and upon which it was in part based, showed that with the boundaries of the reservation thus extended the Indians would be able to obtain within the limits of the reservation sufficient grass and water for their flocks and herds, and the Government would therefore be justified in confining them to the reservation, thus avoiding the prior contention and friction between them and the whites.

It appearing that but little aid had been extended to these Indians by the Government for many years, that they had taken on habits of industry and husbandry, which entitled them to encouragement, and that it was neither just nor possible to confine them to the limits of a reservation which would not sustain their flocks and herds, an order was issued by me January 8 last, extending the reservation boundaries as recommended. The Indians have accepted this as an evidence of the good faith of the Government toward them, and it is now the belief of those charged with the administration of Indian affairs that further contention and friction between the Indians and whites will be avoided, if this arrangement is not disturbed.

The present bill proposes to open to miners and prospectors, and to the operation of the mining laws, a substantial portion of this reservation, including a part of the lands covered by the recent order. There has been no effort to obtain from the Indians a concession of this character, nor has any reason been presented why, if these lands are to be taken from them—for that will practically result from this bill, if it becomes a law, even though not so intended—it should not be done in pursuance of negotiations had with the Indians as in other instances.

The Indians could not understand how lands given to them in January as necessary for their use should be taken away without previous notice in May of the same year. While the Indians are the wards of the Government, and must submit to that which is deemed for their best interests by the sovereign guardian, they should, nevertheless, be dealt with in a manner calculated to give them confidence in the Government and to assist them in passing through the inevitable transition to a state of civilization and full citizenship. Believing that due consideration has not been given to the status and interests of the Indians, I withhold my approval from the bill.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, May 12, 1900.*

To the Senate of the United States:

In reply to the resolution of the Senate, dated March 2, 1900, I send herewith copy of an order to the provost marshal general of Manila, dated March 8, 1900, and the various endorsements and reports thereon, whereby it appears that the traffic in wine, beer, and liquor in the city of Manila is now controlled under a rigidly enforced high-license system; that the number of places where the liquor is sold has greatly decreased; that all such places are required to be closed at 8:30 in the evening on week days and to be kept closed on Sundays, and that the orderly condition of the city compares favorably with cities of similar size in the United States.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *May 12, 1900.*

To the Senate of the United States:

In response to a resolution of the Senate of April 11, 1900, reading as follows:

Resolved, That the President be, and is hereby, requested, if not incompatible with public interest, to inform the Senate whether persons have been executed in Puerto Rico by the Spanish method of garrote since he has been governing that country as Commander-in-Chief of the Army and Navy of the United States; and if so, the President is requested to inform the Senate why this mode of execution was adopted.

I transmit herewith copies of reports from Brig.-Gen. George W. Davis, United States Volunteers, military governor of Puerto Rico, which contain the information called for.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, May 19, 1900.*

To the Senate:

In response to the following resolution of the Senate of April 28, 1900:

Resolved, That the President be, and he is hereby requested, if not incompatible with the public interest, to inform the Senate whether General Torres, one of the officers of the Philippine army, came to General Otis with a flag of truce on February 5, 1899, the day after the fighting commenced between our forces and those of the Filipinos, and stated to General Otis that General Aguinaldo declared that fighting had been begun accidentally, and was not authorized by him, and that Aguinaldo wished to have it stopped, and that to bring about a conclusion of hostilities he proposed the establishment of a neutral zone between the two armies of a width that would be agreeable to General Otis, so that during the peace negotiations there might be no further danger of conflict between the two armies, and whether General Otis replied that fighting having once begun, must go on to the grim end. Was General Otis directed by the Secretary of War to make such an answer? Did General Otis telegraph the Secretary of War on February 9, 1899, as follows: "Aguinaldo now applies for a cessation of hostilities and conference. Have declined to answer?" And did General Otis afterwards reply? Was he directed by the

Secretary of War to reply, and what answer, if any, did he or the Secretary of War make to the application to cease fighting?

The President is also requested to inform the Senate whether the flag of the Philippine Republic was ever saluted by Admiral Dewey or any of the vessels of his fleet at any time since May 1, 1898. "Did Admiral Dewey, at the request of Aguinaldo, or any officer under him, send the vessels *Concord* and *Raleigh* to Subig Bay to assist Aguinaldo's forces in the capture of the Spanish garrison at that place? Did said vessels assist in the capture of the Spanish garrison, and after the capture did they turn the prisoners thus taken over to the Philippine forces?"

I herewith transmit a copy of a cable dispatch to General Otis, dated April 30, 1900, and of his reply, dated May 1, 1900.

General Otis was not directed by the Secretary of War to make such an answer as is set forth in the resolution, nor were any answers to communications upon the subject of the cessation of hostilities prescribed by the Secretary of War to General Otis, but he was left to exercise in respect thereof his own judgment, based upon his superior knowledge of the conditions surrounding the troops under his command.

I also transmit a copy of a cable dispatch from General Otis, sent from Manila February 8, 1899, received in Washington February 9, 1899, being the same dispatch to which he refers in his reply of May 1, 1900 as misleading. So far as I am informed, General Otis did not afterwards reply, except as set forth in his dispatch of May 1, 1900. He was not directed by the Secretary of War to reply, and no answer was made by him or the Secretary of War to an application to cease fighting. There appears to have been no such application.

I further transmit a copy of a letter from the Secretary of the Navy to Admiral George Dewey, dated May 14, 1900, and a copy of the Admiral's reply, dated May 17, 1900.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *May 22, 1900.*

To the Senate and House of Representatives:

I transmit herewith a report from the Secretary of State, with accompanying papers, relative to the status of Chinese persons in the Philippine Islands.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *May 22, 1900.*

To the Senate and House of Representatives:

I transmit herewith, for the information of Congress, a communication from the Secretary of Agriculture, forwarding a report on the progress of the beet-sugar industry in the United States during the year 1899. It embraces the observations made by a special agent on the various phases of the beet-sugar industry of the Hawaiian Islands; also the results of analyses of sugar-beets received by the Department of Agriculture from the different States and Territories, together with much other information relating to the sugar industry.

Your attention is invited to the recommendation of the Secretary of Agriculture that 20,000 copies of the report be printed for the use of the Department, in addition to such number as may be desired for the use of the Senate and House of Representatives.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, May 26, 1900.*

To the Senate:

I transmit herewith, in answer to the resolution of the Senate of May 22, 1900, a report from the Secretary of State showing that the consul of the United States at Pretoria was directed on May 8, 1900, to forward copies of the constitutions of the South African Republic and the Orange Free State

by return mail. Translations thereof will be communicated to the Senate at the earliest practicable date.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, June 2, 1900.*

To the Senate of the United States:

I transmit herewith, in further reply to the resolution of the Senate of April 10, 1900, having reference to Senate Document No. 336, Fifty-sixth Congress, first session, a further report from the Secretary of State, showing the places of residence of experts, clerks, officers, and employees of the Commission of the United States to the Paris Exposition of 1900, as well as the items of expenditures of the Commission for the months of January, February, and March, 1900, amounting to \$211,583.25.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, June 6, 1900.*

To the Senate of the United States:

In further response to the resolution of the Senate of January 17, 1900, requesting, among other things, information tending to throw light upon the conduct and events of the insurrection against the authority of the United States in the Philippine Islands, I transmit herewith a correspondence between the Secretary of War and the officers of the Second Division of the Eighth Army Corps.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *December 3, 1900.*

To the Senate and House of Representatives:

At the outgoing of the old and the incoming of the new century you begin the last session of the Fifty-sixth Congress with evidences on every hand of individual and national prosperity and with proof of the growing strength and increasing power for good of Republican institutions. Your countrymen will join with you in felicitation that American liberty is more firmly established than ever before, and that love for it and the determination to preserve it are more universal than at any former period of our history.

The Republic was never so strong, because never so strongly intrenched in the hearts of the people as now. The Constitution, with few amendments, exists as it left the hands of its authors. The additions which have been made to it proclaim larger freedom and more extended citizenship. Popular government has demonstrated in its one hundred and twenty-four years of trial here its stability and security, and its efficiency as the best instrument of national development and the best safeguard to human rights.

When the Sixth Congress assembled in November, 1800, the population of the United States was 5,308,483. It is now 76,304,799. Then we had sixteen States. Now we have forty-five. Then our territory consisted of 909,050 square miles. It is now 3,846,595 square miles. Education, religion, and morality have kept pace with our advancement in other directions, and while extending its power the Government has adhered to its foundation principles and abated none of them in dealing with our new peoples and possessions. A nation so preserved and blessed gives reverent thanks to God and invokes His guidance and the continuance of His care and favor.

In our foreign intercourse the dominant question has been the treatment of the Chinese problem. Apart from this our relations with the powers have been happy.

The recent troubles in China spring from the antforeign agitation which for the past three years has gained strength in the northern provinces. Their origin lies deep in the character of the Chinese races and in the traditions of their Government. The Taiping rebellion and the opening of Chinese ports to foreign trade and settlement disturbed alike the homogeneity and the seclusion of China.

Meanwhile foreign activity made itself felt in all quarters, not alone on the coast, but along the great river arteries and in the remoter districts, carrying new ideas and introducing new associations among a primitive people which had pursued for centuries a national policy of isolation.

The telegraph and the railway spreading over their land, the steamers plying on their waterways, the merchant and the missionary penetrating year by year farther to the interior, became to the Chinese mind types of an alien invasion, changing the course of their national life and fraught with vague forebodings of disaster to their beliefs and their self-control.

For several years before the present troubles all the resources of foreign diplomacy, backed by moral demonstrations of the physical force of fleets and arms, have been needed to secure due respect for the treaty rights of foreigners and to obtain satisfaction from the responsible authorities for the sporadic outrages upon the persons and property of unoffending sojourners, which from time to time occurred at widely separated points in the northern provinces, as in the case of the outbreaks in Sze-chuen and Shan-tung.

Posting of antiforeign placards became a daily occurrence, which the repeated reprobation of the Imperial power failed to check or punish. These inflammatory appeals to the ignorance and superstition of the masses, mendacious and absurd in their accusations and deeply hostile in their spirit, could not but work cumulative harm. They aimed at no particular class of foreigners; they were impartial in attacking everything foreign.

An outbreak in Shan-tung, in which German missionaries were slain, was the too natural result of these malevolent teachings. The posting of seditious placards, exhorting to the utter destruction of foreigners and of every foreign thing, continued unrebuked. Hostile demonstrations toward the stranger gained strength by organization.

The sect, commonly styled the Boxers, developed greatly in the provinces north of the Yang-Tse, and with the collusion of many notable officials, including some in the immediate councils of the Throne itself, became alarmingly aggressive. No foreigner's life, outside of the protected treaty ports, was safe. No foreign interest was secure from spoliation.

The diplomatic representatives of the powers in Peking strove in vain to check this movement. Protest was followed by demand and demand by renewed protest, to be met with perfunctory edicts from the Palace and evasive and futile assurances from the Tsung-li Yamen. The circle of the Boxer influence narrowed about Peking, and while nominally stigmatized as seditious, it was felt that its spirit pervaded the capital itself, that the Imperial forces were imbued with its doctrines, and that the immediate counselors of the Empress Dowager were in full sympathy with the antforeign movement.

The increasing gravity of the conditions in China and the imminence of peril to our own diversified interests in the Empire, as well as to those of all the other treaty governments, were soon appreciated by this Government, causing it profound solicitude. The United States from the earliest days of foreign intercourse with China had followed a policy of peace, omitting no occasions to testify good will, to further the extension of lawful trade, to respect the sovereignty of its Government, and to insure by all legitimate and kindly but earnest means the fullest measure of protection for the lives and property of our law-abiding citizens and for the exercise of their beneficent callings among the Chinese people.

Mindful of this, it was felt to be appropriate that our purposes should be pronounced in favor of such course as would hasten united action of the powers at Peking to promote the administrative reforms so greatly needed for strengthening the Imperial Government and maintaining the integrity of China, in which we believed the whole western world to be alike concerned. To these ends I caused to be addressed to the several powers occupying territory and maintaining spheres of influence in China the circular proposals of 1899, inviting from them declarations of their intentions and views as to the desirability of the adoption of measures insuring the benefits of equality of treatment of all foreign trade throughout China.

With gratifying unanimity the responses coincided in this common policy, enabling me to see in the successful termination of these negotiations proof of the friendly spirit which animates the various powers interested in the untrammelled development of commerce and industry in

the Chinese Empire as a source of vast benefit to the whole commercial world.

In this conclusion, which I had the gratification to announce as a completed engagement to the interested powers on March 20, 1900, I hopefully discerned a potential factor for the abatement of the distrust of foreign purposes which for a year past had appeared to inspire the policy of the Imperial Government, and for the effective exertion by it of power and authority to quell the critical antiforeign movement in the northern provinces most immediately influenced by the Manchu sentiment.

Seeking to testify confidence in the willingness and ability of the Imperial administration to redress the wrongs and prevent the evils we suffered and feared, the marine guard, which had been sent to Peking in the autumn of 1899 for the protection of the legation, was withdrawn at the earliest practicable moment, and all pending questions were remitted, as far as we were concerned, to the ordinary resorts of diplomatic intercourse.

The Chinese Government proved, however, unable to check the rising strength of the Boxers and appeared to be a prey to internal dissensions. In the unequal contest the antiforeign influences soon gained the ascendancy under the leadership of Prince Tuan. Organized armies of Boxers, with which the Imperial forces affiliated, held the country between Peking and the coast, penetrated into Manchuria up to the Russian borders, and through their emissaries threatened a like rising throughout northern China.

Attacks upon foreigners, destruction of their property, and slaughter of native converts were reported from all sides. The Tsung-li Yamen, already permeated with hostile sympathies, could make no effective response to the appeals of the legations. At this critical juncture, in the early spring of this year, a proposal was made by the other powers that a combined fleet should be assembled in Chinese waters as a moral demonstration, under cover of which to exact of the Chinese Government respect for foreign treaty rights and the suppression of the Boxers.

The United States, while not participating in the joint demonstration, promptly sent from the Philippines all ships that could be spared for service on the Chinese coast. A small force of marines was landed at Taku and sent to Peking for the protection of the American legation. Other powers took

similar action, until some four hundred men were assembled in the capital as legation guards.

Still the peril increased. The legations reported the development of the seditious movement in Peking and the need of increased provision for defense against it. While preparations were in progress for a larger expedition, to strengthen the legation guards and keep the railway open, an attempt of the foreign ships to make a landing at Taku was met by a fire from the Chinese forts. The forts were thereupon shelled by the foreign vessels, the American admiral taking no part in the attack, on the ground that we were not at war with China and that a hostile demonstration might consolidate the anti-foreign elements and strengthen the Boxers to oppose the relieving column.

Two days later the Taku forts were captured after a sanguinary conflict. Severance of communication with Peking followed, and a combined force of additional guards, which was advancing to Peking by the Pei-Ho, was checked at Langfang. The isolation of the legations was complete.

The siege and the relief of the legations has passed into undying history. In all the stirring chapter which records the heroism of the devoted band, clinging to hope in the face of despair, and the undaunted spirit that led their relievers through battle and suffering to the goal, it is a memory of which my countrymen may be justly proud that the honor of our flag was maintained alike in the siege and the rescue, and that stout American hearts have again set high, in fervent emulation with true men of other race and language, the indomitable courage that ever strives for the cause of right and justice.

By June 19 the legations were cut off. An identical note from the Yamen ordered each minister to leave Peking, under a promised escort, within twenty-four hours. To gain time they replied, asking prolongation of the time, which was afterwards granted, and requesting an interview with the Tsung-li Yamen on the following day. No reply being received, on the morning of the 20th the German minister, Baron von Ketteler, set out for the Yamen to obtain a response, and on the way was murdered.

An attempt by the legation guard to recover his body was foiled by the Chinese. Armed forces turned out against the legations. Their quarters were

surrounded and attacked. The mission compounds were abandoned, their inmates taking refuge in the British legation, where all the other legations and guards gathered for more effective defense. Four hundred persons were crowded in its narrow compass. Two thousand native converts were assembled in a nearby palace under protection of the foreigners. Lines of defense were strengthened, trenches dug, barricades raised, and preparations made to stand a siege, which at once began.

From June 20 until July 17, writes Minister Conger, "there was scarcely an hour during which there was not firing upon some part of our lines and into some of the legations, varying from a single shot to a general and continuous attack along the whole line." Artillery was placed around the legations and on the over-looking palace walls, and thousands of 3-inch shot and shell were fired, destroying some buildings and damaging all. So thickly did the balls rain, that, when the ammunition of the besieged ran low, five quarts of Chinese bullets were gathered in an hour in one compound and recast.

Attempts were made to burn the legations by setting neighboring houses on fire, but the flames were successfully fought off, although the Austrian, Belgian, Italian, and Dutch legations were then and subsequently burned. With the aid of the native converts, directed by the missionaries, to whose helpful co-operation Mr. Conger awards unstinted praise, the British legation was made a veritable fortress. The British minister, Sir Claude MacDonald, was chosen general commander of the defense, with the secretary of the American legation, Mr. E.G. Squiers, as chief of staff.

To save life and ammunition the besieged sparingly returned the incessant fire of the Chinese soldiery, fighting only to repel attack or make an occasional successful sortie for strategic advantage, such as that of fifty-five American, British, and Russian marines led by Captain Myers, of the United States Marine Corps, which resulted in the capture of a formidable barricade on the wall that gravely menaced the American position. It was held to the last, and proved an invaluable acquisition, because commanding the water gate through which the relief column entered.

During the siege the defenders lost 65 killed, 135 wounded, and 7 by disease—the last all children.

On July 14 the besieged had their first communication with the Tsung-li Yamen, from whom a message came inviting to a conference, which was declined. Correspondence, however, ensued and a sort of armistice was agreed upon, which stopped the bombardment and lessened the rifle fire for a time. Even then no protection whatever was afforded, nor any aid given, save to send to the legations a small supply of fruit and three sacks of flour.

Indeed, the only communication had with the Chinese Government related to the occasional delivery or dispatch of a telegram or to the demands of the Tsung-li Yamen for the withdrawal of the legations to the coast under escort. Not only are the protestations of the Chinese Government that it protected and succored the legations positively contradicted, but irresistible proof accumulates that the attacks upon them were made by Imperial troops, regularly uniformed, armed, and officered, belonging to the command of Jung Lu, the Imperial commander in chief. Decrees encouraging the Boxers, organizing them under prominent Imperial officers, provisioning them, and even granting them large sums in the name of the Empress Dowager, are known to exist. Members of the Tsung-li Yamen who counseled protection of the foreigners were beheaded. Even in the distant provinces men suspected of foreign sympathy were put to death, prominent among these being Chang Yen-hoon, formerly Chinese minister in Washington.

With the negotiation of the partial armistice of July 14, a proceeding which was doubtless promoted by the representations of the Chinese envoy in Washington, the way was opened for the conveyance to Mr. Conger of a test message sent by the Secretary of State through the kind offices of Minister Wu Ting-fang. Mr. Conger's reply, dispatched from Peking on July 18 through the same channel, afforded to the outside world the first tidings that the inmates of the legations were still alive and hoping for succor.

This news stimulated the preparations for a joint relief expedition in numbers sufficient to overcome the resistance which for a month had been organizing between Taku and the capital. Reinforcements sent by all the co-operating Governments were constantly arriving. The United States contingent, hastily assembled from the Philippines or dispatched from this country, amounted to some 5,000 men, under the able command first of the lamented Colonel Liscum and afterwards of General Chaffee.

Toward the end of July the movement began. A severe conflict followed at Tientsin, in which Colonel Liscum was killed. The city was stormed and partly destroyed. Its capture afforded the base of operations from which to make the final advance, which began in the first days of August, the expedition being made up of Japanese, Russian, British, and American troops at the outset.

Another battle was fought and won at Yangtsun. Thereafter the disheartened Chinese troops offered little show of resistance. A few days later the important position of Ho-si-woo was taken. A rapid march brought the united forces to the populous city of Tung Chow, which capitulated without a contest.

On August 14 the capital was reached. After a brief conflict beneath the walls the relief column entered and the legations were saved. The United States soldiers, sailors, and marines, officers and men alike, in those distant climes and unusual surroundings, showed the same valor, discipline, and good conduct and gave proof of the same high degree of intelligence and efficiency which have distinguished them in every emergency.

The Imperial family and the Government had fled a few days before. The city was without visible control. The remaining Imperial soldiery had made on the night of the 13th a last attempt to exterminate the besieged, which was gallantly repelled. It fell to the occupying forces to restore order and organize a provisional administration.

Happily the acute disturbances were confined to the northern provinces. It is a relief to recall and a pleasure to record the loyal conduct of the viceroys and local authorities of the southern and eastern provinces. Their efforts were continuously directed to the pacific control of the vast populations under their rule and to the scrupulous observance of foreign treaty rights. At critical moments they did not hesitate to memorialize the Throne, urging the protection of the legations, the restoration of communication, and the assertion of the Imperial authority against the subversive elements. They maintained excellent relations with the official representatives of foreign powers. To their kindly disposition is largely due the success of the consuls in removing many of the missionaries from the interior to places of safety. In this relation the action of the consuls should

be highly commended. In Shan-tung and eastern Chi-li the task was difficult, but, thanks to their energy and the cooperation of American and foreign naval commanders, hundreds of foreigners, including those of other nationalities than ours, were rescued from imminent peril.

The policy of the United States through all this trying period was clearly announced and scrupulously carried out. A circular note to the powers dated July 3 proclaimed our attitude. Treating the condition in the north as one of virtual anarchy, in which the great provinces of the south and southeast had no share, we regarded the local authorities in the latter quarters as representing the Chinese people with whom we sought to remain in peace and friendship. Our declared aims involved no war against the Chinese nation. We adhered to the legitimate office of rescuing the imperiled legation, obtaining redress for wrongs already suffered, securing wherever possible the safety of American life and property in China, and preventing a spread of the disorders or their recurrence.

As was then said, "The policy of the Government of the United States is to seek a solution which may bring about permanent safety and peace to China, preserve Chinese territorial and administrative entity, protect all rights guaranteed to friendly powers by treaty and international law, and safeguard for the world the principle of equal and impartial trade with all parts of the Chinese Empire."

Faithful to those professions which, as it proved, reflected the views and purposes of the other co-operating Governments, all our efforts have been directed toward ending the anomalous situation in China by negotiations for a settlement at the earliest possible moment. As soon as the sacred duty of relieving our legation and its dependents was accomplished we withdrew from active hostilities, leaving our legation under an adequate guard in Peking as a channel of negotiation and settlement—a course adopted by others of the interested powers. Overtures of the empowered representatives of the Chinese Emperor have been considerately entertained.

The Russian proposition looking to the restoration of the Imperial power in Peking has been accepted as in full consonance with our own desires, for we have held and hold that effective reparation for wrongs suffered and an enduring settlement that will make their recurrence impossible can best be

brought about under an authority which the Chinese nation reverences and obeys. While so doing we forego no jot of our undoubted right to exact exemplary and deterrent punishment of the responsible authors and abettors of the criminal acts whereby we and other nations have suffered grievous injury.

For the real culprits, the evil counselors who have misled the Imperial judgment and diverted the sovereign authority to their own guilty ends, full expiation becomes imperative within the rational limits of retributive justice. Regarding this as the initial condition of an acceptable settlement between China and the powers, I said in my message of October 18 to the Chinese Emperor:

I trust that negotiations may begin so soon as we and the other offended Governments shall be effectively satisfied of Your Majesty's ability and power to treat with just sternness the principal offenders, who are doubly culpable, not alone toward the foreigners, but toward Your Majesty, under whose rule the purpose of China to dwell in concord with the world had hitherto found expression in the welcome and protection assured to strangers.

Taking, as a point of departure, the Imperial edict appointing Earl Li Hung Chang and Prince Ching plenipotentiaries to arrange a settlement, and the edict of September 25, whereby certain high officials were designated for punishment, this Government has moved, in concert with the other powers, toward the opening of negotiations, which Mr. Conger, assisted by Mr. Rockhill, has been authorized to conduct on behalf of the United States.

General bases of negotiation formulated by the Government of the French Republic have been accepted with certain reservations as to details, made necessary by our own circumstances, but, like similar reservations by other powers, open to discussion in the progress of the negotiations. The disposition of the Emperor's Government to admit liability for wrongs done to foreign Governments and their nationals, and to act upon such additional designation of the guilty persons as the foreign ministers at Peking may be in a position to make, gives hope of a complete settlement of all questions involved, assuring foreign rights of residence and intercourse on terms of equality for all the world.

I regard as one of the essential factors of a durable adjustment the securing of adequate guarantees for liberty of faith, since insecurity of

those natives who may embrace alien creeds is a scarcely less effectual assault upon the rights of foreign worship and teaching than would be the direct invasion thereof.

The matter of indemnity for our wronged citizens is a question of grave concern. Measured in money alone, a sufficient reparation may prove to be beyond the ability of China to meet. All the powers concur in emphatic disclaimers of any purpose of aggrandizement through the dismemberment of the Empire. I am disposed to think that due compensation may be made in part by increased guarantees of security for foreign rights and immunities, and, most important of all, by the opening of China to the equal commerce of all the world. These views have been and will be earnestly advocated by our representatives.

The Government of Russia has put forward a suggestion, that in the event of protracted divergence of views in regard to indemnities the matter may be relegated to the Court of Arbitration at The Hague. I favorably incline to this, believing that high tribunal could not fail to reach a solution no less conducive to the stability and enlarged prosperity of China itself than immediately beneficial to the powers.

Ratifications of a treaty of extradition with the Argentine Republic were exchanged on June 2 last.

While the Austro-Hungarian Government has in the many cases that have been reported of the arrest of our naturalized citizens for alleged evasion of military service faithfully observed the provisions of the treaty and released such persons from military obligations, it has in some instances expelled those whose presence in the community of their origin was asserted to have a pernicious influence. Representations have been made against this course whenever its adoption has appeared unduly onerous.

We have been urgently solicited by Belgium to ratify the International Convention of June, 1899, amendatory of the previous Convention of 1890 in respect to the regulation of the liquor trade in Africa. Compliance was necessarily withheld, in the absence of the advice and consent of the Senate thereto. The principle involved has the cordial sympathy of this Government, which in the revisionary negotiations advocated more drastic measures, and I would gladly see its extension, by international agreement,

to the restriction of the liquor traffic with all uncivilized peoples, especially in the Western Pacific.

A conference will be held at Brussels December 11, 1900, under the Convention for the protection of industrial property, concluded at Paris March 20, 1883, to which delegates from this country have been appointed. Any lessening of the difficulties that our inventors encounter in obtaining patents abroad for their inventions and that our farmers, manufacturers, and merchants may have in the protection of their trade-marks is worthy of careful consideration, and your attention will be called to the results of the conference at the proper time.

In the interest of expanding trade between this country and South America, efforts have been made during the past year to conclude conventions with the southern republics for the enlargement of postal facilities. Two such agreements, signed with Bolivia on April 24, of which that establishing the money-order system is undergoing certain changes suggested by the Post-Office Department, have not yet been ratified by this Government. A treaty of extradition with that country, signed on the same day, is before the Senate.

A boundary dispute between Brazil and Bolivia over the territory of Acre is in a fair way of friendly adjustment, a protocol signed in December, 1899, having agreed on a definite frontier and provided for its demarcation by a joint commission.

Conditions in Brazil have weighed heavily on our export trade to that country in marked contrast to the favorable conditions upon which Brazilian products are admitted into our markets. Urgent representations have been made to that Government on the subject and some amelioration has been effected. We rely upon the reciprocal justice and good will of that Government to assure to us a further improvement in our commercial relations.

The Convention signed May 24, 1897, for the final settlement of claims left in abeyance upon the dissolution of the Commission of 1893, was at length ratified by the Chilean Congress and the supplemental Commission has been organized.

It remains for the Congress to appropriate for the necessary expenses of the Commission.

The insurrectionary movement which disturbed Colombia in the latter part of 1899 has been practically suppressed, although guerrillas still operate in some departments. The executive power of that Republic changed hands in August last by the act of Vice-President Marroquin in assuming the reins of government during the absence of President San Clemente from the capital. The change met with no serious opposition, and, following the precedents in such cases, the United States minister entered into relations with the new *de facto* Government on September 17.

It is gratifying to announce that the residual questions between Costa Rica and Nicaragua growing out of the Award of President Cleveland in 1888 have been adjusted through the choice of an American engineer, General E.P. Alexander, as umpire to run the disputed line. His task has been accomplished to the satisfaction of both contestants.

A revolution in the Dominican Republic toward the close of last year resulted in the installation of President Jimenez, whose Government was formally recognized in January. Since then final payment has been made of the American claim in regard to the Ozama bridge.

The year of the exposition has been fruitful in occasions for displaying the good will that exists between this country and France. This great competition brought together from every nation the best in natural productions, industry, science, and the arts, submitted in generous rivalry to a judgment made all the more searching because of that rivalry. The extraordinary increase of exportations from this country during the past three years and the activity with which our inventions and wares had invaded new markets caused much interest to center upon the American exhibit, and every encouragement was offered in the way of space and facilities to permit of its being comprehensive as a whole and complete in every part.

It was, however, not an easy task to assemble exhibits that could fitly illustrate our diversified resources and manufactures. Singularly enough, our national prosperity lessened the incentive to exhibit. The dealer in raw materials knew that the user must come to him; the great factories were

contented with the phenomenal demand for their output, not alone at home, but also abroad, where merit had already won a profitable trade.

Appeals had to be made to the patriotism of exhibitors to induce them to incur outlays promising no immediate return. This was especially the case where it became needful to complete an industrial sequence or illustrate a class of processes. One manufacturer after another had to be visited and importuned, and at times, after a promise to exhibit in a particular section had been obtained, it would be withdrawn, owing to pressure of trade orders, and a new quest would have to be made.

The installation of exhibits, too, encountered many obstacles and involved unexpected cost. The exposition was far from ready at the date fixed for its opening. The French transportation lines were congested with offered freight. Belated goods had to be hastily installed in unfinished quarters with whatever labor could be obtained in the prevailing confusion. Nor was the task of the Commission lightened by the fact that, owing to the scheme of classification adopted, it was impossible to have the entire exhibit of any one country in the same building or more than one group of exhibits in the same part of any building. Our installations were scattered on both sides of the Seine and in widely remote suburbs of Paris, so that additional assistants were needed for the work of supervision and arrangement.

Despite all these drawbacks the contribution of the United States was not only the largest foreign display, but was among the earliest in place and the most orderly in arrangement. Our exhibits were shown in one hundred and one out of one hundred and twenty-one classes, and more completely covered the entire classification than those of any other nation. In total number they ranked next after those of France, and the attractive form in which they were presented secured general attention.

A criterion of the extent and success of our participation and of the thoroughness with which our exhibits were organized is seen in the awards granted to American exhibitors by the international jury, namely, grand prizes, 240; gold medals, 597; silver medals, 776; bronze medals, 541, and honorable mentions, 322—2,476 in all, being the greatest total number given to the exhibit of any exhibiting nation, as well as the largest number

in each grade. This significant recognition of merit in competition with the chosen exhibits of all other nations and at the hands of juries almost wholly made up of representatives of France and other competing countries is not only most gratifying, but is especially valuable, since it sets us to the front in international questions of supply and demand, while the large proportion of awards in the classes of art and artistic manufactures afforded unexpected proof of the stimulation of national culture by the prosperity that flows from natural productiveness joined to industrial excellence.

Apart from the exposition several occasions for showing international good will occurred. The inauguration in Paris of the Lafayette Monument, presented by the school children of the United States, and the designing of a commemorative coin by our Mint and the presentation of the first piece struck to the President of the Republic, were marked by appropriate ceremonies, and the Fourth of July was especially observed in the French capital.

Good will prevails in our relations with the German Empire. An amicable adjustment of the long-pending question of the admission of our life-insurance companies to do business in Prussia has been reached. One of the principal companies has already been readmitted and the way is opened for the others to share the privilege.

The settlement of the Samoan problem, to which I adverted in my last message, has accomplished good results. Peace and contentment prevail in the islands, especially in Tutuila, where a convenient administration that has won the confidence and esteem of the kindly disposed natives has been organized under the direction of the commander of the United States naval station at Pago-Pago.

An Imperial meat-inspection law has been enacted for Germany. While it may simplify the inspections, it prohibits certain products heretofore admitted. There is still great uncertainty as to whether our well-nigh extinguished German trade in meat products can revive under its new burdens. Much will depend upon regulations not yet promulgated, which we confidently hope will be free from the discriminations which attended the enforcement of the old statutes.

The remaining link in the new lines of direct telegraphic communication between the United States and the German Empire has recently been completed, affording a gratifying occasion for exchange of friendly congratulations with the German Emperor.

Our friendly relations with Great Britain continue. The war in Southern Africa introduced important questions. A condition unusual in international wars was presented in that while one belligerent had control of the seas, the other had no ports, shipping, or direct trade, but was only accessible through the territory of a neutral. Vexatious questions arose through Great Britain's action in respect to neutral cargoes, not contraband in their own nature, shipped to Portuguese South Africa, on the score of probable or suspected ultimate destination to the Boer States.

Such consignments in British ships, by which alone direct trade is kept up between our ports and Southern Africa, were seized in application of a municipal law prohibiting British vessels from trading with the enemy without regard to any contraband character of the goods, while cargoes shipped to Delagoa Bay in neutral bottoms were arrested on the ground of alleged destination to enemy's country. Appropriate representations on our part resulted in the British Government agreeing to purchase outright all such goods shown to be the actual property of American citizens, thus closing the incident to the satisfaction of the immediately interested parties, although, unfortunately, without a broad settlement of the question of a neutral's right to send goods not contraband *per se* to a neutral port adjacent to a belligerent area.

The work of marking certain provisional boundary points, for convenience of administration, around the head of Lynn Canal, in accordance with the temporary arrangement of October, 1899, was completed by a joint survey in July last. The *modus vivendi* has so far worked without friction, and the Dominion Government has provided rules and regulations for securing to our citizens the benefit of the reciprocal stipulation that the citizens or subjects of either power found by that arrangement within the temporary jurisdiction of the other shall suffer no diminution of the rights and privileges they have hitherto enjoyed. But however necessary such an expedient may have been to tide over the grave emergencies of the situation, it is at best but an unsatisfactory makeshift,

which should not be suffered to delay the speedy and complete establishment of the frontier line to which we are entitled under the Russo-American treaty for the cession of Alaska.

In this relation I may refer again to the need of definitely marking the Alaskan boundary where it follows the one hundred and forty-first meridian. A convention to that end has been before the Senate for some two years, but as no action has been taken I contemplate negotiating a new convention for a joint determination of the meridian by telegraphic observations. These, it is believed, will give more accurate and unquestionable results than the sidereal methods heretofore independently followed, which, as is known, proved discrepant at several points on the line, although not varying at any place more than 700 feet.

The pending claim of R.H. May against the Guatemalan Government has been settled by arbitration, Mr. George F.B. Jenner, British minister at Guatemala, who was chosen as sole arbitrator, having awarded \$143,750.73 in gold to the claimant.

Various American claims against Haiti have been or are being advanced to the resort of arbitration.

As the result of negotiations with the Government of Honduras in regard to the indemnity demanded for the murder of Frank H. Pears in Honduras, that Government has paid \$10,000 in settlement of the claim of the heirs.

The assassination of King Humbert called forth sincere expressions of sorrow from this Government and people, and occasion was fitly taken to testify to the Italian nation the high regard here felt for the memory of the lamented ruler.

In my last message I referred at considerable length to the lynching of five Italians at Tallulah. Notwithstanding the efforts of the Federal Government, the production of evidence tending to inculcate the authors of this grievous offense against our civilization, and the repeated inquests set on foot by the authorities of the State of Louisiana, no punishments have followed. Successive grand juries have failed to indict. The representations of the Italian Government in the face of this miscarriage have been most temperate and just.

Setting the principle at issue high above all consideration of merely pecuniary indemnification, such as this Government made in the three previous cases, Italy has solemnly invoked the pledges of existing treaty and asked that the justice to which she is entitled shall be meted in regard to her unfortunate countrymen in our territory with the same full measure she herself would give to any American were his reciprocal treaty rights contemned.

I renew the urgent recommendations I made last year that the Congress appropriately confer upon the Federal courts jurisdiction in this class of international cases where the ultimate responsibility of the Federal Government may be involved, and I invite action upon the bills to accomplish this which were introduced in the Senate and House. It is incumbent upon us to remedy the statutory omission which has led, and may again lead, to such untoward results. I have pointed out the necessity and the precedent for legislation of this character. Its enactment is a simple measure of previsory justice toward the nations with which we as a sovereign equal make treaties requiring reciprocal observance.

While the Italian Government naturally regards such action as the primary and, indeed, the most essential element in the disposal of the Tallulah incident, I advise that, in accordance with precedent, and in view of the improbability of that particular case being reached by the bill now pending, Congress make gracious provision for indemnity to the Italian sufferers in the same form and proportion as heretofore.

In my inaugural address I referred to the general subject of lynching in these words:

Lynching must not be tolerated in a great and civilized country like the United States; courts, not mobs, must execute the penalties of the law. The preservation of public order, the right of discussion, the integrity of courts, and the orderly administration of justice must continue forever the rock of safety upon which our Government securely rests.

This I most urgently reiterate and again invite the attention of my countrymen to this reproach upon our civilization.

The closing year has witnessed a decided strengthening of Japan's relations to other States. The development of her independent judicial and administrative functions under the treaties which took effect July 17, 1899,

has proceeded without international friction, showing the competence of the Japanese to hold a foremost place among modern peoples.

In the treatment of the difficult Chinese problems Japan has acted in harmonious concert with the other powers, and her generous cooperation materially aided in the joint relief of the beleaguered legations in Peking and in bringing about an understanding preliminary to a settlement of the issues between the powers and China. Japan's declarations in favor of the integrity of the Chinese Empire and the conservation of open world trade therewith have been frank and positive. As a factor for promoting the general interests of peace, order, and fair commerce in the Far East the influence of Japan can hardly be overestimated.

The valuable aid and kindly courtesies extended by the Japanese Government and naval officers to the battle ship *Oregon* are gratefully appreciated.

Complaint was made last summer of the discriminatory enforcement of a bubonic quarantine against Japanese on the Pacific coast and of interference with their travel in California and Colorado under the health laws of those States. The latter restrictions have been adjudged by a Federal court to be unconstitutional. No recurrence of either cause of complaint is apprehended.

No noteworthy incident has occurred in our relations with our important southern neighbor. Commercial intercourse with Mexico continues to thrive, and the two Governments neglect no opportunity to foster their mutual interests in all practicable ways.

Pursuant to the declaration of the Supreme Court that the awards of the late Joint Commission in the La Abra and Weil claims were obtained through fraud, the sum awarded in the first case, \$403,030.08, has been returned to Mexico, and the amount of the Weil award will be returned in like manner.

A Convention indefinitely extending the time for the labors of the United States and Mexican International (Water) Boundary Commission has been signed.

It is with satisfaction that I am able to announce the formal notification at The Hague, on September 4, of the deposit of ratifications of the Convention for the Pacific Settlement of International Disputes by sixteen powers, namely, the United States, Austria, Belgium, Denmark, England, France, Germany, Italy, Persia, Portugal, Roumania, Russia, Siam, Spain, Sweden and Norway, and the Netherlands. Japan also has since ratified the Convention.

The Administrative Council of the Permanent Court of Arbitration has been organized and has adopted rules of order and a constitution for the International Arbitration Bureau. In accordance with Article XXIII of the Convention providing for the appointment by each signatory power of persons of known competency in questions of international law as arbitrators, I have appointed as members of this Court, Hon. Benjamin Harrison, of Indiana, ex-President of the United States; Hon. Melville W. Fuller, of Illinois, Chief Justice of the United States; Hon. John W. Griggs, of New Jersey, Attorney-General of the United States; and Hon. George Gray, of Delaware, a judge of the circuit court of the United States.

As an incident of the brief revolution in the Mosquito district of Nicaragua early in 1899 the insurgents forcibly collected from American merchants duties upon imports. On the restoration of order the Nicaraguan authorities demanded a second payment of such duties on the ground that they were due to the titular Government and that their diversion had aided the revolt.

This position was not accepted by us. After prolonged discussion a compromise was effected under which the amount of the second payments was deposited with the British consul at San Juan del Norte in trust until the two Governments should determine whether the first payments had been made under compulsion to a *de facto* authority. Agreement as to this was not reached, and the point was waived by the act of the Nicaraguan Government in requesting the British consul to return the deposits to the merchants.

Menacing differences between several of the Central American States have been accommodated, our ministers rendering good offices toward an understanding.

The all-important matter of an interoceanic canal has assumed a new phase. Adhering to its refusal to reopen the question of the forfeiture of the contract of the Maritime Canal Company, which was terminated for alleged nonexecution in October, 1899, the Government of Nicaragua has since supplemented that action by declaring the so-styled Eyre-Cragin option void for nonpayment of the stipulated advance. Protests in relation to these acts have been filed in the State Department and are under consideration. Deeming itself relieved from existing engagements, the Nicaraguan Government shows a disposition to deal freely with the canal question either in the way of negotiations with the United States or by taking measures to promote the waterway.

Overtures for a convention to effect the building of a canal under the auspices of the United States are under consideration. In the meantime, the views of the Congress upon the general subject, in the light of the report of the Commission appointed to examine the comparative merits of the various trans-Isthmian ship-canal projects, may be awaited.

I commend to the early attention of the Senate the Convention with Great Britain to facilitate the construction of such a canal and to remove any objection which might arise out of the Convention commonly called the Clayton-Bulwer Treaty.

The long-standing contention with Portugal, growing out of the seizure of the Delagoa Bay Railway, has been at last determined by a favorable award of the tribunal of arbitration at Berne, to which it was submitted. The amount of the award, which was deposited in London awaiting arrangements by the Governments of the United States and Great Britain for its disposal, has recently been paid over to the two Governments.

A lately signed Convention of Extradition with Peru as amended by the Senate has been ratified by the Peruvian Congress.

Another illustration of the policy of this Government to refer international disputes to impartial arbitration is seen in the agreement reached with Russia to submit the claims on behalf of American sealing vessels seized in Bering Sea to determination by Mr. T.M.C. Asser, a distinguished statesman and jurist of the Netherlands.

Thanks are due to the Imperial Russian Government for the kindly aid rendered by its authorities in eastern Siberia to American missionaries fleeing from Manchuria.

Satisfactory progress has been made toward the conclusion of a general treaty of friendship and intercourse with Spain, in replacement of the old treaty, which passed into abeyance by reason of the late war. A new convention of extradition is approaching completion, and I should be much pleased were a commercial arrangement to follow. I feel that we should not suffer to pass any opportunity to reaffirm the cordial ties that existed between us and Spain from the time of our earliest independence, and to enhance the mutual benefits of that commercial intercourse which is natural between the two countries.

By the terms of the Treaty of Peace the line bounding the ceded Philippine group in the southwest failed to include several small islands lying westward of the Sulus, which have always been recognized as under Spanish control. The occupation of Sibutú and Cagayan Sulu by our naval forces elicited a claim on the part of Spain, the essential equity of which could not be gainsaid. In order to cure the defect of the treaty by removing all possible ground of future misunderstanding respecting the interpretation of its third article, I directed the negotiation of a supplementary treaty, which will be forthwith laid before the Senate, whereby Spain quits all title and claim of title to the islands named as well as to any and all islands belonging to the Philippine Archipelago lying outside the lines described in said third article, and agrees that all such islands shall be comprehended in the cession of the archipelago as fully as if they had been expressly included within those lines. In consideration of this cession the United States is to pay to Spain the sum of \$100,000.

A bill is now pending to effect the recommendation made in my last annual message that appropriate legislation be had to carry into execution Article VII of the Treaty of Peace with Spain, by which the United States assumed the payment of certain claims for indemnity of its citizens against Spain. I ask that action be taken to fulfill this obligation.

The King of Sweden and Norway has accepted the joint invitation of the United States, Germany, and Great Britain to arbitrate claims growing out

of losses sustained in the Samoan Islands in the course of military operations made necessary by the disturbances in 1899.

Our claims upon the Government of the Sultan for reparation for injuries suffered by American citizens in Armenia and elsewhere give promise of early and satisfactory settlement. His Majesty's good disposition in this regard has been evinced by the issuance of an irade for rebuilding the American college at Harpoot.

The failure of action by the Senate at its last session upon the commercial conventions then submitted for its consideration and approval, although caused by the great pressure of other legislative business, has caused much disappointment to the agricultural and industrial interests of the country, which hoped to profit by their provisions. The conventional periods for their ratification having expired, it became necessary to sign additional articles extending the time for that purpose. This was requested on our part, and the other Governments interested have concurred with the exception of one convention, in respect to which no formal reply has been received.

Since my last communication to the Congress on this subject special commercial agreements under the third section of the tariff act have been proclaimed with Portugal, with Italy, and with Germany. Commercial conventions under the general limitations of the fourth section of the same act have been concluded with Nicaragua, with Ecuador, with the Dominican Republic, with Great Britain on behalf of the island of Trinidad, and with Denmark on behalf of the island of St. Croix. These will be early communicated to the Senate. Negotiations with other Governments are in progress for the improvement and security of our commercial relations.

The policy of reciprocity so manifestly rests upon the principles of international equity and has been so repeatedly approved by the people of the United States that there ought to be no hesitation in either branch of the Congress in giving to it full effect.

This Government desires to preserve the most just and amicable commercial relations with all foreign countries, unmoved by the industrial rivalries necessarily developed in the expansion of international trade. It is believed that the foreign Governments generally entertain the same purpose, although in some instances there are clamorous demands upon

them for legislation specifically hostile to American interests. Should these demands prevail I shall communicate with the Congress with the view of advising such legislation as may be necessary to meet the emergency.

The exposition of the resources and products of the Western Hemisphere to be held at Buffalo next year promises important results not only for the United States but for the other participating countries. It is gratifying that the Latin-American States have evinced the liveliest interest, and the fact that an International American Congress will be held in the City of Mexico while the exposition is in progress encourages the hope of a larger display at Buffalo than might otherwise be practicable. The work of preparing an exhibit of our national resources is making satisfactory progress under the direction of different officials of the Federal Government, and the various States of the Union have shown a disposition toward the most liberal participation in the enterprise.

The Bureau of the American Republics continues to discharge, with the happiest results, the important work of promoting cordial relations between the United States and the Latin-American countries, all of which are now active members of the International Union. The Bureau has been instrumental in bringing about the agreement for another International American Congress, which is to meet in the City of Mexico in October, 1901. The Bureau's future for another term of ten years is assured by the international compact, but the congress will doubtless have much to do with shaping new lines of work and a general policy. Its usefulness to the interests of Latin-American trade is widely appreciated and shows a gratifying development.

The practical utility of the consular service in obtaining a wide range of information as to the industries and commerce of other countries and the opportunities thereby afforded for introducing the sale of our goods have kept steadily in advance of the notable expansion of our foreign trade, and abundant evidence has been furnished, both at home and abroad, of the fact that the Consular Reports, including many from our diplomatic representatives, have to a considerable extent pointed out ways and means of disposing of a great variety of manufactured goods which otherwise might not have found sale abroad.

Testimony of foreign observers to the commercial efficiency of the consular corps seems to be conclusive, and our own manufacturers and exporters highly appreciate the value of the services rendered not only in the printed reports but also in the individual efforts of consular officers to promote American trade. An increasing part of the work of the Bureau of Foreign Commerce, whose primary duty it is to compile and print the reports, is to answer inquiries from trade organizations, business houses, etc., as to conditions in various parts of the world, and, notwithstanding the smallness of the force employed, the work has been so systematized that responses are made with such promptitude and accuracy as to elicit flattering encomiums. The experiment of printing the Consular Reports daily for immediate use by trade bodies, exporters, and the press, which was begun in January, 1898, continues to give general satisfaction.

It is gratifying to be able to state that the surplus revenues for the fiscal year ended June 30, 1900, were \$79,527,060.18. For the six preceding years we had only deficits, the aggregate of which from 1894 to 1899, inclusive, amounted to \$283,022,991.14. The receipts for the year from all sources, exclusive of postal revenues, aggregated \$567,240,851.89, and expenditures for all purposes, except for the administration of the postal department, aggregated \$487,713,791.71. The receipts from customs were \$233,164,871.16, an increase over the preceding year of \$27,036,389.41. The receipts from internal revenue were \$295,327,926.76, an increase of \$21,890,765.25 over 1899. The receipts from miscellaneous sources were \$38,748,053.97, as against \$36,394,976.92 for the previous year.

It is gratifying also to note that during the year a considerable reduction is shown in the expenditures of the Government. The War Department expenditures for the fiscal year 1900 were \$134,774,767.78, a reduction of \$95,066,486.69 over those of 1899. In the Navy Department the expenditures were \$55,953,077.72 for the year 1900, as against \$63,942,104.25 for the preceding year, a decrease of \$7,989,026.53. In the expenditures on account of Indians there was a decrease in 1900 over 1899 of \$2,630,604.38; and in the civil and miscellaneous expenses for 1900 there was a reduction of \$13,418,065.74.

Because of the excess of revenues over expenditures the Secretary of the Treasury was enabled to apply bonds and other securities to the sinking

fund to the amount of \$56,544,556.06. The details of the sinking fund are set forth in the report of the Secretary of the Treasury, to which I invite attention. The Secretary of the Treasury estimates that the receipts for the current fiscal year will aggregate \$580,000,000 and the expenditures \$500,000,000, leaving an excess of revenues over expenditures of \$80,000,000. The present condition of the Treasury is one of undoubted strength. The available cash balance November 30 was \$139,303,794.50. Under the form of statement prior to the financial law of March 14 last there would have been included in the statement of available cash gold coin and bullion held for the redemption of United States notes.

If this form were pursued, the cash balance including the present gold reserve of \$150,000,000, would be \$289,303,794.50. Such balance November 30, 1899, was \$296,495,301.55. In the general fund, which is wholly separate from the reserve and trust funds, there was on November 30, \$70,090,073.15 in gold coin and bullion, to which should be added \$22,957,300 in gold certificates subject to issue, against which there is held in the Division of Redemption gold coin and bullion, making a total holding of free gold amounting to \$93,047,373.15.

It will be the duty as I am sure it will be the disposition of the Congress to provide whatever further legislation is needed to insure the continued parity under all conditions between our two forms of metallic money, silver and gold.

Our surplus revenues have permitted the Secretary of the Treasury since the close of the fiscal year to call in the funded loan of 1891 continued at 2 per cent, in the sum of \$25,364,500. To and including November 30, \$23,458,100 of these bonds have been paid. This sum, together with the amount which may accrue from further redemptions under the call, will be applied to the sinking fund.

The law of March 14, 1900, provided for refunding into 2 per cent thirty-year bonds, payable, principal and interest, in gold coin of the present standard value, that portion of the public debt represented by the 3 per cent bonds of 1908, the 4 percents of 1907, and the 5 percents of 1904, of which there was outstanding at the date of said law \$839,149,930. The holders of the old bonds presented them for exchange between March 14 and

November 30 to the amount of \$364,943,750. The net saving to the Government on these transactions aggregates \$9,106,166.

Another effect of the operation, as stated by the Secretary, is to reduce the charge upon the Treasury for the payment of interest from the dates of refunding to February 1, 1904, by the sum of more than seven million dollars annually. From February 1, 1904, to July 1, 1907, the annual interest charge will be reduced by the sum of more than five millions, and for the thirteen months ending August 1, 1908, by about one million. The full details of the refunding are given in the annual report of the Secretary of the Treasury.

The beneficial effect of the financial act of 1900, so far as it relates to a modification of the national banking act, is already apparent. The provision for the incorporation of national banks with a capital of not less than \$25,000 in places not exceeding three thousand inhabitants has resulted in the extension of banking facilities to many small communities hitherto unable to provide themselves with banking institutions under the national system. There were organized from the enactment of the law up to and including November 30, 369 national banks, of which 266 were with capital less than \$50,000, and 103 with capital of \$50,000 or more.

It is worthy of mention that the greater number of banks being organized under the new law are in sections where the need of banking facilities has been most pronounced. Iowa stands first, with 30 banks of the smaller class, while Texas, Oklahoma, Indian Territory, and the middle and western sections of the country have also availed themselves largely of the privileges under the new law.

A large increase in national-bank-note circulation has resulted from the provision of the act which permits national banks to issue circulating notes to the par value of the United States bonds deposited as security instead of only 90 per cent thereof, as heretofore. The increase in circulating notes from March 14 to November 30 is \$77,889,570.

The party in power is committed to such legislation as will better make the currency responsive to the varying needs of business at all seasons and in all sections.

Our foreign trade shows a remarkable record of commercial and industrial progress. The total of imports and exports for the first time in the history of the country exceeded two billions of dollars. The exports are greater than they have ever been before, the total for the fiscal year 1900 being \$1,394,483,082, an increase over 1899 of \$167,459,780, an increase over 1898 of \$163,000,752, over 1897 of \$343,489,526, and greater than 1896 by \$511,876,144.

The growth of manufactures in the United States is evidenced by the fact that exports of manufactured products largely exceed those of any previous year, their value for 1900 being \$433,851,756, against \$339,592,146 in 1899, an increase of 28 per cent.

Agricultural products were also exported during 1900 in greater volume than in 1899, the total for the year being \$835,858,123, against \$784,776,142 in 1899.

The imports for the year amounted to \$849,941,184, an increase over 1899 of \$152,792,695. This increase is largely in materials for manufacture, and is in response to the rapid development of manufacturing in the United States. While there was imported for use in manufactures in 1900 material to the value of \$79,768,972 in excess of 1899, it is reassuring to observe that there is a tendency toward decrease in the importation of articles manufactured ready for consumption, which in 1900 formed 15.17 per cent of the total imports, against 15.54 per cent in 1899 and 21.09 per cent in 1896.

I recommend that the Congress at its present session reduce the internal-revenue taxes imposed to meet the expenses of the war with Spain in the sum of thirty millions of dollars. This reduction should be secured by the remission of those taxes which experience has shown to be the most burdensome to the industries of the people.

I specially urge that there be included in whatever reduction is made the legacy tax on bequests for public uses of a literary, educational, or charitable character.

American vessels during the past three years have carried about 9 per cent of our exports and imports. Foreign ships should carry the least, not the

greatest, part of American trade. The remarkable growth of our steel industries, the progress of shipbuilding for the domestic trade, and our steadily maintained expenditures for the Navy have created an opportunity to place the United States in the first rank of commercial maritime powers.

Besides realizing a proper national aspiration this will mean the establishment and healthy growth along all our coasts of a distinctive national industry, expanding the field for the profitable employment of labor and capital. It will increase the transportation facilities and reduce freight charges on the vast volume of products brought from the interior to the seaboard for export, and will strengthen an arm of the national defense upon which the founders of the Government and their successors have relied. In again urging immediate action by the Congress on measures to promote American shipping and foreign trade, I direct attention to the recommendations on the subject in previous messages, and particularly to the opinion expressed in the message of 1899:

I am satisfied the judgment of the country favors the policy of aid to our merchant marine, which will broaden our commerce and markets and upbuild our sea-carrying capacity for the products of agriculture and manufacture, which, with the increase of our Navy, mean more work and wages to our countrymen, as well as a safeguard to American interests in every part of the world.

The attention of the Congress is invited to the recommendation of the Secretary of the Treasury in his annual report for legislation in behalf of the Revenue-Cutter Service, and favorable action is urged.

In my last annual message to the Congress I called attention to the necessity for early action to remedy such evils as might be found to exist in connection with combinations of capital organized into trusts, and again invite attention to my discussion of the subject at that time, which concluded with these words:

It is apparent that uniformity of legislation upon this subject in the several States is much to be desired. It is to be hoped that such uniformity, founded in a wise and just discrimination between what is injurious and what is useful and necessary in business operations, may be obtained, and that means may be found for the Congress, within the limitations of its constitutional power, so to supplement an effective code of State legislation as to make a complete system of laws throughout the United States adequate to compel a general observance of the salutary rules to which I have referred.

The whole question is so important and far-reaching that I am sure no part of it will be lightly considered, but every phase of it will have the studied deliberation of the

Congress, resulting in wise and judicious action.

Restraint upon such combinations as are injurious, and which are within Federal jurisdiction, should be promptly applied by the Congress.

In my last annual message I dwelt at some length upon the condition of affairs in the Philippines. While seeking to impress upon you that the grave responsibility of the future government of those islands rests with the Congress of the United States, I abstained from recommending at that time a specific and final form of government for the territory actually held by the United States forces and in which as long as insurrection continues the military arm must necessarily be supreme. I stated my purpose, until the Congress shall have made the formal expression of its will, to use the authority vested in me by the Constitution and the statutes to uphold the sovereignty of the United States in those distant islands as in all other places where our flag rightfully floats, placing, to that end, at the disposal of the army and navy all the means which the liberality of the Congress and the people have provided. No contrary expression of the will of the Congress having been made, I have steadfastly pursued the purpose so declared, employing the civil arm as well toward the accomplishment of pacification and the institution of local governments within the lines of authority and law.

Progress in the hoped-for direction has been favorable. Our forces have successfully controlled the greater part of the islands, overcoming the organized forces of the insurgents and carrying order and administrative regularity to all quarters. What opposition remains is for the most part scattered, obeying no concerted plan of strategic action, operating only by the methods common to the traditions of guerrilla warfare, which, while ineffective to alter the general control now established, are still sufficient to beget insecurity among the populations that have felt the good results of our control and thus delay the conferment upon them of the fuller measures of local self-government, of education, and of industrial and agricultural development which we stand ready to give to them.

By the spring of this year the effective opposition of the dissatisfied Tagals to the authority of the United States was virtually ended, thus opening the door for the extension of a stable administration over much of the territory of the Archipelago. Desiring to bring this about, I appointed in

March last a civil Commission composed of the Hon. William H. Taft, of Ohio; Prof. Dean C. Worcester, of Michigan; the Hon. Luke I. Wright, of Tennessee; the Hon. Henry C. Ide, of Vermont, and Prof. Bernard Moses, of California. The aims of their mission and the scope of their authority are clearly set forth in my instructions of April 7, 1900, addressed to the Secretary of War to be transmitted to them:

In the message transmitted to the Congress on the 5th of December, 1899, I said, speaking of the Philippine Islands: "As long as the insurrection continues the military arm must necessarily be supreme. But there is no reason why steps should not be taken from time to time to inaugurate governments essentially popular in their form as fast as territory is held and controlled by our troops. To this end I am considering the advisability of the return of the Commission, or such of the members thereof as can be secured, to aid the existing authorities and facilitate this work throughout the islands."

To give effect to the intention thus expressed, I have appointed Hon. William H. Taft, of Ohio; Prof. Dean C. Worcester, of Michigan; Hon. Luke I. Wright, of Tennessee; Hon. Henry C. Ide, of Vermont, and Prof. Bernard Moses, of California, Commissioners to the Philippine Islands to continue and perfect the work of organizing and establishing civil government already commenced by the military authorities, subject in all respects to any laws which Congress may hereafter enact.

The Commissioners named will meet and act as a board, and the Hon. William H. Taft is designated as president of the board. It is probable that the transfer of authority from military commanders to civil officers will be gradual and will occupy a considerable period. Its successful accomplishment and the maintenance of peace and order in the meantime will require the most perfect co-operation between the civil and military authorities in the islands, and both should be directed during the transition period by the same Executive Department. The Commission will therefore report to the Secretary of War, and all their action will be subject to your approval and control.

You will instruct the Commission to proceed to the city of Manila, where they will make their principal office, and to communicate with the Military Governor of the Philippine Islands, whom you will at the same time direct to render to them every assistance within his power in the performance of their duties. Without hampering them by too specific instructions, they should in general be enjoined, after making themselves familiar with the conditions and needs of the country, to devote their attention in the first instance to the establishment of municipal governments, in which the natives of the islands, both in the cities and in the rural communities, shall be afforded the opportunity to manage their own local affairs to the fullest extent of which they are capable and subject to the least degree of supervision and control which a careful study of their capacities and observation of the workings of native control show to be consistent with the maintenance of law, order, and loyalty.

The next subject in order of importance should be the organization of government in the larger administrative divisions corresponding to counties, departments, or provinces, in which the common interests of many or several municipalities falling within the same tribal lines, or the same natural geographical limits, may best be subserved by a common administration. Whenever the Commission is of the opinion that the condition of affairs in the islands is such that the central administration may safely be transferred from

military to civil control they will report that conclusion to you, with their recommendations as to the form of central government to be established for the purpose of taking over the control.

Beginning with the 1st day of September, 1900, the authority to exercise, subject to my approval, through the Secretary of War, that part of the power of government in the Philippine Islands which is of a legislative nature is to be transferred from the Military Governor of the islands to this Commission, to be thereafter exercised by them in the place and stead of the Military Governor, under such rules and regulations as you shall prescribe, until the establishment of the civil central government for the islands contemplated in the last foregoing paragraph, or until Congress shall otherwise provide. Exercise of this legislative authority will include the making of rules and orders, having the effect of law, for the raising of revenue by taxes, customs duties, and imposts; the appropriation and expenditure of public funds of the islands; the establishment of an educational system throughout the islands; the establishment of a system to secure an efficient civil service; the organization and establishment of courts; the organization and establishment of municipal and departmental governments, and all other matters of a civil nature for which the Military Governor is now competent to provide by rules or orders of a legislative character.

The Commission will also have power during the same period to appoint to office such officers under the judicial, educational, and civil-service systems and in the municipal and departmental governments as shall be provided for. Until the complete transfer of control the Military Governor will remain the chief executive head of the government of the islands, and will exercise the executive authority now possessed by him and not herein expressly assigned to the Commission, subject, however, to the rules and orders enacted by the Commission in the exercise of the legislative powers conferred upon them. In the meantime the municipal and departmental governments will continue to report to the Military Governor and be subject to his administrative supervision and control, under your direction, but that supervision and control will be confined within the narrowest limits consistent with the requirement that the powers of government in the municipalities and departments shall be honestly and effectively exercised and that law and order and individual freedom shall be maintained.

All legislative rules and orders, establishments of government, and appointments to office by the Commission will take effect immediately, or at such times as they shall designate, subject to your approval and action upon the coming in of the Commission's reports, which are to be made from time to time as their action is taken. Wherever civil governments are constituted under the direction of the Commission such military posts, garrisons, and forces will be continued for the suppression of insurrection and brigandage and the maintenance of law and order as the Military Commander shall deem requisite, and the military forces shall be at all times subject, under his orders, to the call of the civil authorities for the maintenance of law and order and the enforcement of their authority.

In the establishment of municipal governments the Commission will take as the basis of their work the governments established by the Military Governor under his order of August 8, 1899, and under the report of the board constituted by the Military Governor by his order of January 29, 1900, to formulate and report a plan of municipal government, of which His Honor Cayetano Arellano, President of the Audiencia, was chairman, and they will give to the conclusions of that board the weight and consideration which the high character and distinguished abilities of its members justify.

In the constitution of departmental or provincial governments they will give especial attention to the existing government of the island of Negros, constituted with the approval of the people of that island, under the order of the Military Governor of July 22, 1899, and after verifying, so far as may be practicable, the reports of the successful working of that government they will be guided by the experience thus acquired so far as it may be applicable to the condition existing in other portions of the Philippines. They will avail themselves, to the fullest degree practicable, of the conclusions reached by the previous Commission to the Philippines.

In the distribution of powers among the governments organized by the Commission, the presumption is always to be in favor of the smaller subdivision, so that all the powers which can properly be exercised by the municipal government shall be vested in that government, and all the powers of a more general character which can be exercised by the departmental government shall be vested in that government, and so that in the governmental system, which is the result of the process, the central government of the islands, following the example of the distribution of the powers between the States and the National Government of the United States, shall have no direct administration except of matters of purely general concern, and shall have only such supervision and control over local governments as may be necessary to secure and enforce faithful and efficient administration by local officers.

The many different degrees of civilization and varieties of custom and capacity among the people of the different islands preclude very definite instruction as to the part which the people shall take in the selection of their own officers; but these general rules are to be observed: That in all cases the municipal officers who administer the local affairs of the people, are to be selected by the people, and that wherever officers of more extended jurisdiction are to be selected in any way, natives of the islands are to be preferred, and if they can be found competent and willing to perform the duties, they are to receive the offices in preference to any others.

It will be necessary to fill some offices for the present with Americans which after a time may well be filled by natives of the islands. As soon as practicable a system for ascertaining the merit and fitness of candidates for civil office should be put in force. An indispensable qualification for all offices and positions of trust and authority in the islands must be absolute and unconditional loyalty to the United States, and absolute and unhampered authority and power to remove and punish any officer deviating from that standard must at all times be retained in the hands of the central authority of the islands.

In all the forms of government and administrative provisions which they are authorized to prescribe the Commission should bear in mind that the government which they are establishing is designed not for our satisfaction, or for the expression of our theoretical views, but for the happiness, peace, and prosperity of the people of the Philippine Islands, and the measures adopted should be made to conform to their customs, their habits, and even their prejudices, to the fullest extent consistent with the accomplishment of the indispensable requisites of just and effective government.

At the same time the Commission should bear in mind, and the people of the islands should be made plainly to understand, that there are certain great principles of government which have been made the basis of our governmental system which we deem essential to the rule of law and the maintenance of individual freedom, and of which they have, unfortunately, been denied the experience possessed by us; that there are also certain practical rules of government which we have found to be essential to the

preservation of these great principles of liberty and law, and that these principles and these rules of government must be established and maintained in their islands for the sake of their liberty and happiness, however much they may conflict with the customs or laws of procedure with which they are familiar.

It is evident that the most enlightened thought of the Philippine Islands fully appreciates the importance of these principles and rules, and they will inevitably within a short time command universal assent. Upon every division and branch of the government of the Philippines, therefore, must be imposed these inviolable rules:

That no person shall be deprived of life, liberty, or property without due process of law; that private property shall not be taken for public use without just compensation; that in all criminal prosecutions the accused shall enjoy the right to a speedy and public trial, to be informed of the nature and cause of the accusation, to be confronted with the witnesses against him, to have compulsory process for obtaining witnesses in his favor, and to have the assistance of counsel for his defense; that excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishment inflicted; that no person shall be put twice in jeopardy for the same offense, or be compelled in any criminal case to be a witness against himself; that the right to be secure against unreasonable searches and seizures shall not be violated; that neither slavery nor involuntary servitude shall exist except as a punishment for crime; that no bill of attainder or *ex-post-facto* law shall be passed; that no law shall be passed abridging the freedom of speech or of the press, or the rights of the people to peaceably assemble and petition the Government for a redress of grievances; that no law shall be made respecting an establishment of religion, or prohibiting the free exercise thereof, and that the free exercise and enjoyment of religious profession and worship without discrimination or preference shall forever be allowed.

It will be the duty of the Commission to make a thorough investigation into the titles to the large tracts of land held or claimed by individuals or by religious orders; into the justice of the claims and complaints made against such landholders by the people of the island or any part of the people, and to seek by wise and peaceable measures a just settlement of the controversies and redress of wrongs which have caused strife and bloodshed in the past. In the performance of this duty the Commission is enjoined to see that no injustice is done; to have regard for substantial rights and equity, disregarding technicalities so far as substantial right permits, and to observe the following rules:

That the provision of the Treaty of Paris pledging the United States to the protection of all rights of property in the islands, and as well the principle of our own Government which prohibits the taking of private property without due process of law, shall not be violated; that the welfare of the people of the islands, which should be a paramount consideration, shall be attained consistently with this rule of property right; that if it becomes necessary for the public interest of the people of the islands to dispose of claims to property which the Commission finds to be not lawfully acquired and held disposition shall be made thereof by due legal procedure, in which there shall be full opportunity for fair and impartial hearing and judgment; that if the same public interests require the extinguishment of property rights lawfully acquired and held due compensation shall be made out of the public treasury therefor; that no form of religion and no minister of religion shall be forced upon any community or upon any citizen of the islands; that, upon the other hand, no minister of religion shall be interfered with or molested in following his calling, and that the separation between State and Church shall be real, entire, and absolute.

It will be the duty of the Commission to promote and extend, and, as they find occasion, to improve the system of education already inaugurated by the military authorities. In doing this they should regard as of first importance the extension of a system of primary education which shall be free to all, and which shall tend to fit the people for the duties of citizenship and for the ordinary avocations of a civilized community. This instruction should be given in the first instance in every part of the islands in the language of the people. In view of the great number of languages spoken by the different tribes, it is especially important to the prosperity of the islands that a common medium of communication may be established, and it is obviously desirable that this medium should be the English language. Especial attention should be at once given to affording full opportunity to all the people of the islands to acquire the use of the English language.

It may be well that the main changes which should be made in the system of taxation and in the body of the laws under which the people are governed, except such changes as have already been made by the military government, should be relegated to the civil government which is to be established under the auspices of the Commission. It will, however, be the duty of the Commission to inquire diligently as to whether there are any further changes which ought not to be delayed, and if so, they are authorized to make such changes subject to your approval. In doing so they are to bear in mind that taxes which tend to penalize or repress industry and enterprise are to be avoided; that provisions for taxation should be simple, so that they may be understood by the people; that they should affect the fewest practicable subjects of taxation which will serve for the general distribution of the burden.

The main body of the laws which regulate the rights and obligations of the people should be maintained with as little interference as possible. Changes made should be mainly in procedure, and in the criminal laws to secure speedy and impartial trials, and at the same time effective administration and respect for individual rights.

In dealing with the uncivilized tribes of the islands the Commission should adopt the same course followed by Congress in permitting the tribes of our North American Indians to maintain their tribal organization and government, and under which many of those tribes are now living in peace and contentment, surrounded by a civilization to which they are unable or unwilling to conform. Such tribal governments should, however, be subjected to wise and firm regulation, and, without undue or petty interference, constant and active effort should be exercised to prevent barbarous practices and introduce civilized customs.

Upon all officers and employees of the United States, both civil and military, should be impressed a sense of the duty to observe not merely the material but the personal and social rights of the people of the islands, and to treat them with the same courtesy and respect for their personal dignity which the people of the United States are accustomed to require from each other.

The articles of capitulation of the city of Manila on the 13th of August, 1898, concluded with these words:

"This city, its inhabitants, its churches and religious worship, its educational establishments, and its private property of all descriptions, are placed under the special safeguard of the faith and honor of the American Army."

I believe that this pledge has been faithfully kept. As high and sacred an obligation rests upon the Government of the United States to give protection for property and life, civil

and religious freedom, and wise, firm, and unselfish guidance in the paths of peace and prosperity to all the people of the Philippine Islands. I charge this Commission to labor for the full performance of this obligation, which concerns the honor and conscience of their country, in the firm hope that through their labors all the inhabitants of the Philippine Islands may come to look back with gratitude to the day when God gave victory to American arms at Manila and set their land under the sovereignty and the protection of the people of the United States.

Coincidentally with the entrance of the Commission upon its labors I caused to be issued by General MacArthur, the Military Governor of the Philippines, on June 21, 1900, a proclamation of amnesty in generous terms, of which many of the insurgents took advantage, among them a number of important leaders.

This Commission, composed of eminent citizens representing the diverse geographical and political interests of the country, and bringing to their task the ripe fruits of long and intelligent service in educational, administrative, and judicial careers, made great progress from the outset. As early as August 21, 1900, it submitted a preliminary report, which will be laid before the Congress, and from which it appears that already the good effects of returning order are felt; that business, interrupted by hostilities, is improving as peace extends; that a larger area is under sugar cultivation than ever before; that the customs revenues are greater than at any time during the Spanish rule; that economy and efficiency in the military administration have created a surplus fund of \$6,000,000, available for needed public improvements; that a stringent civil-service law is in preparation; that railroad communications are expanding, opening up rich districts, and that a comprehensive scheme of education is being organized.

Later reports from the Commission show yet more encouraging advance toward insuring the benefits of liberty and good government to the Filipinos, in the interest of humanity and with the aim of building up an enduring, self-supporting, and self-administering community in those far eastern seas. I would impress upon the Congress that whatever legislation may be enacted in respect to the Philippine Islands should be along these generous lines. The fortune of war has thrown upon this nation an unsought trust which should be unselfishly discharged, and devolved upon this Government a moral as well as material responsibility toward these millions whom we have freed from an oppressive yoke.

I have on another occasion called the Filipinos "the wards of the nation." Our obligation as guardian was not lightly assumed; it must not be otherwise than honestly fulfilled, aiming first of all to benefit those who have come under our fostering care. It is our duty so to treat them that our flag may be no less beloved in the mountains of Luzon and the fertile zones of Mindanao and Negros than it is at home, that there as here it shall be the revered symbol of liberty, enlightenment, and progress in every avenue of development.

The Filipinos are a race quick to learn and to profit by knowledge. He would be rash who, with the teachings of contemporaneous history in view, would fix a limit to the degree of culture and advancement yet within the reach of these people if our duty toward them be faithfully performed.

The civil government of Puerto Rico provided for by the act of the Congress approved April 12, 1900, is in successful operation. The courts have been established. The Governor and his associates, working intelligently and harmoniously, are meeting with commendable success.

On the 6th of November a general election was held in the island for members of the Legislature, and the body elected has been called to convene on the first Monday of December.

I recommend that legislation be enacted by the Congress conferring upon the Secretary of the Interior supervision over the public lands in Puerto Rico, and that he be directed to ascertain the location and quantity of lands the title to which remained in the Crown of Spain at the date of cession of Puerto Rico to the United States, and that appropriations necessary for surveys be made, and that the methods of the disposition of such lands be prescribed by law.

On the 25th of July, 1900, I directed that a call be issued for an election in Cuba for members of a constitutional convention to frame a constitution as a basis for a stable and independent government in the island. In pursuance thereof the Military Governor issued the following instructions:

Whereas the Congress of the United States, by its joint resolution of April 20, 1898, declared—

"That the people of the island of Cuba are, and of right ought to be, free and independent.

"That the United States hereby disclaims any disposition or intention to exercise sovereignty, jurisdiction, or control over said island except for the pacification thereof, and asserts its determination, when that is accomplished, to leave the government and control of the island to its people;"

And whereas, the people of Cuba have established municipal governments, deriving their authority from the suffrages of the people given under just and equal laws, and are now ready, in like manner, to proceed to the establishment of a general government which shall assume and exercise sovereignty, jurisdiction, and control over the island:

Therefore, it is ordered that a general election be held in the island of Cuba on the third Saturday of September, in the year nineteen hundred, to elect delegates to a convention to meet in the city of Havana at twelve o'clock noon on the first Monday of November, in the year nineteen hundred, to frame and adopt a constitution for the people of Cuba, and as a part thereof to provide for and agree with the Government of the United States upon the relations to exist between that Government and the Government of Cuba, and to provide for the election by the people of officers under such constitution and the transfer of government to the officers so elected.

The election will be held in the several voting precincts of the island under, and pursuant to, the provisions of the electoral law of April 18, 1900, and the amendments thereof.

The election was held on the 15th of September, and the convention assembled on the 5th of November, 1900, and is now in session.

In calling the convention to order, the Military Governor of Cuba made the following statement:

As Military Governor of the island, representing the President of the United States, I call this convention to order.

It will be your duty, first, to frame and adopt a constitution for Cuba, and when that has been done to formulate what in your opinion ought to be the relations between Cuba and the United States.

The constitution must be adequate to secure a stable, orderly, and free government.

When you have formulated the relations which in your opinion ought to exist between Cuba and the United States the Government of the United States will doubtless take such action on its part as shall lead to a final and authoritative agreement between the people of the two countries to the promotion of their common interests.

All friends of Cuba will follow your deliberations with the deepest interest, earnestly desiring that you shall reach just conclusions, and that by the dignity, individual self-restraint, and wise conservatism which shall characterize your proceedings the capacity of the Cuban people for representative government may be signally illustrated.

The fundamental distinction between true representative government and dictatorship is that in the former every representative of the people, in whatever office, confines himself strictly within the limits of his defined powers. Without such restraint there can be no free constitutional government.

Under the order pursuant to which you have been elected and convened you have no duty and no authority to take part in the present government of the island. Your powers are strictly limited by the terms of that order.

When the convention concludes its labors I will transmit to the Congress the constitution as framed by the convention for its consideration and for such action as it may deem advisable.

I renew the recommendation made in my special message of February 10, 1899, as to the necessity for cable communication between the United States and Hawaii, with extension to Manila. Since then circumstances have strikingly emphasized this need. Surveys have shown the entire feasibility of a chain of cables which at each stopping place shall touch on American territory, so that the system shall be under our own complete control. Manila once within telegraphic reach, connection with the systems of the Asiatic coast would open increased and profitable opportunities for a more direct cable route from our shores to the Orient than is now afforded by the trans-Atlantic, continental, and trans-Asian lines. I urge attention to this important matter.

The present strength of the Army is 100,000 men—65,000 regulars and 35,000 volunteers. Under the act of March 2, 1899, on the 30th of June next the present volunteer force will be discharged and the Regular Army will be reduced to 2,447 officers and 29,025 enlisted men.

In 1888 a Board of Officers convened by President Cleveland adopted a comprehensive scheme of coast-defense fortifications which involved the outlay of something over one hundred million dollars. This plan received the approval of the Congress, and since then regular appropriations have been made and the work of fortification has steadily progressed.

More than sixty millions of dollars have been invested in a great number of forts and guns, with all the complicated and scientific machinery and electrical appliances necessary for their use. The proper care of this defensive machinery requires men trained in its use. The number of men necessary to perform this duty alone is ascertained by the War Department, at a minimum allowance, to be 18,420.

There are fifty-eight or more military posts in the United States other than the coast-defense fortifications.

The number of these posts is being constantly increased by the Congress. More than \$22,000,000 have been expended in building and equipment, and they can only be cared for by the Regular Army. The posts now in existence and others to be built provide for accommodations for, and if fully garrisoned require, 26,000 troops. Many of these posts are along our frontier or at important strategic points, the occupation of which is necessary.

We have in Cuba between 5,000 and 6,000 troops. For the present our troops in that island cannot be withdrawn or materially diminished, and certainly not until the conclusion of the labors of the constitutional convention now in session and a government provided by the new constitution shall have been established and its stability assured.

In Puerto Rico we have reduced the garrisons to 1,636, which includes 879 native troops. There is no room for further reduction here.

We will be required to keep a considerable force in the Philippine Islands for some time to come. From the best information obtainable we will need there for the immediate future from 45,000 to 60,000 men. I am sure the number may be reduced as the insurgents shall come to acknowledge the authority of the United States, of which there are assuring indications.

It must be apparent that we will require an army of about 60,000, and that during present conditions in Cuba and the Philippines the President should have authority to increase the force to the present number of 100,000. Included in this number authority should be given to raise native troops in the Philippines up to 15,000, which the Taft Commission believe will be more effective in detecting and suppressing guerrillas, assassins, and ladrones than our own soldiers.

The full discussion of this subject by the Secretary of War in his annual report is called to your earnest attention.

I renew the recommendation made in my last annual message that the Congress provide a special medal of honor for the volunteers, regulars, sailors, and marines on duty in the Philippines who voluntarily remained in the service after their terms of enlistment had expired.

I favor the recommendation of the Secretary of War for the detail of officers from the line of the Army when vacancies occur in the Adjutant-General's Department, Inspector-General's Department, Quartermaster's Department, Subsistence Department, Pay Department, Ordnance Department, and Signal Corps.

The Army cannot be too highly commended for its faithful and effective service in active military operations in the field and the difficult work of civil administration.

The continued and rapid growth of the postal service is a sure index of the great and increasing business activity of the country. Its most striking new development is the extension of rural free delivery. This has come almost wholly within the last year. At the beginning of the fiscal year 1899-1900 the number of routes in operation was only 391, and most of these had been running less than twelve months. On the 15th of November, 1900, the number had increased to 2,614, reaching into forty-four States and Territories, and serving a population of 1,801,524. The number of applications now pending and awaiting action nearly equals all those granted up to the present time, and by the close of the current fiscal year about 4,000 routes will have been established, providing for the daily delivery of mails at the scattered homes of about three and a half millions of rural population.

This service ameliorates the isolation of farm life, conduces to good roads, and quickens and extends the dissemination of general information. Experience thus far has tended to allay the apprehension that it would be so expensive as to forbid its general adoption or make it a serious burden. Its actual application has shown that it increases postal receipts, and can be accompanied by reductions in other branches of the service, so that the augmented revenues and the accomplished savings together materially reduce the net cost. The evidences which point to these conclusions are presented in detail in the annual report of the Postmaster-General, which with its recommendations is commended to the consideration of the Congress. The full development of this special service, however, requires such a large outlay of money that it should be undertaken only after a careful study and thorough understanding of all that it involves.

Very efficient service has been rendered by the Navy in connection with the insurrection in the Philippines and the recent disturbance in China.

A very satisfactory settlement has been made of the long-pending question of the manufacture of armor plate. A reasonable price has been secured and the necessity for a Government armor plant avoided.

I approve of the recommendations of the Secretary for new vessels and for additional officers and men which the required increase of the Navy makes necessary. I commend to the favorable action of the Congress the measure now pending for the erection of a statue to the memory of the late Admiral David D. Porter. I commend also the establishment of a national naval reserve and of the grade of vice-admiral. Provision should be made, as recommended by the Secretary, for suitable rewards for special merit. Many officers who rendered the most distinguished service during the recent war with Spain have received in return no recognition from the Congress.

The total area of public lands as given by the Secretary of the Interior is approximately 1,071,881,662 acres, of which 917,135,880 acres are undisposed of and 154,745,782 acres have been reserved for various purposes. The public lands disposed of during the year amount to 13,453,887.96 acres, including 62,423.09 acres of Indian lands, an increase of 4,271,474.80 over the preceding year. The total receipts from the sale of public lands during the fiscal year were \$4,379,758.10, an increase of \$1,309,620.76 over the preceding year.

The results obtained from our forest policy have demonstrated its wisdom and the necessity in the interest of the public for its continuance and increased appropriations by the Congress for the carrying on of the work. On June 30, 1900, there were thirty-seven forest reserves, created by Presidential proclamations under section 24 of the act of March 3, 1891, embracing an area of 46,425,529 acres.

During the past year the Olympic Reserve, in the State of Washington, was reduced 265,040 acres, leaving its present area at 1,923,840 acres. The Prescott Reserve, in Arizona, was increased from 10,240 acres to 423,680 acres, and the Big Horn Reserve, in Wyoming, was increased from 1,127,680 acres to 1,180,800 acres. A new reserve, the Santa Ynez, in

California, embracing an area of 145,000 acres, was created during this year. On October 10, 1900, the Crow Creek Forest Reserve, in Wyoming, was created, with an area of 56,320 acres.

At the end of the fiscal year there were on the pension roll 993,529 names, a net increase of 2,010 over the fiscal year 1899. The number added to the rolls during the year was 45,344. The amount disbursed for Army pensions during the year was \$134,700,597.24 and for Navy pensions \$3,761,533.41, a total of \$138,462,130.65, leaving an unexpended balance of \$5,542,768.25 to be covered into the Treasury, which shows an increase over the previous year's expenditure of \$107,077.70. There were 684 names added to the rolls during the year by special acts passed at the first session of the Fifty-sixth Congress.

The act of May 9, 1900, among other things provides for an extension of income to widows pensioned under said act to \$250 per annum. The Secretary of the Interior believes that by the operations of this act the number of persons pensioned under it will increase and the increased annual payment for pensions will be between \$3,000,000 and \$4,000,000.

The Government justly appreciates the services of its soldiers and sailors by making pension payments liberal beyond precedent to them, their widows and orphans.

There were 26,540 letters patent granted, including reissues and designs, during the fiscal year ended June 30, 1900; 1,660 trademarks, 682 labels, and 93 prints registered. The number of patents which expired was 19,988. The total receipts for patents were \$1,358,228.35. The expenditures were \$1,247,827.58, showing a surplus of \$110,400.77.

The attention of the Congress is called to the report of the Secretary of the Interior touching the necessity for the further establishment of schools in the Territory of Alaska, and favorable action is invited thereon.

Much interesting information is given in the report of the Governor of Hawaii as to the progress and development of the islands during the period from July 7, 1898, the date of the approval of the joint resolution of the Congress providing for their annexation, up to April 30, 1900, the date of

the approval of the act providing a government for the Territory, and thereafter.

The last Hawaiian census, taken in the year 1896, gives a total population of 109,020, of which 31,019 were native Hawaiians. The number of Americans reported was 8,485. The results of the Federal census, taken this year, show the islands to have a total population of 154,001, showing an increase over that reported in 1896 of 44,981, or 41.2 per cent.

There has been marked progress in the educational, agricultural, and railroad development of the islands.

In the Territorial act of April 30, 1900, section 7 of said act repeals Chapter 34 of the Civil Laws of Hawaii whereby the Government was to assist in encouraging and developing the agricultural resources of the Republic, especially irrigation. The Governor of Hawaii recommends legislation looking to the development of such water supply as may exist on the public lands, with a view of promoting land settlement. The earnest consideration of the Congress is invited to this important recommendation and others, as embodied in the report of the Secretary of the Interior.

The Director of the Census states that the work in connection with the Twelfth Census is progressing favorably. This national undertaking, ordered by the Congress each decade, has finally resulted in the collection of an aggregation of statistical facts to determine the industrial growth of the country, its manufacturing and mechanical resources, its richness in mines and forests, the number of its agriculturists, their farms and products, its educational and religious opportunities, as well as questions pertaining to sociological conditions.

The labors of the officials in charge of the Bureau indicate that the four important and most-desired subjects, namely, population, agricultural, manufacturing, and vital statistics, will be completed within the limit prescribed by the law of March 3, 1899.

The field work incident to the above inquiries is now practically finished, and as a result the population of the States and Territories, including the Hawaiian Islands and Alaska, has been announced. The growth of

population during the last decade amounts to over 13,000,000, a greater numerical increase than in any previous census in the history of the country.

Bulletins will be issued as rapidly as possible giving the population by States and Territories, by minor civil divisions. Several announcements of this kind have already been made, and it is hoped that the list will be completed by January 1. Other bulletins giving the results of the manufacturing and agricultural inquiries will be given to the public as rapidly as circumstances will admit.

The Director, while confident of his ability to complete the different branches of the undertaking in the allotted time, finds himself embarrassed by the lack of a trained force properly equipped for statistical work, thus raising the question whether in the interest of economy and a thorough execution of the census work there should not be retained in the Government employ a certain number of experts not only to aid in the preliminary organization prior to the taking of the decennial census, but in addition to have the advantage in the field and office work of the Bureau of trained assistants to facilitate the early completion of this enormous undertaking.

I recommend that the Congress at its present session apportion representation among the several States as provided by the Constitution.

The Department of Agriculture has been extending its work during the past year, reaching farther for new varieties of seeds and plants; co-operating more fully with the States and Territories in research along useful lines; making progress in meteorological work relating to lines of wireless telegraphy and forecasts for ocean-going vessels; continuing inquiry as to animal disease; looking into the extent and character of food adulteration; outlining plans for the care, preservation, and intelligent harvesting of our woodlands; studying soils that producers may cultivate with better knowledge of conditions, and helping to clothe desert places with grasses suitable to our arid regions. Our island possessions are being considered that their peoples may be helped to produce the tropical products now so extensively brought into the United States. Inquiry into methods of improving our roads has been active during the year; help has been given to many localities, and scientific investigation of material in the States and

Territories has been inaugurated. Irrigation problems in our semiarid regions are receiving careful and increased consideration.

An extensive exhibit at Paris of the products of agriculture has made the peoples of many countries more familiar with the varied products of our fields and their comparative excellence.

The collection of statistics regarding our crops is being improved and sources of information are being enlarged, to the end that producers may have the earliest advices regarding crop conditions. There has never been a time when those for whom it was established have shown more appreciation of the services of the Department.

In my annual message of December 5, 1898, I called attention to the necessity for some amendment of the alien contract law. There still remain important features of the rightful application of the eight-hour law for the benefit of labor and of the principle of arbitration, and I again commend these subjects to the careful attention of the Congress.

That there may be secured the best service possible in the Philippine Islands, I have issued, under date of November 30, 1900, the following order:

The United States Civil Service Commission is directed to render such assistance as may be practicable to the Civil Service Board, created under the act of the United States Philippine Commission, for the establishment and maintenance of an honest and efficient civil service in the Philippine Islands, and for that purpose to conduct examinations for the civil service of the Philippine Islands, upon the request of the Civil Service Board of said islands, under such regulations as may be agreed upon by the said Board and the said United States Civil Service Commission.

The Civil Service Commission is greatly embarrassed in its work for want of an adequate permanent force for clerical and other assistance. Its needs are fully set forth in its report. I invite attention to the report, and especially urge upon the Congress that this important bureau of the public service, which passes upon the qualifications and character of so large a number of the officers and employees of the Government, should be supported by all needed appropriations to secure promptness and efficiency.

I am very much impressed with the statement made by the heads of all the Departments of the urgent necessity of a hall of public records. In every

departmental building in Washington, so far as I am informed, the space for official records is not only exhausted, but the walls of rooms are lined with shelves, the middle floor space of many rooms is filled with file cases, and garrets and basements, which were never intended and are unfitted for their accommodation, are crowded with them. Aside from the inconvenience there is great danger, not only from fire, but from the weight of these records upon timbers not intended for their support. There should be a separate building especially designed for the purpose of receiving and preserving the annually accumulating archives of the several Executive Departments. Such a hall need not be a costly structure, but should be so arranged as to admit of enlargement from time to time. I urgently recommend that the Congress take early action in this matter.

I transmit to the Congress a resolution adopted at a recent meeting of the American Bar Association concerning the proposed celebration of John Marshall Day, February 4, 1901. Fitting exercises have been arranged, and it is earnestly desired by the committee that the Congress may participate in this movement to honor the memory of the great jurist.

The transfer of the Government to this city is a fact of great historical interest. Among the people there is a feeling of genuine pride in the Capital of the Republic.

It is a matter of interest in this connection that in 1800 the population of the District of Columbia was 14,093; to-day it is 278,718. The population of the city of Washington was then 3,210; to-day it is 218,196.

The Congress having provided for "an appropriate national celebration of the Centennial Anniversary of the Establishment of the Seat of the Government in the District of Columbia," the committees authorized by it have prepared a programme for the 12th of December, 1900, which date has been selected as the anniversary day. Deep interest has been shown in the arrangements for the celebration by the members of the committees of the Senate and House of Representatives, the committee of Governors appointed by the President, and the committees appointed by the citizens and inhabitants of the District of Columbia generally. The programme, in addition to a reception and other exercises at the Executive Mansion, provides commemorative exercises to be held jointly by the Senate and

House of Representatives in the Hall of the House of Representatives, and a reception in the evening at the Corcoran Gallery of Art in honor of the Governors of the States and Territories.

In our great prosperity we must guard against the danger it invites of extravagance in Government expenditures and appropriations; and the chosen representatives of the people will, I doubt not, furnish an example in their legislation of that wise economy which in a season of plenty husbands for the future. In this era of great business activity and opportunity caution is not untimely. It will not abate, but strengthen, confidence. It will not retard, but promote, legitimate industrial and commercial expansion. Our growing power brings with it temptations and perils requiring constant vigilance to avoid. It must not be used to invite conflicts, nor for oppression, but for the more effective maintenance of those principles of equality and justice upon which our institutions and happiness depend. Let us keep always in mind that the foundation of our Government is liberty; its superstructure peace.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, December 4, 1900.*

To the Senate and House of Representatives:

I transmit herewith, for the information of Congress, copy of a letter from the Commissioner-General of the United States to the Paris Exposition of 1900, of November 17, 1900, giving a detailed statement of the expenditures of the commission for the year ended November 15, 1900.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, December 6, 1900.*

To the Senate and House of Representatives:

I transmit herewith the report from the Secretary of State and accompanying papers relating to the claim against the United States of the Russian subject, Gustav Isak Dahlberg, master and principal owner of the Russian bark *Hans*, based on his wrongful and illegal arrest and imprisonment by officers of the United States District Court for the southern district of Mississippi, and, in view of the opinion expressed by the Department of Justice that the said arrest and detention of the complainant were wrongful and without the authority of law, I recommend the appropriation by Congress of the sum of \$5,000 to reimburse the master and owners of the vessel for all losses and damages incurred by reason of his said wrongful and illegal arrest and detention.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, December 6, 1900.*

To the Congress of the United States:

I transmit herewith a report from the Secretary of State, with accompanying papers, in relation to the lynching, in La Salle County, Tex., on October 5, 1895, of Florentine Suaste, a Mexican citizen.

Following the course pursued in the case of the lynching of three Italian subjects at Hahnville, La., on August 8, 1896, and in that of the lynching of the Mexican citizen, Luis Moreno, at Yreka, Cal., in August, 1895, I recommend the appropriation by Congress, out of humane consideration, and without reference to the question of liability of the Government of the United States, of the sum of \$2,000, to be paid by the Secretary of State to the Government of Mexico, and by that Government distributed to the heirs of the above-mentioned Florentino Suaste.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *January 3, 1901.*

To the Senate of the United States:

In reply to a resolution of the Senate of December 19, 1900, directing the Secretary of War "to transmit to the Senate the report of Abraham L. Lawshe, giving in detail the result of his investigations, made under the direction of the War Department, into the receipts and expenditures of Cuban funds," the Senate is informed that for the reasons stated in the accompanying communication from the Secretary of War, dated December 28, 1900, it is not deemed compatible with the public interest to transmit the report to the Senate at this time.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, January 16, 1901.*

To the Senate and House of Representatives:

I transmit herewith for the information of the Congress a letter from the Secretary of Agriculture, in which he presents a preliminary report of investigations upon the forests of the southern Appalachian Mountain region. Upon the basis of the facts established by this investigation the Secretary of Agriculture recommends the purchase of land for a national forest reserve in western North Carolina, eastern Tennessee, and adjacent States. I commend to the favorable consideration of Congress the reasons upon which this recommendation rests.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *January 25, 1901.*

To the Senate and House of Representatives:

For the information of the Congress and with a view to such action on its part as it may deem wise and appropriate I transmit a report of the Secretary of War, made to me under date of January 24, 1901, containing the reports of the Taft commission, its several acts of legislation, and other important information relating to the conditions and immediate wants of the Philippine Islands.

I earnestly recommend legislation under which the government of the islands may have authority to assist in their peaceful industrial development in the directions indicated by the Secretary of War.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, January 29, 1901.*

To the Congress:

I transmit herewith a report from the Secretary of State relating to the treaty between the United States and Spain, signed at Washington, November 7, 1900, providing for the cession of any and all islands of the Philippine Archipelago lying outside of the lines described in Article III of the treaty of peace of December 10, 1898.

I recommend the appropriation by Congress during the present session of the sum of one hundred thousand dollars for the purpose of carrying out the obligations of the United States under the treaty.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, January 29, 1901.*

To the Congress:

I transmit herewith a report from the Secretary of State relating to the lynching of two Italian subjects at Tallulah, La., on July 20, 1899.

I renew the recommendation made in my annual message to the Congress on December 3, 1900, that in accordance with precedent Congress make gracious provision for indemnity to the families of the victims in the same form as heretofore.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, January 29, 1901.*

To the Senate and House of Representatives:

I transmit herewith a communication from the Secretary of State accompanying the Commercial Relations of the United States for the year 1900, being the annual and other reports of consular and diplomatic officers upon the industries and commerce of foreign countries, with particular reference to the growing share of the United States in international trade. The advance in the general efficiency of our consular service in promoting trade, which was noted in my message of March 1, 1900, transmitting the reports for 1899, was even more marked than last year. The promptitude with which the reports of the consuls are printed and distributed, the generous recognition which is being increasingly accorded by our business interests to the practical value of their efforts for enlarging trade, and the continued testimony of competent foreign authorities to the general superiority of their commercial work, have naturally had a stimulating effect upon its consular corps as a whole, and experience in the discharge of their duties adds greatly to their efficiency. It is gratifying to be able to state that the improvement in the service, following closely upon the steady progress in expediting the publication of reports, has enabled the Department of State this year to submit the annual reports a month in advance of the usual time, and to make them as nearly as possible a contemporaneous picture of the trade of the world. In view of the great importance of these reports to our producers, manufacturers, exporters, and business interest generally, I cordially approve the recommendation of the

Secretary of State that Congress shall authorize the printing as heretofore of an edition of 10,000 copies of the summary, entitled "Review of the World's Commerce," and of 5,000 copies of Commercial Relations (including this summary), to be distributed by the Department of State.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *February 14, 1901.*

To the Senate and House of Representatives:

During our recent war with Spain the United States naval force on the North Atlantic Station was charged with varied and important duties, chief among which were the maintenance of the blockade of Cuba, aiding the army, and landing troops and in subsequent operations, and particularly in the pursuit, blockade, and destruction of the Spanish Squadron under Admiral Cervera.

This naval campaign, embracing objects of wide scope and grave responsibilities, was conducted with great ability on the part of the commander-in-chief, and of the officers and enlisted men under his command. It culminated in the annihilation of the Spanish fleet in the battle of July 3, 1898, one of the most memorable naval engagements in history.

The result of this battle was the freeing of our Atlantic coast from the possibilities to which it had been exposed from Admiral Cervera's fleet, and the termination of the war upon the seas.

I recommend that, following our national precedents, especially that in the case of Admiral Dewey and the Asiatic Squadron, the thanks of Congress be given to Rear-Admiral William T. Sampson, United States Navy, and to the officers and men under his command for highly distinguished conduct in conflict with the enemy, and in carrying on the blockade and naval campaign on the Cuban coast, resulting in the destruction of the Spanish fleet at Santiago de Cuba July 3, 1898.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *February 21, 1901.*

To the Senate and House of Representatives:

I transmit herewith, for the information of the Congress and with a view to its publication in suitable form, if such action is deemed desirable, a special report of the United States Board on Geographic Names, relating to geographic names in the Philippine Islands, and invite attention to the recommendation of the Board:

"That in addition to the usual number, there be printed 15,000 copies: 2,000 copies for the use of the Senate, 3,000 copies for the use of the House of Representatives, and 10,000 copies for distribution by the Board to the Executive Departments and the public."

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, February 26, 1901.*

To the Congress:

I transmit herewith, for the consideration of Congress, in connection with my message of January 29, 1901, relative to the lynching of certain Italian subjects at Tallulah, La., a report by the Secretary of State touching a claim for \$5,000 presented by the Italian ambassador at Washington on behalf of Guiseppe Defina, on account of his being obliged to abandon his home and business.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, February 28, 1901.*

To the Senate and House of Representatives:

I transmit herewith, in pursuance of the act of Congress approved July 1, 1898 (U.S. Stat. L., vol. 30, pp. 645, 646), the report of Mr. Ferdinand W. Peck, commissioner-general of the United States to the International Exposition held at Paris, France, during the year 1900.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, March 1, 1901.*

To the House of Representatives:

I return herewith, without approval, House bill No. 3204, entitled "An act to refer certain claims for Indian depredations to the Court of Claims."

General relief has been extended to citizens who have lost property by reason of Indian depredations by the act of March 3, 1891, conferring jurisdiction upon the Court of Claims to hear and determine such cases. That act provides for payment for damages growing out of depredations committed by any Indian or Indians belonging to a band, tribe, or nation in amity with the United States, excluding from consideration all claims which originated during the existence of actual hostilities between the United States and the Indian tribe.

In making this discrimination the act of 1891 follows the general principle which has been asserted in all general legislation which has ever been enacted for the payment of claims for property destroyed by Indians. The first act which promised such indemnity, that of May 19, 1796, contained the same restriction, and it was reported in every subsequent general act of Congress dealing with the subject. This policy, which has been clearly manifested from the beginning, is in accord with the recognized principle that the nation is not liable for damage to the private property of its citizens caused by the act of the public enemy. This statute has been thoroughly considered by the Court of Claims and by the Supreme

Court and its interpretation fixed, and it has been declared to be in accord not only with the policy of Congress as expressed through the legislation of the century, but with the general principles of international law.

I am informed that the records of the Court of Claims show that the claims of four of the five beneficiaries named in the present bill have been presented to that court under the general law and decided adversely, the court having held that a state of war existed between the United States and the Sioux Indians in the year 1862 when the claims arose. The remaining claim, which originated under the same circumstances and at the same time, would, of course, be subject to the same defense if presented.

The bill provides that these claims shall be sent back to the Court of Claims for trial according to the principles and rules which governed the commission appointed under the act of February 16, 1863. That act, which was a special act relating to losses occurring during the hostilities of the previous year, did not, of course, impose the requirement of amity, the claims allowed by the commission being paid out of the funds belonging to the hostile Indians sequestered by the statute. The effect of this bill, if it became a law, would be to provide for the payment out of the Treasury of the United States of these claims which were not presented for payment out of the Indian funds and which have been rejected by the courts under the general law. There are many hundreds of cases, aggregating a large amount claimed, which have been filed in the Court of Claims, but which are excluded from its jurisdiction for the same reason which necessitated the dismissal of the petitions filed by these claimants. There is no legal obligation on the part of the United States, and no promise, express or implied, for the payment of such claims.

The measure of governmental liability is fulfilled by the passage of the act of March 3, 1891, and the prompt payment of the judgments rendered thereunder. To single out for payment a few claims of this large class to the exclusion of all others would, in my judgment, be unjust; and such action would also with reason be cited as a precedent for extending governmental aid in all similar cases.

For the reasons given I am constrained to withhold my approval from the bill.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *March 7, 1901.*

To the House of Representatives:

I transmit herewith a report from the Secretary of State in response to the resolution of the House of Representatives of February 19, 1901, requesting him to furnish that body "all the information in the possession of the State Department relating to the shipment of horses and mules from New Orleans in large numbers for the use of the British army in the war in South Africa."

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, March 2, 1901.*

To the House of Representatives:

I return herewith, without approval, House bill No. 321, entitled "An act for the relief of the legal representative of Samuel Tewksbury, deceased."

This bill provides for the payment to the legal representative of Samuel Tewksbury, late of Scranton, Allegheny County, Pa., the sum of \$5,697 in full compensation for the use and occupation by the United States Government of the brick building and premises owned by him in the city of Scranton, Pa., as a depot or barracks for United States troops by the Provost Marshal of the United States from June, 1862, to June, 1865, inclusive.

The records of the War Department show that about April 26, 1865, Col. J.G. Johnson, Chief Quartermaster, forwarded to the office of the Quartermaster-General a claim of Samuel Tewksbury for use of a building at Scranton, Pa., from February 24, 1864, to February 3, 1865, Stated at \$1,133.33, and damage to said building at \$1,400, total \$2,533.33.

In forwarding these papers Colonel Johnson states as follows:

In the spring of 1864 Mr. Samuel Tewksbury presented to me through his agents a claim against the United States Government for use of the premises mentioned in the enclosed account accompanying the papers.

I learn from Mr. S.N. Bradford, Provost Marshal of the Twelfth District of Pennsylvania at Scranton, that lodgings were furnished to persons in military service at that place by

Gardiner and Atkinson under a contract with the Provost Marshal, also that the contractors rented the building used for the above purpose from Mr. Tewksbury.

Considering it a matter entirely between that gentleman and his tenants, Messrs. Gardiner and Atkinson, I at that time refused to take any action in the matter whatever.

The claim was again submitted to the office of the Quartermaster-General on September 30, 1865, by Major W.B. Lane, and was returned on May 1, 1866, with the information that the United States had already paid for lodging of the troops under the control of the Provost Marshal at Scranton, Pa., during the time for which charge for rent is made.

The claimant was referred to the officer or person by whom the building was taken for compensation for its use. No other record of this case is found in the War Department, although it will be observed that the bill covers a period from June, 1862, to June, 1865, inclusive, while the claim as originally presented to the War Department was for occupancy of the building at Scranton, Pa., from February 24, 1864, to February 3, 1865.

It thus appears that when this claim was originally presented it was examined by the proper representative of the Government, and was rejected; that no such use and occupation as the United States Government had of claimant's building was under a contract between the Government and the tenants of claimant, and that payment therefor was duly made by the Government. Now after a lapse of some thirty-seven years the period of use and occupation covered by the claim has increased threefold, and the compensation asked therefor has more than doubled. Under the circumstances of this case I do not feel at liberty to approve the bill.

WILLIAM McKINLEY.

PRESIDENT McKINLEY'S SECOND INAUGURAL ADDRESS.

My Fellow-Citizens:

When we assembled here on the 4th of March, 1897, there was great anxiety with regard to our currency and credit. None exists now. Then our Treasury receipts were inadequate to meet the current obligations of the Government. Now they are sufficient for all public needs, and we have a surplus instead of a deficit. Then I felt constrained to convene the Congress in extraordinary session to devise revenues to pay the ordinary expenses of the Government. Now I have the satisfaction to announce that the Congress just closed has reduced taxation in the sum of \$41,000,000. Then there was deep solicitude because of the long depression in our manufacturing, mining, agricultural, and mercantile industries and the consequent distress of our laboring population. Now every avenue of production is crowded with activity, labor is well employed, and American products find good markets at home and abroad.

Our diversified productions, however, are increasing in such unprecedented volume as to admonish us of the necessity of still further enlarging our foreign markets by broader commercial relations. For this purpose reciprocal trade arrangements with other nations should in liberal spirit be carefully cultivated and promoted.

The national verdict of 1896 has for the most part been executed. Whatever remains unfulfilled is a continuing obligation resting with undiminished force upon the Executive and the Congress. But fortunate as our condition is, its permanence can only be assured by sound business methods and strict economy in national administration and legislation. We should not permit our great prosperity to lead us to reckless ventures in business or profligacy in public expenditures. While the Congress determines the objects and the sum of appropriations, the officials of the executive departments are responsible for honest and faithful disbursement, and it should be their constant care to avoid waste and extravagance.

Honesty, capacity, and industry are nowhere more indispensable than in public employment. These should be fundamental requisites to original appointment and the surest guaranties against removal.

Four years ago we stood on the brink of war without the people knowing it and without any preparation or effort at preparation for the impending peril. I did all that in honor could be done to avert the war, but without avail. It became inevitable; and the Congress at its first regular session, without party division, provided money in anticipation of the crisis and in preparation to meet it. It came. The result was signally favorable to American arms and in the highest degree honorable to the Government. It imposed upon us obligations from which we cannot escape and from which it would be dishonorable to seek escape. We are now at peace with the world, and it is my fervent prayer that if differences arise between us and other powers they may be settled by peaceful arbitration and that hereafter we may be spared the horrors of war.

Intrusted by the people for a second time with the office of President, I enter upon its administration appreciating the great responsibilities which attach to this renewed honor and commission, promising unreserved devotion on my part to their faithful discharge and reverently invoking for my guidance the direction and favor of Almighty God. I should shrink from the duties this day assumed if I did not feel that in their performance I should have the co-operation of the wise and patriotic men of all parties. It encourages me for the great task which I now undertake to believe that those who voluntarily committed to me the trust imposed upon the Chief Executive of the Republic will give to me generous support in my duties to "preserve, protect, and defend, the Constitution of the United States" and to "care that the laws be faithfully executed." The national purpose is indicated through a national election. It is the constitutional method of ascertaining the public will. When once it is registered it is a law to us all, and faithful observance should follow its decrees.

Strong hearts and helpful hands are needed, and, fortunately, we have them in every part of our beloved country. We are reunited. Sectionalism has disappeared. Division on public questions can no longer be traced by the war maps of 1861. These old differences less and less disturb the judgment. Existing problems demand the thought and quicken the

conscience of the country, and the responsibility for their presence, as well as for their righteous settlement, rests upon us all—no more upon me than upon you. There are some national questions in the solution of which patriotism should exclude partisanship. Magnifying their difficulties will not take them off our hands nor facilitate their adjustment. Distrust of the capacity, integrity, and high purposes of the American people will not be an inspiring theme for future political contests. Dark pictures and gloomy forebodings are worse than useless. These only becloud, they do not help to point the way of safety and honor. "Hope maketh not ashamed." The prophets of evil were not the builders of the Republic, nor in its crises since have they saved or served it. The faith of the fathers was a mighty force in its creation, and the faith of their descendants has wrought its progress and furnished its defenders. They are obstructionists who despair, and who would destroy confidence in the ability of our people to solve wisely and for civilization the mighty problems resting upon them. The American people, intrenched in freedom at home, take their love for it with them wherever they go, and they reject as mistaken and unworthy the doctrine that we lose our own liberties by securing the enduring foundations of liberty to others. Our institutions will not deteriorate by extension, and our sense of justice will not abate under tropic suns in distant seas. As heretofore, so hereafter will the nation demonstrate its fitness to administer any new estate which events devolve upon it, and in the fear of God will "take occasion by the hand and make the bounds of freedom wider yet." If there are those among us who would make our way more difficult, we must not be disheartened, but the more earnestly dedicate ourselves to the task upon which we have rightly entered. The path of progress is seldom smooth. New things are often found hard to do. Our fathers found them so. We find them so. They are inconvenient. They cost us something. But are we not made better for the effort and sacrifice, and are not those we serve lifted up and blessed?

We will be consoled, too, with the fact that opposition has confronted every onward movement of the Republic from its opening hour until now, but without success. The Republic has marched on and on, and its step has exalted freedom and humanity. We are undergoing the same ordeal as did our predecessors nearly a century ago. We are following the course they blazed. They triumphed. Will their successors falter and plead organic

impotency in the nation? Surely after 125 years of achievement for mankind we will not now surrender our equality with other powers on matters fundamental and essential to nationality. With no such purpose was the nation created. In no such spirit has it developed its full and independent sovereignty. We adhere to the principle of equality among ourselves, and by no act of ours will we assign to ourselves a subordinate rank in the family of nations.

My fellow-citizens, the public events of the past four years have gone into history. They are too near to justify recital. Some of them were unforeseen; many of them momentous and far-reaching in their consequences to ourselves and our relations with the rest of the world. The part which the United States bore so honorably in the thrilling scenes in China, while new to American life, has been in harmony with its true spirit and best traditions, and in dealing with the results its policy will be that of moderation and fairness.

We face at this moment a most important question—that of the future relations of the United States and Cuba. With our near neighbors we must remain close friends. The declaration of the purposes of this Government in the resolution of April 20, 1898, must be made good. Ever since the evacuation of the island by the army of Spain the Executive, with all practicable speed, has been assisting its people in the successive steps necessary to the establishment of a free and independent government prepared to assume and perform the obligations of international law which now rest upon the United States under the treaty of Paris. The convention elected by the people to frame a constitution is approaching the completion of its labors. The transfer of American control to the new government is of such great importance, involving an obligation resulting from our intervention and the treaty of peace, that I am glad to be advised by the recent act of Congress of the policy which the legislative branch of the Government deems essential to the best interests of Cuba and the United States. The principles which led to our intervention require that the fundamental law upon which the new government rests should be adapted to secure a government capable of performing the duties and discharging the functions of a separate nation, of observing its international obligations of protecting life and property, insuring order, safety, and liberty, and

conforming to the established and historical policy of the United States in its relation to Cuba.

The peace which we are pledged to leave to the Cuban people must carry with it the guaranties of permanence. We became sponsors for the pacification of the island, and we remain accountable to the Cubans, no less than to our own country and people, for the reconstruction of Cuba as a free commonwealth on abiding foundations of right, justice, liberty, and assured order. Our enfranchisement of the people will not be completed until free Cuba shall "be a reality, not a name; a perfect entity, not a hasty experiment bearing within itself the elements of failure."

While the treaty of peace with Spain was ratified on the 6th of February, 1899, and ratifications were exchanged nearly two years ago, the Congress has indicated no form of government for the Philippine Islands. It has, however, provided an army to enable the Executive to suppress insurrection, restore peace, give security to the inhabitants, and establish the authority of the United States throughout the archipelago. It has authorized the organization of native troops as auxiliary to the regular force. It has been advised from time to time of the acts of the military and naval officers in the islands, of my action in appointing civil commissions, of the instructions with which they were charged, of their duties and powers, of their recommendations, and of their several acts under executive commission, together with the very complete general information they have submitted. These reports fully set forth the conditions, past and present, in the islands, and the instructions clearly show the principles which will guide the Executive until the Congress shall, as it is required to do by the treaty, determine "the civil rights and political status of the native inhabitants." The Congress having added the sanction of its authority to the powers already possessed and exercised by the Executive under the Constitution, thereby leaving with the Executive the responsibility for the government of the Philippines, I shall continue the efforts already begun until order shall be restored throughout the islands, and as fast as conditions permit will establish local governments, in the formation of which the full co-operation of the people has been already invited, and when established will encourage the people to administer them. The settled purpose, long ago proclaimed, to afford the inhabitants of the islands self-government as fast as they were ready for it will be pursued with earnestness and fidelity.

Already something has been accomplished in this direction. The Government's representatives, civil and military, are doing faithful and noble work in their mission of emancipation and merit the approval and support of their countrymen. The most liberal terms of amnesty have already been communicated to the insurgents, and the way is still open for those who have raised their arms against the Government for honorable submission to its authority. Our countrymen should not be deceived. We are not waging war against the inhabitants of the Philippine Islands. A portion of them are making war against the United States. By far the greater part of the inhabitants recognize American sovereignty and welcome it as a guaranty of order and of security for life, property, liberty, freedom of conscience, and the pursuit of happiness. To them full protection will be given. They shall not be abandoned. We will not leave the destiny of the loyal millions in the islands to the disloyal thousands who are in rebellion against the United States. Order under civil institutions will come as soon as those who now break the peace shall keep it. Force will not be needed or used when those who make war against us shall make it no more. May it end without further bloodshed, and there be ushered in the reign of peace to be made permanent by a government of liberty under law!

MARCH 4, 1901.

PROCLAMATIONS.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas public interests require that the Congress of the United States should be convened in extra session at twelve o'clock on the 15th day of March, 1897, to receive such communication as may be made by the Executive:

Now, therefore, I, William McKinley, President of the United States of America, do hereby proclaim and declare that an extraordinary occasion requires the Congress of the United States to convene in extra session at the Capitol in the city of Washington on the 15th day of March, 1897, at twelve o'clock, noon, of which all persons who shall at that time be entitled to act as members thereof, are hereby required to take notice.

[SEAL.]

Given under my hand and the seal of the United States at Washington the 6th day of March in the year of our lord one thousand eight hundred and ninety-seven, and of the Independence of the United States the one hundred and twenty-first.

WILLIAM McKINLEY.

By the President:
JOHN SHERMAN,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES.

THANKSGIVING PROCLAMATION.

In remembrance of God's goodness to us during the past year, which has been so abundant, "let us offer unto Him our thanksgiving and pay our vows unto the Most High." Under His watchful providence industry has prospered, the conditions of labor have been improved, the rewards of the husbandman have been increased, and the comforts of our homes multiplied. His mighty hand has preserved peace and protected the nation. Respect for law and order has been strengthened, love of free institutions cherished, and all sections of our beloved country brought into closer bonds of fraternal regard and generous cooperation.

For these great benefits it is our duty to praise the Lord in a spirit of humility and gratitude and to offer up to Him our most earnest supplications. That we may acknowledge our obligation as a people to Him who has so graciously granted us the blessings of free government and material prosperity, I, William McKinley, President of the United States, do hereby designate and set apart Thursday, the twenty-fifth day of November, for national thanksgiving and prayer, which all of the people are invited to observe with appropriate religious services in their respective places of worship. On this day of rejoicing and domestic reunion let our prayers ascend to the Giver of every good and perfect gift for the continuance of His love and favor to us, that our hearts may be filled with charity and good will, and we may be ever worthy of His beneficent concern.

[SEAL.]

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington this 29th day of October, in the year of our Lord one thousand eight hundred and ninety-seven, and of the Independence of the United States the one hundred and twenty-second.

WILLIAM McKINLEY.

By the President:
JOHN SHERMAN,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas satisfactory proof has been given me that vessels of the United States in ballast which proceed to Mexico with the object of devoting themselves to pearl fishery and fishing on the Mexican coasts or for the purpose of receiving and carrying passengers and mail or of loading cattle, wood, or any other Mexican product and which shall go directly to ports open to general commerce so that thence they may be dispatched to their destination, and steam vessels of the United States are exempted from tonnage duties in Mexican ports;

Now, therefore, I, William McKinley, President of the United States of America, by virtue of the authority vested in me by the act of Congress approved July 24, 1897, entitled "An act to authorize the President to suspend discriminating duties imposed on foreign vessels and commerce," do hereby declare and proclaim that from and after the date of this, my proclamation, Mexican vessels in ballast which proceed to the United States with the object of fishing on the coast thereof or for the purpose of receiving and carrying passengers and mail or of loading cattle, wood, or any other product of the United States and which shall go directly to ports open to general commerce so that thence they may be despatched to their destination, and Mexican steam vessels shall be exempted from the payment of the tonnage duties imposed by section 4219 of the Revised Statutes of the United States.

And this proclamation shall remain in force and effect until otherwise ordered by the President of the United States.

In witness whereof I have set my hand and caused the seal of the United States to be hereunto affixed.

[SEAL.]

Done at the city of Washington this 12th day of November, in the year of our Lord one thousand eight hundred and ninety-seven, and of the Independence of the United States the one hundred and twenty-second.

WILLIAM McKINLEY.

By the President:
JOHN SHERMAN,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, it is provided by section twenty-four of the act of Congress, approved March third, eighteen hundred and ninety-one, entitled "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, the public lands in the Territory of Arizona, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a Public Reservation all those certain tracts, pieces or parcels of land lying and being situate in the Territory of Arizona, and within the boundaries particularly described as follows, to wit:

Beginning at the northeast corner of Section twelve (12), Township thirteen (13) North, Range three (3) West, Gila and Salt River Meridian, Arizona; thence southerly along the range line to the point for the southeast corner of Section twenty-five (25), said Township; thence westerly along the unsurveyed section line to the point for the southwest corner of Section twenty-eight (28), said Township; thence northerly along the unsurveyed section line to the point for the northwest corner of Section nine (9), said Township; thence easterly along the unsurveyed and surveyed section line to the northeast corner of Section twelve (12), said Township, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired; and all mining claims duly located and held according to the laws of the United States and rules and regulations not in conflict therewith;

Provided, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler, or claimant continues to comply with the law under which the entry, filing, settlement, or location was made.

Warning is hereby expressly given to all persons not to enter or make settlement upon the tract of land reserved by this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 10th day of May, in the year of our Lord one thousand eight hundred and ninety-eight, and of the Independence of the United States the one hundred and twenty-second.

WILLIAM McKINLEY.

By the President:
WILLIAM R. DAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it is provided by section twenty-four of the act of Congress approved March third, eighteen hundred and ninety-one, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas it is further provided by the act of Congress, approved June fourth, eighteen hundred and ninety-seven, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June thirtieth, eighteen hundred and ninety-eight, and for other

purposes," that "The President is hereby authorized at any time to modify any executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

And whereas the public lands in the Territory of New Mexico, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by the aforesaid acts of Congress, do hereby make known and proclaim that the boundary lines of the Forest Reservation in the Territory of New Mexico, known as "The Pecos River Forest Reserve," created by proclamation of January eleventh, eighteen hundred and ninety-two, are hereby so changed and enlarged as to include all those certain tracts, pieces, or parcels of land lying and being situate in the Territory of New Mexico, and within the boundaries particularly described as follows, to wit:

Beginning at the southwest corner of Township seventeen (17) North, Range thirteen (13) East, New Mexico Principal Meridian, New Mexico; thence easterly along the Fourth (4th) Standard Parallel North, to its intersection with the west boundary line of the Las Vegas Grant; thence northerly along the west boundary lines of the Las Vegas and Mora Grants to the point of intersection with the southeast boundary line of the Rancho del Rio Grande Grant; thence along the boundary line of said grant in a southwesterly direction to the most southerly point thereof; thence southerly to the line of the Santa Barbary Grant; thence southeasterly and southerly to the southeast corner thereof; thence westerly along the south boundary line of said grant to the southwest corner thereof, and continuing westerly to the east boundary line of the Las Trampas Grant; thence in a general southwesterly direction following the boundary lines of the Las Trampas, Las Truchas, and San Fernando Santiago Grants to the point of intersection with the unsurveyed range line between Ranges ten (10) and eleven (11) East; thence southerly along the range line to the point for the southwest corner of Section eighteen (18), Fractional Township sixteen (16) North,

Range eleven (11) East; thence easterly along the unsurveyed section line to the point for the southeast corner of Section thirteen (13), said township; thence northerly along the range line to the northeast corner of Township seventeen (17) North, Range eleven (11) East; thence easterly along the township line to the southeast corner of Township eighteen (18) North, Range twelve (12) East; thence southerly along the range line to the southwest corner of Township seventeen (17) North, Range thirteen (13) East, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired; and all mining claims duly located and held according to the laws of the United States and rules and regulations not in conflict therewith;

Provided, that this exception shall not continue to apply to any particular tract of land unless the entry man, settler, or claimant continues to comply with the law under which the entry, filing, settlement, or location was made.

Warning is hereby expressly given to all persons not to enter or make settlement upon the tract of land reserved by this proclamation.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 27th day of May, in the year of our Lord one thousand eight hundred and ninety-eight, and of the Independence of the United States the one hundred and twenty-second.

WILLIAM McKINLEY.

By the President:
J.B. MOORE,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas pursuant to section 3 of the act of Congress approved July 24, 1897, entitled "An Act to provide revenue for the Government and to encourage the industries of the United States," the Governments of the United States and of the French Republic have in the spirit of amity, and with a desire to improve their commercial relations, entered into a Commercial Agreement in which reciprocal and equivalent concessions have been in the judgment of the President secured according to the provisions of said section, whereby the following articles of commerce, being the products and manufactures of the United States, are to be admitted into France on and after the 1st day of June, 1898, at the minimum rate of duty, not exceeding the rates respectively appearing in the following table, namely:

	Francs per 100 kilogs.
Canned meats	15
Table fruits, fresh:	
Lemons, oranges, cedrats and their varieties not mentioned	5
Mandarin oranges	10
Common table grapes	8
Apples and pears:	
For the table	2

For cider and perry	1.50
Other fruits except hothouse grapes and fruits	3
Fruits dried or pressed (excluding raisins):	
Apples and pears:	
For the table	10
For cider and perry	4
Prunes	10
Other fruits	5
Common woods, logs	
	0.65
Sawed or squared timber 80 mm. or more in thickness	1
Squared or sawed lumber exceeding 35 mm. and less than 80 mm. in thickness	1.25
Wood sawed 35 mm. or less in thickness	1.75
Paving blocks	1.75
Staves	1.75
Hops	30
Apples and pears crushed, or cut and dried	1.50
Manufactured and prepared Pork meats	50
Lard and its compounds	25

Therefore, in further execution of the provisions of said section it is hereby declared that on and after the 1st day of June, 1898, and during the continuance in force of the Agreement aforesaid, and until otherwise declared, the imposition and collection of the duties heretofore imposed and collected upon the following named articles, the products of France, by virtue of said act are hereby suspended, and in place thereof the duties shall be imposed and collected thereon according to the provisions of said section 3 as follows:

On argols, or crude tartar, or wine lees, crude, five *per centum ad valorem*.

On brandies, or other spirits manufactured or distilled from grain or other materials, one dollar and seventy-five cents per proof gallon.

On paintings in oil or water colors, pastels, pen and ink drawings, and statuary, fifteen *per centum ad valorem*.

It is further declared that the rates of duty heretofore imposed and collected on still wines and vermouth, the product of France, under the provisions of the United States Tariff Act of 1897 are conditionally suspended, and in place thereof shall be imposed and collected on and after the 1st day of June next as follows, namely:

On still wines and vermouth, in casks, thirty-five cents per gallon; in bottles or jugs, per case of one dozen bottles or jugs containing each not more than one quart and more than one pint, or twenty-four bottles or jugs containing each not more than one pint, one dollar and twenty-five cents per case, and any excess beyond these quantities found in such bottles or jugs shall be subject to a duty of four cents per pint or fractional part thereof, but no separate or additional duty shall be assessed upon the bottles or jugs.

Now, therefore, be it known that I, William McKinley, President of the United States of America, have caused the above stated modifications of the customs duties of the respective countries to be made public for the information of the citizens of the United States of America.

In testimony whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 30th day of May, one thousand eight hundred and ninety-eight, and of the Independence of the United States of America the one hundred and twenty-second.

WILLIAM McKINLEY.

By the President:
WILLIAM R. DAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas the public lands in the State of California, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by the aforesaid acts of Congress, do hereby make known and proclaim that the boundary lines of the Forest Reservation in the State of California, known as "the Pine Mountain and Zaca Lake Forest Reserve," created by proclamation of March second, eighteen hundred and ninety-eight, are hereby so changed and enlarged as to include all those certain tracts, pieces, or parcels of land lying and being situate in the State of California, and within the boundaries particularly described as follows, to wit:

Beginning at the northwest corner of fractional Township twelve (12) North, Range thirty (30) West, San Bernardino Base and Meridian, California; thence southerly along the range line to the southwest corner of said fractional township; thence westerly along the township line to the northwest corner of Section three (3), Township eleven (11) North, Range thirty-one (31) West; thence southerly along the section line to the southwest corner of Section twenty-two (22), said township; thence westerly along the section line to the northwest corner of Section thirty (30), said township; thence southerly along the range line between Ranges thirty-one (31) and thirty-two (32) West, to the northern boundary of the rancho Sisquoc; thence in a general southeasterly direction along the boundaries of the ranchos Sisquoc, La Laguna, Cañada de los Pinos or College Rancho, Tequepis, San Marcos, and Los Prietos y Najalayegua, to

the range line between Ranges twenty-four (24) and twenty-five (25) West; thence southerly along said range line to the southeast corner of Township five (5) North, Range twenty-five (25) West; thence easterly along the township line between Townships four (4) and five (5) North, to the western boundary of the rancho Temascal; thence along the western, northern, and eastern boundary of said rancho to its intersection with the northern boundary of the rancho San Francisco; thence along the northern and eastern boundary of said rancho to its southeast corner and continuing southerly to the northern boundary of the Ex Mission de San Fernando Grant; thence along the northern boundary of said grant to its intersection with the range line between Ranges fourteen (14) and fifteen (15) West; thence northerly along said range line to the northeast corner of Section twenty-four (24), Township four (4) North, Range fifteen (15) West; thence easterly along the section line to the southeast corner of Section thirteen (13), Township four (4) North, Range thirteen (13) West; thence northerly along the range line to the southwest corner of Township five (5) North, Range twelve (12) West; thence easterly along the township line to the southeast corner of said township; thence northerly along the range line to the northeast corner of Section twelve (12) of said township; thence westerly along the section line to the northwest corner of Section seven (7), said township; thence northerly along the range line to the First (1st) Standard Parallel North; thence westerly along the First (1st) Standard Parallel North to the southeast corner of Township six (6) North, Range thirteen (13) West; thence northerly along the range line to the northeast corner of Section thirteen (13), said township; thence westerly along the section line to the northwest corner of Section thirteen (13), Township six (6) North, Range fourteen (14) West; thence northerly along the section line to the northeast corner of Section two (2), said township; thence westerly along the township line to the northwest corner of Section four (4), said township; thence northerly along the section line to the northeast corner of Section five (5), Township seven (7) North, Range fourteen (14) West; thence westerly along the township line to the northwest corner of fractional Section one (1), Township seven (7) North, Range seventeen (17) West; thence northerly along the section line to the intersection with the southern boundary of the rancho La Liebre; thence northwesterly along the boundaries of the ranches La Liebre and Los Alamos y Agua Caliente to the township line between Townships eight (8) and nine (9) North; thence

westerly along said township line to the southeast corner of Township nine (9) North, Range twenty-two (22) West; thence northerly along the township line to the northeast corner of said township; thence westerly along the township line to the intersection with the southern boundary of the rancho Cuyama; thence westerly and northwesterly along the southern boundaries of the ranches Cuyama to the Eighth (8th) Standard Parallel South; thence westerly along said parallel to the northwest corner of fractional Township twelve (12) North, Range thirty (30) West, the place of beginning.

Excepting from the force and effect of this proclamation all irrigation rights and lands lawfully acquired therefor and all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired; and all mining claims duly located and held according to the laws of the United States and rules and regulations not in conflict therewith;

Provided, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler, or claimant continues to comply with the law under which the entry, filing, settlement, or location was made.

Warning is hereby expressly given to all persons not to enter or make settlement upon the tract of land reserved by this proclamation.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 29th day of June, in the year of our Lord one thousand eight hundred and ninety-eight, and of the Independence of the United States the one hundred and twenty-second.

WILLIAM McKINLEY.

By the President:

J.B. MOORE,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas satisfactory proof has been given to me that no tonnage or light-house dues or any equivalent tax or taxes whatever are imposed upon vessels of the United States in the port of Copenhagen, in the Kingdom of Denmark;

Now, therefore, I, William McKinley, President of the United States of America, by virtue of the authority vested in me by section eleven of the act of Congress, entitled "An Act to abolish certain fees for official services to American vessels, and to amend the laws relating to shipping commissioners, seamen, and owners of vessels, and for other purposes," approved June nineteenth, one thousand eight hundred and eighty-six, and in virtue of the further act amendatory thereof, entitled "An act to amend the laws relating to navigation and for other purposes," approved April four, one thousand eight hundred and eighty-eight, do hereby declare and proclaim that from and after the date of this, my Proclamation, shall be suspended the collection of the whole of the tonnage duty which is imposed by said section eleven of the act approved June nineteenth, one thousand eight hundred and eighty-six, upon vessels entered in the ports of the United States directly from the port of Copenhagen, in the Kingdom of Denmark.

Provided, that there shall be excluded from the benefits of the suspension hereby declared and proclaimed, the vessels of any foreign country in whose ports the fees or dues of any kind or nature imposed on vessels of the United States, or the import or export duties on their cargoes, are in excess of the fees, dues, or duties imposed on the vessels of such country or on the cargoes of such vessels; but this proviso shall not be held to be inconsistent

with the special regulation by foreign countries of duties and other charges on their own vessels, and the cargoes thereof, engaged in their coasting trade, or with the existence between such countries and other States of reciprocal stipulations founded on special conditions and equivalents, and thus not within the treatment of American vessels under the most favored nation clause in treaties between the United States and such countries.

And the suspension hereby declared and proclaimed shall continue so long as the reciprocal exemption of vessels belonging to citizens of the United States and their cargoes, shall be continued in the said port of Copenhagen and no longer.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 19th day of July, in the year of our Lord one thousand eight hundred and ninety-eight, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
WILLIAM R. DAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas in the opening of the Cherokee Outlet, pursuant to section ten of the act of Congress, approved March third, eighteen hundred and ninety-

three, the lands known as the Eastern Middle, and Western Saline Reserves, were excepted from settlement in view of three leases made by the Cherokee Nation prior to March third, eighteen hundred and ninety-three, under authority of the act of Congress, approved August seventh, eighteen hundred and eighty-two;

And whereas it appears that said leases were never approved as provided by law;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by section ten of said act of March third, eighteen hundred and ninety-three, do hereby declare and make known that all the lands in said saline reserves, as described in a proclamation dated August nineteenth, eighteen hundred and ninety-three, are hereby restored to the public domain and will be disposed of under the laws of the United States relating to public lands in said Cherokee Outlet, subject to the policy of the Government in disposing of saline lands.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 27th day of July, in the year of our Lord one thousand eight hundred and ninety-eight, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
WILLIAM R. DAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it is provided by section twenty-four of the act of Congress, approved March third, eighteen hundred and ninety-one, entitled "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas it is further provided by the act of Congress, approved June fourth, eighteen hundred and ninety-seven, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June thirtieth, eighteen hundred and ninety-eight, and for other purposes," that "The President is hereby authorized at any time to modify any Executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

And whereas, the public lands in the States of South Dakota and Wyoming, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by the aforesaid acts of Congress, do hereby make known and proclaim that the boundary lines of the Forest Reservation in the State of South Dakota, known as "The Black Hills Forest Reserve," created by proclamation of February twenty-second, eighteen hundred and ninety-seven, are hereby so changed and enlarged as to include all those certain tracts, pieces or parcels of land lying and being situate in the States of South Dakota and Wyoming, and within the boundaries particularly described as follows, to wit:

Beginning at the southeast corner of Township five (5) South, Range five (5) East, Black Hills Meridian, South Dakota; thence northerly to the northeast corner of said township; thence easterly to the southeast corner of Section thirty-three (33), Township four (4) South, Range six (6) East; thence northerly to the southeast corner of Section nine (9), said township; thence easterly to the southeast corner of Section twelve (12), said township; thence northerly along the range line to the northeast corner of Section thirteen (13), Township one (1) North, Range six (6) East; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of Section two (2), said township; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of Section twenty-two (22), Township two (2) North, Range six (6) East; thence westerly to the southeast corner of Section seventeen (17), said township; thence northerly to the northeast corner of said section; thence westerly to the northwest corner of said section; thence northerly to the southeast corner of Section thirty (30), Township three (3) North, Range six (6) East; thence easterly to the southeast corner of Section twenty-seven (27), said township; thence northerly to the northeast corner of Section twenty-two (22), said township; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of Section sixteen (16), said township; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of Section eight (8), said township; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of Section nineteen (19), Township four (4) North, Range six (6) East; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of Section twelve (12), Township four (4) North, Range five (5) East; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of Section thirty-five (35), Township five (5) North, Range five (5) East; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of Section twenty-seven (27), said township; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of Section twenty-one (21), said township; thence westerly to the southeast corner of Section thirteen (13), Township five (5) North, Range four (4) East; thence northerly to the northeast corner of said section; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of Section two (2), said township; thence westerly to the

northwest corner of Section four (4), said township; thence southerly to the southwest corner of said section; thence westerly to the southeast corner of Section two (2), Township five (5) North, Range three (3) East; thence northerly to the northeast corner of said section; thence westerly to the southeast corner of Section thirty-five (35), Township six (6) North, Range two (2) East; thence northerly to the northeast corner of Section twenty-six (26) said township; thence westerly to the southeast corner of Section twenty-four (24), Township six (6) North, Range one (1) East; thence northerly to the northeast corner of said section; thence westerly along the section line to its intersection with the boundary line between the States of South Dakota and Wyoming; thence southerly along said State boundary line to its intersection with the section line between Sections twenty-eight (28) and thirty-three (33), Township fifty-two (52) North, Range sixty (60) West, Sixth (6th) Principal Meridian, Wyoming; thence westerly to the northwest corner of Section thirty-six (36), Township fifty-two (52) North, Range sixty-one (61) West; thence southerly along the section line to its intersection with the Twelfth (12th) Standard Parallel North; thence easterly along said parallel to its intersection with the boundary line between the States of Wyoming and South Dakota; thence southerly along said State boundary line to its intersection with the section line between Sections eighteen (18) and nineteen (19), Township three (3) South, Range one (1) East, Black Hills Meridian, South Dakota; thence easterly to the northwest corner of Section twenty-two (22), said township, thence southerly to the southwest corner of Section thirty-four (34), said township; thence easterly to the southeast corner of said township; thence southerly to the southwest corner of Section thirty (30), Township four (4) South, Range two (2) East; thence easterly to the southeast corner of Section twenty-seven (27), said township; thence southerly to the southwest corner of Section eleven (11), Township five (5) South, Range two (2) East; thence easterly to the northwest corner of Section eighteen (18), Township five (5) South, Range four (4) East; thence southerly to the southwest corner of said township; thence easterly to the southeast corner of Township five (5) South, Range five (5) East, the place of beginning; excepting and excluding from reservation all those certain tracts, pieces or parcels of land lying and being situate within the boundaries particularly described as follows, to wit:

Beginning at the northeast corner of Section twenty-four (24), Township five (5) North, Range three (3) East, Black Hills Meridian; thence westerly to the northwest corner of Section nineteen (19), said township; thence southerly to the northwest corner of Section thirty-one (31), said township; thence westerly to the northwest corner of Section thirty-six (36), Township five (5) North, Range two (2) East; thence southerly to the southwest corner of Section thirteen (13), Township four (4) North, Range two (2) East; thence easterly to the southeast corner of Section fifteen (15), Township four (4) North, Range three (3) East; thence northerly to the southwest corner of Section two (2), said township; thence easterly to the southeast corner of said section; thence northerly to the northeast corner of said section; thence easterly to the southeast corner of Township five (5) North, Range three (3) East; thence northerly to the northeast corner of Section twenty-four (24), said township, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired; and all mining claims duly located and held according to the laws of the United States and rules and regulations not in conflict therewith; *Provided*, That this exception shall not continue to apply to any particular tract of land unless the entryman, settler, or claimant continues to comply with the law under which the entry, filing, settlement, or location was made.

Warning is hereby expressly given to all persons not to enter or make settlement upon the tract of land reserved by this proclamation.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 19th day of September, in the year of our Lord, one thousand eight hundred and ninety-eight, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
ALVEY A. ADEE,
Acting Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES.

A PROCLAMATION.

Whereas by joint resolution "to provide for annexing the Hawaiian Islands to the United States," approved July 7, 1898, the cession by the Government of the Republic of Hawaii to the United States of America, of all rights of sovereignty of whatsoever kind in and over the Hawaiian Islands and their dependencies, and the transfer to the United States of the absolute fee and ownership of all public, Government, or crown lands, public buildings, or edifices, ports, harbors, military equipment, and all other public property of every kind and description belonging to the Government of the Hawaiian Islands, was duly accepted, ratified, and confirmed, and the said Hawaiian Islands and their dependencies annexed as a part of the territory of the United States and made subject to the sovereign dominion thereof, and all and singular the property and rights hereinbefore mentioned vested in the United States of America; and

Whereas it was further provided in said resolution that the existing laws of the United States relative to public lands shall not apply to such lands in the Hawaiian Islands, but the Congress of the United States shall enact special laws for their management and disposition; and

Whereas it is deemed necessary in the public interests that certain lots and plats of land in the city of Honolulu be immediately reserved for naval purposes;

Now, therefore, I, William McKinley, President of the United States, by virtue of the authority in me vested, do hereby declare, proclaim, and make

known that the following described lots or plats of land be and the same are hereby reserved for naval purposes until such time as the Congress of the United States shall otherwise direct, to wit:

1st. The water front lying between the Bishop Estate and the line of Richards Street including the site of prospective wharves, slips, and their approaches.

2d. The blocks of land embracing lots No. 86 to 91, 100 to 131, including Mililani Street to the intersection of Halekauwali Street; and the Government water lots lying between the Bishop Estate and Punchbowl and Allen Streets.

In witness whereof I have hereunto set my hand, and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 2d day of November, in the year one thousand eight hundred and ninety-eight, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

HAWAIIAN CABLE CONCESSION.

To all to whom these presents shall come; greeting:

Know ye, that: Whereas, by an Indenture made the 2d day of July, in the year of our Lord one thousand eight hundred and ninety-eight between Sanford B. Dole, President of the Republic of Hawaii for and in behalf of

the Hawaiian Government of the one part and the Pacific Cable Company, a corporation organized and existing under the laws of the State of New York of the United States of America, of the other part, there was granted, conceded, and confirmed unto the party of the second part and its successors and assigns the right and privilege to lay, construct, land, maintain and operate telegraphic and magnetic lines or cables from a point or points on the Pacific Coast of the United States to a suitable landing place or places to be selected by the party of the second part in the Hawaiian Islands with terminus at Honolulu, Island of Oahu, and from and beyond the Hawaiian Islands to Japan and any islands or places necessary for stations for such cables between the Hawaiian Islands and Japan that lie north of the tenth degree or parallel of north latitude in the North Pacific Ocean, as an exclusive right and privilege together with an exemption from duties, charges, and taxes for and during the term of twenty years from the date expressed in said Indenture, to wit, the 21st day of June, A.D. 1898,—said right, privilege, and exemption being subject to the terms and conditions set forth in said Indenture;

And whereas among said terms and conditions it is declared and agreed by said Indenture that the party of the second part within two years from the approval (within eighteen months from the date of said contract) of an act by the Congress of the United States authorizing the party of the second part to construct and operate a submarine cable line between the United States and the Hawaiian Islands shall construct, lay in proper working order, and establish a submarine telegraph cable from a point or points on the Pacific coast of the United States to a landing place or places in the Hawaiian Islands with terminus at Honolulu, Island of Oahu, according to the specifications of said Indenture, and further, within three years from the approval of such act by the Congress of the United States, shall in like manner construct, lay in proper working order, and establish a submarine telegraph cable from a point or points at or near said Honolulu to Japan;

And whereas it is provided by said Indenture that the contract therein made and set forth shall not take effect, if at any time within six months from the date thereof, to wit, the 2d day of July, A.D., 1898, "the United States State Department" shall express its disapproval thereof;

And whereas, pursuant to a Joint Resolution of the Senate and House of Representatives of the United States of America in Congress assembled, approved July 7, 1898, to provide for annexing the Hawaiian Islands to the United States, the sovereignty of the said Hawaiian Islands was yielded up to the United States on the 12th day of August, A.D., 1898, becoming thenceforth vested in the United States of America.

And whereas, in view of the provisions of said Joint Resolution for the determination by the Congress of the United States of all matters of municipal legislation concerning the Hawaiian Islands, and because the subject matter and provisions of said Indenture are deemed to be proper subjects for the consideration and determination of the Congress of the United States, it is deemed expedient and necessary that the Congress of the United States consider and adopt such legislation, especially in regard to grants and contractual obligations to be controlled by and rest upon the United States of America as vested with sovereignty over said Hawaiian Islands, without let or hindrance by reason of any action of the Government of the Republic of Hawaii in respect to such grants and contractual obligations initiated by the said Government of the Republic of Hawaii prior to and incomplete at the time of the yielding up of the sovereignty of the Hawaiian Islands to the United States;

Now, therefore, I, John Hay, Secretary of State of the United States, do hereby express on the part of "the United States State Department" its disapproval of the contract stipulated in the said Indenture to the end that the same shall not take effect.

[SEAL.]

Given under my hand and the seal of the Department of State of the United States, in the city of Washington, D.C., this thirty-first day of December in the year of our Lord one thousand eight hundred and ninety-eight.

JOHN HAY.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it is provided by section twenty-four of the act of Congress, approved March third, eighteen hundred and ninety-one, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas it is further provided by the act of Congress, approved June fourth, eighteen hundred and ninety-seven, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June thirtieth, eighteen hundred and ninety-eight, and for other purposes," that "The President is hereby authorized at any time to modify any executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

And whereas the public lands in the State of California, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by the aforesaid acts of Congress, do hereby make known and proclaim that the boundary lines of the Forest Reservation in the State of California, known as "The Trabuco Cañon Forest Reserve," created by proclamation of February twenty-fifth, eighteen hundred and ninety-three, are hereby so changed and enlarged as to include all those certain tracts, pieces or parcels of land lying and being situate in

the State of California, and within the boundaries particularly described as follows, to wit:

Beginning at the northeast corner of Section thirteen (13), Township five (5) South, Range six (6) West, San Bernardino Base and Meridian, California; thence westerly along the section line to the southeast corner of Section nine (9), said township; thence northerly along the section line to the northeast corner of Section four (4), said township; thence westerly along the township line to the northwest corner of Section three (3), Township five (5) South, Range seven (7) West; thence southerly along the section line to the southwest corner of Section thirty-four (34), said township; thence easterly along the township line to the southeast corner of said township; thence southerly along the range line between Ranges six (6) and seven (7) West, to its intersection with the northern boundary of the Rancho Mission Viejo or La Paz; thence along the northern and eastern boundary of said rancho to its intersection with the northern boundary of the Rancho Santa Margarita y Las Flores; thence along the northern boundary of said rancho to its intersection with the range line between Ranges four (4) and five (5) West; thence northerly along said range line to its intersection with the southern boundary of the Rancho Santa Rosa; thence in a northwesterly and northeasterly direction along the southern and western boundary of said rancho to its intersection with the township line between Townships six (6) and seven (7) South; thence westerly along said township line to the southeast corner of Township six (6) South, Range six (6) West; thence northerly along the range line to the northeast corner of Section thirteen (13), Township five (5) South, Range six (6) West, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired; *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler, or claimant continues to comply with the law under which the entry, filing, or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 30th day of January, in the year of our Lord one thousand eight hundred and ninety-nine, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas satisfactory proof has been given to me by the Government of Mexico that no discriminating duties of tonnage or imposts are imposed or levied in the ports of Mexico upon vessels wholly belonging to citizens of the United States, or upon the produce, manufactures, or merchandise imported in the same from the United States, or from any foreign country:

Now, therefore, I, William McKinley, President of the United States of America, by virtue of the authority vested in me by section four thousand two hundred and twenty-eight of the Revised Statutes of the United States, do hereby declare and proclaim that, from and after the date of this, my proclamation, so long as vessels of the United States and their cargoes shall

be exempt from discriminating duties as aforesaid, any such duties on Mexican vessels entering the ports of the United States, or on the produce, manufactures, or merchandise imported in such vessels, shall be suspended and discontinued, and no longer.

In testimony whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, the 9th day of February, in the year of our Lord one thousand eight hundred and ninety-nine, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas it is provided by section twenty-four of the act of Congress, approved March third, eighteen hundred and ninety-one, entitled "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas the public lands in the State of Montana, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as public reservations;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there are hereby reserved from entry or settlement and set apart as Public Reservations all those certain tracts, pieces, or parcels of land lying and being situate in the State of Montana and particularly described as follows, to wit:

Sections fourteen (14), twenty-four (24), twenty-six (26), and thirty-six (36), Township three (3) South, Range five (5) East; Sections two (2), twelve (12), fourteen (14), twenty-four (24), twenty-six (26), and thirty-six (36), Township four (4) South, Range five (5) East; Sections two (2), twelve (12), fourteen (14), and twenty-four (24), Township five (5) South, Range five (5) East; Sections fourteen (14), sixteen (16), eighteen (18), twenty (20), twenty-two (22), twenty-four (24), twenty-six (26), twenty-eight (28), thirty (30), thirty-two (32), thirty-four (34), and thirty-six (36), Township three (3) South, Range six (6) East; Sections two (2), four (4), six (6), eight (8), ten (10), twelve (12), fourteen (14), sixteen (16), eighteen (18), twenty (20), twenty-two (22), twenty-four (24), twenty-six (26), twenty-eight (28), thirty (30), thirty-two (32), thirty-four (34), and thirty-six (36), Township four (4) South, Range six (6) East; Sections two (2), four (4), six (6), eight (8), ten (10), twelve (12), fourteen (14), sixteen (16), eighteen (18), twenty (20), twenty-two (22), and twenty-four (24), Township five (5) South, Range six (6) East; Sections eighteen (18), and thirty (30), Township three (3) South, Range seven (7) East; Sections six (6), eighteen (18), and thirty (30), Township four (4) South, Range seven (7) East; and Sections six (6) and eighteen (18), Township five (5) South, Range seven (7) East, Principal Meridian, Montana.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has

not expired; *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler, or claimant continues to comply with the law under which the entry, filing, or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tracts of land reserved by this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 10th day of February, in the year of our Lord one thousand eight hundred and ninety-nine, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it is provided by section twenty-four of the act of Congress, approved March third, eighteen hundred and ninety-one, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by

public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas the public lands in the State of Utah, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a Public Reservation all those certain tracts, pieces or parcels of land lying and being situate in the State of Utah and within the boundaries particularly described as follows, to wit:

Beginning at the northeast corner of Section twenty-four (24), Township twenty-four (24) South, Range two (2) East, Salt Lake Base and Meridian, Utah; thence southerly along the range line to the northeast corner of Section thirteen (13), Township twenty-five (25) South, Range two (2) East; thence easterly along the section line to the northeast corner of Section eighteen (18), Township twenty-five (25) South, Range three (3) East; thence southerly along the section line to the Fifth (5th) Standard Parallel South; thence westerly along said parallel to the northeast corner of Township twenty-six (26) South, Range two (2) East; thence southerly along the range line to the southeast corner of said township; thence westerly along the township line to the southwest corner of Section thirty-five (35), Township twenty-six (26) South, Range one (1) East; thence northerly along the section line to the Fifth (5th) Standard Parallel South; thence easterly along said parallel to the southwest corner of Township twenty-five (25) South, Range two (2) East; thence northerly along the range line to the northwest corner of Section nineteen (19), Township twenty-four (24) South, Range two (2) East; thence easterly along the section line to the northeast corner of Section twenty-four (24), said township, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or

covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired; *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing, or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 10th day of February, in the year of our Lord one thousand eight hundred and ninety-nine, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas, it is provided by section twenty-four of the act of Congress, approved March third, eighteen hundred and ninety-one, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State

or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, the public lands in the Territory of New Mexico, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a Public Reservation all those certain tracts, pieces or parcels of land lying and being situate in the Territory of New Mexico and within the boundaries particularly described as follows, to-wit:

Beginning at a point on the boundary line between New Mexico and Arizona where it is intersected by the north line of Township five (5) South, Range twenty-one (21) West, New Mexico Principal Meridian, New Mexico; thence easterly along the township line to the northeast corner of Township five (5) South, Range sixteen (16) West; thence southerly along the range line between Ranges fifteen (15) and sixteen (16) West, to the southeast corner of Township eight (8) South, Range sixteen (16) West; thence easterly along the township line to the northeast corner of Township nine (9) South, Range fifteen (15) West; thence southerly along the range line to the southeast corner of said township; thence easterly along the township line to the northeast corner of Township ten (10) South, Range ten (10) West; thence southerly along the First Guide Meridian West, between Ranges nine (9) and ten (10) West, to its intersection with the Third (3rd) Standard Parallel South, between Townships fifteen (15) and sixteen (16) South; thence westerly along the said Third (3rd) Standard Parallel South to the southwest corner of Township fifteen (15) South, Range sixteen (16) West; thence northerly along the range line to the northwest corner of said township; thence westerly along the township line to the northeast corner of Township fifteen (15) South, Range nineteen (19) West; thence southerly

along the range line to its intersection with the Third (3rd) Standard Parallel South; thence westerly along the Third (3rd) Standard Parallel South to its intersection with the boundary line between New Mexico and Arizona; thence northerly along said boundary line to the point where it intersects the north line of Township five (5) South, Range twenty-one (21) West, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired; *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this second day of March, in the year of our Lord one thousand eight hundred and ninety-nine, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES.

A PROCLAMATION.

Whereas by a proclamation of the President of the United States, dated the second day of December, eighteen hundred and ninety one, upon proof then appearing satisfactory that no tonnage or lighthouse dues or other equivalent tax or taxes were imposed upon American vessels entering the ports of the Island of Tobago, one of the British West India Islands, and that vessels belonging to the United States of America and their cargoes were not required in the ports of the said Island of Tobago to pay any fee or due of any kind or nature, or any import due higher than was payable by vessels from ports or places in the said Island of Tobago, or their cargoes, in the United States, the President did therefore declare and proclaim, from and after the date of his said proclamation of December second, eighteen hundred and ninety one, the suspension of the collection of the whole of the duty of three cents per ton, not to exceed fifteen cents per ton per annum, imposed upon vessels entered in the ports of the United States from any of the ports of the Island of Tobago by section 11 of the act of Congress approved June nineteenth, eighteen hundred and eighty six, entitled "An act to abolish certain fees for official services to American vessels and to amend the laws relating to shipping commissioners, seamen, and owners of vessels and for other purposes."

And whereas the President did further declare and proclaim in his proclamation of December second, eighteen hundred and ninety one, that the said suspension should continue so long as the reciprocal exemption of vessels belonging to citizens of the United States and their cargoes should be continued in the said ports of the Island of Tobago and no longer;

And whereas it now appears upon satisfactory proof that tonnage or lighthouse dues, or a tax or taxes equivalent thereto, are in fact imposed upon American vessels and their cargoes entered in ports of the Island of Tobago higher and other than those imposed upon vessels and their cargoes entered in ports of the Island of Tobago, or their cargoes, entered in ports of the United States, so that said proclamation of December second, eighteen hundred and ninety one, in its operation and effect contravenes the meaning and intent of said section 11 of the act of Congress approved June nineteenth, eighteen hundred and eighty-six;

Now, therefore, I, William McKinley, President of the United States of America, by virtue of the aforesaid section 11 of the act aforesaid, as well as in pursuance of the terms of said proclamation itself, do hereby revoke the said proclamation of December second, eighteen hundred and ninety-one suspending the collection of the whole of the duty of three cents per ton, not to exceed fifteen cents per ton per annum (which is imposed by the aforesaid section of said act) upon vessels entered in the ports of the United States from any of the ports of the Island of Tobago; this revocation of said proclamation to take effect on and after the date of this my proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 13th day of March, in the year of our Lord one thousand eight hundred and ninety-nine, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES.

A PROCLAMATION.

Whereas by a proclamation of the President of the United States, dated April seventh, eighteen hundred and eighty-five upon proof then appearing satisfactory that upon vessels of the United States arriving at the Island of Trinidad, British West Indies, no due was imposed by the ton as tonnage or as light money and that no other equivalent tax on vessels of the United

States was imposed at said island by the British Government, the President did declare and proclaim from and after the date of his said proclamation of April seventh, eighteen hundred and eighty-five, the suspension of the collection of the tonnage duties of three cents per ton, not to exceed fifteen cents per ton per annum, imposed upon vessels entered in ports of the United States from any of the ports of the Island of Trinidad by section 14 of the act of Congress approved June twenty-six, eighteen hundred and eighty-four, entitled "An act to remove certain burdens on the American merchant marine and encourage the American foreign carrying trade and for other purposes;"

And whereas it now appears upon satisfactory proof that tonnage or light-house dues, or a tax or taxes equivalent thereto, are in fact imposed upon American vessels and their cargoes entered in ports of the Island of Trinidad higher and other than those imposed upon vessels from ports in the Island of Trinidad or their cargoes entered in ports of the United States, so that said proclamation of April seventh, eighteen hundred and eighty-five, in its operation and effect contravenes the meaning and intent of section 14 of the act of Congress approved June twenty-six, eighteen hundred and eighty-four, as amended by section 11 of the act of Congress approved June nineteenth, eighteen hundred and eighty-six, entitled "An act to abolish certain fees for official services to American vessels and to amend the laws relating to shipping commissioners, seamen, and owners of vessels and for other purposes;"

Now, therefore, I, William McKinley, President of the United States of America, by virtue of the aforesaid section 14 of the act of Congress approved June twenty-six, eighteen hundred and eighty-four as amended by the aforesaid section 11 of the act approved June nineteenth, eighteen hundred and eighty-six, do hereby revoke the said proclamation of April seventh, eighteen hundred and eighty-five, suspending the collection of the whole of the duty of three cents per ton, not to exceed fifteen cents per ton per annum (which is imposed by the aforesaid sections of said acts), upon vessels entered in the ports of the United States from any of the ports of the Island of Trinidad; this revocation of said proclamation to take effect on and after the date of this my proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 13th day of March, in the year of our Lord one thousand eight hundred and ninety-nine, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES.

A PROCLAMATION.

Whereas, it is deemed necessary in the public interests that certain lands lying to the eastward of the city of San Juan, in Puerto Rico, be immediately reserved for naval purposes;

Now, therefore, I, William McKinley, President of the United States, by virtue of the authority in me vested, do hereby, declare, proclaim, and make known that the following-described lands be and the same are hereby reserved for naval purposes until such time as the Congress of the United States shall otherwise direct, to wit:

1st. The public land, natural, reclaimed, partly reclaimed, or which may be reclaimed, lying south of the Caguas Road, shown on the U.S. Hydrographic Map No. 1745 of July, 1898, and for 250 feet north of said Caguas Road, to be bounded on the west by a true north and south line passing through the eastern corner of the railway station shown on said

map, on the south by the shore of the harbor, and to extend east 2,400 feet, more or less, to include 80 acres.

2nd. The entire island lying to the southward of the above-described land, and described on the U.S. Hydrographic Map No. 1745, of July, 1898, as Isla Grande, or Manglar.

The Military Governor of the Island of Puerto Rico will make this transfer through the representative of the Navy, the Commandant of the United States Naval Station, San Juan, Puerto Rico, who will present this proclamation.

March 29, 1899.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas, it is provided by section twenty-four of the act of Congress, approved March third, eighteen hundred and ninety-one, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, the public lands in the State of California, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a Public Reservation all those certain tracts, pieces or parcels of land lying and being situate in the State of California and particularly described as follows, to wit:

Townships eleven (11), twelve (12) and thirteen (13) North, Range sixteen (16) East, Mount Diablo Base and Meridian, California; Townships eleven (11), twelve (12) and thirteen (13) North, Range seventeen (17) East; and so much of Township eleven (11) North, Range eighteen (18) East, as lies west of the summit of the Sierra Nevada Range of mountains in El Dorado County, California.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired; *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

The reservation hereby established shall be known as The Lake Tahoe Forest Reserve.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 13th day of April, in the year of our Lord one thousand eight hundred and ninety-nine, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES.

A PROCLAMATION.

Whereas, by the provisions of an act approved February 20, 1895, entitled "An act to disapprove the treaty heretofore made with the Southern Ute Indians to be removed to the Territory of Utah, and providing for settling them down in severalty where they may so elect and are qualified and to settle all those not electing to take lands in severalty, on the west forty miles of present reservation and in portions of New Mexico, and for other purposes, and to carry out the provisions of the treaty with said Indians June fifteenth, eighteen hundred and eighty," the agreement made by the commissioners on the part of the United States with the Southern Ute Indians of Colorado bearing date November thirteenth, eighteen hundred and eighty-eight, was annulled and the treaty made with said Indians June fifteenth, eighteen hundred and eighty, was directed to be carried out as therein provided and as further provided by general law for settling Indians in severalty; and

Whereas it was further provided by said act that within six months after the passage thereof, the Secretary of the Interior should cause allotment of land, in severalty, to be made to such of the Southern Ute Indians in Colorado, as might elect and be considered by him qualified to take the

same out of the agricultural lands embraced in their present reservation in Colorado, such allotments to be made in accordance with the provisions of the act of Congress approved June fifteenth, eighteen hundred and eighty, entitled "An act to accept and ratify the agreement submitted by the confederated bands of Ute Indians in Colorado for the sale of their reservation in said State and for other purposes, and to make the necessary appropriations for carrying out the same," and the amendments thereto, as far as applicable, and the treaties theretofore made with said Indians; and

Whereas it was further provided that for the sole and exclusive use of such of said Indians as might not elect or be deemed qualified to take allotments in severalty as provided, there should be set apart and reserved all that portion of their reservation lying west of the range line between ranges thirteen and fourteen west of the New Mexico Principal Meridian, and also all of townships thirty-one and thirty-two of ranges fourteen, fifteen, and sixteen west of the New Mexico Principal Meridian and lying in the Territory of New Mexico, subject to the right of the Government to erect and maintain agency buildings thereon, and to grant rights of way through the same for railroads, irrigation ditches, highways and other necessary purposes; and

Whereas under the provisions of section four of said act it was made the duty of the President of the United States to issue his proclamation declaring the lands within the reservation of said Indians except such portions as might have been allotted or reserved under the provisions of the preceding sections of said act, open to occupancy and settlement, said unallotted and unreserved lands to be and become a part of the public domain of the United States and to become subject to entry, under the desert, homestead, and townsite laws and the laws governing the disposal of coal, mineral, stone and timber lands, but providing that no homestead settler should receive a title to any portion of such lands at less than one dollar and twenty-five cents per acre, and such settlers should be required to make a cash payment of fifty cents per acre at the time filing is made upon any of said lands; and providing that before said lands should be open to public settlement the Secretary of the Interior should cause the improvements belonging to the Indians on the lands then occupied by them to be appraised and sold at public sale to the highest bidder, except improvements on lands allotted to the Indians in accordance with this act;

and providing that no sale of such improvements should be made for less than the appraised value and that the several purchasers of said improvements should, for thirty days after the issuance of the President's proclamation have the preference right of entry of the lands upon which the improvements purchased by them should be situated, but that the said purchase should not exceed one hundred and sixty acres and that the proceeds of such improvements should be paid to the Indians owning the same; and

Whereas it is further provided that the provisions of said act should take effect only upon the acceptance thereof and consent thereto by a majority of all the male adult Indians then located or residing upon the reservation, which acceptance should be at once obtained under such regulations as the Secretary of the Interior might prescribe; and

Whereas allotments have been made as provided for in said act, and all the other terms and considerations as required therein have been complied with, precedent to opening the unallotted and unreserved lands in said reservation to settlement and entry, except the sale of improvements on the NE $\frac{1}{4}$ NW $\frac{1}{4}$, S $\frac{1}{2}$ NW $\frac{1}{4}$ and NW $\frac{1}{4}$ SW $\frac{1}{4}$ Sec. 1, T. 33 N., R. 9 W., belonging to Ignacio, an Indian, but said sale will be immediately ordered and the rights of the purchaser thereof will be protected for thirty days from date of this proclamation, as provided by the act, by instructions to the register and receiver of the local land office having jurisdiction over the same, and as this exception is not considered a bar to the opening of the unallotted and unreserved lands to settlement; and

Whereas I issued a proclamation on the 29th day of March, last, intended to open the lands to settlement and entry as authorized in said act, but as some question has arisen as to the boundaries proclaimed being sufficiently definite to cover the lands intended to be opened,

Now, therefore, I, William McKinley, President of the United States, for the purpose of removing any doubt and making the boundaries of said lands more definite, by virtue of the power in me vested by said act, do hereby issue this, my second proclamation, and do hereby declare and make known that all of the lands embraced in said reservation, saving and excepting the lands reserved for and allotted to said Indians, and the lands reserved for

other purposes in pursuance of the provisions of said act, will, at and after the hour of twelve o'clock noon (mountain standard time) on the 4th day of May, A.D., eighteen hundred and ninety-nine, and not before, be open to settlement and entry under the terms of and subject to all the conditions, limitations, reservations and restrictions contained in said act, and the laws of the United States applicable thereto.

The lands to be opened to settlement and entry are described as lying within the following boundaries: Beginning at the point established by S.S. Gannett, Special Indian Agent, in June, 1897, at the intersection of the 107th meridian and the 37th parallel of latitude; thence north 15 miles along the eastern boundary of the reservation; thence westerly along the north boundary of the Southern Ute Indian Reservation to its intersection with the range line between ranges thirteen and fourteen west of the New Mexico Principal Meridian; thence south fifteen miles on said range line to the south boundary of the State of Colorado; thence easterly along the south boundary of the State of Colorado to the place of beginning.

The survey of the east boundary of the above tract through townships 32, 33, and 34 N., R. 1 W., and of that part of the north boundary in Tps. 34 N., Rs. 1 and 2 W., being in process of correction owing to errors found in said survey, notice is hereby given to all parties who may elect to make entries of lands adjoining the boundary lines subject to correction, that their entries will be at their own risk, and subject to such changes as to the boundaries of the several tracts so entered as may be found necessary in the progress of the correction of the erroneous survey, and that without recourse to the United States for any damage that may arise as the result of the correction survey.

The lands allotted to the Indians are for greater convenience particularly described in the accompanying schedule entitled "Schedule of lands within the Southern Ute Indian Reservation allotted to the Indians and withheld from settlement and entry by proclamation of the President dated April 13, 1899," and which schedule is made a part thereof.

An error having been made in 1873 in the survey and location of the eastern boundary of the reservation hereby opened to settlement and entry whereby certain lands constituting a part of the reservation were

erroneously identified as being outside of the reservation, by reason of which several persons in good faith settled upon said lands under the belief that the same were unappropriated public lands open to settlement, and have since improved and cultivated, and are now residing upon the same with a view to the entry thereof under the public land laws, notice is hereby given that in so far as said persons possess the qualifications required by law, and maintain their said settlement and residence up to the time of the opening herein provided for, they will be considered and treated as having initiated and established a lawful settlement at the very instant at which the lands become open, and as having the superior right and claim to enter said lands, which right must be exercised within three months from the time of said opening.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 13th day of April, in the year of our Lord one thousand eight hundred and ninety-nine, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

SCHEDULE OF LANDS WITHIN THE SOUTHERN UTE INDIAN
RESERVATION ALLOTTED TO THE INDIANS AND WITHHELD
FROM SETTLEMENT AND ENTRY BY PROCLAMATION OF THE
PRESIDENT DATED APRIL 13, 1899.

In Township 32 North, Range 3 West.

Southwest quarter of southwest quarter of section 4; south half of southeast quarter and southeast quarter of southwest quarter of section 5; north half of northeast quarter, east half of northwest quarter, east half of southwest quarter and southwest quarter of southwest quarter of section 8; north half of northwest quarter and southeast quarter of northwest quarter of section 9; southeast quarter of southwest quarter and south half of southeast quarter of section 10; southwest quarter of southwest quarter of section 11; northwest quarter of northwest quarter of section 13; north half of northeast quarter and north half of northwest quarter of section 14; northeast quarter of northeast quarter of section 15; northwest quarter of northwest quarter of section 17; and northeast quarter of northeast quarter of section 18.

In Township 33 North, Range 3 West.

East half of section 3; northeast quarter, south half of northwest quarter and west half of southwest quarter of section 10; south half of southeast quarter and south half of southwest quarter of section 19; east half of northeast quarter, southeast quarter, east half of southwest quarter and southwest quarter of southwest quarter of section 20; northwest quarter and north half of southwest quarter of section 21; west half of northwest quarter of section 28; east half, east half of northwest quarter and northwest quarter of northwest quarter of section 29; north half of northeast quarter and north half of northwest quarter of section 30; and northeast quarter of section 32.

In Township 34 North, Range 3 West.

Southwest quarter of southwest quarter of section 22; northwest quarter of northwest quarter, south half of northwest quarter and southwest quarter of section 27; and north half of northwest quarter, southeast quarter of northwest quarter, southwest quarter of northeast quarter and southeast quarter of section 34.

In Township 32 North, Range 4 West.

Southwest quarter of southeast quarter of section 10; southwest quarter of southwest quarter of section 13; south half of southeast quarter, south half of southwest quarter and northwest quarter of southwest quarter of section 14; west half of northeast quarter, south half of northwest quarter, west half of southeast quarter and southwest quarter of section 15; south half of

section 16; south half of northeast quarter, south half of northwest quarter, north half of southeast quarter and north half of southwest quarter of section 17; south half of northeast quarter, north half of southeast quarter, southeast quarter of northwest quarter and northeast quarter of southwest quarter of section 18; north half and north half of southeast quarter of section 21; north half, north half of southeast quarter and north half of southwest quarter of section 22; north half, north half of southeast quarter and north half of southwest quarter of section 23; and west half of northwest quarter and northwest quarter of southwest quarter of section 24.

In Township 33 North, Range 4 West.

South half of northeast quarter, northwest quarter, north half of southeast quarter, southeast quarter of southeast quarter and northeast quarter of southwest quarter of section 23; south half of section 24; and north half of northeast quarter of section 25.

In Township 34 North, Range 4 West.

All of section 7; all of section 8; north half of section 9; all of section 10; north half, southwest quarter, north half of southeast quarter and southwest quarter of southeast quarter of section 11; northwest quarter and northwest quarter of southwest quarter of section 12; west half of northwest quarter and northwest quarter of southwest quarter of section 13; all of section 14; east half, east half of northwest quarter, and southwest quarter of section 15; south half of southeast quarter of section 16; north half of northeast quarter, north half of northwest quarter, southwest quarter of northwest quarter, and southwest quarter of section 18; west half of section 19; east half of southeast quarter of section 20; east half, east half of northwest quarter, and southwest quarter of section 21; north half of northeast quarter, north half of northwest quarter, southwest quarter of northwest quarter and northwest quarter of southwest quarter of section 22; north half of the northwest quarter of section 28; and northeast quarter of northeast quarter of section 29.

In Township 32 North, Range 5 West.

South half, south half of northeast quarter and south half of northwest quarter of section 9; south half of northwest quarter, and southwest quarter

of section 10; west half of northwest quarter and west half of southwest quarter of section 14; all of section 15; east half, northwest quarter and north half of southwest quarter of section 16; northeast quarter of southeast quarter of section 19; north half of southeast quarter and north half of southwest quarter of section 20; and northeast quarter, south half of northwest quarter, northwest quarter of southeast quarter and north half of southwest quarter of section 21.

In Township 33 North, Range 5 West.

West half of northeast quarter, northwest quarter and northwest quarter of south-west quarter of section 1; east half, east half of northwest quarter, and southwest quarter of section 2; east half of southeast quarter and southwest quarter of southeast quarter of section 3; east half of southeast quarter and southwest quarter of southeast quarter of section 9; northeast quarter, east half of northwest quarter, southwest quarter of northwest quarter, northwest quarter of southeast quarter, and southwest quarter of section 10; northwest quarter of northeast quarter, and northwest quarter of section 11; west half of northwest quarter and west half of southwest quarter of section 15; east half, east half of northwest quarter and east half of southwest quarter of section 16; north half, north half of southeast quarter and north half of southwest quarter of section 21; west half of section 28; east half of section 29; north half of northeast quarter of section 32; and north half of northwest quarter of section 33.

In Township 34 North, Range 5 West.

East half, east half of northwest quarter and south half of southwest quarter of section 12; east half of northeast quarter, northwest quarter of northeast quarter and west half of northwest quarter of section 13; east half of northeast quarter of section 14; west half of section 25; south half of northeast quarter, southeast quarter and east half of southwest quarter of section 26; and east half of section 35.

In Township 32 North, Range 7 West.

West half of northwest quarter, west half of southeast quarter, and southwest quarter of section 3; all of section 4; east half of northeast quarter and east half of southeast quarter of section 5; east half of northeast quarter

and east half of southeast quarter of section 8; all of section 9; west half, west half of northeast quarter, and southeast quarter of section 10; west half, west half of northeast quarter and west half of southeast quarter of section 15; east half, east half of northwest quarter, northwest quarter of northwest quarter and east half of southwest quarter of section 16; northeast quarter of northeast quarter of section 17; northeast quarter of section 21; and northwest quarter of section 22.

In Township 33 North, Range 7 West.

South half of northeast quarter, south half of northwest quarter, and south half of section 1; south half of northeast quarter, and southeast quarter of section 2; northwest quarter of northeast quarter, and northwest quarter of section 4; all of section 5; all of section 6; north half and northeast quarter of southeast quarter of section 7; all of section 8; west half of northeast quarter, west half of southeast quarter, and west half of section 9; east half of section 11; all of section 12; all of section 13; east half of section 14; southwest quarter of southwest quarter of section 15; southeast quarter of northeast quarter, west half of northeast quarter, northwest quarter and south half of section 16; north half, southeast quarter, north half of southwest quarter and southeast quarter of southwest quarter of section 17; east half of northeast quarter, southwest quarter of northeast quarter and north half of southeast quarter of section 18; northeast quarter, and east half of northwest quarter of section 20; north half, southeast quarter, east half of southwest quarter and northwest quarter of southwest quarter of section 21; west half of northwest quarter, and southwest quarter of section 22; east half of section 23; all of section 24; all of section 25; northeast quarter of section 26; west half of section 27; east half, east half of northwest quarter, southwest quarter of northwest quarter, and southwest quarter of section 28; south half of northeast quarter, and southeast quarter of section 29; east half of northeast quarter and east half of southeast quarter of section 32; west half of northeast quarter, west half of southeast quarter, and west half of section 33; south half of northeast quarter, and southeast quarter of section 35; and all of section 36.

In Township 34 North, Range 7 West.

All of section 10; all of section 11; west half of northeast quarter, west half of southeast quarter, and west half of section 12; north half and southwest quarter of section 13; all of section 14; all of section 15; north half, southeast quarter, and east half of southwest quarter of section 21; all of section 22; all of section 23; north half and southwest quarter of section 24; northwest quarter of section 25; north half, west half of southeast quarter, and southwest quarter of section 26; all of section 27; northeast quarter, east half of northwest quarter, east half of southeast quarter, northwest quarter of southeast quarter and northeast quarter of southwest quarter of section 28; east half, and south half of southwest quarter of section 32; all of section 33; north half of northeast quarter, southwest quarter of northeast quarter, northwest quarter and south half of section 34; and west half of northeast quarter, northwest quarter, and west half of southwest quarter of section 35.

In Township 34 North, Range 8 West.

East half, east half of northwest quarter and east half of southwest quarter of section 7; west half and southeast quarter of section 8; west half of section 17; east half of section 18; east half and southwest quarter of section 19; west half of section 20; northwest quarter and south half of section 25; south half of section 26; west half of section 29; east half, east half of northwest quarter and east half of southwest quarter of section 30; all of section 31; west half of northwest quarter and west half of southwest quarter of section 32; north half and southeast quarter of section 35; and all of section 36.

In Township 33 North, Range 9 West.

Southwest quarter of northeast quarter, south half of northwest quarter, southeast quarter, east half of southwest quarter and northwest quarter of southwest quarter of section 2; south half of northeast quarter, southeast quarter of northwest quarter, north half of southeast quarter, southwest quarter of southeast quarter, and southwest quarter of section 3; southeast quarter and south half of southwest quarter of section 4; east half and southwest quarter of section 8; north half of northwest quarter of section 9; west half of southeast quarter, and west half of section 17; east half of southeast quarter, and southwest quarter of section 18; east half of northeast

quarter, northwest quarter, and southwest quarter of southwest quarter of section 19; northwest quarter, and east half of southwest quarter of section 20; west half of section 29; east half, south half of northwest quarter, northwest quarter of northwest quarter, and southwest quarter of section 30; east half, east half of northwest quarter, and southwest quarter of section 31; and west half of northwest quarter of section 32.

In Township 34 North, Range 9 West.

All of sections 12, 13, 24, 25 and 36.

In Township 33 North, Range 10 West.

All of section 1; west half of section 12; west half and southeast quarter of section 13; east half of section 24; and east half of section 25.

In Township 34 North, Range 10 West.

South half of section 13, and all of sections 24, 25 and 36.

In Township 34 North, Range 11 West.

East half of northeast quarter, and southeast quarter of section 7; north half, southeast quarter and east half of southwest quarter of section 8; west half of northwest quarter and west half of southwest quarter of section 9; west half of northeast quarter and east half of northwest quarter of section 17; and west half of section 18.

In Township 33 North, Range 12 West.

West half of northwest quarter, south half of southwest quarter and northwest quarter of southwest quarter of section 4; east half, east half of southwest quarter and southwest quarter of southwest quarter of section 5; northeast quarter, south half of northwest quarter and north half of southwest quarter of section 7; north half of northeast quarter and north half of northwest quarter of section 8; south half of northwest quarter and west half of southwest quarter of section 18; east half and northwest quarter of section 19; east half of section 30; and east half of section 31.

In Township 34 North, Range 12 West.

Southeast quarter and east half of southwest quarter of section 13; southeast quarter of southeast quarter of section 22; east half of northeast quarter, southwest quarter of northeast quarter, southeast quarter of northwest quarter, and south half of section 23; north half, west half of southeast quarter, and southwest quarter of section 24; northwest quarter of northeast quarter and north half of northwest quarter of section 25; north half of northeast quarter, north half of northwest quarter and southwest quarter of northwest quarter of section 26; east half, south half of northwest quarter, and southwest quarter of section 27; southeast quarter of section 28; all of section 33; and north half of northeast quarter, southwest quarter of northeast quarter, northwest quarter, and north half of southwest quarter of section 34.

In Township 33 North, Range 13 West.

Southeast quarter of northeast quarter and east half of southeast quarter of section 12; and east half of northeast quarter, southwest quarter of northeast quarter and east half of southeast quarter of section 13.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it is provided by section twenty-four of the Act of Congress, approved March third, eighteen hundred and ninety-one, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas the public lands in the State of California, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid Act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a Public Reservation all those certain tracts, pieces or parcels of land lying and being situate in the State of California and particularly described as follows, to wit:

Beginning at a point where the northwestern boundary of the rancho Santa Ana intersects the township line between Townships four (4) and five (5) North, Range twenty-three (23) West, San Bernardino Base and Meridian, California; thence westerly along the township line to the southwest corner of Township five (5) North, Range twenty-four (24) West; thence northerly along the range line to the southeast corner of the rancho Los Prietos y Najalayegua; thence in a general northwesterly direction along the southern boundaries of the ranchos Los Prietos y Najalayegua, San Marcos, Tequepis, Lomas de la Purificacion and Nojoqui to the eastern boundary of the rancho Las Cruces; thence in a general southerly direction along the eastern boundary of the said rancho Las Cruces to the northern boundary of the rancho Nuestra Señora del Refugio; thence in a general southeasterly direction along the northern boundaries of the ranchos Nuestra Señora del Refugio, Cañada del Corral, Los Dos Pueblos, La Goleta, Pueblo and Mission Lands of Santa Barbara and the rancho El Rincon (Arellanes) to its most eastern point; thence in a southwesterly direction along the southern boundary of said rancho to the point where it intersects the township line between Townships three (3) and four (4) North, Range twenty-five (25) West; thence easterly along the township line to the western boundary of the rancho Santa Ana; thence northeasterly along the western boundary of said rancho to its intersection with the township line between Townships four (4) and five (5) North, Range twenty-three (23) West, the place of beginning.

Excepting from the force and effect of this Proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or

covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

The reservation hereby established shall be known as The Santa Ynez Forest Reserve.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 2d day of October, in the year of our Lord one thousand eight hundred and ninety-nine, and of the Independence of the United States the one hundred and twenty-fourth,

WILLIAM McKINLEY.

By the President:
DAVID J. HILL,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it is provided by section 13 of the act of Congress of March 3, 1891, entitled "An Act to amend title sixty, chapter three, of the Revised

Statutes of the United States, relating to copyrights," that said act "shall only apply to a citizen or subject of a foreign state or nation when such foreign state or nation permits to citizens of the United States of America the benefit of copyright on substantially the same basis as its own citizens; or when such foreign state or nation is a party to an international agreement which provides for reciprocity in the granting of copyright, by the terms of which agreement the United States of America may, at its pleasure, become a party to such agreement;"

And whereas it is also provided by said section that "the existence of either of the conditions aforesaid shall be determined by the President of the United States by proclamation made from time to time as the purposes of this act may require;"

And whereas satisfactory official assurances have been given that in the Republic of Costa Rica the law permits to citizens of the United States of America the benefit of copyright on substantially the same basis as to the citizens of that Republic:

Now, therefore, I, William McKinley, President of the United States of America, do declare and proclaim that the first of the conditions specified in section 13 of the act of March 3, 1891, now exists and is fulfilled in respect to the citizens of the Republic of Costa Rica.

In testimony whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 19th day of October, one thousand eight hundred and ninety-nine and of the Independence of the United States the one hundred and twenty-fourth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it is provided by section twenty-four of the act of Congress, approved March third, eighteen hundred and ninety-one, entitled "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas it is further provided by the act of Congress, approved June fourth, eighteen hundred and ninety-seven, entitled "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June thirtieth, eighteen hundred and ninety-eight, and for other purposes," that "The President is hereby authorized at any time to modify any executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

And whereas the public lands in the Territory of Arizona, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by the aforesaid acts of Congress, do hereby make known and proclaim that the boundary lines of the Forest Reservation in the Territory of Arizona, known as "The Prescott Forest

Reserve," created by proclamation of May tenth, eighteen hundred and ninety-eight, are hereby so changed and enlarged as to include all those certain tracts, pieces, or parcels of land lying and being situate in the Territory of Arizona, and within the boundaries particularly described as follows, to wit:

Beginning at the northeast corner of township thirteen (13) north, range one (1) west, Gila and Salt River Meridian, Arizona; thence southerly along the Gila and Salt River Meridian to the southeast corner of said township; thence easterly along the Third (3d) Standard Parallel north to the northeast corner of township twelve (12) north, range one (1) east; thence southerly along the range line to the southeast corner of township nine (9) north, range one (1) east; thence westerly along the township line to the southwest corner of township nine (9) north, range one (1) west; thence northerly along the range line to the northwest corner of said township; thence westerly along the township line to the southwest corner of township ten (10) north, range two (2) west; thence northerly along the range line to the southeast corner of township twelve (12) north, range three (3) west; thence westerly along the township line to the southwest corner of said township; thence northerly along the range line to the northwest corner of said township; thence westerly along the township line to the southwest corner of section thirty-five (35), township thirteen (13) north, range four (4) west; thence northerly along the section line to a point due west of the northwest corner of township fourteen (14) north, range three (3) west; thence easterly to the northeast corner of said township; thence southerly along the range line to the northwest corner of section nineteen (19), township thirteen (13) north, range two (2) west; thence easterly to the northeast corner of section twenty-four (24), said township; thence northerly to the northwest corner of township thirteen (13) north, range one (1) west; thence easterly to the northeast corner of said township, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired; *Provided*, that this exception shall not continue to apply to any

particular tract of land unless the entryman, settler, or claimant continues to comply with the law under which the entry, filing, or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 21st day of October, A.D. 1899, and of the Independence of the United States the one hundred and twenty-fourth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES.

THANKSGIVING PROCLAMATION.

A national custom dear to the hearts of the people calls for the setting apart of one day in each year as an occasion of special thanksgiving to Almighty God for the blessings of the preceding year. This honored observance acquires with time a tenderer significance. It enriches domestic life. It summons under the family roof the absent children to glad reunion with those they love.

Seldom has this nation had greater cause for profound thanksgiving. No great pestilence has invaded our Shores. Liberal employment waits upon labor. Abundant crops have rewarded the efforts of the husbandmen.

Increased comforts have come to the home. The national finances have been strengthened, and public credit has been sustained and made firmer. In all branches of industry and trade there has been an unequaled degree of prosperity, while there has been a steady gain in the moral and educational growth of our national character. Churches and schools have flourished. American patriotism has been exalted. Those engaged in maintaining the honor of the flag with such signal success have been in a large degree spared from disaster and disease. An honorable peace has been ratified with a foreign nation with which we were at war, and we are now on friendly relations with every power of earth.

The trust which we have assumed for the benefit of the people of Cuba has been faithfully advanced. There is marked progress toward the restoration of healthy industrial conditions, and under wise sanitary regulations the island has enjoyed unusual exemption from the scourge of fever. The hurricane which swept over our new possession of Puerto Rico, destroying the homes and property of the inhabitants, called forth the instant sympathy of the people of the United States, who were swift to respond with generous aid to the sufferers. While the insurrection still continues in the island of Luzon, business is resuming its activity, and confidence in the good purposes of the United States is being rapidly established throughout the archipelago.

For these reasons and countless others, I, William McKinley, President of the United States, do hereby name Thursday, the thirtieth day of November next, as a day of general thanksgiving and prayer, to be observed as such by all our people on this continent and in our newly acquired islands, as well as those who may be at sea or sojourning in foreign lands; and I advise that on this day religious exercises shall be conducted in the churches or meeting-places of all denominations, in order that in the social features of the day its real significance may not be lost sight of, but fervent prayers may be offered to the Most High for a continuance of the Divine Guidance without which man's efforts are vain, and for Divine consolation to those whose kindred and friends have sacrificed their lives for country.

I recommend also that on this day so far as may be found practicable labor shall cease from its accustomed toil and charity abound toward the sick, the needy and the poor.

In witness whereof I have set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 25th day of October, A.D. 1899, and of the Independence of the United States the one hundred and twenty-fourth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES.

A PROCLAMATION.

Whereas by joint resolution "to provide for annexing the Hawaiian Islands to the United States," approved July 7, 1898, the cession by the Government of the Republic of Hawaii to the United States of America, of all rights of sovereignty of whatsoever kind in and over the Hawaiian Islands and their dependencies, and the transfer to the United States of the absolute fee and ownership of all public, Government, or crown lands, public buildings, or edifices, ports, harbors, military equipment, and all other public property of every kind and description belonging to the Government of the Hawaiian Islands, was duly accepted, ratified, and confirmed, and the said Hawaiian Islands and their dependencies annexed as a part of the territory of the United States and made subject to the sovereign dominion thereof, and all and singular the property and rights hereinbefore mentioned vested in the United States of America; and

Whereas it was further provided in said resolution that the existing laws of the United States relative to public lands shall not apply to such lands in the Hawaiian Islands, but the Congress of the United States shall enact special laws for their management and disposition; and

Whereas it is deemed necessary in the public interests that certain lots and plats of land in the city of Honolulu be immediately reserved for naval purposes;

Now, therefore, I, William McKinley, President of the United States, by virtue of the authority in me vested, do hereby declare, proclaim, and make known that the following described lots or plats of land be and the same are hereby, subject to such legislative action as the Congress of the United States may take with respect thereto, reserved for naval purposes, to wit:

1st. Esplanade lots Nos. 94, 95, 96, 97, 98, and 99. Beginning at the south corner of Richards street and Halekauwila street, which point is S. 30° 25' E., 343.6 feet from the east corner of the Hawaiian Electric Company building and run by the true Meridian:

S. 30° 25' E. 304.50 feet along Halekauwila street.

S. 56° 49' W. 100.12 feet along Mililani street.

N. 30° 25' W. 300.60 feet along Government Lots Nos. 112-100.

N. 54° 34' E. 100.38 feet along Richards street to the initial point. Area, 30,255 square feet.

2d. Esplanade lots Nos. 63, 64, 65, 66, 67, and 68. Beginning at the north corner of Alakea street and Allen street, as shown on Government Survey's Registered Map No. 1867, and running by true bearings:

N. 30° 25' W. 200 feet along the northeast side of Allen street.

N. 59° 35' E. 150 feet along the southeast side of Kilauea street.

S. 30° 25' E. 200 feet along lots 62 and 69.

S. 59° 35' W. 150 feet along the northwest side of Alakea street to the initial point. Area, 30,000 square feet.

3d. Lot at east corner of Mililani and Halekauwila streets. Beginning at the east corner of Halekauwila and Mililani streets, as shown on Government Survey's Registered Map No. 1955, and running by true bearings:

N. 56° 49' E. 110.5 feet along Mililani street.

S. 3° 52' E. 69.5 feet along inner line of Waikahalulu water lots.

S. 56° 49' W. 79.5 feet along Bishop Estate land.

N. 30° 25' W. 60.5 feet along Halekauwila street to the initial point. Area, 5,728 square feet.

4th. A plat of land in Kewalo-uka. Beginning at a point on the upper side of Punchbowl Drive, which is 863 feet south and 2,817 feet east of Puowaina Trig. Station, as shown on Government Survey's Registered Map 1749, and running:

N. 00° 10' W. true 630 feet along Punchbowl Drive.

S. 57° 00' W. true 694 feet along Punchbowl Drive.

Thence along Punchbowl Drive in a northeasterly direction 900 feet; thence due east 840 feet (more or less) to the boundary of the land of Kalawahine; thence along boundary of the land of Kalawahine 1040 feet (more or less) to south angle of said land; thence S. 78° 30' W. true 397 feet (more or less) to Punchbowl Drive:

N. 84° 50' W. true 245 feet along Punchbowl Drive to initial point. Area 20 acres (more or less).

5th. Lots on Punchbowl Slope, Nos. 608, 609, and 610. Beginning at a point on the east side of Magazine street, 351.5 feet above the concrete post marking the east corner of Spencer and Magazine streets, as shown on Government Survey's Registered Map No. 1749, and runs:

N. 18° 10' E. true 150.0 feet along Magazine street.

N. 49° 12' E. true 226.7 feet along Government land.

S. 24° 11' E. true 91.0 feet along Government Road Reserve.

S. 77° 21' E. true 179.5 feet along same.

S. 13° 45' E. true 109.8 feet along Government land to north angle of Gr. 3813 to Dr. Wood.

S. 73° 30' W. true 121.3 feet along Gr. 3814 to H.M. Dow.

S. 76° 15' W. true 250.0 feet along Grs. 3999 and 4000.

N. 71° 50' W. true 102.5 feet along Gr. 4000 to initial point.

Area, 83,588 square feet.

6th. Portion of reef of Kaakaukukui. Beginning at the Government Survey Station known as the "Battery" [delta] from which, Punchbowl [delta] bears N. 48° 18' 30" E. true and the lighthouse vane.

N. 56° 14' W. distant 1608.1 feet and running as follows:

N. 37° 40' W. true 760 feet along on the reef of Kaakaukukui.

S. 39° 00' W. true 3100 feet along the southeast side of main channel to a depth of 20 feet of water (more or less).

S. 9° 25' W. true 987 feet along the reef in about 20 feet of water.

N. 52° 23' E. true 3585 feet along on the reef to a point on the seashore at high-water mark.

N. 35° 00' W. true 182 feet along the shore at high-water mark.

N. 5° 35' W. true 446 feet along Allen street extension to the southeast corner of the Battery wall.

S. 87° 20' W. true 120 feet to the initial point.

Area, 76-25/100 acres.

7th. Punchbowl street from Halekauwila street to Allen street. Beginning at the southwest corner of Halekauwila and Punchbowl streets, as shown on the Government blue print, and running in a westerly direction along the U.S. Naval Reservation 572 feet to Allen street, thence along Allen street 50 feet, thence in an easterly direction along the United States Naval Reservation 480 feet to land belonging to the Bishop Estate, thence 110 feet to the initial point.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 10th day of November, A.D. 1899, and of the Independence of the United States the one hundred and twenty-fourth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it is provided by section 13 of the act of Congress of March 3, 1891, entitled "An act to amend title sixty, chapter three, of the Revised Statutes of the United States, relating to copyrights," that said act "shall only apply to a citizen or subject of a foreign state or nation when such foreign state or nation permits to citizens of the United States of America the benefit of copyright on substantially the same basis as its own citizens; or when such foreign state or nation is a party to an international agreement which provides for reciprocity in the granting of copyright, by the terms of which agreement the United States of America may, at its pleasure, become a party to such agreement;" and

Whereas it is also provided by said section that "the existence of either of the conditions aforesaid shall be determined by the President of the United States by proclamation made from time to time as the purposes of this act may require;" and

Whereas satisfactory official assurances have been given that in the Kingdom of the Netherlands and in the Netherlands' possessions the law permits to citizens of the United States of America the benefit of copyright on substantially the same basis as to subjects of the Netherlands:

Now, therefore, I, William McKinley, President of the United States of America, do declare and proclaim that the first of the conditions specified in section 13 of the act of March 3, 1891, now exists and is fulfilled in respect to the subjects of the Netherlands.

In testimony whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 20th day of November, A.D. 1899, and of the Independence of the United States the one hundred and twenty-fourth.

WILLIAM McKINLEY.

By the President:

JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES.

A PROCLAMATION.

To the People of the United States:

Garret Augustus Hobart, Vice-President of the United States, died at his home in Paterson, New Jersey, at 8:30 o'clock this morning. In him the Nation has lost one of its most illustrious citizens and one of its most faithful servants. His participation in the business life, and the law-making body of his native State was marked by unswerving fidelity and by a high order of talents and attainments; and his too brief career as Vice-President of the United States and President of the Senate exhibited the loftiest qualities of upright and sagacious statesmanship. In the world of affairs he had few equals among his contemporaries. His private character was gentle and noble. He will long be mourned by his friends as a man of singular purity and attractiveness whose sweetness of disposition won all hearts, while his elevated purposes, his unbending integrity and whole-hearted devotion to the public good deserved and acquired universal respect and esteem.

In sorrowing testimony of the loss which has fallen upon the country, I direct that on the day of the funeral the Executive Offices of the United States shall be closed and all posts and stations of the Army and Navy shall display the national flag at half-mast, and that the representatives of the United States in foreign countries shall pay appropriate tribute to the illustrious dead for a period of thirty days.

In witness whereof I have set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 21st day of November, A.D. 1899,
and of the Independence of the United States the one hundred and twenty-
fourth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas The Olympic Forest Reserve, in the State of Washington, was established by proclamation dated February 22d, 1897, under and by virtue of section twenty-four of the act of Congress, approved March 3rd, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," which provides, "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas it is further provided by the act of Congress, approved June 4th, 1897, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30th, 1898, and for other purposes," that "The President is hereby authorized at any time to modify any executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change

the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

Now, therefore, I, William McKinley, President of the United States, by virtue of the power vested in me by the aforesaid act of Congress, approved June 4th, 1897, do hereby make known and proclaim that there are hereby withdrawn and excluded from the aforesaid Olympic Forest Reserve and restored to the public domain all those certain tracts, pieces or parcels of land particularly described as follows, to wit:

Townships twenty-eight (28) north, ranges thirteen (13) and fourteen (14) west, Willamette Base and Meridian, Washington; fractional township twenty-eight (28) north, range fifteen (15) west; sections one (1) to eighteen (18), both inclusive, townships twenty-nine (29) north, ranges three (3), four (4) and five (5) west; sections four (4), five (5), six (6), seven (7) and the north half of section eight (8), township twenty-nine (29) north, range twelve (12) west; all of township twenty-nine (29) north, range thirteen (13) west, except sections thirteen (13), twenty-three (23), twenty-four (24), twenty-five (25) and twenty-six (26); township twenty-nine (29) north, range fourteen (14) west; fractional township twenty-nine (29) north, range fifteen (15) west; sections one (1) to twelve (12), both inclusive, township thirty (30) north, range nine (9) west; sections twenty-seven (27) to thirty-four (34), both inclusive, township thirty (30) north, range ten (10) west; sections twenty-five (25) to thirty-six (36), both inclusive, township thirty (30) north, range eleven (11) west; sections seventeen (17) to thirty-six (36), both inclusive, township thirty (30) north, range twelve (12) west; townships thirty (30) north, ranges thirteen (13) and fourteen (14) west; and township thirty (30) north, range fifteen (15) west.

That the lands hereby restored to the public domain shall be open to settlement from date hereof, but shall not be subject to entry, filing or selection until after ninety days notice by such publication as the Secretary of the Interior may prescribe.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 7th day of April, A.D. 1900, and of the Independence of the United States the one hundred and twenty-fourth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas by section one of the act of July 1, 1892 (27 Stat., 62), entitled "An act to provide for the opening of a part of the Colville Reservation, in the State of Washington, and for other purposes" it is provided:

"That subject to the reservations and allotment of lands in severalty to the individual members of the Indians of the Colville Reservation in the State of Washington herein provided for, all the following described tract or portion of said Colville Reservation, namely: Beginning at a point on the eastern boundary line of the Colville Indian Reservation where the township line between townships thirty-four and thirty-five north, of range thirty-seven east, of the Willamette meridian, if extended west, would intersect the same, said point being in the middle of the channel of the Columbia river, and running thence west parallel with the forty-ninth parallel of latitude to the western boundary line of the said Colville Indian Reservation in the Okanagon river, thence north following the said western boundary line to the said forty-ninth parallel of latitude, thence east along the said forty-ninth parallel of latitude to the northeast corner of the said Colville Indian Reservation, thence south following the eastern boundary of said reservation to the place of beginning, containing by estimation one

million five hundred thousand acres, the same being a portion of the Colville Indian Reservation, created by executive order dated July second, eighteen hundred and seventy-two, be, and is hereby, vacated and restored to the public domain, notwithstanding any executive order or other proceeding whereby the same was set apart as a reservation for any Indians or bands of Indians, and the same shall be open to settlement and entry by the proclamation of the President of the United States and shall be disposed of under the general laws applicable to the disposition of public lands in the State of Washington,"

and

Whereas it is provided by section three of said act,

"That each entry man under the homestead laws shall, within five years from the date of his original entry and before receiving a final certificate for the land covered by his entry, pay to the United States for the land so taken by him in addition to fees provided by law the sum of one dollar and fifty cents per acre, one third of which shall be paid within two years after the date of the original entry; but the rights of honorably discharged Union soldiers and sailors, as defined and described in sections twenty-three hundred and four and twenty-three hundred and five of the Revised Statutes of the United States, shall not be abridged, except as to the sum to be paid as aforesaid,"

and

Whereas by section six of said act it is provided:

"That the land used and occupied for school purposes at what is known as Tonasket school, on Bonaparte creek, and the site of the sawmill, gristmill, and other mill property on said reservation, is hereby reserved from the operation of this act, unless other lands are selected in lieu thereof: *Provided*, That such reserve lands shall not exceed in the aggregate two sections, and must be selected in legal subdivisions conformably to the public surveys, such selection to be made by the Indian Agent of the Colville Agency, under the direction of the Secretary of the Interior and subject to his approval: *Provided, however*, That said Indians may, in lieu of said sites, or either of them, select other lands of equal quantity, for such

purposes, either on the vacated or unvacated portions of said reservation, the same to be designated in legal subdivisions by said Indian Agent, under the direction of and subject to the approval of the Secretary of the Interior, in which case said first-designated tracts shall not be exempt from the operation of this act; such selection to be made and approved within six months after the survey of said lands and the proclamation of the President,"

and

Whereas in a clause in the Indian Appropriation Act of July 1, 1898 (30 Stat., 571), it is provided:

"That the mineral lands only in the Colville Indian Reservation, in the State of Washington, shall be subject to entry under the laws of the United States in relation to the entry of minerals lands: *Provided*, That lands allotted to the Indians or used by the Government for any purpose or by any school shall not be subject to entry under this provision,"

and in another clause that,

"The Indian allotments in severalty provided for in said act shall be selected and completed at the earliest practicable time and not later than six months after the proclamation of the President opening the vacated portion of said reservation to settlement and entry, which proclamation may be issued without awaiting the survey of the unsurveyed lands therein. Said allotments shall be made from lands which shall at the time of the selection thereof be surveyed, excepting that any Indian entitled to allotment under said act who has improvements upon unsurveyed land may select the same for his allotment, whereupon the Secretary of the Interior shall cause the same to be surveyed and allotted to him. At the expiration of six months from the date of the proclamation by the President, and not before, the non-mineral lands within the vacated portion of said reservation which shall not have been allotted to Indians as aforesaid, shall be subject to settlement, entry and disposition under said act of July first, eighteen hundred and ninety-two: *Provided*, That the land used and occupied for school purposes at what is known as Tonasket school, on Bonaparte creek, and the site of the sawmill, gristmill and other mill property on said reservation, are hereby reserved from the operation of this act, unless other lands are selected in

lieu thereof as provided in section six of the aforesaid act of July first, eighteen hundred and ninety-two,"

and

Whereas, all the terms, conditions and considerations required by said acts of July 1, 1892, and July 1, 1898, precedent to the issuance of the Proclamation provided for therein, have been, as I hereby declare, complied with:

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by the statutes hereinbefore mentioned, do hereby declare and make known that all of said lands hereinbefore described, restored by the said act of July 1, 1892, will, at and after the hour of twelve o'clock noon (Pacific standard time) six months from date hereof, to wit: the 10th day of October, nineteen hundred, and not before, be open to settlement and entry under the terms of and subject to all the conditions, limitations, reservations and restrictions contained in the statutes above specified, and the laws of the United States, applicable thereto, saving and excepting such tracts as have been or may be allotted to or reserved or selected for, the Indians, or other purposes, under the laws herein referred to.

Sections sixteen and thirty-six in each township will be subject to such right of the State of Washington thereto as may be ascertained and determined by the land department in the administration of the grant of lands in place to that State for the support of common schools.

The lands which have been allotted to the Indians are for greater convenience particularly described in the accompanying schedule, entitled "Schedule of lands allotted to the Indians in restored portion of Colville Reservation, Washington, and withheld from settlement and entry by proclamation of the President, dated April 10, 1900," and which schedule is made a part hereof.

Notice, moreover, is hereby given that it is by law enacted that at the expiration of six months from the date of the proclamation by the President, and not before, the non-mineral lands within the vacated portion of said reservation which shall not have been allotted to or reserved or selected for

the Indians, or for other purposes, shall be subject to settlement, entry and disposition under said act of July 1, 1892; and all persons are hereby warned from attempting to make settlement on any of said lands prior to the date fixed for the opening hereof.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 10th day of April, A.D. 1900, and of the Independence of the United States the one hundred and twenty-fourth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

SCHEDULE OF LANDS ALLOTTED TO THE INDIANS IN RESTORED PORTION
OF COLVILLE RESERVATION, WASHINGTON, AND WITHHELD FROM
SETTLEMENT AND ENTRY BY PROCLAMATION OF THE PRESIDENT, DATED
APRIL 10, 1900.

Township 35 North, Range 31 East.

A tract of land described as follows: Beginning at a large fir tree blazed on N. side being S.E. Cor. thence due N. 20 chains set post and made a mound thence due west 40 chains set post and made mound thence S. 20 chains set post being S.W. Cor. thence due E. 40 chains to point of beginning, in section 11 or 12.

A tract of land described as follows: Beginning at N.W. Cor. of 198 due W. 40 chains set post being S.E. Cor. thence due N. 20 chains set post thence due W. 40 chains set post thence due S. 20 chains set post thence due E. 40 chains to point of beginning, in section 10 or 11.

A tract of land described as follows: Beginning at a post and mound at N.W. Cor. thence due S. 20 chains set post thence due E. 40 chains set post S.E. Cor. thence due N. 20 chains set post thence due W. 40 chains to point of beginning, in section 6 or 7.

A tract of land described as follows: Beginning at S.W. Cor. of 200 thence due S. 20 chains set post thence due E. 40 chains set post thence due N. 20 chains, being N.E. Cor.

thence due W. 40 chains to point of beginning, in section 6 or 7.

A tract of land described as follows: Beginning at S.E. Cor. of 201 thence due S. 40 chains being S.W. Cor. thence due E. 40 chains set post thence due N. 20 chains thence due W. 40 chains set post thence due S. 20 chains to point of beginning, in section 7 or 8.

Township 35 North, Range 32 East.

A tract of land described as follows: Set post and made mound for N.E. Cor. thence due S. 20 chains set post thence due W. 40 chains set post and made mound thence due N. 20 chains set post made a mound thence due E. 40 chains to point of beginning, in section 7 or 8.

Township 35 North, Range 36 East.

SE $\frac{1}{4}$, Sec. 24; NE $\frac{1}{4}$ NW $\frac{1}{4}$, NW $\frac{1}{4}$ NE $\frac{1}{4}$, Sec. 25.

Township 35 North, Range 37 East.

E $\frac{1}{2}$ SE $\frac{1}{4}$, Sec. 9; lots 3, 4 and 5 of Sec. 10; lots 1 and 2 of Sec. 15; NE $\frac{1}{4}$ SW $\frac{1}{4}$ and lots 1, 2, 3, 4, 5 and 6 of Sec. 16; E $\frac{1}{2}$ NE $\frac{1}{4}$, of Sec. 19; W $\frac{1}{2}$ NW $\frac{1}{4}$, W $\frac{1}{2}$ SW $\frac{1}{4}$, SE $\frac{1}{4}$ SW $\frac{1}{4}$ and lots 2, 3 and 4 of Sec. 20; NW $\frac{1}{4}$, W $\frac{1}{2}$ SW $\frac{1}{4}$ and lots 1, 2 and 4 of Sec. 29; E. NE $\frac{1}{4}$, NW $\frac{1}{4}$ and S. $\frac{1}{2}$ Sec. 30; NE $\frac{1}{4}$ and lots 1 and 2 of Sec. 31; NE $\frac{1}{4}$ NW $\frac{1}{4}$, lots 1, 2, 3 and 4 of Sec. 32.

Township 36 North, Range 28 East.

A tract of land described as follows: Beginning at a mound and stake run due north 20 chains thence due west 40 chains set post thence due S. 20 chains set post thence due E. 40 chains to point of beginning.

A tract of land described as follows: Beginning at NE Cor. of 188 run due N. 20 chains set post thence due W. 40 chains set post thence due S. 20 chains to N.W. Cor. 188 thence due E. 40 chains to point of beginning.

A tract of land described as follows: Beginning at N.W. Cor. of 188 thence due W. 40 chains set post thence due N. 20 chains set post thence due E. 40 chains to N.W. Cor. of 189 thence due S. 20 chains to the point of beginning.

A tract of land described as follows: Beginning at N.W. Cor. of 190 thence due N. 20 chains set post thence due E. 40 chains set post thence due S. 20 chains to N.E. Cor. of 190 thence due W. 20 chains to point of beginning.

A tract of land described as follows: Beginning at N.W. Cor. of 191 thence due N. 20 chains set post thence due E. 40 chains set post thence due S. 20 chains to N.E. Cor. of 191 thence due W. 40 chains to point of beginning.

A tract of land described as follows: Beginning at N.W. Cor. 190 thence due W. 20 chains set post thence due N. 40 chains set post thence due E. 20 chains to N.W. Cor. 192 thence due S. 40 chains to point of beginning.

A tract of land described as follows: Beginning at S.E. Cor. Sec. 32, Tp. 37, R. 28 run due S. 20 chains set post thence due E. 40 chains made rock mound thence due N. 20 chains to quarter Sec. Cor. of Sec. 33 on Tp. line, thence due W. 40 chains on Tp. line to point of beginning.

Township 36 North, Range 29 East.

A tract of land described as follows: Set post and made mound thence due N. 20 chains set post thence due E. 40 chains set post thence due S. 20 chains set post thence due W. 40 chains to point of beginning, in section 9.

A tract of land described as follows: Beginning on ninth standard parallel at quarter Cor. of Sec. 33 thence due S. 40 chains set post thence due W. 20 chains set post thence due N. 40 chains set post thence due E. on the 9th standard parallel 20 chains to point of beginning.

A tract of land described as follows: Beginning at S.W. Cor. of 215 on ninth standard parallel thence due E. 40 chains set post thence due S. 20 chains set post thence due W. 40 chains set post thence due N. 20 chains to place of beginning, in section 4 or 5.

Township 36 North, Range 30 East.

E $\frac{1}{2}$ of NW $\frac{1}{4}$, W $\frac{1}{2}$ NE $\frac{1}{4}$, SE $\frac{1}{4}$ NE $\frac{1}{4}$, NE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 33; SW $\frac{1}{4}$ NW $\frac{1}{4}$, N $\frac{1}{2}$ SW $\frac{1}{4}$, W $\frac{1}{4}$ SE $\frac{1}{4}$, SE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 34.

Township 36 North, Range 32 East.

NE $\frac{1}{4}$, W $\frac{1}{2}$ SE $\frac{1}{4}$, E $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 1; NE $\frac{1}{4}$ NE $\frac{1}{4}$ and N $\frac{1}{2}$ of SE $\frac{1}{4}$ of NE $\frac{1}{4}$ of Sec. 2; E $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 11; NW $\frac{1}{4}$ and W $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 12; W $\frac{1}{2}$ NW $\frac{1}{4}$ and W $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 13; E $\frac{1}{2}$ NE $\frac{1}{4}$ and E $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 14; NE $\frac{1}{4}$ and W $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 23; W $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 26; E $\frac{1}{2}$ NW $\frac{1}{4}$ and W $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 35.

Township 36 North, Range 33 East.

W $\frac{1}{2}$ of E $\frac{1}{2}$ of NW $\frac{1}{4}$ and W $\frac{1}{2}$ of NW $\frac{1}{4}$ of Sec. 1; E $\frac{1}{2}$ of E $\frac{1}{2}$ of NE $\frac{1}{4}$ of Sec. 2; NE $\frac{1}{4}$, N $\frac{1}{2}$ SE $\frac{1}{4}$, E $\frac{1}{2}$ NW $\frac{1}{4}$ of Sec. 4; N $\frac{1}{2}$ NE $\frac{1}{4}$ and NW $\frac{1}{4}$ NW $\frac{1}{4}$ of Sec. 5; N $\frac{1}{2}$ NE $\frac{1}{4}$; SW $\frac{1}{4}$ NE $\frac{1}{4}$ and NW $\frac{1}{4}$ of Sec. 6.

Township 36 North, Range 37 East.

SW $\frac{1}{4}$ SE $\frac{1}{4}$ and lot 4 of Sec. 22; lot 1 of Sec. 26; W $\frac{1}{2}$ NE $\frac{1}{4}$, W $\frac{1}{2}$ SE $\frac{1}{4}$ and lots 1, 2, 3 and 4 of Sec. 27; SE $\frac{1}{4}$ NE $\frac{1}{4}$, NE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 33; NW $\frac{1}{4}$ NE $\frac{1}{4}$, S $\frac{1}{2}$ NW $\frac{1}{4}$, SW $\frac{1}{4}$ and lots 1, 2, 3, 4 and 5 of Sec. 34; and lot 1 of Sec. 35.

Township 37 North, Range 27 East.

E $\frac{1}{2}$ NE $\frac{1}{4}$, E $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 1; SE $\frac{1}{4}$ NW $\frac{1}{4}$ and lots 2, 3 and 4 of Sec. 3, the E $\frac{1}{2}$ NW $\frac{1}{4}$ and NE $\frac{1}{4}$ of Sec. 12, The W $\frac{1}{2}$ of E $\frac{1}{2}$ of SW $\frac{1}{4}$ and lots 1, 2, 3, 4, and 5 of Sec. 16; Lots 1 and 2 of Sec. 20, W $\frac{1}{2}$ NW $\frac{1}{4}$ of Sec. 21.

Township 37 North, Range 28 East.

W $\frac{1}{2}$ NE $\frac{1}{4}$, E $\frac{1}{2}$ NW $\frac{1}{4}$, E $\frac{1}{2}$ SW $\frac{1}{4}$, lots 4, 5, 6 and 7 of Sec. 6; N $\frac{1}{2}$ NW $\frac{1}{4}$ Sec. 7; NW $\frac{1}{4}$ NE $\frac{1}{4}$, NE $\frac{1}{4}$ NW $\frac{1}{4}$, Sec. 9; S $\frac{1}{2}$ SE $\frac{1}{4}$, SE $\frac{1}{4}$ SW $\frac{1}{4}$, Sec. 25; S $\frac{1}{2}$ of Sec. 32; S $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 33, N $\frac{1}{2}$ NE $\frac{1}{4}$ and NE $\frac{1}{4}$ NW $\frac{1}{4}$ of Sec. 36.

Township 37 North, Range 29 East.

N $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 27, lot 4 of Sec. 30, E $\frac{1}{2}$ NE $\frac{1}{4}$, NW $\frac{1}{4}$ NE $\frac{1}{4}$, NE $\frac{1}{4}$ NW $\frac{1}{4}$ and lot 1 of Sec. 31; S $\frac{1}{2}$ NW $\frac{1}{4}$, N $\frac{1}{2}$ SW $\frac{1}{4}$ and SE $\frac{1}{4}$ of Sec. 32, W $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 33.

Township 37 North, Range 30 East.

W $\frac{1}{2}$ NW $\frac{1}{4}$ of Sec. 1, E $\frac{1}{2}$ NE $\frac{1}{4}$ of Sec. 2; SE $\frac{1}{4}$ of Sec. 3; S $\frac{1}{2}$ NE $\frac{1}{4}$ of Sec. 8; S $\frac{1}{2}$ NE $\frac{1}{4}$ and S $\frac{1}{2}$ NW $\frac{1}{4}$ of Sec. 9; N $\frac{1}{2}$ NE $\frac{1}{4}$ and N $\frac{1}{2}$ NW $\frac{1}{4}$ Sec. 10.

Township 37 North, Range 33 East.

Lots 8 and 9, Sec. 5; Lots 3, 5, 12 and 13 of Sec. 8; E $\frac{1}{2}$ NE $\frac{1}{4}$, SE $\frac{1}{4}$ SE $\frac{1}{4}$ and lots 1, 4, 7 and 8 of Sec. 17; NE $\frac{1}{4}$ NW $\frac{1}{4}$ and E $\frac{1}{2}$ of Sec. 20; SW $\frac{1}{4}$ NW $\frac{1}{4}$ and NW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 21; NE $\frac{1}{4}$, SE $\frac{1}{4}$ NW $\frac{1}{4}$, N $\frac{1}{2}$ SE $\frac{1}{4}$, SW $\frac{1}{4}$ SE $\frac{1}{4}$, E $\frac{1}{2}$ SW $\frac{1}{4}$ and SW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 29; SE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 30; NE $\frac{1}{4}$ NE $\frac{1}{4}$ of Sec. 31; NW $\frac{1}{4}$ NE $\frac{1}{4}$, N $\frac{1}{2}$ NW $\frac{1}{4}$ and E $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 32; SE $\frac{1}{4}$ and S $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 33; E $\frac{1}{2}$ SE $\frac{1}{4}$ and W $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 34; W $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 35.

Township 37 North, Range 37 East.

Lots 1, 2, 3 and 4, Sec. 1; SE $\frac{1}{4}$ NE $\frac{1}{4}$ and lot 1 of Sec. 2; S $\frac{1}{2}$ SE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 3; NW $\frac{1}{4}$ SE $\frac{1}{4}$ and lots 5, 6, 7, 8, 9, 10, 11 and 12 of Sec. 4; SE $\frac{1}{4}$ NE $\frac{1}{4}$ and lot 1 of Sec. 5; W $\frac{1}{2}$ SW $\frac{1}{4}$ and lots 1, 2, 3, 4, 5, 6, 7, 8, 9 and 10 of Sec. 9; N $\frac{1}{2}$ NE $\frac{1}{4}$, Sec. 10; SW $\frac{1}{4}$ of Sec. 13; S $\frac{1}{2}$ NE $\frac{1}{4}$, SE $\frac{1}{4}$ and SE $\frac{1}{4}$ of SW $\frac{1}{4}$ of Sec. 14; SW $\frac{1}{4}$ NW $\frac{1}{4}$, W $\frac{1}{2}$ SW $\frac{1}{4}$, SE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 15; SE $\frac{1}{4}$ NE $\frac{1}{4}$ and NE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 16. S $\frac{1}{2}$ NE $\frac{1}{4}$, E $\frac{1}{2}$ NW $\frac{1}{4}$, NW $\frac{1}{4}$, NW $\frac{1}{4}$, NE $\frac{1}{4}$ of SW $\frac{1}{4}$ and N $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 22; E $\frac{1}{2}$ NW $\frac{1}{4}$, SW $\frac{1}{4}$ NW $\frac{1}{4}$, E $\frac{1}{2}$ SW $\frac{1}{4}$, NW $\frac{1}{4}$ SW $\frac{1}{4}$ and lots 1 and 2 and E $\frac{1}{2}$ of Sec. 23; S $\frac{1}{2}$ SE $\frac{1}{4}$ and S $\frac{1}{2}$ SW $\frac{1}{4}$ Sec. 24; N $\frac{1}{2}$ NE $\frac{1}{4}$ of Sec. 25; N $\frac{1}{2}$ SW $\frac{1}{4}$ and lots 9, 10, 11 and 12 of Sec. 26; S $\frac{1}{2}$ NE $\frac{1}{4}$, N $\frac{1}{2}$ SE $\frac{1}{4}$, NE $\frac{1}{4}$ SW $\frac{1}{4}$ and lots 9, 10, 12, 13 and 14 of Sec. 27; Lots 1, 5, 7, 8, and 12 of Sec. 28, W $\frac{1}{2}$ NE $\frac{1}{4}$, W $\frac{1}{2}$ SE $\frac{1}{4}$ and lots 2, 3, 4 and 5 of Sec. 33.

Township 37 North, Range 38 East.

Lots 1, 2, 3, 4, 5, and 6 of Sec. 18; Lots 1, 3 and 4 of Sec. 19.

Township 38 North, Range 27 East.

SW $\frac{1}{4}$ NW $\frac{1}{4}$ and lot 6 of Sec. 2; Lots 6, 7, 8, and 9 of Sec. 3; Lots 4, 5, and 6 of Sec. 11; SE $\frac{1}{4}$ of NW $\frac{1}{4}$ and lots 7 and 8 of Sec. 14; Lot 3 of Sec. 22; W $\frac{1}{2}$ NE $\frac{1}{4}$ of NW $\frac{1}{4}$ and lots 3, 4, 5, and 6 of Sec. 23; SE $\frac{1}{4}$ SE $\frac{1}{4}$ and lot 7 of Sec. 27; E $\frac{1}{2}$ NE $\frac{1}{4}$, E $\frac{1}{2}$ SE $\frac{1}{4}$ and lots 5, 6, 7, and 8 of Sec. 34.

Township 38 North, Range 28 East.

S $\frac{1}{2}$ SE $\frac{1}{4}$ and SE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 10; SW $\frac{1}{4}$ of Sec. 11; N $\frac{1}{2}$ NW $\frac{1}{4}$ Sec. 14; N $\frac{1}{2}$ NE $\frac{1}{4}$ and N $\frac{1}{2}$ NW $\frac{1}{4}$, Sec. 15; NE $\frac{1}{4}$ NE $\frac{1}{4}$ of Sec. 16; SW $\frac{1}{4}$ of Sec. 26; W $\frac{1}{2}$ NE $\frac{1}{4}$, E $\frac{1}{2}$ SW $\frac{1}{4}$ and lots 3 and 4 of Sec. 31.

Township 38 North, Range 29 East.

S $\frac{1}{2}$ NW $\frac{1}{4}$ and lots 2, 3, and 4 of Sec. 4; NE $\frac{1}{4}$, S $\frac{1}{2}$ NW $\frac{1}{4}$, N $\frac{1}{2}$ SE $\frac{1}{4}$ and lots 3 and 4 of Sec. 5; E $\frac{1}{2}$ NE $\frac{1}{4}$ of Sec. 6.

Township 38 North, Range 30 East.

E $\frac{1}{2}$ SW $\frac{1}{4}$ and SW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 25; SE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 26; E $\frac{1}{2}$ NE $\frac{1}{4}$ and E $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 35; W $\frac{1}{2}$ NW $\frac{1}{4}$ of Sec. 36.

Township 38 North, Range 32 East.

E ½ SE ¼ and SW ¼ SE ¼ of Sec. 25; W ½ NE ¼ and SE ¼ NE ¼ of Sec. 36.

Township 38 North, Range 33 East.

W ½ NW ¼ of Sec. 1; S ½ NE ¼ and lots 1 and 2 of Sec. 2; lot 4 of Sec. 3; lot 1 of Sec. 4; S ½ SE ¼ of Sec. 9; S ½ NE ¼, S ½ NW ¼, SE ¼ and E ½ SW ¼ of Sec. 15; NE ¼ of Sec. 16; S ½ NE ¼, SE ¼ and E ½ SW ¼ of Sec. 21; N ½ NE ¼ of Sec. 22; S ½ SE ¼, Sec. 26; N ½ NW ¼ of Sec. 27; N ½ NE ¼, NE ¼ NW ¼, SE ¼ and Lot 1 of Sec. 28; SW ¼ SE ¼ of Sec. 30; NW ¼ NE ¼ of Sec. 31; and N ½ NE ¼ of Sec. 35.

Township 38 North, Range 37 East.

S ½ SE ¼ of Sec. 4; SE ¼ SE ¼ of Sec. 5; NE ¼ NE ¼, E ½ SE ¼, SW ¼ SE ¼ of Sec. 8; Sec. 9; SE ¼ NE ¼, W ½ NW ¼, E ½ SE ¼, SW ¼ SE ¼ and SW ¼ of Sec. 10; SE ¼ NE ¼ and E ½ SE ¼ of Sec. 11; S ½ SW ¼ of Sec. 12; E ½ NE ¼, N ½ NW ¼ and lots 1 and 2 of Sec. 13; E ½ NE ¼, SW ¼ NE ¼, W ½ NW ¼, SE ¼, E ½ SW ¼ and NW ¼ SW ¼ of Sec. 14; Sec. 15; E ½, NW ¼ and N ½ SW ¼ of Sec. 16; N ½ NE ¼ of Sec. 17; E ½ NE ¼, N ½ SE ¼, SW ¼ SE ¼, SE ¼ SW ¼ and lot 5 of Sec. 21; NE ¼, S ½ NW ¼, NW ¼ NW ¼, N ½ SE ¼, N ½ SW ¼, and SW ¼ SW ¼ of Sec. 22; N ½ NE ¼, NW ¼ and S ½ SE ¼ of Sec. 23; NW ¼, NW ¼ SW ¼ and lot 5 of Sec. 25; SW ¼ SW ¼ and E ½ of Sec. 26; SE ¼ SE ¼ and SW ¼ of Sec. 27; NW ¼ NE ¼, E ½ SE ¼, SW ¼ SE ¼, SE ¼ SW ¼ and lots 2, 3, 4, and 5 of Sec. 28; SW ¼ NE ¼ and lots 3, 4, and 5 of Sec. 29; W ½ NE ¼, N ½ SE ¼, SW ¼ SE ¼, SE ¼ SW ¼ and lots 1, 2, 5, 6, and 8 of Sec. 33; N.E. ¼ NE ¼, and E ½ SE ¼ of Sec 35; lots 1, 2, and 3 of Sec. 36.

Township 38 North, Range 38 East.

Lots 1, 2, 3, 4, and 5 of Sec. 8; lot 5 of Sec. 19; and lots 1 and 2 of Sec. 30.

Township 39 North, Range 27 East.

Lots 3 and 4 of Sec. 10; N ½ SW ¼ and lots 2, 3, 5, and 6 of Sec. 15; lots 5 and 6 of Sec. 16; E ½ NW ¼, NE ¼ SE ¼ and lots 6, 8, 9, 10, and 11 of Sec. 22; SE ¼ and lots 6, 7, 8, 9, 10, 11, and 12 of Sec. 27; lots 5, 6, 7, 8, and 9 of Sec. 34.

Township 39 North, Range 28 East.

NE ¼ NE ¼, S ½ NE ¼, SE ¼ NW ¼ and SE ¼ of Sec. 1; E ½ of Sec. 12; and SE ¼ of Sec. 36.

Township 39 North, Range 29 East.

W ½ SW ¼ of Sec. 3; SE ¼ and NW ¼ of Sec. 4; N ½ NW ¼ of Sec. 5; W ½ NW ¼ and SW ¼ of Sec. 6; W ½ NW ¼ of Sec. 7; N ½, SE ¼ and SE ¼ SW ¼ of Sec. 9; S ½ NW ¼, and SW ¼ of Sec 10; W ½ SE ¼ and E ½ SW ¼ of Sec 15; S ½ SW ¼ of Sec. 33.

Township 39 North, Range 30 East.

S ½ SE ¼ and SW ¼ of Sec. 4; E ½ NE ¼ and E ½ SE ¼ of Sec. 8; N ½ NE ¼ and N ½ NW ¼ of Sec. 9.

Township 39 North, Range 31 East.

A tract of land described as follows: Commencing at a stake marked "I.A." ran north at variation of 22° 30' E. forty chains and set post at N.W. corner of claim thence east 20

chains and set N.E. corner thence south 40 chains setting S.E. corner thence west 20 chains to point of beginning.

A tract of land described as follows: Commencing at N.W. corner of No. 12 thence east 10 chains to S.W. corner of allotment No. 13 thence due north 20 chains and set post thence due east 10 chains and set post thence due north 20 chains and set post thence due east 20 chains and set post thence due south 20 chains and set post thence due west 10 chains and set post thence due south 20 chains and set post thence due west 20 chains to S.W. corner of allotment No. 13.

A tract of land described as follows: Commencing at N.W. Cor. of No. 13, thence due east 10 chains and set post; thence due N. 20 chains and set post; thence due E. 10 chains and set post; thence due N. 20 chains and set post, thence due E. 20 chains and set post; thence due S. 20 chains and set post thence due W 10 chains and set post thence due S. 20 chains and set post thence due W. 20 chains to the S.W. corner of allotment No. 14.

A tract of land described as follows: Commencing at N.W. corner of No. 14 thence due north 40 chains and set post thence due east 20 chains and set post thence due S. 40 chains and set post thence due west 20 chains on line between Nos. 14 & 15 to place of beginning.

A tract of land described as follows: Commencing at the N.W. corner of No. 15, thence due east 10 chains and set post thence due north 40 chains and set post, thence due east 20 chains and set post, thence due south 40 chains set post for S.E. corner thence due west 20 chains to S.W. corner of No. 16.

Township 39 North, Range 32 East.

SW $\frac{1}{4}$ NE $\frac{1}{4}$, N $\frac{1}{2}$ NW $\frac{1}{4}$ and SE $\frac{1}{4}$ NW $\frac{1}{4}$ of Sec. 2.

Township 39 North, Range 33 East.

SW $\frac{1}{4}$ NE $\frac{1}{4}$, SE $\frac{1}{4}$ NW $\frac{1}{4}$, NW $\frac{1}{4}$ SE $\frac{1}{4}$ and NE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 2; lots 1 and 2 of Sec. 9; Lot 1 of Sec. 10; lots 1, 2, 3, and 4 of Sec. 11; N $\frac{1}{2}$ of S $\frac{1}{2}$ of NE $\frac{1}{4}$ and lots 1, 2, 3, 4, 5, 6, 7, 8, and 9 of Sec. 12; N $\frac{1}{2}$ SE $\frac{1}{4}$ and SW $\frac{1}{4}$ of Sec. 13; S $\frac{1}{2}$ NE $\frac{1}{4}$, S $\frac{1}{2}$ NW $\frac{1}{4}$, SW $\frac{1}{4}$ and lots 2, 3, 4, 5, and 6 of Sec. 14; SE $\frac{1}{4}$ SE $\frac{1}{4}$ and lots 1, 2, and 4 of Sec. 15; NE $\frac{1}{4}$ NE $\frac{1}{4}$ and lots 1, 5, and 6 of Sec. 16; NW $\frac{1}{4}$ NE $\frac{1}{4}$, NE $\frac{1}{4}$ NW $\frac{1}{4}$ and lots 6, 7, 8, and 9 of Sec. 17; W $\frac{1}{2}$ Sec. 23; W $\frac{1}{2}$ Sec. 24; W $\frac{1}{2}$ NE $\frac{1}{4}$, E $\frac{1}{2}$ NW $\frac{1}{4}$ and W $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 26; SW $\frac{1}{4}$ NW $\frac{1}{4}$ and NW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 29; SE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 33; SW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 34; E $\frac{1}{2}$ of Sec. 35.

Township 39 North, Range 36 East.

SW $\frac{1}{4}$ NE $\frac{1}{4}$, W $\frac{1}{2}$ SE $\frac{1}{4}$ and SE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 11, N. $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 13; S $\frac{1}{2}$ NE $\frac{1}{4}$, SE $\frac{1}{4}$ NW $\frac{1}{4}$ and NE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 14.

Township 39 North, Range 37 East.

SE $\frac{1}{4}$ of Sec 8; S $\frac{1}{2}$ NE $\frac{1}{4}$, W $\frac{1}{2}$ SE $\frac{1}{4}$ and SE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 16; SE $\frac{1}{4}$ NE $\frac{1}{4}$ and SE $\frac{1}{4}$ of Sec. 17; N $\frac{1}{2}$ NE $\frac{1}{4}$, NE $\frac{1}{4}$ NW $\frac{1}{4}$, S $\frac{1}{2}$ NW $\frac{1}{4}$ and SW $\frac{1}{4}$ of Sec. 20; NE $\frac{1}{4}$, NE $\frac{1}{4}$ NW $\frac{1}{4}$ and E $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec 21; NW $\frac{1}{4}$ and E $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 29.

Township 39 North, Range 38 East.

SW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 12; W $\frac{1}{2}$ NW $\frac{1}{4}$ and NW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 13; S $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 14; NW $\frac{1}{4}$ of Sec. 23.

Township 39 North, Range 39 East.

Lots 5, 6, and 7 of Sec. 2; SE $\frac{1}{4}$ NE $\frac{1}{4}$ and E $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 7; SW $\frac{1}{4}$ NW $\frac{1}{4}$ and W $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec 8; SW $\frac{1}{4}$ SE $\frac{1}{4}$ and SE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 9; W $\frac{1}{2}$ NE $\frac{1}{4}$, E $\frac{1}{2}$ NW $\frac{1}{4}$, SW $\frac{1}{4}$ NW $\frac{1}{4}$ and lot 3 of Sec. 16; E $\frac{1}{2}$ NE $\frac{1}{4}$, NW $\frac{1}{4}$ and NW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 17; NE $\frac{1}{4}$ NE $\frac{1}{4}$, SE $\frac{1}{4}$, and E $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 18.

Township 40 North, Range 27 East.

E $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 11; SW $\frac{1}{4}$ NE $\frac{1}{4}$, SE $\frac{1}{4}$ NW $\frac{1}{4}$, W $\frac{1}{2}$ SE $\frac{1}{4}$ and SW $\frac{1}{4}$ of Sec. 12; NW $\frac{1}{4}$ of Sec. 13; E $\frac{1}{2}$ NE $\frac{1}{4}$ of Sec. 14; W $\frac{1}{2}$ of SW $\frac{1}{4}$ of NE $\frac{1}{4}$, NW $\frac{1}{4}$, W $\frac{1}{2}$ of W $\frac{1}{2}$ of SE $\frac{1}{4}$, E $\frac{1}{2}$ SW $\frac{1}{4}$, and NW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 15; lot 5 of Sec. 21; NE $\frac{1}{4}$, N $\frac{1}{2}$ SE $\frac{1}{4}$, SW $\frac{1}{4}$ SE $\frac{1}{4}$, S $\frac{1}{2}$ SW $\frac{1}{4}$ and lots 2, 3, and 4 of Sec. 22; W $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 27.

Township 40 North, Range 28 East.

S $\frac{1}{2}$ SE $\frac{1}{4}$ and lots 3 and 4 of Sec. 19; SW $\frac{1}{4}$ of Sec. 35.

A tract of land described as follows: Beginning at a stone monument on the international line, being the N.W. Cor. of allotment 116, thence running due east on boundary line 40 chains set post at N.E. Cor. thence due S. 20 chains set post marked "I.A." being S.E. Cor. thence due W. 40 chains set post at S.W. Cor. thence due N. 20 chains to the point of beginning, in section 2 or 3.

A tract of land described as follows: Beginning at S.W. Cor. of 116 thence due E. 40 chains to S.E. Cor. of 116 thence due S. 20 chains and set post being S.E. Cor. of 117 thence due W. 40 chains and set post at S.W. Cor. of allotment 117 thence due N. 20 chains to place of beginning being N.W. Cor. of No. 117.

A tract of land described as follows: Beginning at S.W. Cor. of 117 thence due E. 40 chains to S.E. Cor. of No. 117 thence due S. 20 chains to S.E. Cor. No. 118 and set post "I.A." thence due W. 40 chains to S.W. Cor. of No. 118 and set post "I.A." thence due N. 20 chains to point of beginning being N.W. Cor. of 118.

A tract of land described as follows: Beginning at S.W. Cor. 118 thence due E. 40 chains to S.E. Cor. of 118 thence due S. 20 chains to S.E. Cor. 119 and set post "I.A." thence due W. 40 chains to S.W. Cor. of 119 and set post thence due N. 20 chains to N.W. Cor. or point of beginning.

A tract of land described as follows: Beginning at S.E. Cor. of 116 thence due E. 40 chains to N.E. Cor. of 122 and set post "I.A." thence S. 20 chains to S.E. Cor. and set post thence due W. 40 chains to S.E. Cor. of No. 117 being S.W. Cor. of No. 122 thence due N. 20 chains to point of beginning, in Sec. 2 or 3.

A tract of land described as follows: Beginning at S.E. Cor. of 117 thence due E. 40 chains to S.E. Cor. of 122 thence due south 20 chains to S.E. Cor. of 123 set post "I.A." thence due W. 40 chains to S.E. Cor. of 118 thence due N. 20 chains to point of beginning, in section 2 or 3.

A tract of land described as follows: Beginning at boundary line N.E. Cor. of No. 116 thence due E. on boundary line 40 chains set post thence due S. 20 chains to N.E. Cor. of

122 thence due W. on line between 122 & 222 to N.W. Cor. of 122 thence N. 20 chains to place of beginning, in section 1 or 2.

A tract of land described as follows: Beginning at N.E. Cor. of 222 on boundary line thence due E. 40 chains set post thence due S. 20 chains set post thence due W. 40 chains to S.E. Cor. of 222 thence due N. 20 chains to place of beginning, in section 1 or 2.

A tract of land described as follows: Beginning at S.E. Cor. of 223 thence due S. 20 chains set post thence due W. 40 chains to N.E. Cor. of 123 thence due N. 20 chains to N.E. of 122 thence due E. 40 chains between line of 223 and 224 to place of beginning, in section 1 or 2.

A tract of land described as follows: Beginning at S.E. Cor. of 224 thence due S. 20 chains set post thence due W. 40 chains to S.E. Cor. of 123 thence due N. 20 chains to S.W. Cor. of 224 thence due E. 40 chains between line 224 & 225 to place of beginning, in section 1 or 2.

A tract of land described as follows: Beginning at S.E. Cor. of 225 thence due S. 20 chains set post thence due W. 40 chains set post thence due N. 20 chains to S.W. Cor. 225 thence due E. 40 chains on line between 225 & 226 to point of beginning, in section 1 or 2.

A tract of land described as follows: Beginning on boundary line at N.E. Cor. of 223 thence on boundary line due E. 20 chains set post thence due S. 40 chains set post thence due W. 20 chains to S.E. Cor. of 224 thence due N. 40 chains to place of beginning, in section 1 or 2.

Township 40 North, Range 29 East.

A tract of land described as follows: Set post on International boundary line being N.E. Cor. of 120 thence due S. 20 chains to S.E. Cor. and set post "I.A." thence due W. 40 chains and set post being S.W. Cor. of 120 thence due N. 20 chains to boundary line set post "I.A." being N.W. Cor. thence on boundary line 40 chains to point of beginning, in section 5 or 6.

A tract of land described as follows: Beginning at SE $\frac{1}{4}$ of 120 thence due S. 20 chains to S.E. Cor. and set post "I.A." thence W. 40 chains to S.W. Cor. and set post thence due N. 20 chains to N.W. Cor. thence due East 40 chains to point of beginning, Sec. 5 or 6.

NE $\frac{1}{4}$ and S $\frac{1}{2}$ of Sec. 32; S. $\frac{1}{2}$ SE $\frac{1}{4}$ and S $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 33.

Township 40 North, Range 30 East.

E $\frac{1}{2}$ NW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 3; W $\frac{1}{2}$ W $\frac{1}{2}$ SW $\frac{1}{4}$ of Sec. 15; NE $\frac{1}{4}$ SE $\frac{1}{4}$ and all that part of the S $\frac{1}{2}$ of S $\frac{1}{2}$ of N $\frac{1}{2}$ of NE $\frac{1}{4}$ lying south and east of Myers creek, all that part of S $\frac{1}{2}$ NE $\frac{1}{4}$ lying east of Myers creek, and all that part of the NW $\frac{1}{4}$ SE $\frac{1}{4}$ lying east of Myers creek and all that part of the S $\frac{1}{2}$ SE $\frac{1}{4}$ lying east of Myers creek in Sec. 16; W $\frac{1}{2}$ of SW $\frac{1}{4}$ of NE $\frac{1}{4}$, W $\frac{1}{2}$ of NW $\frac{1}{4}$ of SE $\frac{1}{4}$, E $\frac{1}{2}$ SW $\frac{1}{4}$, and all that part of W $\frac{1}{2}$ SW $\frac{1}{4}$ lying east of Myers creek except one acre in Reno Quartz claim of Sec. 21; S $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 25; S $\frac{3}{4}$ of W $\frac{1}{2}$ of NE $\frac{1}{4}$ of NW $\frac{1}{4}$, S $\frac{3}{4}$ of E $\frac{1}{2}$ of NW $\frac{1}{4}$ of NW $\frac{1}{4}$; S $\frac{3}{4}$ of E $\frac{1}{2}$ of W $\frac{1}{2}$ of NW $\frac{1}{4}$ of NW $\frac{1}{4}$; E $\frac{3}{4}$ of N $\frac{1}{2}$ of SW $\frac{1}{4}$ of NW $\frac{1}{4}$, SE $\frac{1}{4}$ of SW $\frac{1}{4}$ of NW $\frac{1}{4}$ and N $\frac{1}{2}$ of NW $\frac{1}{4}$ of SE $\frac{1}{4}$ of NW $\frac{1}{4}$ of Sec. 28; W $\frac{1}{2}$ SE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 29; S $\frac{1}{2}$ NW $\frac{1}{4}$ and SW $\frac{1}{4}$ of Sec. 30; E $\frac{1}{2}$ NE $\frac{1}{4}$ and W $\frac{1}{2}$ NE $\frac{1}{4}$ of SE $\frac{1}{4}$ of Sec. 32; S $\frac{1}{2}$ NE $\frac{1}{4}$ of NW $\frac{1}{4}$, SE $\frac{1}{4}$ NW $\frac{1}{4}$, W $\frac{1}{2}$ of W $\frac{1}{2}$ of W $\frac{1}{2}$ of NW $\frac{1}{4}$ and NE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 33.

Township 40 North, Range 31 East.

S $\frac{1}{2}$ NE $\frac{1}{4}$, W $\frac{1}{2}$ SE $\frac{1}{4}$ and NE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 25.

Township 40 North, Range 32 East.

E $\frac{1}{2}$ SE $\frac{1}{4}$ NE $\frac{1}{4}$ and E $\frac{1}{2}$ of E $\frac{1}{2}$ of SE $\frac{1}{4}$ of Sec. 9; SW $\frac{1}{4}$ NE $\frac{1}{4}$ S $\frac{1}{2}$ NW $\frac{1}{4}$, W $\frac{1}{2}$ SE $\frac{1}{4}$ and SW $\frac{1}{4}$ of Sec. 10; W $\frac{1}{2}$ of W $\frac{1}{2}$ of NE $\frac{1}{4}$, W $\frac{1}{2}$ of NE $\frac{1}{4}$ of NW $\frac{1}{4}$, SE $\frac{1}{4}$ NW $\frac{1}{4}$, NE $\frac{1}{4}$ SW $\frac{1}{4}$ and SW $\frac{1}{4}$ SW $\frac{1}{4}$ and all that part of W $\frac{1}{2}$ NW $\frac{1}{4}$ lying east of Kettle river, and all that part of NE $\frac{1}{4}$ NW $\frac{1}{4}$ lying east of Kettle river of Sec. 15; the E $\frac{1}{2}$ NE $\frac{1}{4}$ NE $\frac{1}{4}$ and all that part of SE $\frac{1}{4}$ SE $\frac{1}{4}$ lying east of Kettle river in Sec. 16; lot 5 and all that part of the NW $\frac{1}{4}$ SW $\frac{1}{4}$, W $\frac{1}{2}$ of NW $\frac{1}{4}$ of NE $\frac{1}{4}$ of SW $\frac{1}{4}$, SW $\frac{1}{4}$ of NE $\frac{1}{4}$ of SW $\frac{1}{4}$, NE $\frac{1}{4}$ of SW $\frac{1}{4}$ of SW $\frac{1}{4}$, and SE $\frac{1}{4}$ SW $\frac{1}{4}$ lying east of Kettle river in Sec. 22; lot 1, W $\frac{1}{2}$ of SE $\frac{1}{4}$ of NW $\frac{1}{4}$ of SW $\frac{1}{4}$, all of NE $\frac{1}{4}$ of NW $\frac{1}{4}$ of NW $\frac{1}{4}$, SW $\frac{1}{4}$ SW $\frac{1}{4}$, and SW $\frac{1}{4}$ NW $\frac{1}{4}$ of SW $\frac{1}{4}$ lying east of Kettle river in Sec. 26; E $\frac{1}{2}$ of NW $\frac{1}{4}$, E $\frac{1}{2}$ SW $\frac{1}{4}$, W $\frac{1}{2}$ SE $\frac{1}{4}$, SE $\frac{1}{4}$ SE $\frac{1}{4}$ and lots 2, 3, 4, and 5 of Sec. 27; lot 3 of Sec. 30; E $\frac{1}{2}$ NE $\frac{1}{4}$, NW $\frac{1}{4}$ NE $\frac{1}{4}$, E $\frac{1}{2}$ of SW $\frac{1}{4}$ of NE $\frac{1}{4}$, E $\frac{1}{2}$ of NW $\frac{1}{4}$ of SE $\frac{1}{4}$ and E $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 34; W $\frac{1}{2}$ of NW $\frac{1}{4}$ of NE $\frac{1}{4}$ of NW $\frac{1}{4}$, W $\frac{1}{2}$ of SE $\frac{1}{4}$ of SW $\frac{1}{4}$, lots 1, 2, 3 and 4 and all that part of SW $\frac{1}{4}$ SW $\frac{1}{4}$ lying east of Kettle river.

Township 40 North, Range 33 East.

SE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 12; NE $\frac{1}{4}$ NE $\frac{1}{4}$, W $\frac{1}{2}$ NE $\frac{1}{4}$, NE $\frac{1}{4}$ NW $\frac{1}{4}$, N $\frac{1}{2}$ SE $\frac{1}{4}$ and SE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 13.

Township 40 North, Range 34 East.

S $\frac{1}{2}$ NE $\frac{1}{4}$, SE $\frac{1}{4}$ NW $\frac{1}{4}$ and lots 1, 2 and 3 of Sec. 1; E $\frac{1}{2}$ SW $\frac{1}{4}$ and lots 3, 6, 7, 8 and 11 of Sec. 3; SW $\frac{1}{4}$ NE $\frac{1}{4}$, S $\frac{1}{2}$ NW $\frac{1}{4}$, N $\frac{1}{2}$ SW $\frac{1}{4}$ and lots 1, 2, 3, 4, 5 and 6 of Sec. 4; SE $\frac{1}{4}$ NE $\frac{1}{4}$ and NE $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 5; SW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 7; E $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 8; E $\frac{1}{2}$ NE $\frac{1}{4}$, N $\frac{1}{2}$ SE $\frac{1}{4}$ and lots 1, 4 and 6 of Sec. 9; N $\frac{1}{2}$ NW $\frac{1}{4}$, SW $\frac{1}{4}$ NW $\frac{1}{4}$ and NW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 10; SW $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 13; S $\frac{1}{2}$ NE $\frac{1}{4}$, SE $\frac{1}{4}$ and SE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 14; NW $\frac{1}{4}$ NE $\frac{1}{4}$ and NE $\frac{1}{4}$ NW $\frac{1}{4}$ of Sec. 15; E $\frac{1}{2}$ NE $\frac{1}{4}$ of Sec. 17; NW $\frac{1}{4}$ NW $\frac{1}{4}$ of Sec. 18; SW $\frac{1}{4}$ NE $\frac{1}{4}$, SE $\frac{1}{4}$ NW $\frac{1}{4}$, NW $\frac{1}{4}$ SE $\frac{1}{4}$ and NE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 19; N $\frac{1}{2}$ NE $\frac{1}{4}$, Sec. 23; NW $\frac{1}{4}$ NE $\frac{1}{4}$ and lots 1 and 2 of Sec. 30.

Township 40 North, Range 35 East.

N $\frac{1}{2}$ of SE $\frac{1}{4}$ of NW $\frac{1}{4}$ and lots 3, 4 and N $\frac{1}{2}$ of lot 5 of Sec. 6.

Township 40 North, Range 39 East.

SW $\frac{1}{4}$ SE $\frac{1}{4}$, SE $\frac{1}{4}$ SW $\frac{1}{4}$ of Sec. 25; SE $\frac{1}{4}$ NE $\frac{1}{4}$ and lot 1 of Sec. 35; NE $\frac{1}{4}$ NE $\frac{1}{4}$, SW $\frac{1}{4}$ NE $\frac{1}{4}$, NW $\frac{1}{4}$ and lots 1, 2, 3 and 4 of Sec. 36.

Township 40 North, Range 40 East.

SW $\frac{1}{4}$ SE $\frac{1}{4}$ of Sec. 11; NW $\frac{1}{4}$ NE $\frac{1}{4}$ of E $\frac{1}{2}$ SE $\frac{1}{4}$ of Sec. 19; S $\frac{1}{2}$ NE $\frac{1}{4}$, S $\frac{1}{2}$ NW $\frac{1}{4}$ and S $\frac{1}{2}$ of Sec. 20; S $\frac{1}{2}$ NE $\frac{1}{4}$, SE $\frac{1}{4}$ NW $\frac{1}{4}$, NW $\frac{1}{4}$ SE $\frac{1}{4}$, N $\frac{1}{2}$ SW $\frac{1}{4}$, SW $\frac{1}{4}$ SW $\frac{1}{4}$ and lot 1 of Sec. 21; lots 2 and 3 of Sec. 22, lot 2 of Sec. 28; NE $\frac{1}{4}$ NW $\frac{1}{4}$ and lots 1 and 2 of Sec. 29; E $\frac{1}{2}$ NE $\frac{1}{4}$, SW $\frac{1}{4}$ NE $\frac{1}{4}$, E $\frac{1}{2}$ NW $\frac{1}{4}$ and lot 1 of Sec. 30; lots 3 and 4 of Sec. 31.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it is provided by section twenty-four of the act of Congress, approved March 3, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas it is further provided by the act of Congress, approved June 4, 1897 entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30, 1898, and for other purposes," that "The President is hereby authorized at any time to modify any executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

And whereas the public lands in the State of Wyoming, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by the aforesaid acts of Congress, do hereby make known and proclaim that the boundary lines of the Forest Reservation in the State of Wyoming, known as "The Big Horn Forest Reserve," created by proclamation of February 22, 1897, are hereby so changed and enlarged as to include all those certain tracts, pieces or parcels

of land lying and being situate in the State of Wyoming, and within the boundaries particularly described as follows, to wit:

Beginning at the southeast corner of township forty-eight (48) north, range eighty-four (84) west, sixth (6th) principal meridian, Wyoming; thence northerly to the northeast corner of said township; thence easterly along the twelfth (12th) standard parallel north to the southeast corner of section thirty-three (33), township forty-nine (49) north, range eighty-three (83) west; thence northerly along the section line to the northeast corner of section four (4), township fifty (50) north, range eighty-three (83) west; thence westerly to the northeast corner of section two (2), township fifty (50) north, range eighty-four (84) west, thence northerly along the section line, allowing for the proper offset on the thirteenth (13th) standard parallel north, to the northeast corner of section fourteen (14), township fifty-three (53) north, range eighty-four (84) west, thence westerly to the northeast corner of section fourteen (14), township fifty-three (53) north, range eighty-five (85) west; thence northerly to the northeast corner of section two (2), said township; thence westerly to the northeast corner of section two (2), township fifty-three (53) north, range eighty-six (86) west; thence northerly to the northeast corner of section two (2), township fifty-four (54) north, range eighty-six (86) west; thence westerly to the southeast corner of township fifty-five (55) north, range eighty-seven (87) west; thence northerly to the northeast corner of said township; thence westerly to the northwest corner of said township; thence southerly to the southwest corner of said township; thence westerly to the northwest corner of township fifty-four (54) north, range eighty-eight (88) west; thence northerly along the range line, allowing for the proper offset on the fourteenth (14th) standard parallel north, to the point of intersection with the boundary line between the States of Wyoming and Montana; thence westerly along said state boundary line to its intersection with the range line between ranges ninety-two (92) west, and ninety-three (93) west; thence southerly along said range line, allowing for the proper offset on the fourteenth (14th) standard parallel north, to the northwest corner of township fifty-four (54) north, range ninety-two (92) west; thence easterly to the northeast corner of said township; thence southerly to the southeast corner of said township; thence easterly to the northeast corner of township fifty-three (53) north, range ninety-one (91) west; thence southerly to the southeast corner of said

township; thence easterly along the thirteenth (13th) standard parallel north to the northwest corner of township fifty-two (52) north, range eighty-eight (88) west; thence southerly along the range line to the northwest corner of township fifty (50) north, range eighty-eight (88) west; thence easterly to the northwest corner of section three (3), said township; thence southerly along the section line to the southwest corner of section thirty-four (34), township forty-nine (49) north, range eighty-eight (88) west; thence easterly along the twelfth (12th) standard parallel north to the northwest corner of township forty-eight (48) north, range eighty-seven (87) west; thence southerly to the southwest corner of said township; thence easterly along the township line to the southeast corner of township forty-eight (48) north, range eighty-four (84) west, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired; *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 29th day of June, A.D. 1900, and of the Independence of the United States the one hundred and twenty-fourth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas the German Government has entered into a Commercial Agreement with the United States in conformity with the provisions of the third section of the Tariff Act of the United States approved July 24, 1897, by which agreement in the judgment of the President reciprocal and equivalent concessions are secured in favor of the products of the United States:

Therefore, be it known that I, William McKinley, President of the United States of America, acting under the authority conferred by said act of Congress, do hereby suspend during the continuance in force of said agreement the imposition and collection of the duties imposed by the first section of said act upon the articles hereinafter specified, being the products of the soil and industry of Germany; and do declare in place thereof the rates of duty provided in the third section of said act to be in force and effect from and after the date of this proclamation, as follows, namely:

"Upon argols, or crude tartar, or wine lees, crude, five *per centum ad valorem*.

"Upon brandies, or other spirits manufactured or distilled from grain or other materials, one dollar and seventy-five cents per proof gallon.

"Upon still wines, and vermuth, in casks, thirty-five cents per gallon; in bottles or jugs, per case of one dozen bottles or jugs containing each not more than one quart and more than one pint, or twenty-four bottles or jugs containing each not more than one pint, one dollar and twenty-five cents per case, and any excess beyond these quantities found in such bottles or jugs shall be subject to a duty of four cents per pint or fractional part thereof, but no separate or additional duty shall be assessed upon the bottles or jugs.

"Upon paintings in oil or water colors, pastels, pen and ink drawings, and statuary, fifteen *per centum ad valorem*" of which the officers and citizens of the United States will take due notice.

In testimony whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 13th day of July, A.D. 1900, and of the Independence of the United States of America the one hundred and twenty-fifth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas His Majesty the King of Italy has entered into a reciprocal Commercial Agreement with the United States of America pursuant to and in accordance with the provisions of section 3 of the Tariff Act of the United States approved July 24, 1897, which agreement is in the English text in the words and figures following, to wit:

The President of the United States of America and His Majesty the King of Italy, mutually desirous to improve the commercial relations between the two countries by a Special Agreement relative thereto, have appointed as their Plenipotentiaries for that purpose, namely:

The President of the United States of America, the Honorable John A. Kasson, Special Commissioner Plenipotentiary, etc., and

His Majesty the King of Italy, His Excellency the Baron S. Fava, Senator of the Kingdom, his Ambassador at Washington, etc.,

Who being duly empowered thereunto have agreed upon the following articles:

ARTICLE I.

It is agreed on the part of the United States, pursuant to and in accordance with the provisions of the third section of the Tariff Act of the United States approved July 24, 1897, and in consideration of the concessions hereinafter made on the part of Italy in favor of the products and manufactures of the United States, that the existing duties imposed upon the following articles, being the product of the soil or industry of Italy, imported into the United States shall be suspended during the continuance in force of this agreement, and in place thereof the duties to be assessed and collected thereon shall be as follows, namely:

On argols, or crude tartar, or wine lees; crude, five *per centum ad valorem*.

On brandies, or other spirits manufactured or distilled from grain or other materials, one dollar and seventy-five cents per proof gallon.

On still wines, and vermouth, in casks, thirty-five cents per gallon; in bottles or jugs, per case of one dozen bottles or jugs containing each not more than one quart and more than one pint, or twenty-four bottles or jugs containing each not more than one pint, one dollar and twenty-five cents per case, and any excess beyond these quantities found in such bottles or jugs shall be subject to a duty of four cents per pint or fractional part thereof, but no separate or additional duty shall be assessed upon the bottles or jugs.

On paintings in oil or water colors, pastels, pen and ink drawings, and statuary, fifteen *per centum ad valorem*.

ARTICLE II.

It is reciprocally agreed on the part of Italy, in consideration of the provisions of the foregoing article, that so long as this convention shall remain in force the duties to be assessed and collected on the following described merchandise, being the product of the soil or industry of the United States, imported into Italy shall not exceed the rates hereinafter specified, namely:

Upon	lire per quintal.
cotton seed oil	21.50
fish, pickled or in oil, excluding the tunny, preserved in boxes or barrels, sardines and anchovies	15.00
other fish, preserved	25.00
agricultural machinery	9.00
detached parts of agricultural machinery:	

(1) of cast iron	10.00
(2) of other iron or steel	11.00
scientific instruments:	
(a) of copper, bronze, brass, or steel:	
(1) with spy-glasses or microscopes, or graduated scales or circles, spy-glasses for use on land, monacles, binocles, lenses, detached and mounted	30.00
(2) not provided with any optical instrument, nor with graduated scales or circles	30.00
(b) of all kinds, in the construction of which iron is evidently predominant	30.00
dynamo-electrical machines:	
(1) the weight of which exceeds 1000 kilograms	16.00
(2) weighing 1000 kilograms or less	25.00
detached parts of dynamo-electrical machines	25.00
sewing machines:	
(1) with stands	25.00
(2) without stands	30.00
varnishes, not containing spirits nor mineral oils	20.00
The following articles shall be admitted free of duty:	
Turpentine oil.	
Natural fertilizers of all kinds.	
Skins, crude, fresh, or dried, not suitable for fur; and fur skins	

ARTICLE III.

This agreement is subject to the approval of the Italian Parliament. When such approval shall have been given, and official notification shall have been given to the United States Government of His Majesty's ratification, the President shall publish his proclamation, giving full effect to the provisions contained in Article I of this agreement. From and after the date of such proclamation this agreement shall be in full force and effect, and shall continue in force until the expiration of the year 1903, and if not denounced by either party one year in advance of the expiration of said term shall continue in force until one year from the time when one of the high contracting parties shall have given notice to the other of its intention to arrest the operation thereof.

In witness whereof we, the respective Plenipotentiaries, have signed this agreement, in duplicate, in the English and Italian texts, and have affixed thereunto our respective seals.

Done at Washington, this 8th day of February, A.D. 1900.

JOHN A. KASSON. [SEAL.]

FAVA. [SEAL.]

And whereas said convention has been duly ratified on the part of His Majesty the King of Italy, official notice whereof has been received by the President,

Now, therefore, be it known that I, William McKinley, President of the United States of America, acting under the authority conferred by said act of Congress, do hereby suspend during the continuance in force of said agreement the imposition and collection of the duties mentioned in the first section of said act and heretofore collected upon the specified articles of Italian origin as described in said agreement, and do declare in place thereof the rates of duty provided in the third section of said act as recited in said agreement to be in full force and effect from and after the date of this Proclamation, of which the officers and citizens of the United States will take due notice.

In testimony whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 18th day of July, A.D. 1900, and of the Independence of the United States of America the one hundred and twenty-fifth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas it is provided by section twenty-four of the act of Congress, approved March 3rd, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas the public lands in the State of Wyoming, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a Public Reservation all those certain tracts, pieces or parcels of land lying and being situate in the State of Wyoming and particularly described as follows, to wit:

Beginning at the northeast corner of township fifteen (15) north, range seventy-one (71) west, sixth (6th) principal meridian, Wyoming; thence westerly along the township line to the northwest corner of section three (3), township fifteen (15) north, range seventy-two (72) west; thence southerly to the southwest corner section thirty-four (34), said township; thence easterly to the southeast corner of said section; thence southerly to the southwest corner of section eleven (11), township fourteen (14) north, range seventy-two (72) west; thence easterly to the southeast corner of section twelve (12), said township; thence southerly to the southwest corner of section thirty (30), township fourteen (14) north, range seventy-one (71)

west; thence easterly to the southeast corner of section twenty-five (25), said township; thence northerly along the range line to the northeast corner of township fifteen (15) north, range seventy-one (71) west, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

The reservation hereby established shall be known as The Crow Creek Forest Reserve.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 10th day of October, A.D. 1900, and of the Independence of the United States the one hundred and twenty-fifth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

To the People of the United States:

In the fullness of years and honors, John Sherman, lately Secretary of State, has passed away.

Few among our citizens have risen to greater or more deserved eminence in the national councils than he. The story of his public life and services is as it were the history of the country for half a century. In the Congress of the United States he ranked among the foremost in the House, and later in the Senate. He was twice a member of the Executive Cabinet, first as Secretary of the Treasury, and afterwards as Secretary of State. Whether in debate during the dark hours of our civil war, or as the director of the country's finances during the period of rehabilitation, or as a trusted councilor in framing the nation's laws for over forty years, or as the exponent of its foreign policy, his course was ever marked by devotion to the best interests of his beloved land, and by able and conscientious effort to uphold its dignity and honor. His countrymen will long revere his memory and see in him a type of the patriotism, the uprightness and the zeal that go to molding and strengthening a nation.

In fitting expression of the sense of bereavement that afflicts the Republic, I direct that on the day of the funeral the Executive Offices of the United States display the national flag at half mast and that the Representatives of the United States in foreign countries shall pay in like manner appropriate tribute to the illustrious dead for a period of ten days.

[SEAL.]

Done at the city of Washington, this 22d day of October, A.D. 1900, and of the Independence of the United States of America the one hundred and twenty-fifth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

It has pleased Almighty God to bring our nation in safety and honor through another year. The works of religion and charity have everywhere been manifest. Our country through all its extent has been blessed with abundant harvests. Labor and the great industries of the people have prospered beyond all precedent. Our commerce has spread over the world. Our power and influence in the cause of freedom and enlightenment have extended over distant seas and lands. The lives of our official representatives and many of our people in China have been marvelously preserved. We have been generally exempt from pestilence and other great calamities; and even the tragic visitation which overwhelmed the city of Galveston made evident the sentiments of sympathy and Christian charity by virtue of which we are one united people.

Now, therefore, I, William McKinley, President of the United States, do hereby appoint and set apart Thursday, the 20th of November next, to be observed by all the people of the United States, at home or abroad, as a day of thanksgiving and praise to Him who holds the nations in the hollow of His hand. I recommend that they gather in their several places of worship and devoutly give Him thanks for the prosperity wherewith He has endowed us, for seed-time and harvest, for the valor, devotion and humanity of our armies and navies, and for all His benefits to us as individuals and as a nation; and that they humbly pray for the continuance of His Divine favor,

for concord and amity with other nations, and for righteousness and peace in all our ways.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 29th day of October, A.D. 1900, and of the Independence of the United States the one hundred and twenty-fifth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas public interests require that the Senate of the United States be convened at 12 o'clock on the 4th day of March next, to receive such communications as may be made by the Executive:

Now, therefore, I, William McKinley, President of the United States of America, do hereby proclaim and declare that an extraordinary occasion requires the Senate of the United States to convene at the Capitol in the city of Washington on the 4th day of March next, at 12 o'clock noon, of which all persons who shall at that time be entitled to act as members of that body are hereby required to take notice.

[SEAL.]

Given under my hand and the seal of the United States, at Washington, the 23d day of February, A.D. 1901, and of the Independence of the United States the one hundred and twenty-fifth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES.

A PROCLAMATION.

EXECUTIVE MANSION, *Washington, March 14, 1901.*

To the People of the United States:

Benjamin Harrison, President of the United States from 1889 to 1893, died yesterday at 4:45 P.M., at his home in Indianapolis. In his death the country has been deprived of one of its greatest citizens. A brilliant soldier in his young manhood, he gained fame and rapid advancement by his energy and valor. As a lawyer he rose to be a leader of the bar. In the Senate he at once took and retained high rank as an orator and legislator; and in the high office of President he displayed extraordinary gifts as administrator and statesman. In public and in private life he set a shining example for his countrymen.

In testimony of the respect in which his memory is held by the Government and people of the United States, I do hereby direct that the flags on the Executive Mansion and the several Departmental buildings be displayed at half staff for a period of thirty days; and that suitable military and naval honors, under the orders of the Secretaries of War and of the Navy, be rendered on the day of the funeral.

[SEAL.]

Done at the city of Washington this 14th day of March, A.D. 1901, and of the Independence of the United States of America the one hundred and twenty-fifth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas The Washington Forest Reserve, in the State of Washington, was established by proclamation dated February 22d, 1897, under and by virtue of section twenty-four of the act of Congress, approved March 3d, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," which provides, "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas it is further provided by the act of Congress, approved June 4th, 1897, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30th, 1898, and for other purposes," that "The President is hereby authorized at any time to modify any executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change

the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

Now, therefore, I, William McKinley, President of the United States, by virtue of the power vested in me by the aforesaid act of Congress, approved June 4th, 1897, do hereby make known and proclaim that there are hereby withdrawn and excluded from the aforesaid Washington Forest Reserve and restored to the public domain all those certain tracts, pieces or parcels of land particularly described as follows to wit:

The southwest quarter of section three (3), sections four (4) and five (5), the east half of section nine (9), the west half of section ten (10), the south half of section thirteen (13), the south half of section fourteen (14), section fifteen (15), the north half and southeast quarter of section twenty-three (23), sections twenty-four (24), twenty-five (25) and thirty-six (36), all in township thirty-five (35) north, range twenty (20) east, Willamette Meridian; what will be when surveyed the south half of township thirty-two (32) north, range twenty-one (21) east; what will be when surveyed the north half of township thirty-three (33) north, range twenty-one (21) east; townships thirty-four (34) and thirty-five (35) north, range twenty-one (21) east; townships thirty-one (31) to thirty-four (34), both inclusive, range twenty-two (22) east; what will be when surveyed sections thirty (30), thirty-one (31) and thirty-two (32) of township thirty-five (35) north, range twenty-two (22) east.

That the lands hereby restored to the public domain shall be open to settlement from date hereof, but shall not be subject to entry, filing or selection until after ninety days' notice by such publication as the Secretary of the Interior may prescribe.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 3rd day of April, A.D. 1901, and of the Independence of the United States the one hundred and twenty-fifth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, by Executive Order dated December 27, 1875, sections 8 and 9, township 15 south, range 2 east, San Bernardino meridian, California, were with certain other tracts of land withdrawn from the public domain and reserved for the use of the Capitan Grande band or village of Mission Indians; and

Whereas the Commission appointed under the provisions of the act of Congress approved January 12, 1891, entitled "An act for the relief of the Mission Indians in the State of California" (U.S. Statutes at Large, vol. 26, page 712), selected for the said Capitan Grande band or village of Indians certain tracts of land intentionally omitted and excluded from such selection the said sections 8 and 9, township 15 south, range 2 east, and reported that the tracts thus omitted included the lands upon which were found the claims of Arthur F. Head and others; and

Whereas, the report and recommendations of the said Commission were approved by Executive Order dated December 29, 1891, which order also directed that "All of the lands mentioned in said report are hereby withdrawn from settlement and entry until patents shall have issued for said selected reservations and until the recommendations of said Commission shall be fully executed, and, by the proclamation of the President of the United States, the lands or any part thereof shall be restored to the public domain;" and

Whereas a patent was issued March 10, 1894, to the said Indians for the lands selected by the Commission as aforesaid and which patent also excluded the said sections 8 and 9, township 15 south, range 2 east; and

Whereas it appears that the said Arthur F. Head cannot make the requisite filings on the land occupied by him until it shall have been formally restored to the public domain, and that no good reason appears to exist for the further reservation of the said sections for the said band of Indians;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested, do hereby declare and make known that the Executive Orders dated December 27, 1875, and December 29, 1891, are so far modified as to except from their provisions sections 8 and 9 of township 15 south, range 2 east, San Bernardino meridian, and the said sections are hereby restored to the public domain.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 16th day of April, A.D. 1901, and of the Independence of the United States the one hundred and twenty-fifth.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

PROCLAMATION.

Whereas the act of Congress entitled "An act to ratify and confirm an agreement with the Muscogee or Creek tribe of Indians and for other

purposes," approved on the 1st day of March, 1901, contains a provision as follows:

That the agreement negotiated between the Commission to the Five Civilized Tribes and the Muscogee or Creek tribe of Indians, at the city of Washington on the 8th day of March, nineteen hundred, as herein amended, is hereby accepted, ratified, and confirmed, and the same shall be of full force and effect when ratified by the Creek national council. The principal chief, as soon as practicable after the ratification of this agreement by Congress, shall call an extra session of the Creek national council and lay before it this agreement and the act of Congress ratifying it, and if the agreement be ratified by said council, as provided in the constitution of said nation, he shall transmit to the President of the United States the act of council ratifying the agreement, and the President of the United States shall thereupon issue his proclamation declaring the same duly ratified, and that all the provisions of this agreement have become law according to the terms thereof: *Provided*, That such ratification by the Creek national council shall be made within ninety days from the approval of this act by the President of the United States,

And whereas the principal chief of the said tribe has transmitted to me an act of the Creek national council entitled "An act to ratify and confirm an agreement between the United States and the Muscogee Nation of Indians of the Indian Territory" approved the 25th day of May, 1901, which contains a provision as follows:

That said agreement, amended, ratified and confirmed by the Congress of the United States, as set forth in said act of Congress approved March 1, 1901, is hereby accepted, ratified and confirmed on the part of the Muscogee Nation and on the part of the Muscogee or Creek tribe of Indians constituting said Nation, as provided in said act of Congress and as provided in the Constitution of said Nation, and the Principal Chief is hereby authorized to transmit this act of the National Council ratifying said agreement to the President of the United States as provided in said act of Congress.

And whereas paragraph thirty-six of said agreement contains a provision as follows:

This provision shall not take effect until after it shall have been separately and specifically approved by the Creek national council and by the Seminole general council; and if not approved by either, it shall fail altogether, and be eliminated from this agreement without impairing any other of its provisions.

And whereas there has been presented to me an act of the Creek national council entitled "An act to disapprove certain provisions, relating to Seminole citizens, in the agreement between the Muscogee Nation and the United States, ratified by Congress March 1, 1901," approved the 25th day of May, 1901, by which the provisions of said paragraph thirty-six are specifically disapproved:

Now, therefore, I, William McKinley, President of the United States, do hereby declare said agreement, except paragraph thirty-six thereof, duly ratified and that all the provisions thereof, except said paragraph thirty-six which failed of ratification by the Creek national council, became law according to the terms thereof upon the 25th day of May, 1901.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this 25th day of June, A.D. 1901, and of the Independence of the United States the one hundred and twenty-fifth.

WILLIAM McKINLEY.

By the President:
DAVID J. HILL,
Acting Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas the Cascade Range Forest Reserve, in the State of Oregon, was established by proclamation dated September 28, 1893, under and by virtue of section twenty-four of the act of Congress, approved March 3, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," which provides, "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by

public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas it is further provided by the act of Congress, approved June 4, 1897, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30, 1898, and for other purposes," that "The President is hereby authorized at any time to modify any executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

Now, therefore, I, William McKinley, President of the United States, by virtue of the power vested in me by the aforesaid act of Congress, approved June 4, 1897, do hereby make known and proclaim that there is hereby reserved from entry or settlement, and added to and made a part of the aforesaid Cascade Range Forest Reserve, all those certain tracts, pieces or parcels of land lying and being situate in the State of Oregon and particularly described as follows, to wit:

The south half (S. ½) of township one (1) south, townships two (2) south, three (3) south, and four (4) south, range eleven (11) east, Willamette Meridian; township five (5) south, ranges nine (9) and ten (10) east; and so much of township six (6) south, ranges nine (9) and ten (10) east, as lies north of the Warm Springs Indian Reservation.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 1st day of July, A.D. 1901, and of the Independence of the United States the one hundred and twenty-fifth.

WILLIAM McKINLEY.

By the President:
DAVID J. HILL,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it is provided by section twenty-four of the act of Congress, approved March 3rd, 1891, entitled "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof."

And whereas the public lands in the Territory of Oklahoma, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a public reservation all those certain tracts, pieces or parcels of land lying and being situate in the Territory of Oklahoma and particularly described as follows, to wit:

Beginning at the southeast corner of township three (3) north, range fourteen (14) west, Indian Meridian, Territory of Oklahoma; thence north along the township line to the northeast corner of section twenty-four (24), township three (3) north, range fourteen (14) west; thence east on the section line to the southeast corner of section thirteen (13), township three (3) north, range thirteen (13) west; thence north along the range line between ranges twelve (12) and thirteen (13) west, to the northeast corner of the southeast quarter of section twelve (12), township three (3) north, range thirteen (13) west; thence west to the southwest corner of the northwest quarter of section twelve (12), township three (3) north, range thirteen (13) west; thence north to the southwest corner of section one (1), township three (3) north, range thirteen (13) west; thence west along the section line between sections two (2) and eleven (11), to the southwest corner of section two (2), township three (3) north, range thirteen (13) west; thence north along the section line between sections two (2) and three (3) to the southeast corner of the northeast quarter of section three (3), township three (3) north, range thirteen (13) west; thence west along the center line of sections three (3), four (4), five (5), and six (6), to the southwest corner of the northwest quarter of section six (6), township three (3) north, range thirteen (13) west; thence north along the range line between ranges thirteen (13) and fourteen (14) west to the northeast corner of section one (1), township three (3) north, range fourteen (14) west; thence west along the township line between townships three (3) and four (4) north to the northwest corner of section two (2), township three (3) north, range fourteen (14) west; thence north to the northeast corner of section thirty-four (34), township four (4) north, range fourteen (14) west; thence west to the northwest corner of section thirty-four (34), township four (4) north, range fourteen (14) west; thence north to the northeast corner of the southeast quarter of section twenty-one (21), township four (4) north, range fourteen (14) west; thence west to the southwest corner of the northwest

quarter of section twenty (20), township four (4) north, range fourteen (14) west; thence north to the northeast corner of section eighteen (18), township four (4) north, range fourteen (14) west; thence west to the northwest corner of section seventeen (17), township four (4) north, range fifteen (15) west; thence south to the southwest corner of section twenty-nine (29), township four (4) north, range fifteen (15) west; thence east to the southeast corner of section twenty-nine (29), township four (4) north, range fifteen (15) west; thence south to the southwest corner of section thirty-three (33), township four (4) north, range fifteen (15) west; thence east to the southeast corner of said section thirty-three (33), township four (4) north, range fifteen (15) west; thence south to the southwest corner of the northwest quarter of section ten (10), township three (3) north, range fifteen (15) west; thence east to the southeast corner of the northeast quarter of said section ten; thence south to the southwest corner of section twenty-six (26), township three (3) north, range fifteen (15) west; thence east to the southeast corner of said section twenty-six (26); thence south to the southwest corner of the northwest quarter of section thirty-six (36), township three (3) north, range fifteen (15) west; thence east to the center of section thirty-three (33), township three (3) north, range fourteen (14) west; thence south to the southwest corner of the southeast quarter of said section thirty-three (33); thence east along the township line between townships two (2) and three (3) north to the southeast corner of township three (3) north, range fourteen (14) west, the place of beginning.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

The reservation hereby established shall be known as the Wichita Forest Reserve.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 4th day of July, A.D. 1901, and of the Independence of the United States the one hundred and twenty-sixth.

WILLIAM McKINLEY.

By the President:
DAVID J. HILL
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas by an agreement between the Wichita and affiliated bands of Indians on the one part, and certain commissioners of the United States on the other part, ratified by act of Congress approved March 2, 1895 (28 Stat., 876, 894), the said Indians ceded, conveyed, transferred and relinquished, forever and absolutely, without any reservation whatever, unto the United States of America, all their claim, title and interest of every kind and character in and to the lands embraced in the following described tract of country now in the Territory of Oklahoma, to wit:

Commencing at a point in the middle of the main channel of the Washita River, where the ninety-eighth meridian of west longitude crosses the same, thence up the middle of the main channel of said river to the line of 98° 40' west longitude, thence on said line of 98° 40' due north to the middle of the channel of the main Canadian River, thence down the middle of the said main Canadian River to where it crosses the ninety-eighth meridian, thence due south to the place of beginning.

And whereas, in pursuance of said act of Congress ratifying said agreement, allotments of land in severalty have been regularly made to each and every member of said Wichita and affiliated bands of Indians, native and adopted, and the lands occupied by religious societies or other organizations for religious or educational work among the Indians have been regularly allotted and confirmed to such societies and organizations, respectively;

And whereas, by an agreement between the Comanche, Kiowa and Apache tribes of Indians on the one part, and certain commissioners of the

United States on the other part, amended and ratified by act of Congress, approved June 6, 1900 (31 Stat., 672, 676), the said Indian tribes, subject to certain conditions which have been duly performed, ceded, conveyed, transferred, relinquished and surrendered forever and absolutely, without any reservation whatsoever, expressed or implied, unto the United States of America, all their claim, title and interest of every kind and character in and to the lands embraced in the following described tract of country now in the Territory of Oklahoma, to wit:

Commencing at a point where the Washita River crosses the ninety-eighth meridian west from Greenwich; thence up the Washita River, in the middle of the main channel thereof, to a point thirty miles, by river, west of Fort Cobb, as now established; thence due west to the north fork of Red River, provided said line strikes said river east of the one-hundredth meridian of west longitude; if not, then only to said meridian line, and thence due south, on said meridian line, to the said north Fork of Red River; thence down said north fork, in the middle of the main channel thereof, from the point where it may be first intersected by the lines above described, to the main Red River; thence down said Red River, in the middle of the main channel thereof, to its intersection with the ninety-eighth meridian of longitude west from Greenwich; thence north, on said meridian line, to the place of beginning.

And whereas, in pursuance of said act of Congress ratifying the agreement last named, allotments of land in severalty have been regularly made to each member of said Comanche, Kiowa and Apache tribes of Indians; the lands occupied by religious societies or other organizations for religious or educational work among the Indians have been regularly allotted and confirmed to such societies and organizations, respectively; and the Secretary of the Interior, out of the lands ceded by the agreement last named, has regularly selected and set aside for the use in common for said Comanche, Kiowa and Apache tribes of Indians, four hundred and eighty thousand acres of grazing lands;

And whereas, in the act of Congress ratifying the said Wichita agreement, it is provided—

That whenever any of the lands acquired by this agreement shall, by operation of law or proclamation of the President of the United States, be open to settlement, they shall be disposed of under the general provisions of the homestead and townsite laws of the United States: *Provided*, That in addition to the land-office fees prescribed by statute for such entries the entryman shall pay one dollar and twenty-five cents per acre for the land entered at the time of submitting his final proof: *And provided further*, That in all homestead entries where the entryman has resided upon and improved the land entered in good faith for the period of fourteen months he may commute his entry to cash upon the payment of one dollar and twenty-five cents per acre: *And provided further*, That the

rights of honorably discharged Union soldiers and sailors of the late civil war, as defined and described in sections twenty-three hundred and four and twenty-three hundred and five of the Revised Statutes, shall not be abridged: *And provided further*, That any qualified entryman having lands adjoining the lands herein ceded, whose original entry embraced less than one hundred and sixty acres, may take sufficient land from said reservation to make his homestead entry not to exceed one hundred and sixty acres in all, said land to be taken upon the same conditions as are required of other entrymen: *Provided*, That said lands shall be opened to settlement within one year after said allotments are made to the Indians.

That the laws relating to the mineral lands of the United States are hereby extended over the lands ceded by the foregoing agreement.

And whereas in the act of Congress ratifying the said Comanche, Kiowa and Apache agreement, it is provided—

That the lands acquired by this agreement shall be opened to settlement by proclamation of the President within six months after allotments are made and be disposed of under the general provisions of the homestead and townsite laws of the United States: *Provided*, That in addition to the land office fees prescribed by statute for such entries the entryman shall pay one dollar and twenty-five cents per acre for the land entered at the time of submitting his final proof: *And provided further*, That in all homestead entries where the entryman has resided upon and improved the land entered in good faith for the period of fourteen months he may commute his entry to cash upon the payment of one dollar and twenty-five cents per acre: *And provided further*, That the rights of honorably discharged Union soldiers and sailors of the late civil war, as defined and described in sections twenty-three hundred and four and twenty-three hundred and five of the Revised Statutes shall not be abridged: *And provided further*, That any person who, having attempted to but for any cause failed to secure a title in fee to a homestead under existing laws, or who made entry under what is known as the commuted provision of the homestead law shall be qualified to make a homestead entry upon said lands: *And provided further*, That any qualified entryman having lands adjoining the lands herein ceded, whose original entry embraced less than one hundred and sixty acres in all, shall have the right to enter so much of the lands by this agreement ceded lying contiguous to his said entry as shall, with the land already entered, make in the aggregate one hundred and sixty acres, said land to be taken upon the same conditions as are required of other entrymen: *And provided further*, That the settlers who located on that part of said lands called and known as the "neutral strip" shall have preference right for thirty days on the lands upon which they have located and improved.

That should any of said lands allotted to said Indians, or opened to settlement under this act, contain valuable mineral deposits, such mineral deposits shall be open to location and entry, under the existing mining laws of the United States, upon the passage of this act, and the mineral laws of the United States are hereby extended over said lands.

And whereas, by the act of Congress approved January 4, 1901 (31 Stat., 727), the Secretary of the Interior was authorized to extend, for a period not exceeding eight months from December 6, 1900, the time for making

allotments to the Comanche, Kiowa, and Apache Indians and opening to settlement the lands so ceded by them;

And whereas, in pursuance of the act of Congress approved March 3, 1901 (31 Stat., 1093), the Secretary of the Interior has regularly subdivided the lands so as aforesaid respectively ceded to the United States by the Wichita and affiliated bands of Indians and the Comanche, Kiowa, and Apache tribes of Indians into counties, attaching portions thereof to adjoining counties in the Territory of Oklahoma, has regularly designated the place for the county seat of each new county, has regularly set aside and reserved at such county seat land for a townsite to be disposed of in the manner provided by the act of Congress last named, and has regularly caused to be surveyed, subdivided, and platted the lands so set aside and reserved for disposition as such townsites;

And whereas, by the act of Congress last named, it is provided:

The lands to be opened to settlement and entry under the acts of Congress ratifying said agreements respectively shall be so opened by proclamation of the President, and to avoid the contests and conflicting claims which have heretofore resulted from opening similar public lands to settlement and entry, the President's proclamation shall prescribe the manner in which these lands may be settled upon, occupied, and entered by persons entitled thereto under the acts ratifying said agreements, respectively; and no person shall be permitted to settle upon, occupy, or enter any of said lands except as prescribed in such proclamation until after the expiration of sixty days from the time when the same are opened to settlement and entry.

And whereas, by the act of Congress last named the President was authorized to establish two additional United States land districts and land offices in the Territory of Oklahoma to include the lands so ceded as aforesaid, which land districts and land offices have been established by an order of even date herewith;

And whereas all of the conditions required by law to be performed prior to the opening of said tracts of land to settlement and entry have been, as I hereby declare, duly performed;

Now, therefore, I, William McKinley, President of the United States of America, by virtue of the power vested in me by law, do hereby declare and make known that all of the lands so as aforesaid ceded by the Wichita and affiliated bands of Indians, and the Comanche, Kiowa, and Apache tribes of Indians, respectively, saving and excepting sections sixteen, thirty-six,

thirteen, and thirty-three in each township, and all lands located or selected by the Territory of Oklahoma as indemnity school or educational lands, and saving and excepting all lands allotted in severalty to individual Indians, and saving and excepting all lands allotted and confirmed to religious societies and other organizations, and saving and excepting the lands selected and set aside as grazing lands for the use in common for said Comanche, Kiowa, and Apache tribes of Indians, and saving and excepting the lands set aside and reserved at each of said county seats for disposition as townsites, and saving and excepting the lands now used, occupied, or set apart for military, agency, school, school farm, religious, Indian cemetery, wood reserve, forest reserve, or other public uses, will, on the 6th day of August, 1901, at 9 o'clock A.M., in the manner herein prescribed and not otherwise, be opened to entry and settlement and to disposition under the general provisions of the homestead and townsite laws of the United States.

Commencing at 9 o'clock A.M., Wednesday, July 10, 1901, and ending at 6 o'clock P.M., Friday, July 26, 1901, a registration will be had at the United States land offices at El Reno and Lawton, in the Territory of Oklahoma (the office at Lawton to occupy provisional quarters in the immediate vicinity of Fort Sill, Oklahoma Territory, until suitable quarters can be provided at Lawton), for the purpose of ascertaining what persons desire to enter, settle upon, and acquire title to any of said lands under the homestead law and of ascertaining their qualifications so to do. The registration at each office will be for both land districts, but at the time of registration each applicant will be required to elect and state in which district he desires to make entry. To obtain registration each applicant will be required to show himself duly qualified to make homestead entry of these lands under existing laws and to give the registering officer such appropriate matters of description and identity as will protect the applicant and the government against any attempted impersonation. Registration cannot be effected through the use of the mails or the employment of an agent, excepting that honorably discharged soldiers and sailors entitled to the benefits of section 2304 of the Revised Statutes of the United States, as amended by the act of Congress approved March 1, 1901 (31 Stat., 847), may present their applications for registration and due proofs of their qualifications through an agent of their own selection, but no person will be permitted to act as agent for more than one such soldier or sailor. No person will be permitted

to register more than once or in any other than his true name. Each applicant who shows himself duly qualified will be registered and given a non-transferable certificate to that effect, which will entitle him to go upon and examine the lands to be opened hereunder in the land district in which he elects to make his entry; but the only purpose for which he may go upon and examine said lands is that of enabling him later on, as herein provided, to understandingly select the lands for which he will make entry. No one will be permitted to make settlement upon any of said lands in advance of the opening herein provided for, and during the first sixty days following said opening no one but registered applicants will be permitted to make homestead settlement upon any of said lands, and then only in pursuance of a homestead entry duly allowed by the local land officers or of a soldier's declaratory statement duly accepted by such officers.

The order in which, during the first sixty days following the opening, the registered applicants will be permitted to make homestead entry of the lands opened hereunder, will be determined by drawings for both the El Reno and Lawton districts publicly held at the United States land office at El Reno, Oklahoma, commencing at 9 o'clock A.M., Monday, July 29, 1901, and continuing for such period as may be necessary to complete the same. The drawings will be had under the supervision and immediate observation of a committee of three persons whose integrity is such as to make their control of the drawing a guaranty of its fairness. The members of this committee will be appointed by the Secretary of the Interior, who will prescribe suitable compensation for their services. Preparatory to these drawings the registration officers will, at the time of registering each applicant who shows himself duly qualified, make out a card, which must be signed by the applicant, stating the land district in which he desires to make homestead entry, and giving such a description of the applicant as will enable the local land officers to thereafter identify him. This card will be at once sealed in a separate envelope, which will bear no other distinguishing label or mark than such as may be necessary to show that it is to go into the drawing for the land district in which the applicant desires to make entry. These envelopes will be separated according to land districts and will be carefully preserved and remain sealed until opened in the course of the drawing as herein provided. When the registration is completed all of these sealed envelopes will be brought together at the place of drawing and turned over

to the committee in charge of the drawing, who, in such manner as in their judgment will be attended with entire fairness and equality of opportunity, shall proceed to draw out and open the separate envelopes and to give to each enclosed card a number in the order in which the envelope containing the same is drawn. While the drawings for the two districts will be separately conducted they will occur as nearly at the same time as is practicable. The result of the drawing for each district will be certified by the committee to the officers of the district and will determine the order in which the applicants may make homestead entry of said lands and settlement thereon.

Notice of the drawings stating the name of each applicant and number assigned to him by the drawing will be posted each day at the place of drawing, and each applicant will be notified of his number by a postal-card mailed to him at the address, if any, given by him at the time of registration. Each applicant should, however, in his own behalf employ such measures as will insure his obtaining prompt and accurate information of the order in which his application for homestead entry can be presented as fixed by the drawing. Applications for homestead entry of said lands during the first sixty days following the opening can be made only by registered applicants and in the order established by the drawing. At each land office, commencing Tuesday, August 6, 1901, at 9 o'clock A.M., the applications of those drawing numbers 1 to 125, inclusive, for that district must be presented and will be considered in their numerical order during the first day, and the applications of those drawing numbers 126 to 250, inclusive, must be presented and will be considered in their numerical order during the second day, and so on at that rate until all of said lands subject to entry under the homestead law, and desired thereunder, have been entered. If any applicant fails to appear and present his application for entry when the number assigned to him by the drawing is reached, his right to enter will be passed until after the other applications assigned for that day have been disposed of, when he will be given another opportunity to make entry, failing in which he will be deemed to have abandoned his right to make entry under such drawing. To obtain the allowance of a homestead entry each applicant must personally present the certificate of registration theretofore issued to him, together with a regular homestead application and the necessary accompanying proofs, and with the regular land office fees,

but an honorably discharged soldier or sailor may file his declaratory statement through the agent representing him at the registration. The production of the certificate of registration will be dispensed with only upon satisfactory proof of its loss or destruction. If at the time of considering his regular application for entry it appears that any applicant is disqualified from making homestead entry of these lands his application will be rejected, notwithstanding his prior registration. If any applicant shall register more than once hereunder, or in any other than his true name, or shall transfer his registration certificate he will thereby lose all the benefits of the registration and drawing herein provided for, and will be precluded from entering or settling upon any of said lands during the first sixty days following said opening.

Because of the provision in the said act of Congress approved June 6, 1900: "That the settlers who located on that part of said lands called and known as the 'neutral strip' shall have preference right for thirty days on the lands upon which they have located and improved," the said lands in the "neutral strip" shall for the period of thirty days after said opening be subject to homestead entry and townsite entry only by those who have heretofore located upon and improved the same, and who are accorded a preference right of entry for thirty days as aforesaid. Persons entitled to make entry under this preference right will be permitted to do so at any time during said period of thirty days following the opening without previous registration, and without regard to the drawing herein provided for, and at the expiration of that period the lands in said "neutral strip" for which no entry shall have been made will come under the general provisions of this proclamation.

The intended beneficiaries of the provision in the said acts of Congress, approved, respectively, March 2, 1895, and June 6, 1900, which authorizes a qualified entryman having lands adjoining the ceded lands, whose original entry embraced less than 160 acres, to enter so much of the ceded lands as will make his homestead entry contain in the aggregate not exceeding 160 acres, may obtain such an extension of his existing entry, without previous registration and without regard to the drawing herein provided for, only by making appropriate application, accompanied by the necessary proofs, at the proper new land office at some time prior to the opening herein provided for.

Any person or persons desiring to found, or to suggest establishing a townsite upon any of said ceded lands at any point not in the near vicinity of either of the county seats therein heretofore selected and designated as aforesaid, may, at any time before the opening herein provided for, file in the proper local land office a written application to that effect describing by legal subdivisions the lands intended to be affected, and stating fully and under oath the necessity or propriety of founding or establishing a town at that place. The local officers will forthwith transmit said petition to the Commissioner of the General Land Office with their recommendation in the premises. Such Commissioner, if he believes the public interests will be subserved thereby, will, if the Secretary of the Interior approve thereof, issue an order withdrawing the lands described in such petition, or any portion thereof, from homestead entry and settlement and directing that the same be held for the time being for townsite settlement, entry, and disposition only. In such event the lands so withheld from homestead entry and settlement will, at the time of said opening and not before, become subject to settlement, entry, and disposition under the general townsite laws of the United States. None of said ceded lands will be subject to settlement, entry, or disposition under such general townsite laws except in the manner herein prescribed until after the expiration of sixty days from the time of said opening.

Attention is hereby especially called to the fact that under the special provisions of the said act of Congress approved March 3, 1901, the townsites selected and designated at the county seats of the new counties into which said lands have been formed cannot be disposed of under the general townsite laws of the United States, and can only be disposed of in the special manner provided in said act of Congress, which declares:

The lands so set apart and designated shall, in advance of the opening, be surveyed, subdivided, and platted, under the direction of the Secretary of the Interior, into appropriate lots, blocks, streets, alleys, and sites for parks or public buildings, so as to make a townsite thereof: *Provided*, That no person shall purchase more than one business and one residence lot. Such town lots shall be offered and sold at public auction to the highest bidder, under the direction of the Secretary of the Interior, at sales to be had at the opening and subsequent thereto.

All persons are especially admonished that under the said act of Congress approved March 3, 1901, it is provided that no person shall be permitted to settle upon, occupy, or enter any of said ceded lands except in the manner

prescribed in this proclamation until after the expiration of sixty days from the time when the same are opened to settlement and entry. After the expiration of the said period of sixty days, but not before, any of said lands remaining undisposed of may be settled upon, occupied and entered under the general provisions of the homestead and townsite laws of the United States in like manner as if the manner of effecting such settlement, occupancy and entry had not been prescribed herein in obedience to law.

It appearing that there are fences around the pastures into which, for convenience, portions of the ceded lands have heretofore been divided, and that these fences are of considerable value and are still the property of the Indian tribes ceding said lands to the United States, all persons going upon examining, entering or settling upon any of said lands are cautioned to respect such fences as the property of the Indians and not to destroy, appropriate, or carry away the same, but to leave them undisturbed so that they may be seasonably removed and preserved for the benefit of the Indians.

The Secretary of the Interior shall prescribe all needful rules and regulations necessary to carry into full effect the opening herein provided for.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington this 4th day of July, A.D. 1901, and of the Independence of the United States the one hundred and twenty-sixth.

[SEAL.]

WILLIAM McKINLEY.

By the President:
DAVID J. HILL,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas the Olympic Forest Reserve, in the State of Washington, was established by proclamation dated February 22, 1897, under and by virtue of section twenty-four of the act of Congress, approved March 3, 1891, entitled "An act to repeal timber-culture laws, and for other purposes," which provides, "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public lands bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas it is further provided by the act of Congress, approved June 4, 1897, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30, 1898, and for other purposes," that "The President is hereby authorized at any time to modify any executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve;" under which provision, certain lands were withdrawn and excluded from the said forest reserve by proclamation dated April 7, 1900;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power vested in me by the aforesaid act of Congress, approved June 4, 1897, do hereby make known and proclaim that the boundary lines of the aforesaid Olympic Forest Reserve are hereby further changed so as to read as follows:

Beginning at the northeast corner of township twenty-one (21) north, range five (5) west, Willamette Meridian, Washington; thence northerly to the southeast corner of section twenty-five (25), township twenty-three (23) north, range five (5) west, thence westerly to the southwest corner of said

section; thence northerly to the northwest corner of said section; thence westerly to the southwest corner of section twenty-three (23), said township; thence northerly to the northwest corner of said section; thence westerly to the southwest corner of section fifteen (15), said township; thence northerly to the northwest corner of section ten (10), said township; thence easterly to the northeast corner of section twelve (12), said township; thence northerly to the northwest corner of township twenty-three (23) north, range four (4) west; thence easterly to the northeast corner of said township; thence northerly to the northwest corner of township twenty-four (24) north, range three (3) west; thence easterly to the northeast corner of said township; thence northerly to the southwest corner of township twenty-eight (28) north, range two (2) west; thence easterly to the southeast corner of the southwest quarter of section thirty-three (33), said township; thence northerly along the quarter-section lines to the northeast corner of the northwest quarter of section twenty-one (21), township twenty-nine (29) north, range two (2) west; thence westerly along the section lines to the point for the southwest corner of section eighteen (18), township twenty-nine (29) north, range five (5) west; thence northerly to the northwest corner of said township; thence westerly to the southeast corner of township thirty (30) north, range eight (8) west; thence northerly to the northeast corner of section twenty-five (25), said township; thence westerly to the southwest corner of section twenty (20), said township; thence northerly to the northeast corner of section eighteen (18), said township; thence westerly to the point for the northeast corner of section thirteen (13), township thirty (30) north, range ten (10) west; thence northerly to the northeast corner of said township; thence westerly to the northwest corner of township thirty (30) north, range eleven (11) west; thence southerly to the southwest corner of section nineteen (19), said township; thence easterly to the southwest corner of section twenty-three (23), township thirty (30) north, range ten (10) west; thence southerly to the southwest corner of section thirty-five (35), said township; thence westerly to the northeast corner of section three (3), township twenty-nine (29), range eleven (11) west; thence southerly to the point for the northeast corner of section twenty-seven (27), said township; thence westerly to the point for the northwest corner of section thirty (30), said township; thence southerly to the southwest corner of said township; thence westerly to the northwest corner of township twenty-eight (28), range twelve (12) west; thence southerly to the southwest corner of

said township; thence easterly to the northeast corner of township twenty-seven (27) north, range eleven (11) west; thence southerly to the southeast corner of section one (1), said township; thence westerly to the northwest corner of section ten (10), township twenty-seven (27) north, range twelve (12) west; thence southerly to the southwest corner of section fifteen (15), said township; thence easterly to the southwest corner of section thirteen (13), said township; thence southerly to the southwest corner of section twenty-four (24), said township; thence easterly to the northeast corner of section twenty-five (25), township twenty-seven (27) north, range eleven (11) west; thence southerly to the southeast corner of said township; thence westerly to the southwest corner of said township; thence southerly to the southwest corner of township twenty-five (25) north, range eleven (11) west; thence easterly to the northeast corner of township twenty-four (24) north, range eleven (11) west; thence southerly to the southeast corner of said township; thence westerly along the township line to its point of intersection with the north boundary of the Quinaielt Indian Reservation; thence southeasterly along the north boundary of said Indian Reservation to the eastern point of said reservation and southwesterly along the east boundary thereof to the point of intersection with the township line between townships twenty-one (21) and twenty-two (22) north; thence easterly to the northeast corner of township twenty-one (21) north, range ten (10) west; thence southerly to the southeast corner of section one (1), said township; thence easterly to the southwest corner of section six (6), township twenty-one (21) north, range eight (8) west; thence southerly to the southwest corner of section eighteen (18), said township; thence easterly to the southeast corner of section sixteen (16), said township; thence northerly to the northeast corner of section four (4), said township; thence easterly to the northeast corner of section six (6), township twenty-one (21) north, range seven (7) west; thence southerly to the southeast corner of said section; thence easterly to the northeast corner of section twelve (12), said township; thence southerly to the southeast corner of said section; thence easterly to the northeast corner of section sixteen (16), township twenty-one (21) north, range six (6) west; thence northerly to the point for the northeast corner of section nine (9), said township; thence easterly to the southwest corner of section six (6), township twenty-one (21) north, range five (5) west; thence northerly to the northwest corner of said township; thence easterly to the northeast corner of said township, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entry-man, settler, or claimant continues to comply with the law under which the entry, filing, or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the lands reserved by this proclamation.

That the lands hereby restored to the public domain shall be open to settlement from date hereof, but shall not be subject to entry, filing, or selection until after ninety days' notice by such publication as the Secretary of the Interior may prescribe.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington, this 15th day of July, A.D. 1901, and of the Independence of the United States the one hundred and twenty-sixth.

[SEAL.]

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

[CESSATION OF TARIFF—PORTO RICO.]

Whereas, by an act of Congress, approved April 12, 1900, entitled "an Act Temporarily to Provide Revenues and a Civil Government for Porto

Rico and for other Purposes," it was provided that, "whenever the legislative assembly of Porto Rico shall have enacted and put into operation a system of local taxation to meet the necessities of the government of Porto Rico, by this act established, and shall by resolution duly passed so notify the President, he shall make proclamation thereof, and thereupon all tariff duties on merchandise and articles going into Porto Rico from the United States or coming into the United States from Porto Rico shall cease, and from and after such date all such merchandise and articles shall be entered at the several ports of entry free of duty;" and

Whereas by the same act it was provided, "that as soon as a civil government for Porto Rico shall have been organized in accordance with the provisions of this act, and notice thereof shall have been given to the President, he shall make proclamation thereof, and thereafter all collections of duties and taxes in Porto Rico under the provisions of this act shall be paid into the treasury of Porto Rico, to be expended as required by law for the government and benefit thereof, instead of being paid into the Treasury of the United States;" and

Whereas the legislative assembly of Porto Rico has enacted and put into operation a system of local taxation to meet the necessities of the government of Porto Rico as aforesaid, and has passed and caused to be communicated to me the following resolution:

A Joint Resolution of the Legislative Assembly of Porto Rico, notifying the President of the United States that the Legislative Assembly of Porto Rico has enacted and put into operation a system of local taxation to meet the necessities of the Government of Porto Rico, established by act of Congress, entitled "An act temporarily to provide revenues and a Civil Government for Porto Rico, and for other purposes," duly approved April 12th, 1900:

Be it Resolved by the Legislative Assembly of Porto Rico:

Whereas: A civil government for Porto Rico has been fully and completely organized in accordance with the provisions of an act of Congress entitled "An act temporarily to provide revenues and a civil government for Porto Rico, and for other purposes," duly approved April 12th, 1900, and:

Whereas: It was provided by the terms of said act of Congress, that whenever the Legislative Assembly of Porto Rico shall have enacted and put into operation a system of local taxation to meet the necessities of the Government of Porto Rico, by the aforesaid act established, and shall by resolution duly passed so notify the President, he shall make proclamation thereof, and thereupon all tariff duties on merchandise and articles going into Porto Rico from the United States, or coming into the United States from Porto Rico

shall cease, and from and after such date all such merchandise and articles shall be entered at the several ports of entry free of duty:

Now therefore: The Legislative Assembly of Porto Rico in extraordinary session duly called by the Governor and held at San Juan, the Capital, on July 4th, A.D. 1901, acting pursuant to the authority and power in it vested by the provisions of the said act of Congress above referred to, does hereby notify the President of the United States that by virtue of an act of the Legislative Assembly of Porto Rico, entitled, "An act to provide revenue for the people of Porto Rico, and for other purposes," duly approved January 31st, A.D. 1901, and of other acts of the Legislative Assembly duly enacted at the first session of the Legislative Assembly of Porto Rico, duly held at San Juan, Porto Rico, commencing December 3rd, 1900, and ending January 31st, A.D. 1901, it has enacted and put into operation a system of local taxation to meet the necessities of the Government of Porto Rico, by the aforesaid act of Congress established.

The Legislative Assembly of Porto Rico hereby directs that a copy of this joint resolution be presented to the President of the United States, and hereby requests the Governor of Porto Rico to deliver the same to the President, to the end that proclamation may be made by him according to the provisions of the said act of Congress, and if it shall seem wise and proper to the President, that such proclamation may issue on the 25th day of July, the said day being a legally established holiday in Porto Rico commemorating the anniversary of the coming of the American flag to the Island.

WILLIAM H. HUNT,
President of the Executive Council.

MAN. F. ROSSY,
Speaker of the House of Delegates.

Approved, July 4th, A.D. 1901.

CHAS. H. ALLEN,
Governor.

Now, therefore, I, William McKinley, President of the United States, in pursuance of the provisions of law above quoted, and upon the foregoing due notification, do hereby issue this my proclamation, and do declare and make known that a civil government for Porto Rico has been organized in accordance with the provisions of the said act of Congress;

And I do further declare and make known that the Legislative Assembly of Porto Rico has enacted and put into operation a system of local taxation to meet the necessities of the government of Porto Rico.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 25th day of July, A.D. 1901, and of the Independence of the United States the one hundred and twenty-sixth.

WILLIAM McKINLEY.

By the President:
DAVID J. HILL,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, it is provided by section twenty-four of the act of Congress, approved March third, eighteen hundred and ninety-one, entitled "An act to repeal the timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, the public lands in the State of Utah, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, William McKinley, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a Public Reservation all

those certain tracts, pieces or parcels of land lying and being situate in the State of Utah and particularly described as follows, to wit:

Beginning at the northeast corner of section four (4), township ten (10) south, range three (3) east, Salt Lake base and Meridian, Utah; thence westerly along the township line to the northwest corner of section five (5), township ten (10) south, range two (2) east; thence southerly to the northeast corner of section nineteen (19), said township; thence westerly to the northwest corner of said section; thence southerly along the range line to the southwest corner of township twelve (12) south, range two (2) east; thence easterly to the southeast corner of said township; thence northerly to the northwest corner of section thirty (30), township eleven (11) south, range three (3) east; thence easterly to the southeast corner of section twenty-one (21), said township; thence northerly along the section line to the northeast corner of section four (4), township ten (10) south, range three (3) east, to the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

The reservation hereby established shall be known as The Payson Forest Reserve.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this 3d day of August, A.D. 1901, and of the Independence of the United States the one hundred and twenty-sixth.

WILLIAM McKINLEY.

By the President:
ALVEY A. ADEE,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas notice has been given me by the Louisiana Purchase Exposition Commission, in accordance with the provisions of section 9 of the act of Congress, approved March 3, 1901, entitled "An act to provide for celebrating the one hundredth anniversary of the purchase of the Louisiana territory by the United States by holding an international exhibition of arts, industries, manufactures, and the products of the soil, mine, forest and sea, in the city of St. Louis, in the State of Missouri," that provision has been made for grounds and buildings for the uses provided for in the said act of Congress:

Now, therefore, I, William McKinley, President of the United States, by virtue of the authority vested in me by said act, do hereby declare and proclaim that such International Exhibition will be opened in the city of St. Louis, in the State of Missouri, not later than the first day of May, 1903, and will be closed not later than the first day of December thereafter. And in the name of the Government and of the people of the United States, I do hereby invite all the nations of the earth to take part in the commemoration of the Purchase of the Louisiana Territory, an event of great interest to the United States and of abiding effect on their development, by appointing representatives and sending such exhibits to the Louisiana Purchase Exposition as will most fitly and fully illustrate their resources, their industries and their progress in civilization.

In testimony whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington, this 20th day of August, A.D. 1901, and of the Independence of the United States, the one hundred and twenty-sixth.

[SEAL.]

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

EXECUTIVE ORDERS.

EXECUTIVE MANSION, *March 28, 1898.*

It is hereby ordered that the following described tract of land situate on Kadiak Island, District of Alaska, be temporarily reserved and set apart as an experiment station for the use of the Department of Agriculture:

Beginning at a point in the easterly boundary line of the property now occupied by the Russian Greek Church in the village of Kadiak on Kadiak Island, Alaska; thence southeasterly to the water front on the Bay of Chiniak; thence following said water front one-half mile northeasterly to a point; thence northwesterly one-half mile to a point; thence southwesterly one-half mile to a point; thence southeasterly to a point of beginning, embracing 160 acres of land, more or less.

Provided that the temporary reservation above described shall not interfere with any prior rights of the natives or others to land within said reservation.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *July 27, 1898.*

It is hereby ordered that the following described land situated on the Yukon River in the District of Alaska, be and here is reserved and set apart for the uses and purposes of a townsite, said land to be held subject to the townsite law or laws that are or may become applicable to the public lands in the District of Alaska, and so long as this reservation remains in force to be subject to disposition in no other manner whatever, to wit:

A tract of land commencing at a post on the right or north bank of the Yukon River, about one-half mile below Mayos Landing, marked U.S.M.R.;

thence north from said post one mile; thence east two miles; thence south to the bank of the Yukon River; thence southwesterly along the bank of said river to the place of beginning, containing two square miles, more or less.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *August 6, 1898.*

Paragraph 576 of the Consular Regulations is hereby amended so as to read as follows:

576. Consular Agents will be governed by the foregoing requirements in relation to official services and will render their quarterly reports in accordance with the prescribed forms to the principal Consular Officer who will transmit the same to the Auditor for the State and other Departments.

The amounts which may be found due at the Treasury on account of services rendered to American vessels and seamen will in all cases be sent by Treasury Warrant to the address of and payable to the order of the officer entitled thereto.

Forms Nos. 190 and 191 are established in full force and authority as parts of the Consular Regulations of September 30, 1898.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *January 31, 1899.*

It is hereby ordered that the following described tract of land situate near the north bank of Cook Inlet, adjoining the town of Kenai on the north, District of Alaska, be and it is hereby set apart as an agricultural experiment station, subject to any existing legal rights thereto, it being more particularly described in the field notes of the survey thereof, executed by C.C. Georgeson, Special Agent in charge of investigations, in August, 1898,

under the direction of the Secretary of Agriculture, and shown on his plat of survey, all bearings being magnetic, to wit:

Beginning at a point located near the Russian Parsonage and Church, from which the nearest log barn belonging to the parsonage bears S. 68° 50' E. 65 ft.; the spire of the church bearing S. 8° E. to the southeast corner of the cemetery fence, bearing north 13° W. 361 ft.; thence N. 9° W. 5,808 ft. to a point for the northeast corner of the tract; thence S. 9° E. 5,808 feet to a point for the southeast corner of the tract; thence S. 81° W. 2,400 feet to the place of beginning, containing 320 acres of land, more or less.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *February 3, 1899.*

I, William McKinley, President of the United States, by virtue of the authority vested in me by Sections 3141 and 3142 of the Revised Statutes of the United States, hereby order:

That the counties of Alger, Baraga, Chippewa, Delta, Dickinson, Gogebic, Houghton, Iron, Keweenaw, Luce, Mackinac, Marquette, Menominee, Ontonagon and Schoolcraft, now a part of the First Internal Revenue Collection District of Michigan be transferred to and made a part of the Fourth Internal Revenue Collection District of Michigan.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., April 1, 1899.*

Under the Provisions of Section 2060, Revised Statutes, the Headquarters of the new Neech Lake Indian Agency in Minnesota are hereby ordered to be established on the tracts of land to be reserved for that purpose and which are known as parts of township 142, range 31 west, 5th Meridian, as

described in the recommendation of the Commission of Indian Affairs, approved by the Secretary of the Interior.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., April 1, 1899.*

It is hereby ordered that the Fort Stanton abandoned military reservation, New Mexico, containing ten thousand two hundred and forty (10,240) acres, more or less, with the buildings thereon be, and it is hereby reserved and set apart for the use of the Marine Hospital Service.

Except that the force and effect of this order shall not apply to any lands to which, prior to the date hereof, valid claims may have been attached under the Homestead or Mineral Land Laws.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., April 1, 1899.*

The change in location of the Office of the Humboldt Land District in California from Humboldt to Eureka is hereby ordered, under the provision of Section 2251 in the Revised Statutes of the United States.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., April 3, 1899.*

It is fitting that in behalf of the Nation, tribute of honor be paid to the memories of the noble men who lost their lives in their country's service during the late war with Spain.

It is more fitting, inasmuch as in consonance with a spirit of our free institutions, and in obedience to the most exalted prompting of patriotism, those who were sent to other shores to do battle for their country's honor, under their country's flag, went freely from every quarter of our beloved clime; each soldier, each sailor parting from home ties and putting behind him private interest in the presence of the stern emergency of unsought war with an alien foe, was an individual type of that devotion of the citizen to the State which makes our Nation strong in unity and action.

Those who died in other lands left in many homes the undying memories that attend the honored dead of all ages. It was fitting with the advent of peace, won by their sacrifice, their bodies should be gathered with tender care and restored to home and country. This has been done with the dead of Cuba and Puerto Rico. Those of the Philippines still rest where they fell, watched over by their surviving comrades and mourned with the love of a grateful nation.

The remains of many brought to our shores have been delivered to their families for private burial, but for others of the brave officers and men who perished, there has been reserved interment in the ground sacred to the soldiers and sailors, and amid tributes of national memories they have so well deserved.

I therefore order:

That upon the arrival of the cortege at the National Cemetery at Arlington, all proper military and naval honors be paid to the dead heroes; that suitable ceremonies shall attend their interment; that the customary salute of mourning be fired at the cemetery, and that on the same day at two o'clock P.M., Thursday, the sixth day of April, the National ensign be displayed at half staff on all public buildings, forts, camps and public vessels of the United States, and that at twelve o'clock noon of said day all the Departments of the Government at Washington shall be closed.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., April 6, 1899.*

In accordance with the provision of the Act of Congress approved June 4, 1897 (30 stat., 36), and by virtue of the authority thereby given and on the recommendation of the Secretary of the Interior, it is hereby ordered that the east half of the northwest quarter and the west half of the northeast corner of section twenty (20), township ten (10) south, range five (5) east, Willamette Meridian, Oregon, with the limits of the Cascade Range Forest Reservation, be restored to the Public Domain after sixty days' notice hereof by publication, as required by law, these tracts having been found better adapted to agricultural than forest purposes.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., May 6, 1899.*

By virtue of the authority vested in me as Commander-in-Chief of the Army and Navy of the United States, I hereby order and direct that during the maintenance of the Military Government of the United States in the Island of Puerto Rico and all Islands in the West Indies, east of the 74th degree west longitude, evacuated by Spain, there are hereby created and shall be maintained the offices of Auditor of the Islands, one Assistant Auditor for auditing the accounts of the Department of Customs and one Assistant Auditor for auditing the accounts of the Department of Postoffices who shall be appointed by the Secretary of War and whose duty shall be to audit all accounts of the Islands.

There is hereby created and shall be maintained the office of Treasurer of the Islands, which shall be filled by the appointment thereto of an officer of the regular army of the United States. The Treasurer of the Islands shall receive and keep all moneys arising from the revenues of the Islands and shall disburse or transfer the same only upon warrants issued by the Auditor of the Islands and countersigned by the Governor-General.

All rules and instructions necessary to carry into effect the provisions of Executive Orders relating to said Islands shall be issued by the Secretary of

War.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., May 6, 1899.*

By virtue of the authority vested in me as Commander-in-Chief of the Army and Navy of the United States, I hereby order and direct that during the maintenance of Military Government of the United States in the Island of Cuba and all Islands in the West Indies, west of the 74th degree west longitude, evacuated by Spain, there are hereby created and shall be maintained the offices of the Auditor of the Islands, one Assistant Auditor for auditing the accounts for the Department of Customs, and one Assistant Auditor for auditing the accounts of the Department of Postoffices who shall be appointed by the Secretary of War and whose duties shall be to audit all accounts of the Islands.

There is hereby created and shall be maintained the office of Treasurer of the Islands which shall be filled by the appointment thereto of an officer of the regular army of the United States. The Treasurer of the Islands shall receive and keep all moneys arising from the revenues of the Islands and shall disburse or transfer the same only upon warrants issued by the Auditor of the Islands and countersigned by the Governor-General.

All rules and instructions necessary to carry into effect the provisions of Executive Orders relating to said Islands shall be issued by the Secretary of War.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., May 10, 1899.*

In accordance with the provisions of Act of Congress approved June 4th, 1897 (30 Stat. 36), and by virtue of the authority thereby given and on recommendation of the Secretary of the Interior, it is hereby ordered that Baker Lake and the surrounding lands within half mile of the shore thereof within the limits of the Washington Forest Reserve, State of Washington, be and they are hereby withdrawn from the operation of the proclamation dated February 22nd, 1897, creating such reserve are hereby reserved and set apart for the use of the United States Commission of Fish and Fisheries for the purpose of a Fish Cultural station.

Provided, That the Lake and surrounding land above described shall again become subject to the operation of the proclamation creating the Washington Forest Reserve whenever the use thereof for fish cultural purposes shall be abandoned by the United States Commission of Fish and Fisheries.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *May 13, 1899.*

In the exercise of the power conferred upon me by the joint resolution of Congress, approved by the President on July 7, 1898, entitled "Joint Resolution to provide for annexing the Hawaiian Islands to the United States" the President of the United States hereby directs that the General Election provided for by the constitution of the Republic of Hawaii to be held on the last Wednesday in September next shall not be held. All elective officers whose terms of office shall expire before appropriate legislation shall have been enacted by the Congress of the United States shall be continued in their offices at the pleasure of the President of the United States.

[SEAL.]

In witness whereof I have caused the seal of the United States to be hereunto affixed.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., May 23, 1899.*

To the Heads of the Executive Departments and the Public Printer:

It is hereby ordered that upon Wednesday, the 24th instant, the employees of the executive departments and the government printing office shall be excused from duty at 12:00 o'clock noon to enable them to participate in the Civic parade and other exercises of the Peace Jubilee on that day.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *June 10, 1899.*

Consular court fees and fines imposed and collected by consular courts are hereby declared to be official. They are to be used to defer the expenses of consular courts, and detailed accounts of receipts and expenditures are to be rendered to the Secretary of State on the 30th of June of each year. Any surplus remaining at the end of the year after the expenses of the courts have been paid is to be turned into the Treasury.

The portions of the Executive Order of July 29, 1897, and the consular regulations in conflict with this order are hereby amended.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., June 16, 1899.*

Officers of the Customs in the Islands of Cuba may authorize the clearance under a permit for foreign ports, ports of the United States of

vessels owned prior to June 1st, 1899 by residents of Cuba and owned at the time of clearance by citizens of Cuba under the signal and coast permit of Cuba. Such vessels may carry the American flag above the distinctive signal for the purpose of indicating that the Government of the United States pursuant to treaty has assumed and will discharge the obligations that may under International law result from the fact of the occupation of Cuba for the protection of life and property.

In granting such clearance under a permit vessels of the customs will advise masters or owners that clearance under permit and the use of the flag of the United States hereby authorized do not confer upon such vessels any rights and privileges which are conferred upon vessels of the United States by the status of treaties of the United States. The rights and privileges of such a vessel as to enter clearance dues, charges, etc., in foreign ports and in ports of the United States will be determined by the laws of the country in which the port may be situated.

Such vessel upon entering into a port of the United States would be subject to the provisions of Sections 2497, 4219 and 4225 of the Revised Statutes and such other laws as may be applicable.

The form and manner of the issuance of permits provided for in this paragraph shall be prescribed by the Secretary of War.

Tariff Circular No. 71, dated Washington, May 25th, 1899, is hereby rescinded.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., June 27, 1899.*

By virtue of the authority vested in me as Commander-in-Chief of the Army and Navy, I hereby order and direct that during the maintenance of the Military Government of the United States in the Island of Cuba and all islands of the West Indies west of the 74th degree, west longitude, evacuated by Spain, there are hereby created and shall be maintained, in

addition to the office created by executive order of May 8, 1899, the office of Assistant Auditor for auditing the accounts of the departments of Internal Revenue and one Assistant Treasurer in the office of the Treasurer of the islands, who shall be appointed by the Secretary of War.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., July 3, 1899.*

1. Officers of the Customs in the Island of Puerto Rico, ceded to the United States by Spain, may issue a certificate of protection, entitling a vessel to which it is issued to the protection and flag of the United States on the high seas and in all ports, if the vessel is owned by:

- a.* A citizen of the United States residing in Puerto Rico.
- b.* A native inhabitant of Puerto Rico upon taking oath of allegiance to the United States.
- c.* Resident of Puerto Rico before April 11, 1899, hitherto a subject of Spain, upon abjuring his allegiance to the crown of Spain and taking the oath of allegiance to the United States.

2. The master and the watch officers of a vessel to which a certificate of protection is issued shall be citizens of the United States or shall take the oath of allegiance to the United States, providing that the general commanding the forces of the United States in Puerto Rico may in his discretion in special cases waive these requirements in whole or in part.

3. Such certificate of protection shall entitle vessel to the same privileges and subject it to the same disabilities as are prescribed in Article XX of the Consular Regulations of 1896 for American or foreign built vessels transferred abroad to citizens of the United States.

4. The form and manner of the issue of certificates of protection provided for in this order shall be prescribed by the Secretary of War.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., July 3, 1899.*

1. Officers of the Customs in the Philippine Islands, ceded to the United States by Spain, may issue a certificate of protection entitling the vessel to which it is issued to the protection and flag of the United States on the High Seas and in all ports, if the vessel is owned by:

- a.* A citizen of the United States residing in the Philippine Islands.
- b.* A native inhabitant of the Philippine Islands upon taking the oath of allegiance to the United States.
- c.* Residents of the Philippine Islands before April 11th, 1899 hitherto a subject of Spain, upon abjuring his allegiance to the Crown of Spain and taking the oath of allegiance to the United States.

2. The master and watch officer of a vessel to which a certificate of Protection is issued shall be citizens of the United States or shall take the oath of allegiance to the United States, providing that the General commanding the forces of the United States in Philippine Islands may, in his discretion in special cases, waive this requirement in whole or in part.

3. Such certificate of protection shall entitle the vessel to the same privileges and subject it to the same disabilities as are prescribed in Article XX of the Consular Regulations of 1896 for American or foreign vessels transferred abroad to citizens of the United States.

4. The form and manner of the issue of certificates of protection provided for in this order shall be prescribed by the Secretary of War.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., July 24, 1899.*

To the Secretary of the Treasury:

SIR:—It is provided in the "Act making appropriation for sundry civil expenses of the Government for the fiscal year ending June 30th, 1900, and

for other purposes" that "The President of the United States is hereby authorized in case of threatened or actual epidemic of cholera, yellow fever, smallpox, bubonic plague or Chinese plague or black death to use the unexpended balance of the sums appropriated and reappropriated by the Sundry Civil Appropriation Act, approved July 1st, 1898, and the act making appropriation to supply discrepancies in the appropriations approved July 7th, 1898, and one hundred thousand dollars (\$100,000.00) in addition thereto or so much thereof as may be necessary in the aid of State and local boards or otherwise in his discretion in preventing and suppressing the spread of the same and in such emergencies in the execution of any quarantine laws which may be then in force."

You are hereby directed to take charge of this expenditure for the purpose of enforcing the above provisions, and you are directed to employ for that purpose the Marine Hospital Service and to provide such other means as are necessary for the purpose aforesaid and to carry out such rules and regulations as may have been or shall be made by you in conformity therewith.

You will carefully supervise and examine all expenditures made in executing the aforesaid law and submit to me from time to time reports of such expenditures and statements of the work done.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., August 17, 1899.*

To the People of Cuba:

The disorganized condition of your island, resulting from the war and the absence of any generally recognized authority aside from the temporary Military Control of the United States, has made it necessary that the United States should follow the restoration of order and peaceful industry by giving its assistance and supervision to the successive steps by which you will proceed to the establishment of an effective system of self-government.

As a preliminary step in the performance of this duty I have directed that a census of the people of Cuba be taken, and have appointed competent and disinterested citizens of Cuba as Enumerators and Supervisors.

It is important for the proper arrangement of your new Government that the information sought shall be fully and accurately given and I request that by every means in your power you aid the officers appointed in the performance of their duties.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., September 2, 1899.*

To the Secretary of the Treasury:

SIR:—You are directed to transfer an additional sum of five thousand dollars (\$5,000.00) from the appropriation made by the Joint Resolution approved July 7, 1898, entitled, "Joint Resolution to provide for the annexation of the Hawaiian Islands to the United States," to be expended at the discretion of the Executive and for the purpose of carrying that Joint Resolution into effect for the expenditure and enforcement of the Chinese Exclusion Laws in the Hawaiian Islands under the clause in said Resolution restricting the emigration of the Chinese to the Islands.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., September 11, 1899.*

Hon. JOHN HAY,
Secretary of State

You will notify the President of Hawaii that the Government of Hawaii has no power to make any sale or dispose of the public lands in the Islands. That all proceedings taken or pending for such sale or disposition should be

discontinued and that if any sales or agreements for sale have been made since the adoption of the Resolution of Annexation the purchasers should be notified that the same are null and void and any consideration paid to the legal authorities on account thereof should be refunded.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., September 18, 1899.*

In the exercise of the power conferred upon me by the Joint Resolution of Congress, approved by the President on July 7th, 1898, entitled "Joint Resolution to provide for annexing the Hawaiian Islands to the United States," the President of the United States hereby directs that the issue of Registers to vessels by the Authorities of Hawaii entitling such vessels to all the rights and privileges of Hawaiian vessels in the ports of Nations or upon the High Seas, shall hereafter cease.

[SEAL.]

In witness whereof I have caused the seal of the United States to be hereunto affixed.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., September 29, 1899.*

It is hereby ordered that the several Executive Departments, the Government Printing Office and the Navy Yard and Station at Washington be closed on Tuesday, October 3rd, to enable the employees to participate in the ceremonies attending the Reception of Admiral Dewey, United States Navy, and the presentation of the Sword of Honor to him, as authorized by a Joint Resolution of Congress, approved June 3rd, 1899.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., November 4, 1899.*

In furtherance of interchange between those absent in the service of their country and their families at home, it is hereby ordered that packages and parcels of mailable matter and containing only articles desired as gifts and souvenirs, and so marked, and with no commercial purpose, and not for sale, from Officers, Soldiers and Sailors serving in the Army and Navy and other persons employed in the Civil Service of the United States, in Hawaii, Puerto Rico, Guam, Philippine Islands and Cuba addressed to members of their families in the United States, or packages of the same personal character addressed from the United States to Officers, Soldiers, Sailors and others in the Public Service in said Islands may be sent through the mails, subject only to the domestic postal regulations of the United States.

The details of the execution of this order with all necessary safeguards will devolve on the Secretary of War and Postmaster-General.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., November 10, 1899.*

In accordance with the law that prescribes that the Army and Navy General Hospital at Hot Springs, Ark., "shall be subject to such rules, regulations, and restrictions as shall be provided by the President of the United States," the following amendment of the rules and regulations provided for its government in Executive Order of August 25, 1892, is authorized:

Enlisted men on the active list while under treatment or on duty in the hospital shall have the usual allowance of rations commuted at the rate of not to exceed forty cents (40 c.) per day for enlisted men in the army and thirty cents (30 c.) per day for enlisted men in the navy, to be paid to the Senior Medical Officer by the proper officers of the War and Navy

Departments upon the receipt of monthly statements of accounts duly certified by the Surgeon-General of the Army.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *December 1, 1899.*

To all to whom these presents shall come; greeting:

Know ye, that reposing special trust and confidence in the integrity, prudence, and ability of John Hay, Secretary of State of the United States, I have invested him with full and all manner of power and authority, for me and in the name of the United States, to meet and confer with any person or persons duly authorized by the Government of his Imperial Majesty the German Emperor, King of Prussia, and the Government of her Britannic Majesty being entrusted with like power and authority, and with them to negotiate, conclude, and sign a convention to adjust amicably the questions which have arisen between the three Governments in respect to the Samoan group of islands, the same to be transmitted to the President of the United States for his ratification by and with the advice and consent of the Cabinet thereof.

In testimony whereof I have caused the seal of the United States to be hereunto affixed.

[SEAL.]

Given under my hand at the city of Washington, the 1st day of December, in the year of our Lord 1899, and of the Independence of the United States the one hundred and twenty-third.

WILLIAM McKINLEY.

By the President:
JOHN HAY,
Secretary of State.

EXECUTIVE MANSION, *Washington, D.C., January 3, 1900.*

To prevent the introduction of epidemic diseases, it is ordered that provisions of the act of Congress, approved February 15, 1893, entitled, "An act granting additional quarantine powers and imposing additional duties upon the Marine Hospital Service," and all rules and regulations heretofore or hereafter prescribed by the Secretary of the Treasury under that act are to be given full force and effect in the Philippine Islands in so far as they are applicable, and the following additional rules and regulations are hereby promulgated:

The examination in ports of the Philippine Islands of incoming and outgoing vessels, and the necessary surveillance over their sanitary condition as well as of cargo, officers, crew and all personal effects is vested in and will be conducted by the Marine Hospital Service, and Medical Officers of that service will be detailed by the Secretary of the Treasury as Quarantine Officers at Ports of Manila and Iloilo immediately and at other ports in the Philippine Islands as soon as practicable or necessary.

Quarantine Officers shall have authority over incoming vessels, their wharfage and anchorage in so far as it is necessary for the proper enforcement of the quarantine regulations, including vessels of the Army Transport Service and non-combatant vessels of the Navy.

Collectors of Customs at ports of entry will not permit entry without quarantine certificates.

Any vessel leaving any port in the Philippine Islands for any port in the United States or its Dependencies shall obtain a bill of health from the quarantine officer when such officer is on duty, said bill of health to correspond to the Consular Bill of Health now required by Treasury Regulations, and the bill of health shall not be given to the outgoing vessel unless all quarantine regulations have been complied with. At ports where no medical officer is detailed, bills of health will be signed by the Collector of Customs or other officers to whom such duty has been regularly

delegated. Special regulations relating to the bills of health to be obtained by vessels of the United States Navy will be promulgated by the Secretary of the Treasury.

The Medical Officer detailed under this order as Quarantine Officer at the Port of Manila shall be the Chief Quarantine Officer for the Philippine Islands. It shall be his duty to make appointments and removals from the service in the Philippines (subject to the approval of the Secretary of the Treasury), and shall authorize necessary expenditures under such regulations as the Secretary of the Treasury may prescribe.

The regulations for the government of the Marine Hospital Service shall, so far as practicable, have force and effect in the management of the Quarantine service in the Philippine Islands.

The expenses of the Quarantine service will be charged against the revenues of the islands, and a sum not to exceed three hundred thousand dollars (\$300,000.00) in each fiscal year is hereby set aside from the revenues collected in said islands for this purpose. The expenses shall be paid therefrom upon a certificate of a detailed quarantine officer and upon the approval of the Chief Officer for the Philippine Islands.

The Chief Quarantine Officer shall render a report on the last day of each month to the supervising Surgeon General in the Marine Hospital Service, who will issue to him necessary instructions.

The Epidemic Fund will be reimbursed from the revenues of the islands for the cost of this undertaking, plans and materials ordered to be forwarded to the islands prior to the date of this order.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., January 5, 1900.*

By virtue of the authority vested in me by joint resolution of the Senate and House of Representatives of the United States accepting and confirming the cession of the Hawaiian Islands to the United States, it is

hereby ordered and directed that out of the Government Reservation lying to the eastward of the Puowaina or Ruralhouse Hill in the Island of Oahu, Hawaiian Islands, seven acres, more or less as hereinafter described and located, shall be set apart for the use of the United States Treasury Department as a site for a United States Marine Hospital for the port of Honolulu. This site shall consist of the seven acres situated north of the Makiki cemetery and bounded on the north and east by the sinuosities of the Punch Bowl road; on the south by a line projecting eastward from the powder magazine to intersect Punch Bowl road, this line being the southern boundary of the Government Reservation at that point; and on the west by an arbitrary north and south line drawn so as to leave seven (7) acres within this designated tract.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., January 8, 1900.*

It is hereby ordered that the tract of country lying west of the Navajo and Moqui Reservations, in the Territory of Arizona, embraced within the following described boundaries, viz: Beginning at the southwest corner of the Moqui Reservation and running due west to the Little Colorado River, thence down that stream to the Grand Canyon Forest Reservation, thence north on the line of that reserve to the northeast corner thereof, thence west to the Colorado River, thence up that stream to the Navajo Indian Reservation, be and the same is hereby withdrawn from sale and settlement until further order.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., January 19, 1900.*

In accordance with the law that prescribes that the Army and Navy General Hospital at Hot Springs, Ark., shall be subject to such rules,

regulations and restrictions as shall be provided by the President of the United States the following amendment of the rules and regulations providing for its Government and Executive Order of August 25th, 1892 is authorized: Enlisted men of the Army and Navy and Marine Corps on the retired list and honorably discharged soldiers and sailors of the Regular and Volunteer Army and Navy of the United States, shall pay for substance at the rate of 40 cents per day.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., February 12, 1900.*

Authority is hereby granted for the transfer of the sum of four hundred thousand, seven hundred and seventy-six dollars and sixty-five cents (\$400,776.65) from the appropriation "Emergency Fund, War Department" act of March 13th, 1899, to the appropriation "Substance of the Army 1900" in accordance with the request of the Acting Commissary General of Subsistence which is approved by the Secretary of War.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *March 7, 1900.*

It is hereby ordered that the Executive Order of June 8, 1866, reserving for light-house purposes among other lands a tract described as "twenty (20) acres at a cape about midway between Destruction Island and Flattery Rocks, falling within unsurveyed lands as laid down in blue shade upon diagram number 3 herewith," in the Territory of Washington, be, and the same is, hereby canceled so far as it relates to the above described tract, and it is hereby ordered that in lieu thereof, lot one (1) section six (6), township twenty-eight (28) north, range fifteen (15) west, Willamette Meridian, Washington, containing, according to the official plat on file in the General

Land Office, approved May 29, 1882, 3.25 acres, be, and it is, hereby reserved for light-house purposes.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *March 20, 1900.*

It is hereby ordered that the Executive Order of September 11, 1854, reserving for light-house purposes among other lands the tract at Cape Shoalwater, Territory of Washington, shaded blue on the diagram accompanying the order, be, and it is, hereby canceled so far as it relates to the tract above described.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *March 21, 1900.*

The Secretary of the Navy is hereby directed to transfer to the Secretary of War for use in the transport service of the War Department the vessels *Badger* and *Resolute*, purchased by the Navy Department from the funds allotted from the emergency appropriation, national defense, act of March 8, 1898, at a cost of \$842,000, these vessels being no longer required in the service of the navy.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *May 1, 1900.*

The Collector of Customs of Puerto Rico will pay over to the Treasurer of Puerto Rico the net proceeds of the collections made by him under the

provisions of the act of Congress approved April 12, 1900, entitled "An act temporarily to provide revenues and a Civil Government for Puerto Rico, and for other purposes," under such regulations as the Secretary of the Treasury may prescribe.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *May 14, 1900.*

It is hereby ordered that the NW $\frac{1}{4}$ of section 15, in township 23 north, of range 13 west, Gila and Salt River Base, and principal meridian in Arizona, conveyed to the United States by quit claim deed of the Santa Fe Pacific Railroad Company, dated September 12, 1899, be and the same is hereby set apart, subject to certain exceptions, reservations, and conditions made by said company, as set forth in the deed aforesaid, for Indian school purposes, the Hualapai Indians as an addition to section 10 of the township and range above mentioned, set aside by executive order dated December 22, 1898, and designated therein as the "Hualapai Indian School Reserve."

WILLIAM McKINLEY.

EXECUTIVE MANSION, *May 26, 1900.*

It is hereby ordered that Section 29, Section 30; the N $\frac{1}{2}$, the SW $\frac{1}{4}$, the N $\frac{1}{2}$ of the SE $\frac{1}{4}$, and the SE $\frac{1}{4}$ of the SE $\frac{1}{4}$ of Section 31, and Section 32, Township 13, south, Range one (1) east, Montana, be and they are hereby reserved and set apart for the use of the United States Fish Commission of Fish and Fisheries for the purposes of a fish cultural station.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *May 26, 1900.*

Under authority of Section 3648 of the Revised Statutes of the United States, permission is hereby given that needful advances of money be made of moneys appropriated for the light-house establishment to the officers of the Army and Navy acting as Engineers or Inspectors, as Assistants to Engineers or Inspectors of the third light-house district for disbursement in carrying on the Puerto Rican light-house service.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *June 12, 1900.*

It is hereby ordered that fractional section 11, township 5 south, range 14 west, Florida, be and it is hereby reserved and set apart for light-house purposes.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *June 22, 1900.*

Whereas by the seventy-third section of an act entitled "An act to provide a government for the Territory of Hawaii," approved April 30, 1900, it was, among other things provided as follows: "That, subject to the approval of the President, all sales, grants, leases, and other dispositions of the public domain and agreements concerning the same, and all franchises granted by the Hawaiian government in conformity with the laws of Hawaii between the 7th day of July, 1898, and the 28th day of September, 1899, are hereby ratified and confirmed;" and

Whereas it appears by the certificate of Sanford B. Dole, President of the Republic of Hawaii, which bears date the 23d day of May, A.D., 1900, that the Hilo Railroad Company organized for the purpose of building and

operating a Railroad or Railroads between and through the districts of Hilo Puna Hamakua, Kohala, Kona, and Kau, on the Island of Hawaii, Hawaiian Islands, was incorporated on the 28th day of March, A.D., 1899, under a charter of incorporation, a copy whereof is attached to said certificate; and that said incorporating and granting of said charter of incorporation were made in conformity with the general incorporating acts of the Republic of Hawaii, and that the granting of the franchise conferred thereby and all acts and proceedings contained in the premises were done and taken in conformity with the laws of the Republic of Hawaii;

Now, therefore, in conformity with the provision of the act aforesaid, the said franchise granted by the Hawaiian government to the Hilo Railroad Company is hereby approved.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *June 27, 1900.*

On and after the first day of July, 1900, the classification and pay of the rating of electrician shall be as follows, but this order shall not reduce the pay of any enlisted man during his present enlistment below the pay at which he was enlisted, or which he is now receiving:

	per month.
Electrician, third class	\$30.00
Electrician, 2d class	40.00
Electrician, 1st class	50.00
Chief Electrician	60.00

WILLIAM McKINLEY.

EXECUTIVE MANSION, *June 29, 1900.*

On and after July 15, 1900, there shall be detailed on the staff of the Military Governor of the Island of Cuba as Chief of the Quarantine Service established by Executive Order January 17, 1899, a commissioned officer of the Marine Hospital service, who shall on the first day of each month, or at such other periods as may be directed by the Military Governor, submit to the Military Governor a detailed estimate of the quarantine expenses of the Island of Cuba. After the approval of such estimate by the Military Governor the chief quarantine officer shall make requisition for the funds required in favor of the disbursing officer or agent, who shall pay the bills and vouchers on account of the quarantine service upon the certificate of an officer detailed under the Executive Order of January 17, 1899, and after approval by the chief quarantine officer. The disbursing officer or agent shall render his accounts of such disbursements in accordance with the rules and instructions to carry into effect the Executive Order of May 8, 1899, relative to the military government of the United States in the Island of Cuba, during the maintenance of such government.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *August 2, 1900.*

The Island of Guimaras in the Philippine group is assigned to naval jurisdiction and control with a view to establishing thereon a naval base and station upon the strait of Iloilo, opposite the town of that name.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *August 2, 1900.*

The sum of ten thousand dollars (\$10,000) or so much thereof as may be necessary, is hereby allotted from the Emergency Fund, Navy Department, 1901, for the purpose of meeting the expenses of a survey of the Island of Guimaras in sufficient detail to fix the place of the coal wharf and shed, of

the dry dock, and of the fleet anchorages, and to appraise the land of private ownership, which need to be condemned for the use of the government for its uses and for the land defense required.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *August 23, 1900.*

It is hereby ordered that the following lands situate in California, viz: The north half of the southeast quarter, and the north half of the southwest quarter, section fourteen (14), in township three (3), south of range one (1), east of the San Bernardino meridian, being lands withdrawn from the public domain for the Mission Indians by Executive Order of August 25, 1877, be and the same are hereby restored to the public domain.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *September 3, 1900.*

It is hereby ordered that the following described lands in the State of Mississippi be and they are hereby reserved for light-house purposes; viz:

Round Island, Mississippi. All of fractional sections three and four of township nine (9) south, range six (6) west, east of Pearl River, containing respectively about 16.50 acres and 33.34 acres.

Horn Island, Mississippi. All of fractional sections 31 of township nine (9) south, range five (5) west, and thirty-six (36) of township nine (9) south, range six (6) west, east of Pearl River, containing, respectively, about 51.69 and 286.20 acres.

Petite Bois Blanc Island, Mississippi. All of fractional section three (3) of township ten (10) south, range five (5) west, east of Pearl River, containing approximately 81.27 acres.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *September 19, 1900.*

In accordance with the provisions of Section 179 of the Revised Statutes, as amended by an act making appropriations for the legislative, executive and judicial expenses of the government, approved August 5, 1882 (22 Stat, 238) Lieutenant-General Nelson A. Miles, commanding the Army of the United States is authorized and directed to perform the duties of Secretary of War during the illness or temporary absence from the seat of government of the Secretary of War whenever during such illness or absence the Assistant Secretary of War is also absent; in accordance with the same provisions, Major-General Henry C. Corbin, Assistant Adjutant-General of the Army is authorized and directed to perform the duties of Secretary of War whenever during such illness or absence the Assistant Secretary of War and the lieutenant-general commanding the Army are also absent.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *September 20, 1900.*

The Honorable Secretary of the Treasury:

SIR:—It is provided in the "Act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30, 1901, and for other purposes," approved June 6, 1900, that "The President of the United States is hereby authorized in case of threatened or actual epidemic of cholera, yellow fever, smallpox, bubonic plague, or Chinese plague or black death to use the unexpended balance of the sums appropriated and reappropriated by the sundry civil appropriation act approved June 4, 1897, and \$500,000 in addition thereto or so much thereof as may be necessary in aid of constituting local boards or otherwise in his discretion in preventing and suppressing the spread of same; and in such emergency in the execution

of any quarantine laws which may be then in force, the same to be immediately available."

You are hereby directed to take charge of this expenditure for the purpose of enforcing the above provisions, and you are directed to employ for that purpose the Marine Hospital Service and to provide such other means as are necessary for the purpose aforesaid, and to carry out such rules and regulations as have been or shall be made by you in conformity therewith.

You will carefully supervise and examine all expenditures made in executing the aforesaid law and submit to me from time to time reports of such expenditures and statements of work done.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *October 10, 1900.*

On and after October 15, 1900, there shall be detailed on the staff of the Military Governor of the Islands of the Philippine Archipelago as chief of the quarantine service established by Executive Order of January 3, 1900, a commissioned officer of the Marine Hospital Service who shall on the first day of the month, and at such other periods as may be directed by the Military Governor submit to the Military Governor a detailed estimate of the quarantine expenses of the said Islands of the Philippine Archipelago. After the approval of such estimate by the Military Governor the Chief Quarantine officer shall make requisition for the funds required in favor of the disbursing officer or agent of the Treasury Department who shall pay the bills and vouchers on account of the quarantine service upon the certificate of an officer detailed under Executive Order of January 3, 1900 (said order being still in force except as herein mentioned), and after approval by the Chief Quarantine officer. The disbursing officer or agent shall be appointed by the Secretary of the Treasury as soon as practicable, and shall render his accounts of such disbursements in accordance with the rules and instructions to carry into effect the Executive Order of May 8, 1899, relative to the military government of the United States in the Islands of the Philippine Archipelago during the maintenance of such government.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *October 10, 1900.*

It is hereby ordered that Sections 26, 27, 34 and 35 township 14 south, range 14 east, Gila and Salt River meridian Territory of Arizona, be and they are hereby reserved and set apart for the use of the United States Department of Agriculture for the purposes of an agricultural experiment station.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *October 13, 1900.*

By virtue of the authority vested in the President of the United States by Section 3141, Revised Statutes of the United States, I hereby order

That the county of Greer, which was formerly a part of the State of Texas, and as such was specifically declared a part of the 4th Internal Revenue District of Texas by Executive Order of June 29, 1881, be transferred to and made a part of the Internal Revenue District of Kansas, said county having been declared by the United States Supreme Court in decision rendered at the October term of 1895 to be a part of the Territory of Oklahoma, which Territory was added to the District of Kansas by Executive Order of March 30, 1886, prior to the date of the judicial decision above cited.

This order to take effect on the first day of November, 1900.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *October 29, 1900.*

It is hereby ordered that lot 5 of the SW $\frac{1}{4}$ of the NE $\frac{1}{4}$, section 31, township 6 south, range 11 west, Florida, be, and it is, hereby reserved for light-house purposes.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *November 20, 1900.*

The United States Civil Service Commission is directed to render such assistance as may be practicable to the Civil Service Board created under the act of the United States Philippine Commission, for the establishment and maintenance of a necessary and efficient civil service in the Philippine Island, and for that purpose to conduct examinations for the Civil Service of the Philippine Islands upon the request of the Civil Service Board of said Islands, under such regulations as may be agreed upon by the said Board and the said United States Civil Service Commission.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *December 7, 1900.*

Whenever upon marches, guards, or in quarters, different corps of the army happen to join or do duty together and an official of the Marine Corps or the militia shall command the whole pursuant to the 122d article of war, such officer shall report his action and the operations of the force under his command through military channels to the Secretary of War as well as to his superiors in his own branch of the service.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *December 13, 1900.*

To the Secretary of the Treasury:

The sum of \$200,000 is hereby allotted and set apart from the appropriation made for the benefit and government of Puerto Rico by the Act of March 24, 1900 (31 Stat., p. 51), to be used for the extension of public education in Puerto Rico, including building and equipping of school houses in said Island.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *December 14, 1900.*

By virtue of the authority vested in me as Commander-in-Chief of the Army and Navy of the United States of America, I hereby empower the Naval officer in command at the Island of Guam to act as Collector of Customs for said Island, with authority to appoint a deputy if necessary.

I further direct that any authority heretofore exercised under the direction of the commandant at said Naval Station in respect to the collection of customs be approved as if direct mention of such authority had been included in the Executive Order of February 1, 1900.

In case the commandant shall make such appointment from civil life he shall require of the appointee good and sufficient security for the due performance of the duties of the office.

Any authority heretofore exercised in the premises by the Naval Officer in command is hereby ratified as if said power to appoint had been conferred in said Executive Order of February 1, 1900.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *December 19, 1900.*

It is hereby ordered that the President's Order of January 9, 1884, transferring the Fort Yuma Military Reservation to the control of the Department of the Interior to be used for Indian purposes in connection with the Indian reservations established by the same order, be, and the same is, hereby revoked as to that part of said military reservation lying south of the Colorado River.

Inasmuch as said land has been abandoned for military purposes, as shown by executive orders of January 9, 1884, and July 22, 1884, it is further ordered and directed that the portion of said military reservation lying south of the Colorado River and being in the Territory of Arizona be, and the same is, hereby placed under the control of the Secretary of the Interior for disposition under the provisions of the Acts of Congress approved July 5, 1884 (23 Stat., p. 103), and August 22, 1894 (28 Stat., p. 491).

WILLIAM McKINLEY.

EXECUTIVE MANSION, *February 2, 1900.*

By virtue of the authority vested in me as Commander-in-Chief of the Army and Navy of the United States, I hereby order and direct that that part of Executive Order dated May 8, 1899, relating to the appointment and creation of the office of Treasurer of the Island of Cuba, be amended as follows:

The office of Treasurer of the Island of Cuba shall on and after April 1, 1901, be placed under the jurisdiction of the Department of Finance of said Island, and shall be filled by the appointment thereto of a citizen of Cuba. The said appointment to be made by the Military Governor thereof, subject to the approval of the Secretary of War.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., March 8, 1901.*

On recommendation of the Military Governor of Cuba, approved by the Secretary of War, I hereby order and direct that the export rates of duty on tobacco, provided on page 50 of the "Customs Tariff for Ports in the Island of Cuba" promulgated by Executive Order dated March 31, 1900, shall be abolished on the 1st day of April, 1901.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., March 9, 1901.*

I, William McKinley, President of the United States, by virtue of the authority vested in me by Section 3141, Revised Statutes of the United States, hereby order that the States of North Dakota and South Dakota, now part of the Internal Revenue District of Nebraska, shall be detached from said District of Nebraska and constitute one District, to be known as the Internal Revenue District of Newark, South Dakota.

The Internal Revenue District of Nebraska shall comprise the State of Nebraska.

This order to take effect on the first day of May, 1901.

WILLIAM McKINLEY.

(ENDORSEMENTS.)

WAR DEPARTMENT, *Washington, D.C., March 9, 1901.*

Secretary of War:

Recommends modification of executive order of June 4, 1892, setting apart a wood reservation for the post of Fort Fill, Oklahoma Territory, so as to make the eastern boundary coincident with the new 98 meridian (the boundary line between the Kiowa and Comanche Reservation and the Chickasaw Nation) as serving a mark, pursuant to act of Congress of June 28, 1898 (30 Stats., 495).

EXECUTIVE MANSION, *Washington, D.C., March 11, 1901.*

The within recommendation is approved. The Secretary of the Interior will cause this action to be noted on the records of the General Land Office.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., March 12, 1901.*

The executive order of May 8, 1899, relating to the Island of Cuba, as promulgated by the Assistant Secretary of War, May 11, 1899, is hereby amended by substituting the following:

By virtue of the authority vested in me as the Commander-in-Chief of the Army and Navy of the United States, I hereby order and direct that during the maintenance of Military Government by the United States in the Island of Cuba there is hereby created and shall be maintained the office of the Auditor for Cuba, to be filled by appointment of the Secretary of War, whose duties shall be to receive and audit all accounts of the island.

There is hereby created and shall be maintained the office of Deputy Auditor for Cuba, to be filled by appointment of the Secretary of War, whose duties shall be to sign, in the name of the Auditor, such official papers as the Auditor may designate, and perform such other duties as the Auditor may prescribe. He shall have authority of his superior as Acting Auditor in case of the death, resignation, sickness, or other absence of the Auditor.

There is hereby created and shall be maintained in the office of the Auditor the office of Chief Clerk, to be filled by appointment of the Auditor, and the Chief Clerk shall perform such duties as may be prescribed by the Auditor.

All rules and instructions necessary to carry into effect the provisions of executive orders relating to Cuba shall be issued by the Secretary of War, and such rules and instructions shall be enforced until the same are amended or revoked by the Secretary of War.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., March 14., 1901.*

To the Secretary of the Treasury:

SIR:—The sum of two hundred thousand dollars is hereby allotted and set apart from the appropriation made for the benefit and Government of Puerto Rico by the Act of March 24, 1900 (31 Stat., p. 51) to be expended in improving and grading of various roads throughout the island of Puerto Rico such as "Neighboring Roads" between small municipalities.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., March 22, 1901.*

To the Secretary of the Treasury:

SIR:—The sum of six thousand dollars is hereby allotted and set apart from the appropriation made for the benefit and Government of Puerto Rico by the Act of March 24, 1900 (131 Stat., p. 51) to be expended by the Treasurer of Puerto Rico upon accounts certified by the Auditor of the Island for refunding customs duties paid by certain contractors on materials intended for use under their contracts brought into Puerto Rico since May 1, 1900.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., March 25, 1901.*

Counsular officers will hereafter collect any fees for bills of health and supplemental bills of health issued foreign war vessels. The tariff of Consular fees is amended accordingly.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., March 26, 1901.*

It is hereby ordered that the unsurveyed portion of Eliza Island and Billingham Bay in section five (5), township thirty-six (36) north, range two (2) East Willamette meridian, Washington be, and it is hereby reserved for light-house purposes.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., March 30, 1901.*

It is hereby ordered that the hereinafter described tracts of land in the District of Alaska be, and they are hereby reserved and set apart for Reindeer stations, subject to any legal existing rights to any land in the limits of the reservation hereby established, to wit:

1. The entire peninsula of which Cape Denbigh forms the southwestern extremity, situated in latitude 64 degrees, 30 minutes north, longitude 161 degrees, 30 minutes west from Greenwich, approximately fifteen (15) miles in length and five (5) miles in width.

A tract of land bounded as follows: Beginning at a point about six miles above the mouth of the Unalaklik river and extending along the north bank of the Unalaklik river in a generally northeasterly direction ten miles;

thence in a generally northwesterly direction ten miles; thence in a generally southwesterly direction ten miles; thence in a generally southeasterly direction to the point of beginning.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., April 2, 1901.*

It is hereby ordered that all of Amaknam Island, District of Alaska, except the tract of land reserved for light-house purposes by executive order of Jan. 13th, 1899, and the tract of land embraced in amended survey M 58 of the North American Commercial Co. be, and it is hereby reserved for public purposes.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., April 5, 1901.*

The Secretary of the Navy is authorized to enlist in the Insular Force United States Navy, which is hereby established, not to exceed five hundred (500) Filipinos in the following ratings at the rates of pay indicated:

RATES	MONTHLY PAY
Navy Coxswains	\$ 15.00
Navy Seamen	12.00
Navy Ordinary Seamen	10.00
Navy Machinists; First-class	28.00
Navy Machinists; Second-class	20.00
Navy Firemen; First-class	18.00
Navy Firemen; Second-class	15.00
Navy Coal Passers	11.00

Navy Sutlers	15.00
Navy Cooks	13.00
Navy Mess-Attendants	8.00

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., April 6, 1901..*

It is hereby ordered that upon Tuesday the ninth (9th) instant such employees of the Executive Departments; the Government Printing Office and the Navy Yard and Station at Washington, as served in the Military or Naval services of the United States in the late Civil War of Spanish-American War, shall be excused from duty at one o'clock P.M. for the remainder of that day to enable them to participate in the exercises of the unveiling of the statue erected to the memory of the late General John A. Logan.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., April 15, 1901.*

In accordance with provisions of act of Congress approved January 4th, 1897 (30 Stat, 34 and 36), and by virtue of the authority thereby given, and on the recommendation of the Secretary of the Interior, it is hereby ordered that the tracts hereinafter described and situated in township fifty-eight (58) north, range eighty-nine (89) west, within the limits of the Big Horn Forest reserve, in the State of Wyoming, be restored to the public domain after sixty days' notice hereof by publication, as required bylaw; these tracts having been found better adapted to agricultural than forest purposes, to wit:

What will be, when surveyed, all that portion of sections thirteen (13), fourteen (14), fifteen (15), sixteen (16), seventeen (17), in said township and range lying south of the said line between Montana and Wyoming, and all of sections twenty (20), twenty-one (21), twenty-two (22), twenty-three (23) twenty-four (24), twenty-five (25), twenty-six (26), and twenty-seven (27), all of said lands being in the State of Wyoming.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., April 23, 1901.*

To the Secretary of the Treasury:

SIR:—The sum of five hundred thousand dollars is hereby allotted and set aside from the appropriation made for the benefit and Government of Puerto Rico by the act of March 24th, 1900 (31 Stat., p. 51), to be expended for public and permanent improvements in Puerto Rico, under the supervision and subject to the approval of the Governor and Executive Council of the Island.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., April 29, 1901.*

In case of the death, resignation, absence or sickness of the Secretary of the Navy, the Assistant Secretary of the Navy and the Chief of the Bureau of Navigation, Rear Admiral Charles O'Neil, U.S. Navy and Chief of the Bureau of Ordnance is, in pursuance of the provisions of Sections 177 and 179 of the Revised Statutes, hereby authorized and directed to perform the duties of Secretary of the Navy until a successor is appointed or until such absence or sickness shall cease.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., June 7, 1901.*

The following "Classification of Vessels" and "Assignments to man afloat" are hereby established for the Navy in accordance with an act of Congress, approved March 3:

CLASSIFICATION OF VESSELS.

Torpedo Boat Destroyers: Torpedo boats, tugs, sailing ships and receiving ships shall not be rated. Other vessels shall be rated by tons of displacement as follows:

First Rates: Men of War when of eight thousand tons and above.

Second Rates: Men of War of four thousand tons and under eight thousand tons, and Converted and Auxiliary vessels of six thousand tons and above, except Colliers, Refrigerating ships, Distilling ships, Tank-steamers, Reporting ships, Hospital ships and other vessels constructed or equipped for special purposes.

Third Rates: Men of War from one thousand to four thousand tons and Converted and Auxiliary Vessels from one thousand to six thousand tons and Colliers, Refrigerating ships, Supply ships, Distilling ships, Tank-steamers, Report ships, Hospital ships and other vessels constructed or equipped for special purposes of four thousand tons and above.

Fourth Rates: All other vessels.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., June 7, 1901.*

Commandants to man the following:

An Admiral to man a fleet.

Rear-Admiral to man a fleet or squadron.

A Captain to man a division, or ship of the first or second rating or a ship not rated.

Commander to man a division or a ship of the second or third rating or ship not rated.

Lieutenant-Commander to man a ship of the third or fourth rating or a ship not rated.

A Lieutenant to man a ship of the fourth rating; a torpedo boat destroyer, torpedo boat, tug, tender or a ship not rated.

A Lieutenant, junior grade, to command a torpedo boat, tug, tender or ship not rated.

An Ensign to man a torpedo boat, tug or ship not rated.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., June 10, 1901.*

To the Secretary of the Treasury:

SIR:—The sum of five hundred thousand dollars, or so much thereof as remains unexpended, allotted and set aside by order of April 23, 1901, from the appropriation made for the benefit and Government of Puerto Rico by the act of March 24, 1900 (31 Stat, p. 51), is to be devoted to public and permanent improvements in Puerto Rico and other governmental and public purposes therein, as provided in the said act, and it is to be expended under the supervision and subject to the approval of the Government and administrative authorities of the Island.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., June 21, 1901.*

I hereby order and direct that Executive Order dated May 3, 1899, be amended so as to authorize the appointment of civilians as Collectors of Customs in the Philippine Archipelago.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., June 21, 1901.*

To the Secretary of War:

SIR:—Pending the cessation of conditions requiring a continuance of Military Government in the Philippine Islands, you are authorized to make the following order:

On and after the 4th day of July, 1901, until it shall otherwise be ordered, the President of the Philippine Commission will exercise the Executive Authority in all civil affairs of the Government in the Philippine Islands, heretofore exercised in such affairs by the Military Governor of the Philippines, and to that end, the Hon. W.H. Taft, President of the said Commission is hereby appointed Civil Governor of the Philippine Islands. Such executive authority will be exercised under and in conformity to the instructions to the Philippine Commissioners dated April 7th, 1900, and subject to the approval and control of the Secretary of War of the United States. The municipal and Provincial Civil Governments will then, or shall hereafter be established in said Islands and all persons performing duties pertaining to the offices of Civil Government in said Islands will, in respect of such duties report to the said Civil Government. The power to appoint Civil Officers, heretofore vested in the Philippine Commission or in the Military Government will be exercised by the Civil Governor with the advice and consent of the Commissioners.

The Military Governor of the Philippines is hereby relieved from the performance on and after the said fourth day of July of the civil duties hereinbefore described, but his authority will continue to be exercised as heretofore in those districts in which insurrection against the authority of the United States continues to exist or in which public order is not sufficiently restored to enable the Provincial Civil Government to be established under the instructions to the Commission dated April 7th, 1900.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., June 21, 1901.*

In accordance with the provision in Section 2253 of the Revised Statutes of the United States, and by virtue of the authority thereby given, it is hereby ordered that the existing boundary line between Coeur d'Alene and Lewiston Land Districts, State of Idaho, be and it is hereby changed and re-established as follows: Beginning on the boundary line between the States of Idaho and Washington at the northwest corner of directional township forty-two (42) north, range six (6) west, Boise meridian, thence east along the boundary line between townships forty-two (42) and forty-three (43) north, to the crest of the Bitter Root Mountains.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., June 25, 1901.*

The executive order of April 5, 1901, is hereby amended by striking out the word "Filipinos" and inserting in its stead "natives of the Islands of the Philippines and of the Island of Guam."

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., June 25, 1901.*

In accordance with the provisions of the act of Congress approved June 4, 1897 (30 Stat, pp. 34-36), and by virtue of the authority thereby given, and on the recommendation of the Secretary of the Interior, it is hereby ordered that the tracts hereinafter described and situated within the limits of the Big Horn Forest Reservation in the State of Wyoming be restored to the public domain after sixty days' notice hereof by publication as required by law, these tracts having been found better adapted to agriculture than forest

purposes, to wit: What will be, when surveyed, sections twenty-four (24) to thirty-six (36), both inclusive, in township fifty-five (55) north, range ninety-two (92) west; what will be, when surveyed, sections twenty-eight (28) to thirty-three (33), both inclusive, in township fifty-five (55) north, range ninety-one (91) west; sections thirty (30), thirty-one (31), thirty-two (32), and what will be, when surveyed, sections four (4), five (5), six (6), seven (7), eight (8), nine (9), sixteen (16), seventeen (17), eighteen (18), nineteen (19), twenty (20), twenty-one (21), twenty-eight (28), twenty-nine (29), and thirty-three (33), all in township fifty-four (54) north, range ninety-one (91) west; the southwest quarter remaining unsurveyed portion of section eighteen (18), all of sections nineteen (19), thirty (30), thirty-one (31), and what will be, when surveyed, sections six (6) and seven (7), all in township fifty-three (53) north, range ninety (90) west.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., June 29, 1901.*

In accordance with provision of the act of Congress approved June 4, 1897 (30 Stat. 34, 36), and by virtue of authority thereby given, and on the recommendation of the Secretary of the Interior, it is hereby ordered that township twenty-two (22) south, range nine (9) east, and township twenty-three (23) south, range nine (9) east, Willamette meridian, Oregon, within the limits of the Cascade Range Forest Reservation be restored to the public Domain after sixty days' notice hereof by publication as required by law, these tracts having been found better adapted to agriculture than forest purposes.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., July 24, 1901.*

To the Secretary of the Treasury:

SIR:—I herewith allot and set apart the funds now remaining in the Treasury of the United States as a separate fund raised from duties and taxes collected in the United States under the provisions of the act of Congress entitled "An act temporarily to provide revenues and a Civil Government for Puerto Rico and for other purposes" approved April 12th, 1900, for public purposes in Puerto Rico; and these funds hereby allotted shall be devoted to public and permanent improvements in Puerto Rico and other Governmental and public purposes therein as set forth in the act of Congress approved March 24th, 1900 (31 Stat., p. 51), and shall be expended under the sole supervision and subject to the approval of the Governor and Administrative heads of the Island.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., August 19, 1901.*

It is hereby ordered that so much of the Executive Order of December 28, 1898 as fixes the rates at which the Spanish Alphonsino (*centem*) and the French Louis shall be accepted in payment of customs, taxes, public and postal dues in the Island of Cuba is modified to read as follows:

Alphonsino (25 Peseta Piece)	\$4.78
Louis (20 Frank Piece)	3.83

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., August 20, 1901.*

It is hereby ordered that all tracts and parcels of land belonging to the United States situated on the Peninsula extending into the harbor on the south side of the city of San Juan, Puerto Rico, known as Barrio de la Puntilla, or Puntilla Point, bounded on the north by the south boundary of

the Paseo de la Princesa and on the east, south and west by the navigable waters of the harbor at such part Warden's line as may be established by competent authority, be and the same are hereby reserved for naval purposes.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., August 27, 1901.*

It is hereby ordered that the Executive Order of Jan. 4th, 1901, reserve for light house purposes among other tracts of land or cites in the District of Alaska a tract described as follows: "Scotch Cap beginning at a point at low water mark, said point being three miles easterly of point at low water mark opposite Scotch Cap Pinnacle six (6) due north one mile, thence north seventy-one (71) degrees east true four (4) miles, thence south thirty-eight (38) degrees true to low water mark; thence follow the windings of the low water mark to place of beginning," be and the same is hereby canceled so far as it relates to the above described tract, and it is hereby ordered that in lieu thereof a tract described as follows: Scotch Cap beginning at point at low water mark on Unimak Island, said point being three miles easterly of a point at low water mark opposite Scotch Cap Pinnacle; thence due north one mile; thence north seventy-one (71) degrees west true to four miles; thence south thirty-eight degrees west true to low water mark, thence follow the windings of the low water mark to place of beginning, be and it is hereby reserved and set apart for light house purposes, subject to any legal existing rights thereto.

WILLIAM McKINLEY.

EXECUTIVE MANSION, *Washington, D.C., August 29, 1901.*

In accordance with provisions of Section 179 Revised Statutes as amended by act approved August 5th, 1882 (22 Stats, at large 238),

Brigadier-General G.S. Gillespie, Corps of Engineers, United States Army, is authorized and directed to perform the duties of Secretary of War during the temporary absence from the seat of Government of the Secretary of War and the Assistant Secretary of War.

WILLIAM McKINLEY.

PRESIDENT McKINLEY'S LAST PUBLIC UTTERANCE TO THE PEOPLE, BUFFALO, N.Y., SEPTEMBER 5TH, 1901.

President Milburn, Director General Buchanan, Commissioners, Ladies and Gentlemen:

I am glad to be again in the city of Buffalo and exchange greetings with her people, to whose generous hospitality I am not a stranger and with whose good will I have been repeatedly and signally honored. To-day I have additional satisfaction in meeting and giving welcome to the foreign representatives assembled here, whose presence and participation in this exposition have contributed in so marked a degree to its interest and success. To the Commissioners of the Dominion of Canada and the British colonies, the French colonies, the republics of Mexico and Central and South America and the commissioners of Cuba and Puerto Rico, who share with us in this undertaking, we give the hand of fellowship and felicitate with them upon the triumphs of art, science, education and manufacture which the old has bequeathed to the new century. Expositions are the timekeepers of progress. They record the world's advancement. They stimulate the energy, enterprise and intellect of the people and quicken human genius. They go into the home. They broaden and brighten the daily life of the people. They open mighty storehouses of information to the student. Every exposition, great or small, has helped to some onward step. Comparison of ideas is always educational, and as such instruct the brain and hand of man. Friendly rivalry follows, which is the spur to industrial improvement, the inspiration to useful invention and to high endeavor in all departments of human activity. It exacts a study of the wants, comforts and even the whims of the people and recognizes the efficiency of high quality and new pieces to win their favor. The quest for trade is an incentive to men of business to devise, invent, improve and economize in the cost of production.

Business life, whether among ourselves or with other people, is ever a sharp struggle for success. It will be none the less so in the future. Without competition we would be clinging to the clumsy antiquated processes of farming and manufacture and the methods of business of long ago, and the twentieth would be no further advanced than the eighteenth century. But though commercial competitors we are, commercial enemies we must not be.

The Pan-American exposition has done its work thoroughly, presenting in its exhibits evidences of the highest skill and illustrating the progress of the human family in the western hemisphere. This portion of the earth has no cause for humiliation for the part it has performed in the march of civilization. It has not accomplished everything from it. It has simply done its best, and without vanity or boastfulness, and recognizing the manifold achievements of others, it invites the friendly rivalry of all the powers in the peaceful pursuits of trade and commerce, and will co-operate with all in advancing the highest and best interests of humanity.

The wisdom and energy of all the nations are none too great for the world's work. The success of art, science, industry and invention is an international asset and a common glory.

After all, how near one to the other is every part of the world. Modern inventions have brought into close relation widely separated peoples and made them better acquainted. Geographic and political divisions will continue to exist, but distances have been effaced. Swift ships and swift trains are becoming cosmopolitan. They invade fields which a few years ago were impenetrable. The world's products are exchanged as never before, and with increasing transportation facilities come increasing knowledge and larger trade. Prices are fixed with mathematical precision by supply and demand. The world's selling prices are regulated by market and crop reports.

We travel greater distances in a shorter space of time and with more ease than was ever dreamed of by the fathers. Isolation is no longer possible or desirable. The same important news is read, though in different languages, the same day in all Christendom. The telegraph keeps us advised of what is

occurring everywhere, and the press foreshadows, with more or less accuracy, the plans and purposes of the nations.

Market prices of products and of securities are hourly known in every commercial mart, and the investments of the people extend beyond their own national boundaries into the remotest parts of the earth. Vast transactions are conducted and international exchanges are made by the tick of the cable. Every event of interest is immediately bulletined. The quick gathering and transmission of news, like rapid transit, are of recent origin and are only made possible by the genius of the inventor and the courage of the investor. It took a special messenger of the Government, with every facility known at the time for rapid travel, nineteen days to go from the city of Washington to New Orleans with a message to General Jackson that the war with England had ceased and a treaty of peace had been signed. How different now!

We reached General Miles in Puerto Rico by cable, and he was able, through the military telegraph, to stop his army on the firing line with the message that the United States and Spain had signed a protocol suspending hostilities. We knew almost instantly of the first shots fired at Santiago, and the subsequent surrender of the Spanish forces was known at Washington within less than an hour of its consummation. The first ship of Cervera's fleet had hardly emerged from that historic harbor when the fact was flashed to our capital, and the swift destruction that followed was announced immediately through the wonderful medium of telegraphy.

So accustomed are we to safe and easy communication with distant lands that its temporary interruption, even in ordinary times, results in loss and inconvenience. We shall never forget the days of anxious waiting and awful suspense when no information was permitted to be sent from Pekin, and the diplomatic representatives of the nations in China, cut off from all communication, inside and outside of the walled capital, were surrounded by an angry and misguided mob that threatened their lives; nor the joy that filled the world when a single message from the Government of the United States brought through our minister the first news of the safety of the besieged diplomats.

At the beginning of the nineteenth century there was not a mile of steam railroad on the globe. Now there are enough miles to make its circuit many times. Then there was not a line of electric telegraph; now we have a vast mileage traversing all lands and seas. God and man have linked the nations together. No nation can longer be indifferent to any other. And as we are brought more and more in touch with each other the less occasion there is for misunderstandings and the stronger the disposition, when we have differences, to adjust them in the court of arbitration, which is the noblest forum for the settlement of international disputes.

My fellow citizens, trade statistics indicate that this country is in a state of unexampled prosperity. The figures are almost appalling. They show that we are utilizing our fields and forests and mines and that we are furnishing profitable employment to the millions of workingmen throughout the United States, bringing comfort and happiness to their homes and making it possible to lay by savings for old age and disability. That all the people are participating in this great prosperity is seen in every American community, and shown by the enormous and unprecedented deposits in our savings banks. Our duty is the care and security of these deposits, and their safe investment demands the highest integrity and the best business capacity of those in charge of these depositories of the people's earnings.

We have a vast and intricate business, built up through years of toil and struggle, in which every part of the country has its stake, and will not permit of either neglect or of undue selfishness. No narrow, sordid policy will subserve it. The greatest skill and wisdom on the part of the manufacturers and producers will be required to hold and increase it. Our industrial enterprises which have grown to such great proportions affect the homes and occupations of the people and the welfare of the country. Our capacity to produce has developed so enormously and our products have so multiplied that the problem of more markets requires our urgent and immediate attention. Only a broad and enlightened policy will keep what we have. No other policy will get more. In these times of marvelous business energy and gain we ought to be looking to the future, strengthening the weak places in our industrial and commercial system, that we may be ready for any storm or strain.

By sensible trade arrangements which will not interrupt our home production we shall extend the outlets for our increasing surplus. A system which provides a mutual exchange of commodities, a mutual exchange is manifestly essential to the continued and healthful growth of our export trade. We must not repose in fancied security that we can forever sell everything and buy little or nothing. If such a thing were possible, it would not be best for us or for those with whom we deal. We should take from our customers such of their products as we can use without harm to our industries and labor. Reciprocity is the natural outgrowth of our wonderful industrial development under the domestic policy now firmly established. What we produce beyond our domestic consumption must have a vent abroad. The excess must be relieved through a foreign outlet and we should sell everywhere we can, and buy wherever the buying will enlarge our sales and productions, and thereby make a greater demand for home labor.

The period of exclusiveness is past. The expansion of our trade and commerce is the pressing problem. Commercial wars are unprofitable. A policy of good will and friendly trade relations will prevent reprisals. Reciprocity treaties are in harmony with the spirit of the times, measures of retaliation are not. If perchance some of our tariffs are no longer needed, for revenue or to encourage and protect our industries at home, why should they not be employed to extend and promote our markets abroad? Then, too, we have inadequate steamship service. New lines of steamers have already been put in commission between the Pacific coast ports of the United States and those on the western coasts of Mexico and Central and South America. These should be followed up with direct steamship lines between the eastern coast of the United States and South American ports. One of the needs of the times is to direct commercial lines from our vast fields of production to the fields of consumption that we have but barely touched. Next in advantage to having the thing to sell is to have the convenience to carry it to the buyer. We must encourage our merchant marine. We must have more ships. They must be under the American flag, built and manned and owned by Americans. These will not only be profitable in a commercial sense; they will be messengers of peace and amity wherever they go. We must build the Isthmian canal, which will unite the two oceans and give a straight line of water communication with the

western coasts of Central and South America and Mexico. The construction of a Pacific cable cannot be longer postponed.

In the furthering of these objects of national interest and concern you are performing an important part. This exposition would have touched the heart of that American statesman whose mind was ever alert and thought ever constant for a larger commerce and a truer fraternity of the republics of the new world. His broad American spirit is felt and manifested here. He needs no identification to an assemblage of Americans anywhere, for the name of Blaine is inseparably associated with the Pan-American movement, which finds this practical and substantial expression, and which we all hope will be firmly advanced by the Pan-American congress that assembles this autumn in the capital of Mexico. The good work will go on. It cannot be stopped. These buildings will disappear; this creation of art and beauty and industry will perish from sight, but their influence will remain to

Make it live beyond its too short living
With praises and thanksgiving.

Who can tell the new thoughts that have been awakened, the ambitions fired and the high achievements that will be wrought through this exposition? Gentlemen, let us ever remember that our interest is in concord, not conflict, and that our real eminence rests in the victories of peace, not those of war. We hope that all who are represented here may be moved to higher and nobler effort for their own and the world's good, and that out of this city may come, not only greater commerce and trade, but more essential than these, relations of mutual respect, confidence and friendship which will deepen and endure.

Our earnest prayer is that God will graciously vouchsafe prosperity, happiness and peace to all our neighbors, and like blessings to all the peoples and powers of earth.

DEATH OF PRESIDENT McKINLEY.

ANNOUNCEMENT OF THE ASSASSINATION.

Buffalo, N.Y., Sept. 6-7 P.M.

The President was shot about 4 o'clock. One bullet struck him on the upper portion of the breastbone, glancing and not penetrating; the second bullet penetrated the abdomen five inches below the left nipple and one and a half inches to the left of the median line. The abdomen was opened through the line of the bullet wound. It was found that the bullet had penetrated the stomach. The opening in the front wall of the stomach was carefully closed with silk stitches, after which a search was made for a hole in the back wall of the stomach. This was found and also closed in the same way. The further course of the bullet could not be discovered, although careful search was made. The abdominal wound was closed without drainage. No injury to the intestines or other abdominal organ was discovered. The patient stood the operation well, pulse of good quality, rate of 130. Condition at the conclusion of operation was gratifying. The result cannot be foretold. His condition at present justifies hope of recovery.

GEORGE B. CORTELYOU,
Secretary to the President.

NEWS AT THE WHITE HOUSE.

The official announcement of the President's death was received at the White House at 2:35 o'clock, September 14, 1901, as follows:

Buffalo, September 14.

Col. B.F. Montgomery, Executive Mansion, Washington:

The President died at 2:15 this morning.

GEORGE B. CORTELYOU.

Immediately upon receipt of the official dispatch the following was sent to Secretary Cortelyou:

Members of the executive staff in Washington are deeply affected, and beg to tender their profound sympathy to Mrs. McKinley.

O.F. PRUDEN,
Assistant Secretary.

PUBLIC ANNOUNCEMENT OF DEATH BY THE PHYSICIANS.

MILBURN HOUSE, *Buffalo, N.Y., Sept. 14.*

The following report of the autopsy upon the remains of President McKinley was issued at 5 o'clock:

The bullet which struck over the breastbone did not pass through the skin, and did little harm. The other bullet passed through both walls of the stomach near its lower border. Both holes were found to be perfectly closed by the stitches, but the tissue around each hole had become gangrenous. After passing through the stomach the bullet passed into the back walls of the abdomen, hitting and tearing the upper end of the kidney. This portion of the bullet track was also gangrenous, the gangrene involving the pancreas. The bullet has not yet been found. There was no sign of peritonitis or disease of other organs. The heart walls were very thin. There was no evidence of any attempt at repair on the part of nature, and death resulted from the gangrene, which affected the stomach around the bullet wounds as well as the tissues around the further course of the bullet. Death was unavoidable by any surgical or medical treatment, and was the direct result of the bullet wound.

HARVEY D. GAYLORD, M.D.
HERMAN G. MATZINGER, M.D.
P.M. RIXEY, M.D.
MATTHEW D. MANN, M.D.
HERMAN MYNTER, M.D.
ROSWELL PARK, M.D.
EUGENE WASDIN, M.D.
CHARLES G. STOCKTON, M.D.
EDWARD G. JANEWAY, M.D.
W.D. JOHNSON, M.D.
W.P. KENDALL, *Surgeon, U.S.A.*
CHARLES CARY, M.D.

EDWARD L. MUNSON, *Assistant Surgeon, U.S.A.*
HERMANUS L. BAER, M.D.

ANNOUNCEMENT TO THE VICE-PRESIDENT.

At the residence of Mr. Ansley Wilcox, 641 Delaware Avenue, Buffalo, N.Y., Mr. Root stepped forward and said, with deep emotion: "Mr. Vice-President, I have been requested on behalf of the Cabinet of the late President—at least those who are present in Buffalo, all except two—to request that for reasons of weight affecting the affairs of Government you should proceed to take the constitutional oath of President of the United States."

THE VICE-PRESIDENT'S REPLY.

"I shall take the oath at once in accordance with your request, and in this hour of deep and terrible national bereavement. I wish to state that it shall be my aim to continue absolutely unbroken the policy of President McKinley for the peace and prosperity and honor of our beloved country."

ANNOUNCEMENT OF THE ASSASSINATION TO REPRESENTATIVES OF THE UNITED STATES ABROAD.

(From the Washington Post, Sept. 15, 1901.)

DEPARTMENT OF STATE, *Washington, Sept. 14.*

Sir: It is my painful duty to announce to you the death of William McKinley, President of the United States, in the city of Buffalo, at fifteen minutes past 2 in the morning of to-day, September 14.

Laid low by the act of an assassin, the week-long struggle to save his life has been watched with keen solicitude, not alone by the people of this country, who raised him from their own ranks to the high office he filled, but by the people of all friendly nations, whose messages of sympathy and hope, while hope was possible, have been most consolatory in this time of sore trial.

Now that the end has come, I request you to be the medium of communicating the sad tidings to the Government of the honored nation you so worthily represent, and to announce that in obedience to the prescriptions of the Constitution, the office of President has devolved upon Theodore Roosevelt, Vice-President of the United States.

Accept, sir, the renewed assurance of my highest consideration.

JOHN HAY.

ANNOUNCEMENT TO THE ARMY.

[GENERAL ORDER No. 13.]

HEADQUARTERS OF THE ARMY,
ADJUTANT GENERAL'S OFFICE,
Washington, D.C. Sept. 16, 1901.

With great sorrow, the commanding general announces the death of William McKinley, President of the United States and, by statute, Commander-in-Chief of the District of Columbia Militia, which occurred at Buffalo, N.Y., at 2:15 o'clock A.M. on September 14, 1901.

Throughout his tragically terminated administration President McKinley was actively interested in the welfare of this organization and frequently gave it evidence of his sincere friendship. His distinguished services as soldier and civilian must incite to emulation and will result in purer patriotism and better citizenship wherever his career is studied.

The national flag will be displayed at half-staff on all armories from sunrise to sunset of each day until sunset of Thursday, the 19th instant, on which day the remains of the late Commander-in-Chief will be interred at Canton, Ohio.

The officers of the National Guard will wear the usual badge of mourning upon their swords, and the regimental and battalion colors will be draped in mourning for a period of thirty days.

By command of BRIG.-GEN. HARRIES.

CHARLES H. OURAND,
Major and Inspector General, Acting Adjutant-General.

By direction of the Acting Secretary of War, the National Guard of the District of Columbia will assemble for escort and parade duty on Tuesday, September 17, 1901, to participate in the funeral of William McKinley, late President of the United States and Commander-in-Chief of the District of Columbia Militia.

The brigade will assemble at 8:30 o'clock A.M., in column of companies, on Pennsylvania avenue facing east, its right resting on Nineteenth street northwest.

The order of formation, from right to left, will be as follows:

General staff and general non-commissioned staff.

Brigade Band.

Engineer Corps.

Second Regiment of Infantry.

First Regiment of Infantry.

Corps of field music.

First Separate Battalion.

Signal Corps.

Naval Battalion.

Ambulance Corps.

Undress uniform, forage caps, leggings, white standing collars, and white gloves will be worn; the Naval Battalion to be in its prescribed uniform.

All members of the general staff and general non-commissioned staff, and the field officers and adjutants of regiments will be mounted, and will wear the prescribed undress mounted uniform.

All commanding officers will assemble at the adjutant-general's office at 9:30 o'clock on the evening of September 16, to receive any special orders that may be issued.

Commanding officers of companies will furnish their battalion adjutants with "morning reports" immediately after the parade is dismissed, noting thereon the names of all officers and men absent from the parade without leave. Commanding officers of regiments, separate battalions, and separate companies will furnish these headquarters with consolidated morning reports before 10 o'clock A.M. of the 19th instant; will see that all enlisted men absent without leave are properly dealt with, and will report to these headquarters the names of all commissioned officers so absent.

By command of BRIG.-GEN. HARRIES.

CHARLES H. OURAND,
Major and Inspector General, Acting Adjutant-General.

OFFICIAL ORDERS SENT OUT.
SALUTES TO BE FIRED AND FLAGS LOWERED AFLOAT AND
ASHORE.

Secretary of State Hay and Secretary of the Treasury Gage, the only Cabinet officers in town, held a consultation on the morning of the 13th as a result of which the following order was issued:

DEPARTMENT OF STATE, *Washington, Sept. 14.*

To the Secretary of the Navy:

Out of respect to the memory of the President, the executive departments will be closed to-day and on the day of the funeral.

JOHN HAY.

A similar order was communicated to all the heads and acting heads of the executive departments in Washington by government telegraph. They in turn issued the necessary orders for the closing of their respective departments, not only in Washington, but throughout the country. In a short time the large buildings were deserted, except by a few clerks detailed to aid their chiefs in the promulgation of necessary orders.

In addition to issuing the order closing the Navy Department, Acting Secretary Hackett dispatched the following order to every commander-in-chief, to every navy yard, and to every United States ship, stating simply:

It is with profound sorrow that the department announces to you the death of President McKinley at 2:15, September 14.

The Acting Secretary also issued the following order to the naval branch of the United States:

[SPECIAL ORDER No. 12.]

NAVY DEPARTMENT, *Washington, Sept. 14, 1901.*

The President of the United States died this morning at 2:15, in the city of Buffalo, N.Y. Officers and men of the navy and Marine Corps need not to be reminded of the public and private virtues of their late Commander-in-Chief. The whole people loved William McKinley, for he loved and trusted them.

As soldier, statesman, husband, and as a pure-minded, great-hearted American, his fame now belongs to his country.

Under the Constitution, Theodore Roosevelt, previously Vice-President, has become President and Commander-in-Chief of the navy and Marine Corps of the United States.

F.W. HACKETT,
Acting Secretary.

The ceremonies to be observed are provided for in the naval regulations as follows:

Upon the receipt of official intelligence of the death of the President of the United States, the senior officer shall direct that on the following day the ensign and union jack be displayed at half-mast from sunrise to sunset, and guns fired every half hour from all ships present. Similar orders shall be given at naval stations.

A naval regulation provides that salutes shall not be fired on Sunday except in cases wherein international courtesy would suffer from the

breach. Therefore the firing of the guns will take place on Monday at those points where the department's announcement was received yesterday.

ORDER TO THE ARMY.

A dispatch was received at the War Department on the afternoon of the 13th from Secretary Root approving the draft of the order to the army, announcing the death of President McKinley. It was sent to all officers in command. The order follows:

HEADQUARTERS OF THE ARMY,
ADJUTANT GENERAL'S OFFICE,
Washington, September 14.

General orders:

1. The following order of the Secretary of War announces to the army the death of William McKinley, President of the United States:

WAR DEPARTMENT, *Washington, September 14.*

The distressing duty devolves upon the Secretary of War of announcing to the army the death of William McKinley, President of the United States, which occurred at Buffalo, N.Y., at 2:15 o'clock A.M., on the 14th day of September, 1901.

The grief into which the nation has been plunged at the untimely death of its Chief Magistrate will be keenly felt by the army of the United States, in which, in his early manhood, he rendered distinguished and patriotic services, and in whose welfare he manifested at all times a profound and abiding solicitude.

Appropriate funeral honors will be paid to the memory of the late President and Commander-in-Chief at the headquarters of every military division and department, at every military port, at the United States Military Academy, West Point, and at every camp of troops of the United States in the field.

The Lieutenant-General of the army will give the necessary instructions for carrying this order into effect.

ELIHU ROOT,
Secretary of War.

2. On the day after the receipt of this order at the headquarters of military commands in the field and at each military station and at the Military Academy, at West Point, the troops and cadets will be paraded at 10 o'clock, A.M., and the order read to them, after which all labor for the day will cease.

THIRTEEN GUNS AT DAWN.

3. At dawn thirteen guns will be fired at each military post, and afterward at intervals of thirty minutes between the rising and setting sun a single gun, and at the close of the day the salute of the Union of forty-five guns.

The national flag will be displayed at half-staff at the headquarters of the several military divisions and departments, and at all military posts, stations, forts, and buildings and vessels under the control of the department until the remains of the late Chief Magistrate are consigned to their final resting place at Canton, Ohio, on the afternoon of Thursday, the 19th instant, on which day all labor will be suspended at all military posts and stations and on all public works under the direction of the department, and at 12 o'clock meridian twenty-one minute guns will be fired from all military posts and stations.

The officers of the army of the United States will wear the usual badge of mourning on their swords and the colors of the various military organizations of the army will be draped in mourning for the period of one month.

4. The following officers of the army will, with a like number of officers of the navy selected for the purpose, compose the guard of honor, and accompany the remains of their late Commander-in-Chief from the National Capital to Canton, Ohio, and continue with them until they are consigned to their final resting place:

The Lieutenant-General of the Army.

Maj.-Gen. John R. Brooke.

Maj.-Gen. Elwell S. Otis.

Maj.-Gen. Arthur MacArthur.

Brig.-Gen. George L. Gillespie.

By command of Lieut.-Gen. Miles.

THOMAS WARD,
Acting Adjutant-General.

The following order then issued:

WAR DEPARTMENT, *Washington, Sept. 14.*

The Secretary of War announces to the army that upon the death of William McKinley, President of the United States, Theodore Roosevelt, Vice-President, has succeeded to the office of President of the United States, by virtue of the Constitution.

ELIHU ROOT,
Secretary of War.

Secretary Root also gave directions to the officers of the department to make the necessary arrangements and issue orders for the participation of the army in the funeral ceremonies, following the Garfield precedent.

The following order was issued by the Secretary of the Treasury to the Revenue Cutter Service:

The department announces to the service the sad tidings of the death of the President. The flags of all vessels of the Revenue Cutter Service will be carried at half-mast until otherwise ordered.

**MR. GAGE ANNOUNCES DEATH.
HEAD OF TREASURY PAYS TRIBUTE TO THE LATE PRESIDENT
MCKINLEY.**

Secretary Gage issued the following announcement of the death of President McKinley:

It has been thought proper to make sad but official announcement in this issue of Treasury Decisions of the tragic death of William McKinley, twenty-fifth President of the United States, and to give some expression of that tribute which his character and deeds compel.

It needed not the shadows of death to make the figure of the late President loom large in the estimate of mankind.

The republic he loved he lived to broaden and unify as no previous President had done. Under his prudent and far-seeing statesmanship it took exalted place in the community of nations.

From his place as private citizen, on through many and increasing honors to his final post as ruler of his people, he remained true to the highest ideals.

By the people of the nation at large and by the world he was known and will live in grateful annals as a gentleman of noble heart, an affectionate husband, a sturdy friend, and a faithful and illustrious President.

In a long public life, ever open to his fellows, nothing was ever found, even by intemperate partisan zeal, that would cast a shade upon his character.

The kindly and unselfish attributes which his colleagues knew and loved, the public felt, and now men of every faith and following join in reverent acknowledgment of those distinctive virtues and abilities that lift him among the truly great of all ages.

The passing of Presidents and Kings usually evokes tributes of praise, but in William McKinley's life there was an element that made him more than ruler, and which, in the hour of his death, is above the tribute of speech and tears.

The ordinary tributes paid to the memory of the great when they pass from earth utterly fail to satisfy the mind in an attempted application of them to our dead President.

L.J. GAGE,
Secretary.

CERTIFICATE OF THE CORONER.
FORMAL RECORD OF MCKINLEY'S DEATH FOR BUREAU OF
VITAL STATISTICS.

The coroner of Erie County issued the following certificate of death of the late President:

CITY OF BUFFALO,
BUREAU OF VITAL STATISTICS,
COUNTY OF ERIE, STATE OF NEW YORK.

Certificate and record of death of William McKinley:

I hereby certify that he died on the 14th day of September, 1901, about 2:15 o'clock A.M., and that to the best of my knowledge and belief the cause of death was as hereunder written:

Cause, gangrene of both walls of stomach and pancreas following gunshot wound.

Witness my hand this 14th day of September, 1901.

H.R. GAYLORD, M.D.

H.Z. MATZINGER, M.D.

JAMES F. WILSON, *Coroner*.

Date of death—September 14, 1901.

Age—58 years, 7 months, 15 days.

Color—White.

Single, married, etc.—Married.

Occupation—President of the United States.

Birthplace—Niles, Ohio.

How long in the United States, if foreign born—

Father's name—William McKinley.

Father's birthplace—Pennsylvania, U.S.

Mother's name—Nancy McKinley.

Mother's birthplace—Ohio, U.S.

Place of death—1168 Delaware avenue.

Last previous residence—Washington, D.C.

Direct cause of death—Gangrene of both walls of stomach and pancreas following gunshot wound.

OFFICIAL ORDER OF OBSERVANCES.

ORDER OF ARRANGEMENTS FOR THE OBSEQUIES AT
WASHINGTON CITY OF WILLIAM MCKINLEY, LATE PRESIDENT
OF THE UNITED STATES.

The remains of the late President will arrive in Washington at 8:30 o'clock P.M. on Monday, the 16th of September, 1901, and will be escorted to the Executive Mansion by a squadron of United States Cavalry.

On Tuesday, the 17th instant, at 9 o'clock A.M., they will be borne to the Capitol, where they will lie in state in the rotunda from 10 o'clock P.M. until 6 P.M. that date.

The following morning there will be exercises at the Capitol at 10 o'clock. At 1 P.M. the remains will be borne to the depot of the Pennsylvania Railroad, and thence conveyed to their final resting place at Canton, Ohio.

FROM WHITE HOUSE TO CAPITOL.
ORDER OF PROCESSION FOR TUESDAY.

SECTION I.

Funeral Escort,
Under Command of
Maj.-Gen. John R. Brooke, U.S.A.
Artillery Band.
Squadron of Cavalry.
Company A, United States Engineers.
Two Batteries C Artillery.
Marine Band.
Battalion of Marines.
Battalion of United States Seamen.
Brigade of National Guard, District of Columbia.

SECTION II.

Under Command of Chief Marshal,
Gen. Henry V. Boynton.
Clergymen in Attendance.
Physicians who attended the late President.

Military Order of the Loyal Legion of the United States.
Grand Army of the Republic.
Guard of Honor. Guard of Honor.
Hearse.
Bearers. Bearers.

Officers of the army, Navy and Marine Corps in this city who are not on duty with the troops forming the escort will form, in full dress, right in front, on either side of the hearse—the army on the right and the Navy and Marine Corps on the left—and compose the guard of honor.

Family of the late President.
Relatives of the late President.
Ex-President of the United States.

SECTION III.

THE PRESIDENT.
The Cabinet Ministers.
The Diplomatic Corps.
The Chief Justice and Associate Justices of the Supreme Court of the United States.
The Senators of the United States.
Members of the U.S. House of Representatives.
Governors of States and Territories.
Commissioners of the District of Columbia.
The Judges of the Court of Claims, the Judiciary of the District of Columbia, and Judges of the United States Courts.
The Assistant Secretaries of State, Treasury, War, Navy, Interior and Agricultural Departments.
The Assistant Postmasters General.
The Solicitor General and the Assistant Attorneys General.
Organized Societies.

The troops designated to form the escort will assemble on the north side of Pennsylvania avenue, facing the Executive Mansion, left resting on the eastern entrance to the grounds, and in inverse order, so that when the column is formed to the left, the organizations will be in the order above

described. The formation will be completed at 9 A.M. on Tuesday, the 17th instant.

The civic procession will form in accordance with the directions to be given by the chief marshal.

The officers of the army and navy selected to compose the special guard of honor will be at the Capitol so as to receive the remains upon arrival there.

WEDNESDAY'S SOLEMN PAGEANT.

Order of procession for Wednesday:

The military guard will escort the remains from the Capitol to the railroad station.

The troops on that date will assemble on the east side of the Capitol and form line fronting the eastern portico of the Capitol precisely at 1 o'clock P.M.

The procession will move, upon the conclusion of the services at the Capitol (commencing at 1 o'clock P.M.), when minute guns will be fired at the navy yard, by the vessels of war which may be in port, and at Fort Myer, and by a battery of artillery stationed near the Capitol for that purpose.

At the same hour the bells of the several churches, fire engine-houses, and schoolhouses will be tolled, the firing of the minute-guns and the tolling of the bells to continue until the departure of the remains of the late Chief Magistrate for the railroad depot.

At 2:30 o'clock P.M. the officers of the army and navy selected to compose the special guard of honor will assemble at the Pennsylvania depot in time to receive the body of the late President, and deposit it in the car prepared for that purpose.

As the necessary limits of time do not permit personal communication with the public officers of the United States and of the several States

enumerated in the foregoing order, they are respectfully requested to accept the invitation to take part in the exercises conveyed through the publication hereof, and to send notice of their intention to be present to the Secretary of War at the War Department in Washington.

Organizations and civic societies desiring to take part are requested to send similar notice at the earliest time practicable to the chief marshal of the civic procession, Gen. Henry V. Boynton, Wyatt Building, Washington, D.C.

JOHN HAY,
Secretary of State.

ELIHU ROOT,
Secretary of War.

JOHN D. LONG,
Secretary of the Navy.

HENRY B.F. MACFARLAND,
President of the Board of Commissioners of the District of Columbia.

ORDER OF PROCESSION.

The procession then started at slow march up Pennsylvania avenue toward the White House. It moved in the following order:

Four mounted police outriders.

Platoon of forty policemen on foot, Capt. Francis E. Cross, commanding.

Platoon of sixteen mounted policemen abreast, Sergt. Matthews, commanding.

Cavalry escort from Fort Myer, consisting of Troops I and L, under command of Maj. Walter L. Finlay. Staff, Maj. Thomas, Fifth Cavalry; Maj. George L. Davis, surgeon; Chaplain C.E. Pierce, Capt. S.H. Elliott, adjutant. Troop I, under command of Capt. C.E. Brooks and Second Lieut. A.S. Fuger, and Troop L, under command of Lieut. W.B. Scales.

Three veteran society representatives, Mr. John McElroy, national senior vice-commander of the Grand Army of the Republic; Israel W. Stone, commander of the Department of the Potomac of the Grand Army of the Republic, and Gen. R.G. Dyrenforth, national commander of the Union Veteran Union.

Platoon of representatives of veteran organizations, Col. J.T. Wilkinson, Spanish War Veterans; Col. J. Edwin Browne, Union Veteran Legion; Chaplain C.E. Stevens, Department of the Potomac, Grand Army of the Republic; A.M. Daniels, commander

Post No. 6, Department of the Potomac; Past Commander George P. Davis, of Burnside Post; A.R. Greene, past department commander of Kansas; Grand Commander John M. Meacham, Department of the Potomac, Union Veterans' Union; Arthur Hendricks, past commander Department of the Potomac, Grand Army of the Republic; L.K. Brown, of Burnside Post, Grand Army of the Republic.

Remains of the President.

ORDERS TO GUARD OF HONOR.

The following special order was issued on the 16th:

The special guard of honor, composed of general officers of the army and admirals of the navy, will not march in the procession contemplated for Tuesday. The special guard of honor—general officers of the army, active and retired; the admirals of the navy, active and retired—not otherwise instructed will assemble in full dress as follows:

Monday, September 16, 1901, at the White House at 8 P.M.

Tuesday, September 17, 1901, at the east front of the Capitol at 9:30 A.M.

Acting Secretary Hackett has issued the following order to govern the navy in the funeral ceremonies:

[SPECIAL ORDER No. 13.]

NAVY DEPARTMENT, *Washington, Sept. 16, 1901.*

All officers on the active list of the navy and Marine Corps on duty in Washington will assemble in full dress uniform at 7:30 P.M. Monday evening, September 16, at Pennsylvania Railroad station for the purpose of meeting the remains of the late President of the United States. They will again assemble in the same uniform in the grounds of the Executive Mansion and near the eastern gate at 9 A.M. on Tuesday, September 17, to march as guard of honor in the procession from the Executive Mansion to the Capitol.

The following special guard of honor is hereby appointed:

The Admiral of the Navy, Rear Admiral A.S. Crowninshield, Rear Admiral Charles O'Neil, Paymaster-General A.S. Kenny, Brig.-Gen. Charles Heywood, U.S.M.C.

The special guard of honor will assemble in special full dress uniform at the Executive Mansion at 8 P.M. Monday, September 16, to receive the remains of the late President, and will again assemble in the same uniform at the Capitol at 10 A.M. Tuesday, September 17, and will thence accompany the remains of President McKinley to their final resting place in Canton, Ohio.

All officers of flag rank will constitute an additional special guard of honor, and will assemble at the places hereinbefore mentioned for the special guard of honor. The additional special guard of honor will not, however, accompany the remains of the late President to Canton.

F.W. HACKETT,
Acting Secretary.

The following official statement, making important changes in the plans for the funeral services over the remains of President McKinley in this city, was made public:

In compliance with the earnest wishes of Mrs. McKinley that the body of her husband shall rest in her home at Canton Wednesday night, the following changes in the obsequies of the late President will be made:

Funeral services in the rotunda of the Capitol will be held Tuesday morning on the arrival of the escort which will accompany the remains from the White House. The body of the late President will lie in state in the rotunda for the remainder of Tuesday, and will be escorted to the railroad station Tuesday evening. The funeral train will leave Washington at or about 8 o'clock Tuesday evening, and thus will arrive at Canton during the day Wednesday.

JOHN HAY,
Secretary of State.
ELIHU ROOT,
Secretary of War.
JOHN D. LONG,
Secretary of the Navy.
H.B.F. MACFARLAND,
President Board of Commissioners of the District of Columbia.

HOUSE COMMITTEE NAMED.
LIST WIRED BY SPEAKER HENDERSON.

The following dispatch from Speaker Henderson named the House committee:

New York, Sept. 15, 1901.

Hon. Henry Casson, Sergeant-at-arms, House of Representatives, Washington, D.C.:

I have appointed the following committee for Presidential funeral and escort. Notify them at once, requesting answer. Give each date of funeral and hour of leaving Washington:

Grosvenor, Ohio; Burton, Ohio; Tayler, Ohio; Loud, California; Russell, Connecticut; Ball, Delaware; Cannon, Illinois; Hitt, Illinois; Hopkins, Illinois; Steele, Indiana; Hepburn, Iowa; Curtis, Kansas; Burleigh, Maine; Mudd, Maryland; Gillett, Massachusetts; Corliss, Michigan; Fletcher, Minnesota; Mercer, Nebraska; Sulloway, New Hampshire; Loudenslager, New Jersey; Payne, New York; Sherman, New York; Marshall, North Dakota; Tongue, Oregon; Bingham, Pennsylvania; Grow, Pennsylvania; Dalzell, Pennsylvania; Capron, Rhode Island; Burke, South Dakota; Foster, Vermont; Cushman, Washington; Dovener, West Virginia; Babcock, Wisconsin; Mondell, Wyoming; Richardson, Tennessee; Bankhead, Alabama; McRae, Arkansas; Bell, Colorado; Sparkman, Florida; Lester, Georgia; Glenn, Idaho; Smith, Kentucky; Robertson, Louisiana; Williams, Mississippi; De Armond, Missouri; Edwards, Montana; Newlands, Nevada; Cummings, New York; W.W. Kitchin, North Carolina; Norton, Ohio; Elliott, South Carolina; Lanham, Texas; Swanson, Virginia; Bodie, New Mexico; Flynn, Oklahoma; Smith, Arizona.

Acknowledge receipt of this telegram. I will be at funeral.

D.B. HENDERSON.

ACTION OF CONGRESS.

Upon the assembly of the Fifty-seventh Congress in its first session convened, President Roosevelt referred in touching terms to the assassination of the late President McKinley. (Page 417.)

The Senate on December 3, 1901, adopted the following resolution:

Resolved, That a committee of eleven Senators be appointed on the part of the Senate, to join such committee as may be appointed on the part of the House, to consider and report on what token of respect and affection it may be proper for the Congress of the United States to express the deep sensibility of the nation to the tragic death of the late President, William McKinley, and that so much of the message of the President as relates to that deplorable event be referred to such committee.

The committee on the part of the Senate comprised the following named gentlemen: Mr. Foraker, Mr. Allison, Mr. Fairbanks, Mr. Kean, Mr. Aldrich, Mr. Nelson, Mr. Perkins, Mr. Jones of Arkansas, Mr. Morgan, Mr. Cockrell and Mr. McEnery.

The House of Representatives on December 3, passed the following resolution:

Resolved, That a committee of one member from each State represented in this House be appointed on the part of the House to join such committee as may be appointed on the part of the Senate, to consider and report by what token of respect and affection it may be proper for the Congress of the United States to express the deep sensibility of the nation to the tragic death of the late President, William McKinley, and that so much of the message of the President as relates to that deplorable event be referred to that committee.

The committee on the part of the House of Representatives comprised the following named gentlemen:

Ohio, Charles H. Grosvenor; California, Julius Kahn; Connecticut, E. Stevens Henry; Delaware, L. Heister Ball; Illinois, Vespasian Warner; Indiana, James E. Watson; Iowa, Robert G. Cousins; Idaho, Thomas L. Glenn; Kansas, Justin D. Bowersock; Maine, Amos L. Allen; Maryland, George A. Pearre; Massachusetts, William C. Lovering; Michigan, William Alden Smith; Minnesota, Page Morris; Montana, Caldwell Edwards; Nebraska, Elmer J. Burkett; New Hampshire, Frank D. Currier; New Jersey, Richard Wayne Parker; New York, John H. Ketcham; North Dakota, Thomas F. Marshall; North Carolina, Spencer Blackburn; Oregon, Malcolm A. Moody; Pennsylvania, Marlin E. Olmsted; Rhode Island, Melville Bull; South Dakota, Eben W. Martin; Utah, George Sutherland; Vermont, Kittredge Haskins; Washington, Wesley L. Jones; West Virginia, Alston G. Dayton; Wisconsin, Herman B. Dahle; Wyoming, Frank W. Mondell; Alabama, Oscar W. Underwood; Arkansas, Hugh A. Dinsmore; Florida, Robert W. Davis; Georgia, William H. Fleming; Kentucky, James N. Kehoe; Louisiana, Adolph Meyer; Mississippi, Charles E. Hooker; Missouri, Champ Clark; South Carolina, W. Jasper Talbert; Tennessee, John A. Moon; Texas, John L. Sheppard; Virginia, James Hay; Colorado, John F. Shafroth; Nevada, Francis G. Newlands.

The following concurrent resolutions were adopted by both Houses of Congress on January 15th, 1902:

Whereas the melancholy event of the violent and tragic death of William McKinley, late President of the United States, having occurred during the recess of Congress, and the two Houses sharing in the general grief and desiring to manifest their sensibility upon the occasion of the public bereavement: Therefore,

Be it resolved by the House of Representatives (the Senate concurring), That the two Houses of Congress will assemble in the Hall of the House of Representatives on a day and hour fixed and announced by the joint

committee, to wit, Thursday, February 27, 1902, and that, in the presence of the two Houses there assembled, an address on the life and character of William McKinley, late President of the United States, be pronounced by Hon. John Hay, and that the President of the Senate pro tempore and the Speaker of the House of Representatives be requested to invite the President and ex-President of the United States, ex-Vice-Presidents, the heads of the several Departments, the judges of the Supreme Court, the representatives of the foreign governments, the governors of the several States, the Lieutenant-General of the Army and the Admiral of the Navy, and such officers of the Army and Navy as have received the thanks of Congress who may then be at the seat of Government to be present on the occasion, and such others as may be suggested by the executive committee.

And be it further resolved, That the President of the United States be requested to transmit a copy of these resolutions to Mrs. Ida S. McKinley, and to assure her of the profound sympathy of the two Houses of Congress for her deep personal affliction, and of their sincere condolence for the late national bereavement.

*** END OF THE PROJECT GUTENBERG EBOOK A SUPPLEMENT
TO A COMPILATION OF THE MESSAGES AND PAPERS OF THE
PRESIDENTS: WILLIAM MCKINLEY ***

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